

**CLERK'S SUMMARY SHEET FOR
POSTCONVICTION APPLICATIONS FOR WRIT OF HABEAS CORPUS
UNDER CODE OF CRIMINAL PROCEDURE, ARTICLES 11.07 AND 11.071**

Application for Writ of Habeas Corpus

Ex Parte BABAK A. TAHERZADEH
(Name of Applicant)

from Dallas County

CRIMINAL DISTRICT COURT #3

TRIAL COURT WRIT NO. W16-12037-J(A)

APPLICANT'S NAME (As reflected in judgment): BABAK A. TAHERZADEH

OFFENSE (As reflected in judgment): STALKING

CAUSE NO. (As reflected in judgment): F16-12037-J

PLEA: ☒ GUILTY ☐ NOT GUILTY

SENTENCE: 4 YEARS-DEFERRED PROBATION DATE: December 1, 2017
(Terms of years reflected in judgment)

TRIAL DATE: December 1, 2017

TRIAL JUDGE'S NAME (Judge presiding at trial): Judge Kerry Fitzgerald

APPEAL NO. (If applicable): N/A

CITATION TO OPINION (If applicable): S.W.3d

HEARING HELD: ☒ YES ☐ NO
(Pertaining to the application for writ of habeas corpus)

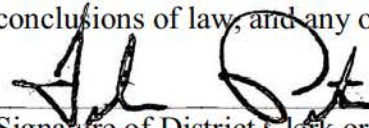
FINDINGS & CONCLUSIONS ENTERED BY HABEAS JUDGE: ☐ YES ☒ NO
(Pertaining to the application for writ of habeas corpus)

RECOMMENDATION: ☐ GRANT ☐ DENY ☒ DISMISS ☐ NONE
(Habeas judge's recommendation regarding application for writ of habeas corpus)

HABEAS JUDGE'S NAME: Judge Rick Beacom
(Judge presiding over habeas corpus proceeding)

NAME OF HABEAS COUNSEL IF APPLICANT IS REPRESENTED: Pro Se

I certify that all applicable requirements of Texas Rule of Appellate Procedure 73.4 have been complied with in this habeas proceeding, including the requirement to serve on all the parties in the case any objections, motions, affidavits, exhibits, proposed findings of fact and conclusions of law, findings of fact and conclusions of law, and any other orders entered or pleadings filed in the habeas case.

 by: Regina Taylor Deputy
Signature of District Clerk or Clerk's Representative

11/6/2019
Date Signed

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THE STATE OF TEXAS

VS.

BABAK A. TAHERZADEH

Cause No.: W16-12037-J(A)

IN THE CRIMINAL DISTRICT COURT NO. 3

DALLAS COUNTY, TEXAS

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**FELICIA PITRE
DALLAS COUNTY DISTRICT CLERK**

NINA MOUNTIQUE
CHIEF DEPUTY

November 05, 2019

To: Babak Taherzadeh
8150 N. Stemmon Frwy. E1057
Dallas, Texas 75247

RE: Ex Parte: Babak Taherzadeh
Trial Court No: F16-12037-J
Writ No: W16-12037-J (A)

Mr. Taherzadeh:

On September 30, 2019, Judge Richard Beacom, Jr., sitting for the presiding judge of the court, issued *Order Finding Non Controverted, Previously Unresolved Factual Issues Requiring a Hearing*. Judge Beacom in his order notes that the court lacked jurisdiction over the matter because of the incorrect W-prefix cause number. To rectify this, the clerk has issued a new cause number consistent with probation writs: WX19-90873(J).

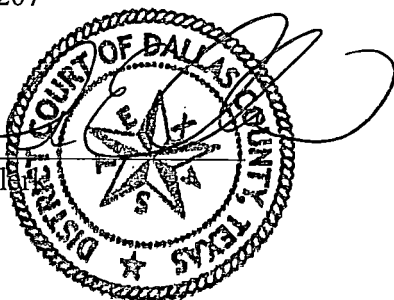
If you have additional questions, you can contact our office at the address below.

Thank you,

Marisela Escamilla
Criminal Support Supervisor
133 N. Riverfront Blvd, LB #12
Dallas, Texas 75207
214-653-5959

By: _____

Deputy Clerk





FELICIA PITRE
DISTRICT CLERK
Frank Crowley Courts Building
133 N. Riverfront, LB 12
Dallas, Texas 75207-4300

RETURN SERVICE REQUESTED

Babak Taherzadeh
8150 N. Stemmon Frwy. E1057
Dallas, Texas 75247

DEPUTY
DALLAS CO. TEXAS
DISTRICT CLERK
FELICIA PITRE

19 NOV -5 PM 3:57



The State of Texas vs. BABAK A TAHERZADEH
DOB: 9/16/1970 Sex: Male Race: White

CDC3

SID No. TX04500806
AIS No. <#CID#>

GJ Witness: j. chevalier # 0709 no subs must appear

C	Offense	LD	Statute	Agency	TRN	TRS	NCIC Code
1	- STALKING	F3	PC 42.072(b)	TX0570400	925850529 8	A001	13160014

INDICTMENT NO.: F1612037

IN THE NAME AND BY THE AUTHORITY OF THE STATE OF TEXAS:

The Grand Jury of Dallas County, State of Texas, duly organized at the JULY Term, A.D., 2016 of the 363rd Judicial District Court for said County, upon its oath do present in and to said Court at said term,

That **BABAK A TAHERZADEH**, hereinafter called Defendant, **on or about and between the 30th day of September, 2015 and the 22nd day of June, 2016** in the County of Dallas, State of Texas, did pursuant to the same scheme and course of conduct, then and there engage in conduct directed specifically toward B. BIRMINGHAM, hereinafter known as complainant, that the defendant knew or reasonably should have known said complainant would regard as threatening bodily injury or death of the complainant, and by knowingly engaging in conduct that constituted an offense under Section 42.07 of the Texas Penal Code, namely SAID DEFENDANT POSTED THREATS DIRECTED TOWARDS COMPLAINANT AND AGAINST COMPLAINANT'S LIFE ON SOCIAL MEDIA, and the defendant's said conduct would cause a reasonable person to, and did cause COMPLAINANT, to BE PLACED IN FEAR OF BODILY INJURY OR DEATH,

Count I, Paragraph 2

And it is further presented in and to said Court, that Babak A Taherzadeh, hereinafter called defendant, on or about and between the dates of 30th day of September, 2015, and the 22nd day of June, 2016, in the County of Dallas, State of Texas, did, pursuant to the same scheme and course of conduct, then and there knowingly engage in conduct directed specifically toward B. BIRMINGHAM AND MEMBERS OF B. BIRMINGHAM'S FAMILY AND HOUSEHOLD, that the defendant knew or reasonably should have known said B. BIRMINGHAM would regard as threatening bodily injury or death of the B. BIRMINGHAM AND MEMBERS OF B. BIRMINGHAM'S FAMILY, and that constituted an offense under Section 42.07 of the Texas Penal Code, namely SAID DEFENDANT INITIATED ELECTRONIC COMMUNICATIONS THREATENING MEMBERS OF B. BIRMINGHAM'S FAMILY, AND SAID DEFENDANT DIRECTED THE CONTENTS OF SOCIAL MEDIA POSTS TOWARDS B. BIRMINGHAM AND MEMBERS OF B. BIRMINGHAM'S FAMILY, and the defendant's said conduct would cause a reasonable person to, and did cause Against the peace and dignity of the State of Texas.

FILED
2016 SEP 12 AM 10:19
CLERK OF DISTRICT COURT
DALLAS COUNTY, TEXAS

Foreman of the Grand Jury



B. BIRMINGHAM AND MEMBERS OF SAID B. BIRMINGHAM'S FAMILY AND HOUSEHOLD, to BE PLACED IN FEAR OF BODILY INJURY OR DEATH,

Count I, Paragraph 3

And it is further presented in and to said court, that BABAK A TAHERZADEH, hereinafter called Defendant, on or about and between the dates of 30th day of September, 2015, and the 22nd day of June, 2016, in the County of Dallas, State of Texas, did, pursuant to the same scheme and course of conduct, then and there engage in conduct directed specifically toward B. BIRMINGHAM, hereinafter known as complainant, by knowingly engaging in conduct that constituted an offense under Section 42.07 of the Texas Penal Code, namely BY REPEATEDLY INITIATING ELECTRONIC COMMUNICATIONS TARGETING SAID COMPLAINANT AND BY REPEATEDLY DIRECTING THE CONTENTS OF SOCIAL MEDIA POSTS TOWARDS COMPLAINANT IN A MANNER REASONABLY LIKELY TO HARASS, ANNOY, ALARM, ABUSE, TORMENT, EMBARRASS, AND OFFEND SAID COMPLAINANT AND BY INITIATING COMMUNICATIONS WITH COMPLAINANT DURING WHICH SAID DEFENDANT MADE COMMENTS, REQUESTS, SUGGESTIONS AND PROPOSALS THAT WERE OBSCENE, AND BY WISHING SAID COMPLAINANT'S DEATH, and the defendant's said conduct would cause a reasonable person to, and did cause COMPLAINANT, to FEEL HARASSED, ANNOYED, ALARMED, ABUSED, TORMENTED, EMBARRASSED AND OFFENDED,

Count I, Paragraph 4

And it is further presented in and to said Court, that BABAK A TAHERZADEH, hereinafter called Defendant , on or about and between SEPTEMBER 30, 2015 and JUNE 22, 2016, in the County of Dallas and State of Texas, did, pursuant to the same scheme and course of conduct, then and there knowingly engage in conduct directed specifically toward B. BIRMINGHAM, hereinafter known as complainant, that the defendant knew or reasonably should have known said complainant would regard as threatening bodily injury or death of the complainant, namely BY REPEATEDLY INITIATING ELECTRONIC COMMUNICATIONS TARGETING SAID COMPLAINANT AND BY REPEATEDLY DIRECTING THE CONTENTS OF SOCIAL MEDIA POSTS TOWARDS COMPLAINANT IN A MANNER REASONABLY LIKELY TO HARASS, ANNOY, ALARM, ABUSE, TORMENT, EMBARRASS, AND OFFEND SAID COMPLAINANT AND BY INITIATING COMMUNICATIONS WITH COMPLAINANT DURING WHICH SAID DEFENDANT MADE COMMENTS, REQUESTS, SUGGESTIONS AND PROPOSALS THAT WERE OBSCENE, AND BY WISHING SAID COMPLAINANT'S DEATH, and the defendant's said conduct would cause a reasonable person to, and did cause COMPLAINANT, to be placed in fear of bodily injury or death,

Count I, Paragraph 5

And it is further presented in and to said Court, that each of the foregoing acts was committed pursuant to the same scheme and course of conduct that was directed specifically at B. BIRMINGHAM AND MEMBERS OF B. BIRMINGHAM'S FAMILY AND HOUSEHOLD,

Against the peace and dignity of the State.

FILED
2016 SEP 12 AM 10:19
CLERK
DISTRICT CLERK
DALLAS CO. TEXAS
DEPUTY

Marn Spoon
Foreman of the Grand Jury



FILED

2016 SEP 12 AM 10:19

TELLER
DISTRICT CLERK
DALLAS CO., TEXAS
DEPUTY

Against the peace and dignity of the State.

Matt Spier
Foreman of the Grand Jury

2016-005245

F1612037

THE STATE OF TEXAS)
)
COUNTY OF DALLAS)

AFFIDAVIT FOR ARREST WARRANT OR CAPIAS

Before me the undersigned authority, on this day personally appeared the undersigned affiant who, after being duly sworn by me, on oath stated:

My name is J. Chevallier #709, and I am a peace officer of the City of Carrollton, Dallas County, Texas.

I have good reason to believe and do believe that on or about 09/30/15 one TAHERZADEH, BABAK A did then and there in the City of CARROLLTON, DALLAS County, Texas commit the offense of STALKING, a violation of Section 42.072 of the TEXAS PENAL CODE, a 3rd Degree Felony.

Affiant's belief is based upon the following facts and information which Affiant received from:

[X] Affiant's personal investigation of this alleged offense.

[] J. CHEVALLIER 0709, a fellow peace officer of the City of Carrollton, Dallas County, Texas who personally participated in the investigation of this alleged offense, providing this information to Affiant, and whose information affiant believes to be credible.

Complainant, Brandon Birmingham, reported to the Carrollton Police Department that beginning on or about September 30, 2015 he has been the victim of stalking through continuous electronic communications that are harassing, embarrassing, alarming, abusive and threatening in nature. The suspect is Babak Taherzadeh.

Birmingham is the Presiding Judge of the 292nd Judicial District Court in Dallas County, Texas. In June of 2015, Taherzadeh was a defendant in a court proceeding in the 292nd District Court. The State was requesting the Court to hold Taherzadeh's bond insufficient in a case in which he was continuing to harass the complaining witness through social media and email. As a compromise to both parties, Birmingham ordered Taherzadeh to refrain from using social media and email except for thunderfence@gmail.com and babakteherzadeh@gmail.com.

Around September of 2015, Birmingham began receiving notifications that his Twitter account, "@JudgeBirmingham" was being tagged and mentioned by "babakTheBlue" with the Twitter handle "@brutallas". One of the first tweets from babakTheBlue read "@radleybalko this guy @JudgeBirmingham is the guy who threatened me with jail for using social media". It should be noted that Taherzadeh was the only defendant in Birmingham's court around that time in which he ordered a defendant to stay off social media.

Around that same time, another account named "thunderFence," twitter handle "@thunderFence" would retweet or comment on some of the tweets from "@babakTheBlue". On October 12, 2015 a tweet from a Dallas Police Officer Monica Cordova, or "@MonicaDPD", replied to "@brutallas" saying "@brutallas, hope this helps you. Good Luck Mr. Taherzadeh.", to which he replied "@MonicaDPD should not be getting personal". At that time, Birmingham recused

himself from the case.

On October 21, 2015, another District Judge held Taherzadeh's bond from the initial case insufficient for violating Birmingham's order to stay off of social media. On October 26, 2015, Birmingham received a Facebook message from "Lance Krack" that used the same type of language and themes that Taherzadeh had used in his Twitter posts. The message specifically referred to Birmingham's recusal in the case and said that Birmingham "must be held to account". It should be noted that this case was not publicized and the fact that Birmingham recused himself would have been known only to those involved in or closely following the case. Taherzadeh remained in the custody of the Dallas County Jail until February of 2016, during which time, there were no tweets or messages from Taherzadeh.

Beginning in March of 2016, Birmingham began receiving more communications on Twitter from "@Thunderfence", "@FetusJunior," and "@A_Failed_Smile". The account "@thunderfence" has a photograph attached to the handle. The photograph is a portion of the right side of a face that appears to be Babak Taherzadeh. Using these accounts, and following the same pattern, Taherzadeh communicated false, disparaging comments about Birmingham, usually tagging members of the media, law enforcement, colleagues, politicians, or any other person that Birmingham had contact with through social media. Birmingham reported the behavior to Twitter and those 3 accounts were suspended. Leading up to June of 2016 he created 3 other accounts, "@Shartgarden," "@KuntReturn," and "@ThunderFence2" operating in the same way as he had previously. Birmingham made numerous complaints to Twitter about those accounts which were also suspended. Up until that time, Taherzadeh used offensive and abusive language, accusing Birmingham of pedophilia, rape, racism, adultery and murder. Following his usual pattern, he tagged members of the media, local politicians, local schools, professional colleagues, and any other people that Birmingham had contact with.

On June 5, 2016, Birmingham began receiving notifications from his latest accounts, "@truth2Cunts", and "@bindinadulation". He posted a pictures of Birmingham from an article written about the judge 8 years ago, a case he prosecuted 6 years ago, and continued to weave conspiracy theories based on current events, placing Birmingham in the middle: The Baylor University sex scandal, the Orlando Shooting, Donald Trump's visit to Dallas, Gun Control, and the Dallas Police Association. On June 13, 2016, he references his own previous Tweet from September 30, 2015 when he used the Twitter handle @Thunderfence. In the June 13, 2016 Tweet, he again tagged @RadleyBalko and says "same judge who threatened person with jail for using twitter. Person was jailed for using Twitter.".

On June 8, 2016, Taherzadeh used the Twitter account "@truth2cunts" in a post that read "wanna see me bitch slap a State District Judge? I am not one to trifle with." On June 9, 2016 Taherzadeh used "@truth2cunts" tagged Birmingham in a post that read "that judge a fraud. He is the racist @DPA_Police Assoc bitch. Bye bye B4 2018". Birmingham is up for reelection in 2018.

Starting on June 15, 2016, Taherzadeh used the account "@bindingadulation" to post a Tweet referencing Birmingham's wife. On June 16, 2016 the same account posted "Word. Cunt. Racist. Skank=@JudgeBirmingham". Birmingham has a son who is 6 years old and has red hair. Using the account "@truth2cunts", Taherzadeh refers to his son saying "I feels so bad for his kids. That's why they so fucked more than just regular red-headed step child". This tweet also reveals that he knows that Birmingham has more than one child ("kids" and "they").

Also on June 16, 2016, Taherzadeh threatened Birmingham by posting, "Bandaged hand in hand @JudgeBirmingham" and "Support the life of @CraigSagerJr and pray for the death of @JudgeBirmingham. Cunt supports racist @DPA_PoliceAssoc & @realDonaldTrump."

Since September of 2015, Taherzadeh has used 10 Twitter Accounts (@thunderFence, @babakTheBlue, @brutallas, @fetusJunior, @A_Failed_Smile, @Kunt_Return, @ShartGarden, @Thunderfence2, @truth2Cunts, @bindinadulation) to harass, alarm, embarrass, abuse and threaten Birmingham and his family. He has made approximately 300 electronic communications about Birmingham, disparaging his character to colleagues, friends, professional and charitable organizations, and members of the media. Since all this began, Birmingham has become exceedingly paranoid and has changed his daily habits. Birmingham's family has been deeply affected as well. Given the escalating nature of his bizarre fixation on Birmingham and his family, his abusive and sexually violent language, his threats, and his delusional ideations, Birmingham is in fear for the life of his family, and for his own.

J. C. Fourn #709
AFFIANT

WHEREFORE, Affiant requests that an arrest warrant be issued for the above accused individual in accordance with the law.

SUBSCRIBED AND SWORN TO BEFORE ME
on the 21st day of June, 2016

[Signature]
(MAGISTRATE) (NOTARY PUBLIC) (PEACE OFFICER) IN AND FOR DALLAS COUNTY, TEXAS
Bennett

MAGISTRATE'S DETERMINATION OF PROBABLE CAUSE

On this the 21st day of June, 2016 the undersigned Magistrate hereby acknowledges that he has examined the above affidavit and has determined that probable cause exists for the issuance of an arrest warrant for the individual accused herein.

DALLAS COUNTY

[Signature]
MAGISTRATE, IN AND FOR DALLAS COUNTY, TEXAS
Bennett

THE STATE OF TEXAS

CAUSE NO. F 16 12077 -J

VS.

CRIMINAL DISTRICT COURT #3

Babak Taherzadeh

DALLAS COUNTY, TEXAS

PLEA AGREEMENT

State ID No:

Incident No / TRN:

Attorney for State: G. McDonald

Attorney for Defendant: P. Johnson

Offense: Stalking

Statute for Offense:

Charging Instrument:

☒ Indictment

☐ Information

Date of Offense: 9/30/15

Degree of Offense:

3d

Affirmative finding of deadly weapon: ☐ YES

☐ NO

Type of Weapon:

Affirmative finding of family violence: ☐ YES

☐ NO

Ignition Interlock required

☐ YES

☐ NO

Affirmative finding of bias or prejudice: ☐ YES

☐ NO

If yes, Group:

Sentence to run

☐ CONCURRENTLY

☐ CONSECUTIVELY

WITH

Time Credit:

From

To

From

To

Sex Offender Registration

☐ DOES

☐ DOES NOT

apply.

Age of victim at time of offense:

TO THE HONORABLE JUDGE OF SAID COURT:

The defendant herein and the attorneys for both the defendant and the State waive a jury trial and make the following agreement:

Defendant's Plea:

☒ Guilty

☐ Nolo contendere

☐ Defendant will testify.

☐ Defendant will not testify

Plea to enhancement paragraph(s):

☐ True

☐ Not true

Type of Plea:

☒ Plea bargain

☐ Open plea

Open as to:

☐ Fine

☐ Restitution

☐ Community Supervision

☐ Deferred Adjudication

☐ Other

State's recommendation:

Agreed sentence:

☐ Confinement in ☐ penitentiary ☐ state jail ☐ county jail for _____ ☐ years ☐ months ☐ days

☐ Post-conviction community supervision, confinement probated for _____ ☐ years ☐ months ☐ days

☒ Deferred community supervision for 4 ☒ years ☐ months ☐ days

☒ Fine of \$ 1000 ☐ to be paid ☒ to be probated

☐ Boot Camp ☐ Shock Probation ☐ Substance Abuse Felony Program

☐ CENIKOR ☐ Judicial Treatment Center ☐ Dallas County Jail Chemical Dependency Program

☐ Restitution in the amount of \$ _____

☐ Defendant will sign waiver of extradition ☐ Defendant knowingly and voluntarily waives appeal

☐ Defendant Waives a court reporter

☒ Other:

held for 21M / No Contact w/ Judge B. in person

☐ Back-time included:

☐ Back time NOT included

or his family

☐ **CHANGE OF NAME** (Applicable only if box is checked)

The defendant having suggested that his/her true name is other than that set forth in the charging instrument, and having moved that the charging instrument and all other documents in this cause be amended to show his/her true name to be _____, said motion is hereby granted. It is so ordered.

COURT'S ADMONITIONS TO DEFENDANT

You are charged with the offense of: Stalking
The punishment range for the offense charged is:

- ☐ 1st Degree Felony, 5-99 years or Life and an optional fine not to exceed \$10,000.00
- ☐ 2nd Degree Felony, 2-20 years confinement and an optional fine not to exceed \$10,000.00
- ☒ 3rd Degree Felony, 2-10 years confinement and an optional fine not to exceed \$10,000.00
- ☐ State Jail Felony, 180 days – 2 years State Jail and an optional fine not to exceed \$10,000.00
- ☐ _____

You have an absolute right to a jury trial, to confront and cross-examine the witnesses against you, and to call witnesses in your own behalf. You have a right to testify, but you cannot be compelled to do so. The prosecuting attorney's recommendation as to punishment is not binding on the Court. If the Court rejects any plea bargain made in this case, you may withdraw your plea of guilty or *nolo contendere*. If the punishment assessed by the Court is not greater than that which you have plea-bargained, you may not appeal on any matter in the case unless the Court grants permission for the appeal or the matters appealed were raised by written motion filed and ruled on before the plea. If you enter a plea of guilty or *nolo contendere* and there is no plea bargain, the court may assess your punishment anywhere within the range allowed by law. If you are not a citizen of the United States, a plea of guilty or *nolo contendere* may, and under current Federal Immigration rules *is almost certain to*, result in your deportation, removal, exclusion from admission to the United States, or denial of naturalization. If you have a court-appointed attorney, you have a right to ten days from the date of the attorney's appointment to prepare for trial. You have the right to be tried on an indictment returned by a Grand Jury, and, unless you are on bond, a right to two entire days after being served with a copy of the charging instrument before being arraigned. If you receive unadjudicated community supervision and violate its conditions, you may be arrested and subjected to a hearing limited to determining whether or not guilt should be adjudicated. If guilt is adjudicated the full range of punishment is open to the Court. All proceedings, including assessment of punishment, pronouncement of sentence, granting of community supervision, and an appeal, then continue as if the adjudication of guilt had not been deferred. [In sex offense cases, see Court's Admonition to Sex Offenders, which is incorporated by reference and attached hereto.]

DEFENDANT'S STATEMENTS AND WAIVERS

With the approval of counsel, defendant makes the following statements and waivers. I am the accused in the charging instrument and am mentally competent. I understand the nature of the accusation made against me, the range of punishment for such offense, and the consequences of a plea of guilty or *nolo contendere*. I understand that I have an absolute right to a jury trial, that I have the right to remain silent, that anything I say can and will be used against me, that I have the right to confront and cross-examine the witness against me, and that I have a right to be tried upon an indictment returned by a grand jury. I understand that if

I am not a United States citizen, a plea of guilty or *nolo contendere* will probably result in my deportation from the United States, exclusion from admission to the United States, or denial of naturalization under Federal law.

I hereby waive my right to be tried on an indictment returned by a grand jury; any and all defects, errors, or irregularities, whether of form or substance, in the charging instrument; my right to a jury trial; and my right to remain silent. I waive arraignment and reading of the charging instrument; the appearance, confrontation, and cross-examination of witnesses on the issues of guilt and punishment; my right to ten days to prepare for trial after the appointment of counsel (if counsel has been appointed); and the preparation of a pre-sentence report. I consent to the oral or written stipulation of evidence or testimony, to the introduction of testimony by affidavits or written statements of witnesses, and to all other documentary evidence.

I admit and judicially confess that I committed the offense of Stalking on 9/30/15, exactly as alleged in the charging instrument. I affirm that my plea and judicial confession are freely and voluntarily made, and not influenced by any consideration of fear, persuasion, or delusive hope of pardon or parole.

I understand the admonitions regarding unadjudicated community supervision, and that I will be required to register as a sex offender if convicted of, or placed on community supervision for, one of the offenses enumerated under Court's Admonition to Sex Offenders, attached hereto. I understand that under the Uniform Extradition Act, should I be charged with a violation of my community supervision and be arrested in another state, I have the right to require the issuance and service of a warrant of extradition, the right to hire legal counsel, or, if indigent, to have counsel appointed, and the right to apply for a writ of habeas corpus to contest my arrest and return to this State.

☒ I voluntarily and knowingly waive my rights under the Extradition Act, waive extradition, and waive my right to contest my return to the State of Texas from any jurisdiction where I may be found. I understand and agree that such waiver is irrevocable.

☒ I understand that I have a right to appeal to the Court of Appeals. After consulting with my attorney, I do expressly, voluntarily, knowingly, and intelligently give up and waive my right to any appeal if the Court follows the terms of the State's recommendation as to sentencing.

☐ I waive and give up my right to have a court reporter make a record of these court proceedings as provided by Rule 13.1 of the Texas Rules of Appellate Procedure.

☐ **DEFENDANT'S PLEA TO ENHANCEMENT PARAGRAPH(S) (Applicable only if box is checked)**

I, the defendant, plead true to the enhancement allegations included in the:

☐ first ☐ second ☐ first & second
enhancement paragraph(s) which is/are contained in the charging instrument or the State's Notice of Enhancement, and judicially confess that I am the same person who was previously duly and legally convicted of the offense(s) alleged therein.

SIGNATURES AND ACKNOWLEDGMENTS

I, the defendant herein, acknowledge that my attorney has explained to me, and I have read and I understand, all the foregoing admonitions and warnings regarding my rights and my plea, and that my statements and waivers are knowingly, freely, and voluntarily made with full understanding of the consequences. I request that the Court accept all my waivers, statements, agreements, and my plea.

2/8/17
Date

[Signature]
Defendant

Printed Name

I have consulted with the defendant, whom I believe to be competent, concerning the plea in this case and have advised the defendant of his/ her rights. I approve and agree to all waivers, statements, and agreements of the defendant herein and ask the Court to accept them and the defendant's plea.

2/8/17
Date

[Signature]
Attorney for Defendant

State Bar Number

Printed Name

As attorney for the State, I hereby consent to and approve the requests, waivers, agreements, and stipulations in this instrument.

2/8/2017
Date

FAITH JOHNSON, Criminal District Attorney, Dallas County

[Signature]
Assistant District Attorney

24060267
State Bar Number

[Signature]
Printed Name

It appearing to the Court that the defendant is mentally competent and is represented by counsel, that the defendant understands the nature and consequences of the charge, and that all the parties have consented to and approved the waiver of jury trial and stipulations of evidence, the Court finds the waivers, agreements, and plea to have been knowingly, freely, and voluntarily made, approves the waivers and agreements, accepts the defendant's plea, approves the stipulation of testimony, and approves the change of name contained herein (if applicable).

2-9-17
Date

[Signature]
Judge

The State of Texas vs. BABAK A TAHERZADEH

DOB: 9/16/1970 Sex: Male Race: White>

SID No. TX04500806 AIS No. <#CID#>

FILED
CDC3

2017 FEB -9 AM 9:59

FELICIA PITRE
DISTRICT CLERK
DALLAS COUNTY, TEXAS
NCIC Code
13160014 DEPUTY

C	Offense	LD	Statute	Agency	TRN	TRS	
1	- STALKING	F3	PC 42.072(b)	TX0570400	9258505298	A001	13160014

Cause No. F1612037

THE STATE OF TEXAS

§ IN THE Criminal District Court No. 3

VS.

§ OF

BABAK A TAHERZADEH

§ DALLAS COUNTY, TEXAS

JUDICIAL CONFESSION

Comes now Defendant in the above cause, in writing and in open Court, and consents to the stipulation of the evidence in this case and in so doing expressly waives the appearance, confrontation and cross-examination of witnesses. I further consent to the introduction of this Judicial Confession, and testimony orally, by affidavits, written statements of witnesses and other documentary evidence. Accordingly, having waived my Federal and State constitutional right against self-incrimination, and after having been sworn, upon oath, I judicially confess to the following facts and agree and stipulate that these facts are true and correct and constitute the evidence in this case:

on or about and between the 30th day of September, 2015 and the 22nd day of June, 2016, in Dallas County, Texas, I did pursuant to the same scheme and course of conduct, then and there engage in conduct directed specifically toward B. BIRMINGHAM, hereinafter known as complainant, that the defendant knew or reasonably should have known said complainant would regard as threatening bodily injury or death of the complainant, and by knowingly engaging in conduct that constituted an offense under Section 42.07 of the Texas Penal Code, namely SAID DEFENDANT POSTED THREATS DIRECTED TOWARDS COMPLAINANT AND AGAINST COMPLAINANT'S LIFE ON SOCIAL MEDIA, and the defendant's said conduct would cause a reasonable person to, and did cause COMPLAINANT, to BE PLACED IN FEAR OF BODILY INJURY OR DEATH,

Count I, Paragraph 2

And it is further presented in and to said Court, that Babak A Taherzadeh, hereinafter called defendant, on or about and between the dates of 30th day of September, 2015, and the 22nd day of June, 2016, in the County of Dallas, State of Texas, did, pursuant to the same scheme and course of conduct, then and there knowingly engage in conduct directed specifically toward B. BIRMINGHAM AND MEMBERS OF B. BIRMINGHAM'S FAMILY AND HOUSEHOLD, that the defendant knew or reasonably should have known said B. BIRMINGHAM would regard as threatening bodily injury or death of the B. BIRMINGHAM AND MEMBERS OF B. BIRMINGHAM'S FAMILY, and that constituted an offense under Section 42.07 of the Texas Penal Code, namely SAID DEFENDANT INITIATED ELECTRONIC COMMUNICATIONS THREATENING MEMBERS OF B. BIRMINGHAM'S FAMILY, AND SAID DEFENDANT DIRECTED THE CONTENTS OF SOCIAL MEDIA POSTS TOWARDS B. BIRMINGHAM AND MEMBERS OF B. BIRMINGHAM'S FAMILY, and the

F1612037

BABAK A TAHERZADEH

Page 1 of 3

defendant's said conduct would cause a reasonable person to, and did cause B. BIRMINGHAM AND MEMBERS OF SAID B. BIRMINGHAM'S FAMILY AND HOUSEHOLD, to BE PLACED IN FEAR OF BODILY INJURY OR DEATH,

Count I, Paragraph 3

And it is further presented in and to said court, that BABAK A TAHERZADEH, hereinafter called Defendant, on or about and between the dates of 30th day of September, 2015, and the 22nd day of June, 2016, in the County of Dallas, State of Texas, did, pursuant to the same scheme and course of conduct, then and there engage in conduct directed specifically toward B. BIRMINGHAM, hereinafter known as complainant, by knowingly engaging in conduct that constituted an offense under Section 42.07 of the Texas Penal Code, namely BY REPEATEDLY INITIATING ELECTRONIC COMMUNICATIONS TARGETING SAID COMPLAINANT AND BY REPEATEDLY DIRECTING THE CONTENTS OF SOCIAL MEDIA POSTS TOWARDS COMPLAINANT IN A MANNER REASONABLY LIKELY TO HARASS, ANNOY, ALARM, ABUSE, TORMENT, EMBARRASS, AND OFFEND SAID COMPLAINANT AND BY INITIATING COMMUNICATIONS WITH COMPLAINANT DURING WHICH SAID DEFENDANT MADE COMMENTS, REQUESTS, SUGGESTIONS AND PROPOSALS THAT WERE OBSCENE, AND BY WISHING SAID COMPLAINANT'S DEATH, and the defendant's said conduct would cause a reasonable person to, and did cause COMPLAINANT, to FEEL HARASSED, ANNOYED, ALARMED, ABUSED, TORMENTED, EMBARRASSED AND OFFENDED,

Count I, Paragraph 4

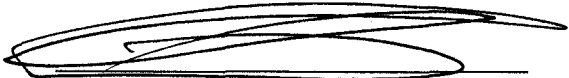
And it is further presented in and to said Court, that BABAK A TAHERZADEH, hereinafter called Defendant , on or about and between SEPTEMBER 30, 2015 and JUNE 22, 2016, in the County of Dallas and State of Texas, did, pursuant to the same scheme and course of conduct, then and there knowingly engage in conduct directed specifically toward B. BIRMINGHAM, hereinafter known as complainant, that the defendant knew or reasonably should have known said complainant would regard as threatening bodily injury or death of the complainant, namely BY REPEATEDLY INITIATING ELECTRONIC COMMUNICATIONS TARGETING SAID COMPLAINANT AND BY REPEATEDLY DIRECTING THE CONTENTS OF SOCIAL MEDIA POSTS TOWARDS COMPLAINANT IN A MANNER REASONABLY LIKELY TO HARASS, ANNOY, ALARM, ABUSE, TORMENT, EMBARRASS, AND OFFEND SAID COMPLAINANT AND BY INITIATING COMMUNICATIONS WITH COMPLAINANT DURING WHICH SAID DEFENDANT MADE COMMENTS, REQUESTS, SUGGESTIONS AND PROPOSALS THAT WERE OBSCENE, AND BY WISHING SAID COMPLAINANT'S DEATH, and the defendant's said conduct would cause a reasonable person to, and did cause COMPLAINANT, to be placed in fear of bodily injury or death,

Count I, Paragraph 5

And it is further presented in and to said Court, that each of the foregoing acts was committed pursuant to the same scheme and course of conduct that was directed specifically at B. BIRMINGHAM AND MEMBERS OF B. BIRMINGHAM'S FAMILY AND HOUSEHOLD,

I further judicially confess that I committed the offense with which I stand charged exactly as alleged in the indictment in this cause.

APPROVED BY:


Attorney for Defendant

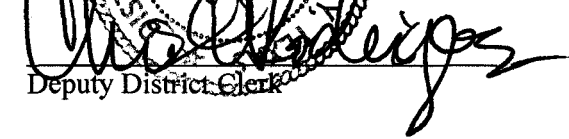

Defendant

SWORN TO AND SUBSCRIBED before me on the 9th day of Feb, 2017

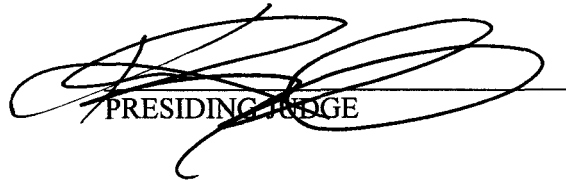
APPROVED BY:


Assistant District Attorney

FELICIA PITRE, CLERK
DISTRICT COURTS OF
DALLAS COUNTY, TEXAS

By: 
Deputy District Clerk

Defendant's agreement to stipulate and waiver of confrontation and cross-examination of witnesses are in all things approved by the Court. The above Judicial Confession is hereby approved by the Court.


PRESIDING JUDGE



CASE NO. F-1612037-J
INCIDENT NO./TRN: 9258505298

THE STATE OF TEXAS

V.

BABAK A. TAHERZADEH

STATE ID No.: TX04500806

§
§
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§
§
§

IN THE CRIMINAL DISTRICT

COURT #3

DALLAS COUNTY, TEXAS

ORDER OF DEFERRED ADJUDICATION

Judge Presiding: HON. Gracie Lewis

Date Order Entered: 2/9/2017

Attorney for State: Gary McDonald

Attorney for Defendant: Paul Johnson

Offense:

STALKING

Charging Instrument:

INDICTMENT

Statute for Offense:

42.072 Penal Code

Date of Offense:

6/22/2016

Degree of Offense:

3RD DEGREE FELONY

Plea to Offense:

GUILTY

Findings on Deadly Weapon:

N/A

Terms of Plea Bargain:

4 YEARS DEFERRED PROBATION; FINE \$1000.00 PROBATED

Plea to 1st Enhancement

Paragraph: N/A

Plea to 2nd Enhancement/Habitual

Paragraph: N/A

Findings on 1st Enhancement

Paragraph: N/A

Findings on 2nd

Enhancement/Habitual Paragraph: N/A

ADJUDICATION OF GUILT DEFERRED;
DEFENDANT PLACED ON COMMUNITY SUPERVISION.

PERIOD OF COMMUNITY SUPERVISION: 4 YEARS

Fine: PROBATED

\$ 1000.00

Court Costs:

\$ 249.00

Restitution:

\$ N/A

Restitution Payable to:

(see below)

☐ AGENCY/AGENT
☐ VICTIM

Sex Offender Registration Requirements do not apply to the Defendant. TEX. CODE CRIM. PROC. chapter 62

The age of the victim at the time of the offense was N/A .

Time N/A DAYS

Credited: NOTES: N/A

All pertinent information, names and assessments indicated above are incorporated into the language of the judgment below by reference.

This cause was called for trial in Dallas County, Texas. The State appeared by her District Attorney as named above.

Counsel / Waiver of Counsel (select one)

☒ Defendant appeared in person with Counsel.



☐ Defendant knowingly, intelligently, and voluntarily waived the right to representation by counsel in writing in open court.

Both parties announced ready for trial. Defendant waived the right of trial by jury and entered a plea as indicated above. The Court admonished the Defendant as required by law. It appeared to the Court that Defendant was mentally competent to stand trial, made the plea freely and voluntarily, and was aware of the consequences of this plea. The Court received the plea and entered it of record. Having heard the evidence submitted, the Court FINDS such evidence substantiates Defendant's guilt. The Court FINDS that, in this cause, it is in the best interest of society and Defendant to defer proceedings without entering an adjudication of guilt and to place Defendant on community supervision.

The Court FINDS the Presentence Investigation, if so ordered, was done according to the applicable provisions of TEX. CODE CRIM. PROC. art. 42.12 § 9.

The Court ORDERS that Defendant is given credit noted above for the time spent incarcerated. The Court ORDERS Defendant to pay all fines, court costs, and restitution as indicated above.

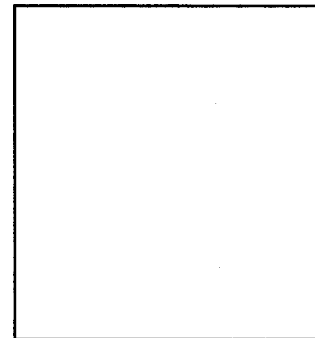
The Court ORDERS that no judgment shall be entered at this time. The Court further ORDERS that Defendant be placed on community supervision for the adjudged period so long as Defendant abides by and does not violate the terms and conditions of community supervision. See TEX. CODE CRIM. PROC. art. 42.12 § 5(a).

Furthermore, the following special findings or orders apply:

HOLD FOR ELM

X *Gracie M. Lewis*
Gracie Lewis
JUDGE PRESIDING

Clerk: DALVAREZ



Right Thumbprint*

*Thumbprint Certification attached.

CONDITIONS OF COMMUNITY SUPERVISION

THE STATE OF TEXAS

IN THE CDC#3
DALLAS COUNTY, TEXAS

vs.

January TERM, 2017

BABAK TAHERZADEH

Probation Type: DEFERRED

Cause No.:
F1612037J

ML. No.: C-575482

Offense:
STALKING

In accordance with the authority conferred by the Community Supervision and Parole Law of the State of Texas you have been placed on Community Supervision on this date 2-9-2017 for a period of 4 years . It is the order of this Court that you comply with the following conditions of supervision:

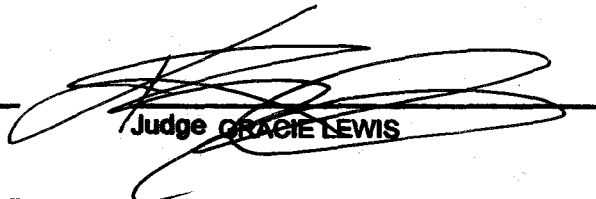
Please see attached list of conditions of Community Supervision

You are hereby advised that under the law of this State, the Court shall determine the terms and conditions of your supervision, and may at any time during the period of Supervision, alter or modify the conditions of your Supervision. The Court also has the authority at any time during the period of Supervision to revoke your Supervision and /or proceed to adjudication for violation of any of the conditions of your Supervision set out above.

Witness our Signatures this 9th Day of February 2017.



Defendant



Judge GRACIE LEWIS



Court Supervision Officer

CONDITIONS OF COMMUNITY SUPERVISION

THE STATE OF TEXAS

IN THE CDC#3
DALLAS COUNTY, TEXAS

Vs.

January TERM, 2017

BABAK TAHERZADEH

Probation Type: DEFERRED

ML. No.: C-575482

Cause No.:

Offense:

F1612037J

STALKING

- (a) Commit no offense against the laws of this or any other State or the United States, and do not possess a firearm during the term of Supervision;
- (b) Avoid injurious and vicious habits, and do not use marijuana, narcotics, dangerous drugs, inhalants or prescription medication without first obtaining a prescription for said substances from a licensed physician;
- (c) Avoid persons or places of disreputable or harmful character and do not associate with individuals who commit offenses against the laws of this State or the United States;
- (d) Obey all rules and regulations of the Supervision Department, and report in the manner and time as directed by the Judge or Supervision Officer, to-wit: Monthly, Twice Monthly or Weekly.
- (e) Permit the Supervision Officer to visit you at your home or elsewhere, and notify the Supervision Officer not less than twenty-four (24) hours prior to any changes in your home or employment address;
- (f) Work faithfully at suitable employment as far as possible, and seek the assistance of the Supervision Officer in your efforts to secure employment when unemployed;
- (g) Remain within a specified place; to-wit: Dallas County, Texas, or Approved Supervising County, and do not travel outside Dallas County, or Approved Supervising County, without first having obtained written permission from the Court or Supervising Officer;
- (h) Report in person immediately upon your release to the District Clerk Felony Collections Dept. 2nd Fl., Room C2-3 Frank Crowley Bldg., to arrange payment of Court Costs (amount to be assessed by Court Clerk), Fine, and, if assessed Attorney Fees. In addition, pay in full all monies as assessed by the Court pursuant to the payment agreement established by the Felony Collections Department.
- (i) Support your dependants;
- (j) Pay a Supervision fee of \$60.00 per month plus a \$2.00 transaction fee to the Supervision Officer of this Court on or before the first day of each month hereafter during Supervision; money order, cashiers check or credit card online at www.payfeesnow.com;
- (k) Participate in the Community based program, Dallas Area Crime Stoppers Inc., by making a monetary contribution of \$50.00 payable through the Community Supervision Officer of this Court as directed within 90 days of being placed on Community Supervision;
- (l) First contact to the Volunteer Center must be made by the defendant

CONDITIONS OF COMMUNITY SUPERVISION

THE STATE OF TEXAS

IN THE CDC#3
DALLAS COUNTY, TEXAS

Vs.

January TERM, 2017

BABAK TAHERZADEH

Probation Type: DEFERRED

ML. No.: C-575482

Cause No.:

Offense:

F1612037J

STALKING

within 30 days from referral and defendant is to start 160 hours of Community Service at an approved Community Service Project or projects designated by the Community Supervision and Corrections Department. A processing fee of \$55.00 payable to the Volunteer Center, will be required for referrals through the Volunteer Center. Hours of service to be completed by term of Supervision;

(m) Report if directed to the Community Supervision and Corrections Department Assessment Treatment and Research Services program (A.T.R.S), Frank Crowley Bldg., 133 N. Riverfront Blvd., 9th floor, Dallas TX 75207, obey all program instructions and/or treatment for Substance Abuse and/or Psychological Health; and continue with such adherence until release is granted by the program or the Court. Pay any costs assessed by ATRS in accordance with program guidelines.

(n) Submit a non-diluted random urine sample and/or medical test/breathalyzer test at the request of the Supervision Officer to determine the use of illicit drugs or alcohol, paying the total cost of such urinalysis of \$200.00 payable at \$10.00 monthly to the Community Supervision and Corrections Department;

(o) Submit as directed, a buccal swab specimen to the Department of Public Safety under Sub-Chapter G, Chapter 411, Government Code, for the purpose of creating a DNA record of the defendant (Article 42.12 & 11(a)(22); All costs incurred are to be paid by the Defendant;

(p) Do not have any form of contact, be it in person, by mail, telephone or any form of communication with Judge Birmingham of the 292nd Judicial District Court, and immediate family directly or indirectly, for the duration of the Supervision Term;

(q) Within 30 days from referral, participate in an anger management program through a court-approved resource, making an observable deliberate and diligent effort to comply with all directives provided by the program until released successfully by the agency or the Court. Defendant to pay all costs of counseling/treatment;

JB ~~CONFIDENTIAL - DALLAS COUNTY, TEXAS~~

(s) Beginning Immediately, and for an indeterminate period thereafter, you must participate in the Community Control Program (CCP)/High Risk Caseload , (HRC). While a participant therein, you shall be under House Arrest and subject to Electronic Monitoring for a period of days. During this monitoring period, you must remain at the monitored residence at all times except during periods approved in advance by your supervision officer. You must comply with all rules of the CCP/HRC, to include the payment for electronic monitoring as determined by the monitoring authority, and complete all program activities and attendant special conditions as stated in your conditions of community supervision until your discharge from CCP/HRC.
DEFENDANT SHALL BE HELD IN JAIL AND RELEASED ONLY TO ELECTRONIC MONITORING/CSCD STAFF

(t) Within 30 days from referral, participate in A Cognitive Behavioral Program and continue in the program making observable deliberate and diligent effort to comply with all directives and instructions provided

CONDITIONS OF COMMUNITY SUPERVISION

THE STATE OF TEXAS

**IN THE CDC#3
DALLAS COUNTY, TEXAS**

Vs.

January TERM, 2017

BABAK TAHERZADEH

Probation Type: DEFERRED

Cause No.:

F1612037J

ML. No.: C-575482

Offense:

STALKING

**by said program or its staff, until released successfully by the agency or the Court.
Defendant to pay all costs and counseling/treatment;**

(v) Do not possess, consume or purchase any alcoholic beverages, or illegal controlled substances during the term of Supervision;

(w) Report to HRC/CCP orientation 09-10-2017 @ 9:00 am SOUTH OFFICE at 214-330-0383, 2726 Coombs Creek Rd., Dallas, TX 75211;

**JUDGMENT
CERTIFICATE OF THUMBPRINT**

THE STATE OF TEXAS

CAUSE NO. F 1612037 **-J**

VS.

CRIMINAL

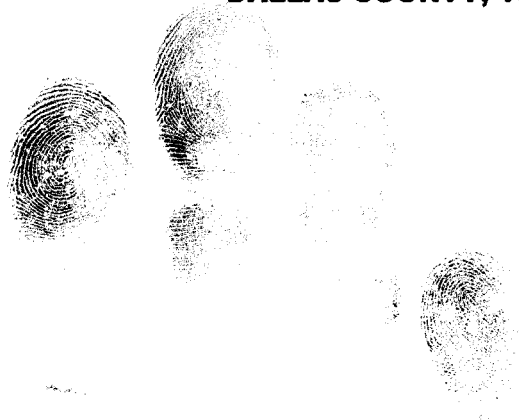
DISTRICT COURT #3

Babak Taherzadeh

DALLAS COUNTY, TEXAS



RIGHT THUMB



DEFENDANT'S R **HAND**

THIS IS TO CERTIFY THAT THE FINGERPRINTS ABOVE ARE THE ABOVE-NAMED DEFENDANT'S FINGERPRINTS TAKEN AT THE TIME OF DISPOSITION OF THE ABOVE STYLED AND NUMBERED CAUSE.

DONE IN COURT THIS 09 **DAY OF** FEB, **20** 17.

Twitt Bram #883
BAILIFF/DEPUTY SHERIFF

***INDICATE HERE IF PRINT OTHER THAN DEFENDANT'S RIGHT THUMBPRINT IS PLACED IN BOX:**

____ **LEFT THUMBPRINT**

____ **LEFT/RIGHT INDEX FINGER**

____ **OTHER,** _____

SIGNED AND ENTERED ON THIS 9 **DAY OF** Feb, **20** 17.


PRESIDING JUDGE



CASE No. F-1612037-J
INCIDENT NO./TRN: 9258505298

THE STATE OF TEXAS

v.

BABAK A. TAHERZADEH

STATE ID No.: TX04500806

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§

IN THE CRIMINAL DISTRICT

COURT #3

DALLAS COUNTY, TEXAS

ORDER OF DEFERRED ADJUDICATION

Judge Presiding: HON. Kerry Fitzgerald Date Order Entered: 2/9/2017 12-1-2017

Attorney for State: Gary McDonald Attorney for Defendant: Paul Johnson

Offense:

STALKING

Charging Instrument:

INDICTMENT

Statute for Offense:

42.072 Penal Code

Date of Offense:

6/22/2016

Degree of Offense:

3RD DEGREE FELONY

Plea to Offense:

GUILTY

Findings on Deadly Weapon:

N/A

Terms of Plea Bargain:

4 YEARS DEFERRED PROBATION; FINE \$1000.00 PROBATED

Plea to 1st Enhancement

Paragraph: N/A

Plea to 2nd Enhancement/Habitual

Paragraph: N/A

Findings on 1st Enhancement

Paragraph: N/A

Findings on 2nd

Enhancement/Habitual Paragraph: N/A

ADJUDICATION OF GUILT DEFERRED;
DEFENDANT PLACED ON COMMUNITY SUPERVISION.

PERIOD OF COMMUNITY SUPERVISION: 4 YEARS

Fine: PROBATED

\$ 1000.00

Court Costs:

\$ 249.00

Restitution:

\$ N/A

Restitution Payable to:

(see below) ☐ AGENCY/AGENT
☐ VICTIM

Sex Offender Registration Requirements do not apply to the Defendant. TEX. CODE CRIM. PROC. chapter 62

The age of the victim at the time of the offense was N/A .

Time N/A DAYS

Credited: NOTES: N/A

All pertinent information, names and assessments indicated above are incorporated into the language of the judgment below by reference.

This cause was called for trial in Dallas County, Texas. The State appeared by her District Attorney as named above.

Counsel / Waiver of Counsel (select one)

☒ Defendant appeared in person with Counsel.



☐ Defendant knowingly, intelligently, and voluntarily waived the right to representation by counsel in writing in open court.

Both parties announced ready for trial. Defendant waived the right of trial by jury and entered a plea as indicated above. The Court admonished the Defendant as required by law. It appeared to the Court that Defendant was mentally competent to stand trial, made the plea freely and voluntarily, and was aware of the consequences of this plea. The Court received the plea and entered it of record. Having heard the evidence submitted, the Court **FINDS** such evidence substantiates Defendant's guilt. The Court **FINDS** that, in this cause, it is in the best interest of society and Defendant to defer proceedings without entering an adjudication of guilt and to place Defendant on community supervision.

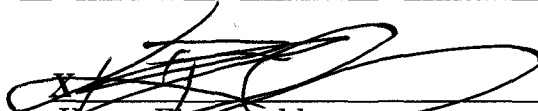
The Court **FINDS** the Presentence Investigation, if so ordered, was done according to the applicable provisions of TEX. CODE CRIM. PROC. art. 42.12 § 9.

The Court **ORDERS** that Defendant is given credit noted above for the time spent incarcerated. The Court **ORDERS** Defendant to pay all fines, court costs, and restitution as indicated above.

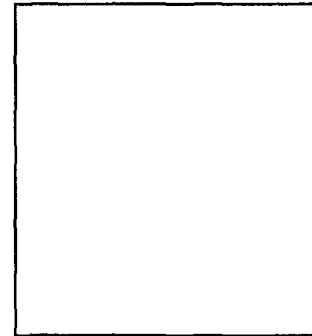
The Court **ORDERS** that no judgment shall be entered at this time. The Court further **ORDERS** that Defendant be placed on community supervision for the adjudged period so long as Defendant abides by and does not violate the terms and conditions of community supervision. See TEX. CODE CRIM. PROC. art. 42.12 § 5(a).

Furthermore, the following special findings or orders apply:

HOLD FOR ELM


Kerry Fitzgerald
JUDGE PRESIDING

Clerk: DALVAREZ



Right Thumbprint*

*Thumbprint Certification attached.

CONDITIONS OF COMMUNITY SUPERVISION

THE STATE OF TEXAS

IN THE CDC#3
DALLAS COUNTY, TEXAS

vs.

January TERM, 2018

BABAK TAHERZADEH
Probation Type: DEFERRED
Cause No.:
F1612037J

ML. No.: C-575482
Offense:
STALKING

In accordance with the authority conferred by the Community Supervision and Parole Law of the State of Texas you have been placed on Community Supervision on this date 2-9-2017 for a period of 4 years . It is the order of this Court that you comply with the following conditions of supervision:

Please see attached list of conditions of Community Supervision

You are hereby advised that under the law of this State, the Court shall determine the terms and conditions of your supervision, and may at any time during the period of Supervision, alter or modify the conditions of your Supervision. The Court also has the authority at any time during the period of Supervision to revoke your Supervision and /or proceed to adjudication for violation of any of the conditions of your Supervision set out above.

Witness our Signatures this 9th Day of February 2017

Refused to Sign
Defendant

[Signature]
Court Supervision Officer

[Signature] (signed 6-1-2018)
Judge

CONDITIONS OF COMMUNITY SUPERVISION

THE STATE OF TEXAS

IN THE CDC#3
DALLAS COUNTY, TEXAS

Vs.

January TERM, 2018

BABAK TAHERZADEH

Probation Type: DEFERRED

Cause No.:

F1612037J

ML. No.: C-575482

Offense:

STALKING

- (a) Commit no offense against the laws of this or any other State or the United States, and do not possess a firearm during the term of Supervision;
- (b) Avoid injurious and vicious habits, and do not use marijuana, narcotics, dangerous drugs, inhalants or prescription medication without first obtaining a prescription for said substances from a licensed physician;
- (c) Avoid persons or places of disreputable or harmful character and do not associate with individuals who commit offenses against the laws of this State or the United States;
- (d) Obey all rules and regulations of the Supervision Department, and report in the manner and time as directed by the Judge or Supervision Officer, to-wit: Monthly, Twice Monthly or Weekly.
- (e) Permit the Supervision Officer to visit you at your home or elsewhere, and notify the Supervision Officer not less than twenty-four (24) hours prior to any changes in your home or employment address;
- (f) Work faithfully at suitable employment as far as possible, and seek the assistance of the Supervision Officer in your efforts to secure employment when unemployed;
- (g) Remain within a specified place; to-wit: Dallas County, Texas, or Approved Supervising County, and do not travel outside Dallas County, or Approved Supervising County, without first having obtained written permission from the Court or Supervising Officer;
- (h) Report in person immediately upon your release to the District Clerk Felony Collections Dept. 2nd Fl., Room C2-3 Frank Crowley Bldg., to arrange payment of Court Costs (amount to be assessed by Court Clerk), Fine, and, if assessed Attorney Fees. In addition, pay in full all monies as assessed by the Court pursuant to the payment agreement established by the Felony Collections Department.
- (i) Support your dependants;
- (j) Pay a Supervision fee of \$60.00 _____ per month plus a \$2.00 transaction fee to the Supervision Officer of this Court on or before the first day of each month hereafter during Supervision; money order, cashiers check or credit card online at www.payfeesnow.com;
- (k) Participate in the Community based program, Dallas Area Crime Stoppers Inc., by making a monetary contribution of \$50.00 payable through the Community Supervision Officer of this Court as directed within 90 days of being placed on Community Supervision;
- (l) First contact to the Volunteer Center must be made by the defendant

CONDITIONS OF COMMUNITY SUPERVISION

THE STATE OF TEXAS

IN THE CDC#3
DALLAS COUNTY, TEXAS

Vs.

January TERM, 2018

BABAK TAHERZADEH

Probation Type: DEFERRED

ML. No.: C-575482

Cause No.:

Offense:

F1612037J

STALKING

within 30 days from referral and defendant is to start 160____ hours of Community Service at an approved Community Service Project or projects designated by the Community Supervision and Corrections Department. A processing fee of \$55.00 payable to the Volunteer Center, will be required for referrals through the Volunteer Center. Hours of service to be completed by term of Supervision;

(m) Report if directed to the Community Supervision and Corrections Department Assessment Treatment and Research Services program (A.T.R.S), Frank Crowley Bldg., 133 N. Riverfront Blvd., 9th floor, Dallas TX 75207, obey all program instructions and/or treatment for Substance Abuse and/or Psychological Health; and continue with such adherence until release is granted by the program or the Court. Pay any costs assessed by ATRS in accordance with program guidelines.

(n) Submit a non-diluted random urine sample and/or medical test/breathalyzer test at the request of the Supervision Officer to determine the use of illicit drugs or alcohol, paying the total cost of such urinalysis of \$200.00 payable at \$10.00 monthly to the Community Supervision and Corrections Department;

(o) Submit as directed, a buccal swab specimen to the Department of Public Safety under Sub-Chapter G, Chapter 411, Government Code, for the purpose of creating a DNA record of the defendant (Article 42A sec 301); All costs incurred are to be paid by the Defendant;

(p) Do not have any form of contact, be it in person, by mail, telephone or any form of communication with JUDGE BIRMINGHAM OF 292ND JUDICIAL DISTRICT COURT, and immediate family directly r indirectly, for the duration of Supervision Term;

(q) Within 30 days from referral, participate in an anger management program through a court-approved resource, making an observable deliberate and diligent effort to comply with all directives provided by the program until released successfully by the agency or the Court. Defendant to pay all costs of counseling/treatment;

(t) Within 30 days from referral, participate in A Cognitive Behavioral Program and continue in the program making observable deliberate and diligent effort to comply with all directives and instructions provided by said program or its staff, until released successfully by the agency or the Court. Defendant to pay all costs of counseling/treatment;

(v) Do not possess, consume or purchase any alcoholic beverages, or illegal controlled substances during the term of Supervision;

(w) Beginning immediately and for no less than 30 days participate in the Electronic Monitoring Program. EXCLUSION ZONES include Carrollton and/or Dallas County Crowley Courts, unless ordered to report. Faithfully participate in all rules, regulations and programs deemed appropriate by the ELM program. Pay any and all costs associated with the electronic monitoring equipment and/or monitoring service as determined by the Court or Supervision Officer. Costs of service is \$7.50 per day.

Cause No: 16 12037

State of Texas vs. B. Taherzadeh

COURT'S ADMONISHMENT ON RIGHT TO ORDER OF NONDISCLOSURE

If you have been placed on deferred adjudication community supervision and subsequently receive a discharge and dismissal, and you satisfy the requirements set forth below, you may petition the court for an order of nondisclosure pursuant to Section 411.081 of the Texas Government Code. Except as provided below, you may petition the court regardless of whether you have been previously placed on deferred adjudication community supervision for another offense. After notice to the State and a hearing on whether you are entitled to file the petition and whether issuance of the order is in the best interest of justice, the court shall issue an order prohibiting criminal justice agencies from disclosing to the public criminal history record information related to the offense for which you were placed on deferred adjudication. A criminal justice agency may disclose criminal history record information that is the subject of the order only to other criminal justice agencies, for criminal justice or regulatory licensing purposes, an agency or entity specifically listed in Section 411.081, or the person who is the subject of the order.

You may petition this court for an order of nondisclosure on payment of a \$28 fee to the clerk of the court in addition to any other fees that generally apply to the filing of a civil petition. The petition may be made only on or after:

- (1) the discharge and dismissal, if the offense for which you were placed on deferred adjudication was a misdemeanor other than a misdemeanor described by number (2) below;
- (2) the second anniversary of the discharge and dismissal, if the offense for which you were placed on deferred adjudication was a misdemeanor under Chapter 20, 21, 22, 25, 42, 46, Penal Code; or
- (3) the fifth anniversary of the discharge and dismissal, if the offense for which you were placed on deferred adjudication was a felony.

You are entitled to petition the court for nondisclosure only if during the period of the deferred adjudication community supervision for which the order of nondisclosure is requested and during the applicable period described by number (1), (2), or (3) above, as appropriate, you were not convicted of, or placed on deferred adjudication community supervision for, any offense other than an offense under the Transportation Code punishable by fine only. You are not entitled to petition the court if you were on placed on deferred adjudication community supervision for or have been previously convicted or placed on any other deferred adjudication for:

- (1) an offense requiring registration as a sex offender under Chapter 62, Code of Criminal Procedure;
- (2) an offense under Penal Code Section 20.04 (Aggravated Kidnapping), regardless of whether the offense is a reportable conviction or adjudication for purposes of Chapter 62, Code of Criminal Procedure;
- (3) an offense under Penal Code Sections 19.02 (Murder), 19.03 (Capital Murder), 22.04 (Injury to a Child, Elderly Individual, or Disabled Individual), 22.041 (Abandoning or Endangering a Child), or 25.07 (Violation of Court Order or Conditions of Bond in a Family Violence Case); or
- (4) any other offense involving family violence, as defined by Family Code Section 71.004.

You are considered to have been placed on deferred adjudication community supervision if, regardless of the statutory authorization:

- (1) you entered a plea of guilty or nolo contendere;
- (2) the judge deferred further proceedings without entering an adjudication of guilt and placed you under the supervision of the court or an officer under the supervision of the court; and
- (3) at the end of the period of supervision the judge dismissed the proceedings and discharged you.


JUDGE

I ACKNOWLEDGE THAT I HAVE BEEN INFORMED OF MY RIGHTS, AS SET FORTH ABOVE, TO PETITION THE COURT FOR AN ORDER OF NONDISCLOSURE UNDER SECTION 411.081 OF THE TEXAS GOVERNMENT CODE.

2/9/17

Date

x 
Defendant

W16-12037-J(A)

THE STATE OF TEXAS	δ	IN CDC #3
v.	δ	Dallas County, Texas
BABAK TAHERZADEH	δ	trial court cause no F16-12037

PETITION FOR WRIT OF HABEAS CORPUS

TO THE HONORABLE JUSTICE OF THE COURT:

I, Babak Taherzadeh, respectfully petition for Writ of Habeas Corpus seeking relief from unlawful control and restraint by the District Courts of Dallas specifically Judge Brandon Birmingham and CDC #3, the Dallas County District Attorneys Office specifically Asst. DA Gary McDonald and the Community Supervision and Corrections Department Director Javed Syed. I have been in jail or under some form of restraint or custody in case F16-12037 in the Criminal District Courts of Dallas County since June 21, 2016. Previously I petitioned for Writ on 10/24/2017 (Wx1790064) for relief from unlawful restraint from 02/09/2017 Order of Deferred Adjudication because it was invalid as well as a myriad of other grounds. It was ruled invalid but despite assertions of the State issues returned and remain and continue to riddle this prosecution with so many errors, irregularities, and even crimes it is difficult to describe without becoming incoherent.

I am unable to retain representation. I wish I could. I have never been provided effective legal counsel at any stage. Effective legal counsel would prepare a more proper petition that would challenge each issue clearly while protecting my rights. This Petition with oral arguments requested seeks relief under 11.07 of TRCP from control, custody and restraint from Order to Defer and community supervision dated 12/01/2017 on grounds including but not limited to the following:

1. I unquestionably withdrew Plea 12/6/2017. SEE EXHIBIT B. My Plea from February 2017 was to the a single violation of Penal Code 42.07 on 9/30/2015 contained in 1 count of indictment.SEE EXHIBIT A1-A4. Art. 21.24 of TRCP requires separate counts for separate offenses and a count can only alleged a single offense. Count 1 Paragraph 3 alleges a violation of 42.07. The Docket incorrectly notes that I Pled Guilty to Counts 3-5. SEE EXHIBIT F. The sentence and orders of the court allege an offense 6/22/2016. SEE EXHIBIT H1 & H2. I was in the Carrollton Jail 6/21-6/23/2016. Furthermore, I never stalked Judge Birmingham & Statute is unconstitutional.

2. The Trial Court lacked Jurisdiction on December 1, 2017 to issue Order to Deferred Adjudication and community supervision under TRCP specifically Art. 42A.202(a)(b) and Art.42A.203(b) . SEE H1 & H2 Only the trial judge has the authority to order deferred adjudication community supervision. The trial court retains power for only 180 days after announcing a sentence. I appeared 12-01-2017 without trial counsel Paul Johnson.
3. Criminal District Court #3 in Dallas County lacks Jurisdiction when no probation violation occurred. The Order for Deferred Adjudication ordering community supervision with conditions dated 2/9/17 was invalid and ruled 'void' by Judge Kerry Fitzgerald . See G There can be no violation of a "void" order. There can be no modification or continuation of a void order. The District court where a violation occurs would potentially have jurisdiction. But there was no violation . I didn't violate a condition. Furthermore, the order and condition with it were "void" thus there can not be violations of a void order. No Violation . Void Order. No Conditions. No Violation . No Jurisdiction.
4. Even if it had Jurisdictional Authority, The Order to Defer Adjudication and order community supervision that was assembled and affixed with the date 12/01/2017 fails to satisfy Art. 42A.101(b) of Texas Code of Criminal Procedure which requires the Judge after placing defendant on deferred adjudication community supervision inform defendant of consequences of under 42A.108 and 42A.110 of a probation violation. SEE E & E-2 This failure and its injury was denial of the constitutional right to due process of law thus grounds for instant reversal .
5. The Trial Court and all the Courts of the Criminal District of the First Administrative District lack authority when the Presiding Judge of the entire Judicial Criminal District Courts is the alleged victim in criminal proceedings in that district. When the ethical, legal and responsible requirement is unquestionably disqualification , Judge Birmingham's assignment of this case to his own court is evidence of a insufferable fraud bereft of integrity who lacks the temperament, character and judgement worthy to operate a amusement park ride much less a District Court of the State of Texas. Remember his previous recusal the prior year in F14-75584 , he didn't. Both his signing of order granting his own recusal the following day , again after assigning the case initially to his own court , are barred by The Constitution of Texas and TRCP which

prohibits a judge from sitting in any case where they maybe the party injured. “No Judge shall sit in any case wherein the judge may be interested party...” and “No Judge or justice of the peace shall sit in any case where he may be the party injured..” both are in no way unclear.

Witnesses To The True Character of Judge Brandon Birmingham include:

-Gary Perkins of the DeSoto Police Department who recorded Brandon Birmingham admitting a case was dropped because of campaign contribution of defendants attorney . Perkins suffered retaliation by being placed on the Dallas County Prosecutors Brady Listed of problem officers. I can provide the recording of Brandon Birmingham by DeSoto Police.

-Michelle Fernandez who Garland PD witnessed being assault by Hector Fernandez. Her father. The assault was sexual in nature. The investigation revealed a horrid story of years of sexual assault of young girl by her father starting when she was very little. I will provide investigative reports which include unconscionable crimes against that poor young child.. And while Hector Fernandez enjoyed freedom out on bail I can provided the Judge Brandon Birmingham's signed Order Dismissing charges against an incestuous child rapist in July 2016 “in order to eliminate the overcrowded conditions of this Honorable Court’s docket...this case should be dismissed” as cause . Around that same time I was arrested for speech, against of a elected official , on twitter, for felony stalking and case was assigned to overcrowded docket of the alleged victims court using “judicial and prosecutorial manpower.” Hell, four Carrollton police officers (buddies of Birmingham who worked on the prosecution that got a lot of notoriety) were stalking me in Dallas and arrested me in Dallas on my way to work and took me and my car and possession to Carrollton before finally taking me back to Dallas, the Dallas County Jail and Dallas County Sheriffs.

-Commissioner John Wiley Price who received “concerns” from other District Court Judges and Public Defender about the assignment of high profile case by Judge Birmingham . Always seeking fame and celebrity he was keeping easy high profile cases

with media coverage for himself as well as using his office for podcast and recording campaign messages to solicit donations and using county provided health care coverage to pay for his boutique weight reduction procedure claiming his health was at risk. Adding his name in large lettering installed visibly on the wall for when cameras are present. Suddenly standing during televised proceeding. Using public provided resources to appear on any program to opine on any cases without any knowledge of the laws of that state or municipality.

-**Peri Wood** contributed to candidate Brandon Birmingham's campaign and was handsomely rewarded with appointment as court reporter of the 292nd after Brandon Birmingham barely won what was expected to be a cake walk for the democratic candidate. He apparently fired the previous court reporter of the 292nd who didn't contribute to his campaign. Strangely, Birmingham received more contributions in the period after the election than he received in the reporting period before the election. because he's a bought and sold whoer

-**Uvaldo Perez** "mexican" who was shot by Officer Amber Guyger the year before she murdered "a black." Perez wasn't taken to court despite the rules of Brandon Birmingham's 292nd until he agreed to plea. A common scheme Birmingham pulls. Dash Cam video of the incident was buried. Guyger was represented by The DPA whose members campaigned for candidate Birmingham and were one of his biggest campaign contributors before and after his election. HAD BIRMINGHAM BEEN ETHICAL AND HAD ANY INTEGRITY AT ALL AND PROVIDED DUE PROCESS OF LAW INSTEAD OF JUST RAILROADING PEREZ PERHAPS AMBER GUYGER WOULDN'T HAVE BEEN A COP IN SEPTEMBER OF THE FOLLOWING YEAR AND BOTHAM JEAN WOULD STILL BE ALIVE. Other than the killer herself no single person is more responsible for Botham Jean's murder than Judge Brandon Birmingham.

-**Attorney Jeff Boncek** who was a contributor to Judge Birmingham who was awarded case after case by Birmingham AD HOC including Ubaldo Perez who he never took him to court. He failed to preserve the video of Guyger shooting Perez allowing the video to

be discarded . Perez with a criminal record already got 2 years for allegedly scuffling with a police officer and supposedly taking her taser which required her to use deadly force. He was violating his parole and had a considerable amount of drugs on him as well. Serious drugs. Only 2 years ? For all that? That seems weird.

-Attorney Toby Shook who is paid by the DPA to represent Officer Amber Guyer in her latest shooting that resulted in the killing of Botham Jean is a real creep. Attorney Toby Shook is also a campaign contributor to Judge Birmingham along with Boncek and the DPA. And while Attorney Toby Shook is public and vocal in his criticism of District Attorney John Creuzot even after he filed a motion to recuse in a case of a campaign supporter of the New DA who was charged with a crime . Yet Shook remains silent when white people take campaign contributions from parties before their court. Attorney Toby Shook didn't protest when Judge Birmingham assigned the Uvaldo Perez case to His own court. Despite the DPA representing Guyer Attorney Toby Shook didn't protest when DPD investigator and DPA members who were representing Guyer were meddling in the investigation by The Texas Rangers and rushed to Judge Birmingham to sign a search warrant for the victim apartment looking for "narcotics " despite the multiple conflicts that existed from the DPA contributions to Judge Birmingham and Birmingham's involvement and knowledge of Officer Guyer's propensity to shoot a minority each year as a police officer. Attorney Toby Shook after suggesting ethical investigation and perhaps criminal charges against Black District Attorney John Creuzot when he had recused , Attorney Toby Shook fell especially silent when DPA supported, endorsed and paid Judge Brandon Birmingham assigned the DPA represented Officer Amber Guyer murder of Black Botham Jean in his own apartment case to the court of DPA supported and endorsed and paid Judge Tammy Kemp. But this will only deprive the people of Dallas from determining Guyer's fate. In all seriousness, Brandon Birmingham's corruption of the Botham Jean case is unconscionable. What Birmingham has done can not be undone. He is truly soulless if he can torture the mother of murdered man with the agony of

injustice . My mom had a hard time when I was in jail as well.
There is a special place in hell for the likes of Birmingham

- **The Sweet Mother of Botham Jean, Allison Jean** whose outrage was deepened when she and hundreds of people gathered to pay tribute to her son and the details of a search warrant executed by members of DPA searching for “narcotics” in the victims home signed by DPA paid Judge Brandon Birmingham in attempt to smear a man who was killed by off-duty officer Amber Guyger who is represented by the DPA for the second shooting of a minority in as many years was released. There was considerable public outcry and Birmingham was exposed. Calls for the removal of Judge Birmingham were especially prevalent from the black community henceforth called “the community” causing Judge Birmingham to take a picture with every black person he can and post it online to try to dispel allegations he’s racist because he is a shill for the most racist police union in town. He may be racist as well but there is no question he is corrupt AF, can be bought and owned, and abuses his office with impunity .

6. The conditions of community supervision, documents and orders provided as the record are fabricated, altered or falsified and constitutionally prohibited. They exceed the plea agreement . The Honorable Kerry Fitzgerald suspended conditions in open court despite having no authority and the conditions being null by the “void” order however documents available online show Judge Beacom signature from June 2018 presented in a Document called “judgement” dated 12/1/2017.
7. A violation of a court order is a contempt of court. A violation of 42.07 of the Penal Code is a misdemeanor.

8. The State is prohibited from putting in jeopardy a person more than once for conduct. And speech is not conduct. Furthermore a second sentence is prohibited when defendant has begun sentence especially when subsequent sentence exceeds what is permitted applying standard In Harris v. State , 153 S.W.3d 394 Tex. CRIM. App. 2005, where the Court held a trial court improperly re-sentenced a defendant one day after initial sentence because it violated defendants rights under Double Jeopardy Clause.

-Single- The conduct of 9/30/15 resulted in contempt of court in case F14-75584 in the 292nd Court resulting in recusal of Judge Birmingham, arrest under warrant by Gracie Lewis and 100 days in jail before 291st returned bond ruling no violation of law or order thus acquittal.

-Double- The conduct of 9/30/15 was filed as a felony however the language of the indictment describes a misdemeanor and Gracie Lewis subjected the accused to a sentence and a punishment beginning 2/9/2017 that resulted in nearly 9 month of monitored confinement and severe financial on other losses before order was ruled “Void” by the Trial Judge Kerry Fitzgerald December , 2017.

-Triple Jeopardy- The Conduct of 9/30/15 inarguably can not be punished again 12/1/2017 after the previous order is ruled “void” .The Applicant had already served a sentence prohibited by TRCP under a order which was invalid.

-Quadruple Jeopardy- Any subsequent punishment including the 2/13/18 arrest that resulted in 5 months in jail and the 6/1/2018 conditions both signed by assigned Judge Richard Beacom who I formally object to under Sec. 74.053(d) of the Government Co

II.

Background

I was arrested on June 21, 2016, by Carrollton Police in the City of Dallas and taken by three detectives to Carrollton City Jail where I was charged with felony stalking of State District Judge Brandon Birmingham and informed my case was assigned to the 292ND District Court of said Judge Brandon Birmingham whose court had bail set at a quarter of a million dollars. Judge Birmingham had previously recused himself in a case against me but at the time of the new charges he was the Presiding Judge of the Criminal Judicial District and his court assigned cases to the Criminal District Courts.

As I mentioned, it was assigned to his. Eventually I was taken back to Dallas and the Dallas County Jail where I spent nearly 8 months before, to get out of jail, I agreed to plea. Prior to agreement my case was transferred from the alleged victims Brandon Birmingham's court across the hall to another court of the same judicial district and The Honorable Kerry Fitzgerald was assigned to presides over all matters. As required, the State provided defense an inventory and access to discovery before order of deferred adjudication was signed February 9, 2017.

I was fitted with an ELM and finally released from jail Feb 17^t, 2017 under strict house arrest/home confinement . The conditions that were enforced exceeded the plea agreement and what the TRCP permitted but I complied. Still, after more than 8 months of what Judge Fitzgerald would characterize as being a "model probationer" the State filed a motion to revoke, got a warrant signed by "another judge" and I was arrested October 24, 2017 and jailed yet again. Prior to arrest I filed a petition the Court for Writ for Habeas relief (WX1790064) arguing many issues including the validity of the February 9, 2017 Order of Deferred because it was not signed by trial judge as require thus invalid, null, void. Regardless I spent 10 days in jail before a Nov 3rd , 2017 hearing where I agreed to specific limited conditions noted on the docket and released without ELM. Judge Fitzgerald had me provide PR Bond. I filed a motion November 21, 2017, requesting reversal based on the invalid order .

On December 1, 2017, in hearing in open court, Judge Fitzgerald continued until next hearing suspending conditions *if* I agreed to a single added condition to see Dr. Kristi Compton for evaluation within 30 day. Unbeknownst to me, noted in the docket, Judge Fitzgerald signed a order for deferred ruling the previous order was "void" because it was signed by "another judge" who was "recused" . On December 6, 2017 I communicated to the court and revocation attorney on the withdrawn motion to revoke , I was withdrawing plea and asked for appointment of attorney for assistance . The State filed its Response to my Habeas Petition on December 11, 2017. In February 2018 the state again filed a motion to revoke and I was arrested February 13, 2018 and thrown in jail yet again. Two days later I was taken from jail to a hearing on my Habeas Petition challenging custody based on the 02/09/2017 Order which had clearly ruled void. In open court I motioned for sanctions against ADA Gary McDonald by offering testimony and evidence that he is pretty much lying sack of shit. Despite a pending competency order Judge Richard Beacom accepted a motion in open court to withdraw previous Petition for writ by agreement of Appointed attorney and State yet denied my motion commanding "motions are written " with a tinge of selective finality . I was taken back to my cell and I spent nearly 5 months to-the-day in jail before being fitted with ELM and being released on July 12, 2018 again with conditions i didn't agree to, that exceeded what was permitted, accepting what I had

previously agreed to, a plea i had clearly withdrawn, from a court that lacked jurisdiction, to a violation that didn't exist.

In November 2018 A written Motion to Remedy Misconduct by The State and ADA Gary McDonald was filed electronically with the court and while my attempts to communicate and schedule a hearing are disregarded by Court Coordinator Lamonica Littles just as the court has disregarded multiple Motions including Motions to Disqualify filed by the defendant/applicant. Meanwhile, the States Motion for Recusal of the New DA is ruled on post haste by Judge Beacom without any notice of hearing or consideration on grounds that the Honorable John Creuzot fails to "state good and sufficient cause" , again, a requirement the court selectively and arbitrarily applies.

III.

Credibility of The State

"[The prosecutor] is the representative not of an ordinary party to a controversy, but of a sovereignty whose obligation to govern impartially is as compelling as its obligation to govern at all; and whose interest, therefore, in a criminal prosecution is not that it shall win a case, but that justice shall be done. As such, he is in a peculiar and very definite sense the servant of the law, the twofold aim of which is that guilt shall not escape or innocence suffer. He may prosecute with earnestness and vigor -- indeed, he should do so. But, while he may strike hard blows, he is not at liberty to strike foul ones. It is as much his duty to refrain from improper methods calculated to produce a wrongful conviction as it is to use every legitimate means to bring about a just one." **Berger v. United States, 295 U.S. 78, 88 (1935).**

The State should be barred from any further communications to any court until they remedy clear unquestionable misconduct and/or unlawful acts committed by members of The Bar on its behalf. In The States Response dated 12/11/2017 to petition for Writ e-filed and served 10/24/2]17 (WX1790064) the State, Asst. DA Jaclyn O'Conner Lambert, attests to several false statements of fundamental, consequential, material facts. The States "History" is even false and It's a arguments are flat meritless on the facts. Her testimony is lethal and has been used to put people to death. Her testimony does the same to justice in this case.

Fake History

- i. The State, Attorney Jaclyn Lambert O'Conner, asserts Judge Birmingham immediately recused while in actuality as the Presiding Judge of the Criminal District , the case was assigned to his court by his court and he signed a order to recuse the day after unlawful assignment. This is critical because the legal requirement according to the Texas Constitution and TRCP is Disqualification. Allowing a case to proceed after that by a bitter Judge/Alleged victim , any Judge , attorney or

- prosecutor is setting aside the most fundamental ethical obligation and duties to maintain the integrity of the law and the judicial system.
- ii. The States, Attorney Jaclyn Lambert O'Conner, claimed that a Motion to Revoke and proceed on Probation Violation was filed November 2017 and "is currently pending" in its Dec 11, 2017 Response to Applicants Petition . This is factually untrue and dishonest in so many ways it's head-spinning. Judge Kerry Fitzgerald granted The States Motion to Withdraw its Motion to Revoke Probation and or Proceed to Adjudication on December 1, 2017 by signed order.SEE B2. A Jail Deposition Dated 12/4/2017 also refers to states withdrawal of revocation.SEE N. Additionally , the States original motion to revoke/ adjudicate and warrant issued by the same prohibited judge were filed Oct, 2017. Again Fitzgerald ruled the 2/9/2017 Order "void" on 12/1/2017 thus any action stemming from a void order is nothing. Furthermore, The Rules prohibit amending Motions to Revoke within 10 days of hearing .
 - iii. see 1 below concerning non existent Nunc Pro Tunc

False Reasoning

1. States claim the signature of District Court Judge of the great State of Texas is a "clerical error" corrected by Nunc Pro Tunc is laughable, objectionable not substantiated by the law, precedent or fact . First no record of Nunc Pro Tunc exists. None. Jacklyn O'Conner Lambert, Brandon Birmingham and Gary McDonald would satisfy the requisite for conspiracy plus. Second, the State is either attempting to revive a null order that lacks the proper authority in violation of the law by disregarding the ruling by The Court affixed with the signature of Honorable Judge Kerry Fitzgerald or is offering false legal process as evidence?
2. Evidence of counsel rendered Ineffective by conflict interest is shown in the Ad Hoc awarding of cases to trial counsel, the appointment of Trial Counsel Paul Johnson as Prosecuting Attorney Pre Tem by the Alleged Victim in Alleged victims court , contributions the Judges Birmingham's Campaign AFTER his Election all resulting in the Failure to Question the Judge upon examining trial and failure of Appointed Attorney to advocate for the Defendant or to challenge a single issue , file a single motion to preserve rights of accused, peruse one piece of evidence or show concern when clearly the Order was Void and petitioner sought relief.
3. Challenges to the Constitutionality of the Stalking Statute may be prohibited In post conviction Habeas proceeding however Deferred Adjudication is not recognized as a post conviction Furthermore the

previous Order to defer adjudication and place the petitioner in Community Supervision was “Void”. So as it turns out it was presented prior to trial.

4. Other objections were presented to the trial court in Applicants Petition. No appeal is available the applicant when Order is “void” and without Motion by defendant to proceed to Adjudication with 30 days of Order to Defer.
5. The Great Writ is an exceptional remedy. Constraint and custody and control due to truly egregious conduct and denial of due process, obstruction of justice and targeted prosecution warrant exceptional remedy. The state contends that Direct Appeal thus asking the trial court proceed to adjudication of a Void Order prohibited by law was the remedy?
6. Failure of the Court to assign bail anywhere close to the Dallas County bond schedule and failure of ineffective counsel to file as directed motions for bond reduction along with the courts failure to reduce a \$250,000 bond after 8 months in jail when the purpose of bail is to INSURE THE ACCUSED APPEARS BEFORE THE COURT WHEN PETITIONER WAS NOT MADE AWARE OF OR TAKEN TO APPEARANCES BEFORE THE TRIAL COURT WHEN HE WAS IN JAIL AND PRETTY MUCH IN THE BUILDING.
7. Transfer of the case upon order after hearing stating the reason for a judge removal or agreement of parties never happened because the initial assignment of the case was prohibited by the constitution and the order of recusal is also void.
8. A waiver including of right to effective counsel and appeal is invalid when it is made without effective counsel in the trial court or by a person who the court believes is not of sound mind, or under duress, or not provided material evidence, or made in a court lacking jurisdiction ...

- But it is well-established that “*important constitutional rights require some exceptions to the presumptive enforceability of [an appeal] waiver,*” Campusano, 442 F.3d at 774 (Sotomayor, J.), such that “*even the broadest waiver does not absolutely foreclose some degree of appellate review.*” Campbell, 686 F.3d at 358. Those issues include, at a minimum, whether the waiver was made knowingly, voluntarily, and competently, whether the government breached the plea agreement, whether the sentence was imposed based upon constitutionally impermissible factors, and other challenges related to the legality of

the sentence. Campusano, 442 F.3d at 774-75 (Sotomayor, J.). Thus, as in Flores-Ortega and Rodriquez, counsel's refusal to file a notice of appeal deprives his client of "*an appeal altogether.*" Flores v Ortega, 528 U.S. at 483

IV.
AGGRAVATED PERJURY BY
ASSISTANT DISTRICT ATTORNEY GARY McDONALD

Assistant District Attorney Gary Coates "Cody" McDonald should be disbarred. As a director of the Dallas Bar Association, Arson Investigator and Deputy Chief of Grand Jury/Intake department he invalidates any proceeding involving him until an authority shows he can't act with impunity .

- 1.The States' Discovery Provided Defendant filed Feb 9, 2017 does not list evidence seized by Carrollton Police and had in its possession In violation of TRCP and Federal rules of evidence.
- 2.Setting aside the fact that the order applying the condition was invalid, In the States Amended Motion to Revoke dated November 2, 2017 Asst. DA Gary McDonald sworn statements are all questionable at best but he is unquestionably making a false statement when he attests Probationer failed to pay court cost and fees and "is currently delinquent".
3. Asst DA Gary McDonald sworn statements are dubious and meritless in the States Motion to Revoke from February 6, 2018 but he attests the defendant was duly and lawfully placed on probation February 9th 2017 when the Court had ruled that order 'void'. ~~He puts both the "liar" and "shit" in "lying sack of shit". Come to think of it he also looks like a shriveled scrotum so he puts the "sack" in as well.~~
4. The 12/5/2016 Subpoena Application for Tasha Tsiaperas of The Dallas Morning News is sworn to by ADA Gary McDonald and falsely states a trial date of 12/14/2016.

V.

Previous grounds include

1. Actual Innocence
2. ADA Violations
3. Venue
4. Jury Demand
5. Texas Prohibits Judges to sit in cases where in the judge may be interested.
6. The signed Judgement in this case is prohibited or invalid
7. Babak Taherzadeh right to representation and legal counsel has been deprived by Judge Gracie
8. The Stalking Statute of Texas is Unconstitutionally Vague.
9. The Stalking Statute of Texas is prohibited by the Constitutions.
10. Judge Jennifer Bennett Violated my 4th amend right to be safe and secure that has not returned to this day. Judge was not a neutral authority in determination of Probable Cause which deprived me of the many constitutional right.
11. Judge Bennett violated my 8th Amendment right to bail. It was excessive. It was unusual And deprived due process of law AND CRUELY left me in jail for 8 months until I agreed to plea
12. The 292nd denied Babak Taherzadeh right to counsel when it failed to appoint attorney as the Indigent Appointment plan of Dallas requires it to indigent Defense Plan
13. Judge Mary Murphy erred when she allowed a case prohibited by The Constitution of Texas to proceed and ASSIGNED it to another court of the same Judicial District with, a wanton disregard for the justice and Constitutional rights of Babak Taherzadeh
14. Prosecuting Attorneys lacked the Standing under TCCP 7A and authority to file suit again me .
15. ADA Gary McDonald used the Stalking Statue of Texas and with Federal tools and assets intended for combating Violence against women to violate the Constitutional Rights of Dallas Resident United States Citizen

16. The Ass. District Attorney Gary McDonald violated my 14th amendment and the equal protection enshrined
17. Dallas County Dallas County DA office deprived me to do process of Law
18. Judge Brandon Birmingham effectively brought back slavery in violation of the 13th amendment . And Enslaved Me for Life. Read it. The PO parts of the TCCP are unconstitutional
19. The 292nd Court violated the 5th amendment when it held the petitioner in the to answer to a crime of a degrees prior to indictment and required petitioner to testify without a lawyer as witness against myself in order to defend myself n pursuit of Protective OrderThe 292nd Court violated the 5th amendment when it held the petitioner in the to answer to a crime of a degrees prior to indictment and required petitioner to testify without a lawyer as witness against myself in order to defend myself in pursuit of Protective Order
20. Attorney Paul Johnson was ineffective & failed to defend Client He was rendered grossly deficient by a conflict of interest that put plates while likely at the same time inflicted injustices, rape me of liberty & possibly put the poor and retards on death row without due process of law.
21. Judge Brandon Birmingham is the perp of a Federal Offense. No immunity when he uses an administrative function of a court to deprive civil and constitutional rights of Babak Taherzadeh. He awarded the many cases with tremendous Financial benefit to Paul Johnson that influence to further dissuade any fidelity and do more harm taunting the law, flaunting impunity with feigned integrity
22. The False Testimony and unlawfully surveillance of Carrollton Police Detective J. Chevalier #0709 violates Constitutional Protection
23. The Trial record fails to indicate the Examining Trail and unless a written judgement of the magistrate is placed in trail record the prisoner is to be released.
24. - 50 The Prosecution by the State and Judges have violated every norm , every safeguard and protection against unjust and targeted prosecution

ADDITIONALLY :

I BELIEVE JUDGE BIRMINGHAM USED THE PRESTIGE OF THE COURT TO INFRINGE ON MY PRIVACY, ISSUE WARRANT OR WITH SIMPLE REQUESTS MY INFO FROM GOOGLE, TWITTER AND ACCESS MY PHONE ACTIVITY.

THE STATEMENT IN THE CARROLLTON POLICE AFFIDAVIT IS VERY SPECIFIC AND DETAILED AND IS ALMOST THE EXACT SAME WORD FOR WORD IN BIRMINGHAM'S AFFIDAVIT HE SUPPOSEDLY GAVE BEFORE NOTARY A MONTH AND A HALF LATER THEY ARE STATEMENTS OF FACT THAT COME FROM ACCESS

Prayer

Applicant prays for Writ and relief in the form of liberty and Justice. ~~Brandon Birmingham is a candidate for the Honorable Judge David Newell's place 9 seat and while i'm not a Republican I believe 'The Court of Last Resort' as you are known would be a better place smeared with feces and flooded with several inches of watery discharge than with Brandon Birmingham as a justice of the Court. Perhaps with his candidacy for this court and the contribution and involvement of Judge Burns of The 5th Court Of Appeals to Birmingham campaign and my case create circumstances that render the State Courts of Texas incapable of rendering judgement while insuring my fundamental Constitutional rights?~~

Oath

I, Babak Taherzadeh, swear under penalty of felony the statements in these 5539 words are true as I believe and the documents included are not altered or fabricated.

Respectfully Submitted,
/s/ Babak Taherzadeh
Babak Taherzadeh
Filed Pro Se

babaktaherzadeh@gmail.com
214-676-3833
Babak Taherzadeh
8150 N. Stemmon Frwy. E1057
Dallas, Texas 75247

THE STATE OF TEXAS

CAUSE NO. F 16 12077-J

VS.

CRIMINAL DISTRICT COURT #3

Babak Taherzadeh

DALLAS COUNTY, TEXAS

PLEA AGREEMENT

State ID No:

Incident No / TRN:

Attorney for State: *G. McDonald*

Attorney for Defendant: *P. Johnson*

Offense:

Stalking

Statute for Offense:

Charging Instrument: ☒ Indictment ☐ Information

Date of Offense:

9/30/15

Degree of Offense:

3d

Affirmative finding of deadly weapon: ☐ YES ☐ NO

Type of Weapon:

Affirmative finding of family violence: ☐ YES ☐ NO

Ignition Interlock required ☐ YES ☐ NO

Affirmative finding of bias or prejudice: ☐ YES ☐ NO

If yes, Group:

Sentence to run ☐ CONCURRENTLY ☐ CONSECUTIVELY

WITH

Time Credit:

From

To

From

To

Sex Offender Registration ☐ DOES ☐ DOES NOT apply.

Age of victim at time of offense:

TO THE HONORABLE JUDGE OF SAID COURT:

The defendant herein and the attorneys for both the defendant and the State waive a jury trial and make the following agreement:

Defendant's Plea:

☒ Guilty

☐ Nolo contendere

☐ Defendant will testify.

☐ Defendant will not testify

Plea to enhancement paragraph(s):

☐ True

☐ Not true

Type of Plea:

☒ Plea bargain

☐ Open plea

Open as to:

☐ Fine

☐ Restitution

☐ Community Supervision

☐ Deferred Adjudication

☐ Other

State's recommendation:

Agreed sentence:

☐ Confinement in ☐ penitentiary ☐ state jail ☐ county jail for _____ ☐ years ☐ months ☐ days

☐ Post-conviction community supervision, confinement probated for _____ ☐ years ☐ months ☐ days

☒ Deferred community supervision for 4 ☒ years ☐ months ☐ days

☒ Fine of \$ 1000 ☐ to be paid ☒ to be probated

☐ Boot Camp ☐ Shock Probation ☐ Substance Abuse Felony Program

☐ CENIKOR ☐ Judicial Treatment Center ☐ Dallas County Jail Chemical Dependency Program

☐ Restitution in the amount of \$ _____

☐ Defendant will sign waiver of extradition ☐ Defendant knowingly and voluntarily waives appeal

☐ Defendant Waives a court reporter

☒ Other:

hold for 21M / No Contact w/ Judge B. in person

☐ Back-time included:

☐ Back time NOT included

or his family

EXHIBIT A1

☐ **CHANGE OF NAME** (Applicable only if box is checked)

The defendant having suggested that his/her true name is other than that set forth in the charging instrument, and having moved that the charging instrument and all other documents in this cause be amended to show his/her true name to be _____, said motion is hereby granted. It is so ordered.

COURT'S ADMONITIONS TO DEFENDANT

You are charged with the offense of: Stalking
The punishment range for the offense charged is:

- ☐ 1st Degree Felony, 5-99 years or Life and an optional fine not to exceed \$10,000.00
☐ 2nd Degree Felony, 2-20 years confinement and an optional fine not to exceed \$10,000.00
☒ 3rd Degree Felony, 2-10 years confinement and an optional fine not to exceed \$10,000.00
☐ State Jail Felony, 180 days – 2 years State Jail and an optional fine not to exceed \$10,000.00
☐ _____

You have an absolute right to a jury trial, to confront and cross-examine the witnesses against you, and to call witnesses in your own behalf. You have a right to testify, but you cannot be compelled to do so. The prosecuting attorney's recommendation as to punishment is not binding on the Court. If the Court rejects any plea bargain made in this case, you may withdraw your plea of guilty or *nolo contendere*. If the punishment assessed by the Court is not greater than that which you have plea-bargained, you may not appeal on any matter in the case unless the Court grants permission for the appeal or the matters appealed were raised by written motion filed and ruled on before the plea. If you enter a plea of guilty or *nolo contendere* and there is no plea bargain, the court may assess your punishment anywhere within the range allowed by law. If you are not a citizen of the United States, a plea of guilty or *nolo contendere* may, and under current Federal Immigration rules is *almost certain to*, result in your deportation, removal, exclusion from admission to the United States, or denial of naturalization. If you have a court-appointed attorney, you have a right to ten days from the date of the attorney's appointment to prepare for trial. You have the right to be tried on an indictment returned by a Grand Jury, and, unless you are on bond, a right to two entire days after being served with a copy of the charging instrument before being arraigned. If you receive unadjudicated community supervision and violate its conditions, you may be arrested and subjected to a hearing limited to determining whether or not guilt should be adjudicated. If guilt is adjudicated the full range of punishment is open to the Court. All proceedings, including assessment of punishment, pronouncement of sentence, granting of community supervision, and an appeal, then continue as if the adjudication of guilt had not been deferred. [In sex offense cases, see Court's Admonition to Sex Offenders, which is incorporated by reference and attached hereto.]

DEFENDANT'S STATEMENTS AND WAIVERS

With the approval of counsel, defendant makes the following statements and waivers. I am the accused in the charging instrument and am mentally competent. I understand the nature of the accusation made against me, the range of punishment for such offense, and the consequences of a plea of guilty or *nolo contendere*. I understand that I have an absolute right to a jury trial, that I have the right to remain silent, that anything I say can and will be used against me, that I have the right to confront and cross-examine the witness against me, and that I have a right to be tried upon an indictment returned by a grand jury. I understand that if

I am not a United States citizen, a plea of guilty or *nolo contendere* will probably result in my deportation from the United States, exclusion from admission to the United States, or denial of naturalization under Federal law.

I hereby waive my right to be tried on an indictment returned by a grand jury; any and all defects, errors, or irregularities, whether of form or substance, in the charging instrument; my right to a jury trial; and my right to remain silent. I waive arraignment and reading of the charging instrument; the appearance, confrontation, and cross-examination of witnesses on the issues of guilt and punishment; my right to ten days to prepare for trial after the appointment of counsel (if counsel has been appointed); and the preparation of a pre-sentence report. I consent to the oral or written stipulation of evidence or testimony, to the introduction of testimony by affidavits or written statements of witnesses, and to all other documentary evidence.

I admit and judicially confess that I committed the offense of Stalking on 9/30/15, exactly as alleged in the charging instrument. I affirm that my plea and judicial confession are freely and voluntarily made, and not influenced by any consideration of fear, persuasion, or delusive hope of pardon or parole.

I understand the admonitions regarding unadjudicated community supervision, and that I will be required to register as a sex offender if convicted of, or placed on community supervision for, one of the offenses enumerated under Court's Admonition to Sex Offenders, attached hereto. I understand that under the Uniform Extradition Act, should I be charged with a violation of my community supervision and be arrested in another state, I have the right to require the issuance and service of a warrant of extradition, the right to hire legal counsel, or, if indigent, to have counsel appointed, and the right to apply for a writ of habeas corpus to contest my arrest and return to this State.

☒ I voluntarily and knowingly waive my rights under the Extradition Act, waive extradition, and waive my right to contest my return to the State of Texas from any jurisdiction where I may be found. I understand and agree that such waiver is irrevocable.

☒ I understand that I have a right to appeal to the Court of Appeals. After consulting with my attorney, I do expressly, voluntarily, knowingly, and intelligently give up and waive my right to any appeal if the Court follows the terms of the State's recommendation as to sentencing.

☐ I waive and give up my right to have a court reporter make a record of these court proceedings as provided by Rule 13.1 of the Texas Rules of Appellate Procedure.

☐ **DEFENDANT'S PLEA TO ENHANCEMENT PARAGRAPH(S) (Applicable only if box is checked)**

I, the defendant, plead true to the enhancement allegations included in the:

☐ first ☐ second ☐ first & second
enhancement paragraph(s) which is/are contained in the charging instrument or the State's Notice of Enhancement, and judicially confess that I am the same person who was previously duly and legally convicted of the offense(s) alleged therein.

EXHIBIT A3

SIGNATURES AND ACKNOWLEDGMENTS

I, the defendant herein, acknowledge that my attorney has explained to me, and I have read and I understand, all the foregoing admonitions and warnings regarding my rights and my plea, and that my statements and waivers are knowingly, freely, and voluntarily made with full understanding of the consequences. I request that the Court accept all my waivers, statements, agreements, and my plea.

2/8/17
Date

[Signature]
Defendant

Printed Name

I have consulted with the defendant, whom I believe to be competent, concerning the plea in this case and have advised the defendant of his/ her rights. I approve and agree to all waivers, statements, and agreements of the defendant herein and ask the Court to accept them and the defendant's plea.

2/8/17
Date

[Signature]
Attorney for Defendant

State Bar Number

Printed Name

As attorney for the State, I hereby consent to and approve the requests, waivers, agreements, and stipulations in this instrument.

2/8/2017
Date

FAITH JOHNSON, Criminal District Attorney, Dallas County

[Signature]
Assistant District Attorney

24060267
State Bar Number

[Signature]
Printed Name

It appearing to the Court that the defendant is mentally competent and is represented by counsel, that the defendant understands the nature and consequences of the charge, and that all the parties have consented to and approved the waiver of jury trial and stipulations of evidence, the Court finds the waivers, agreements, and plea to have been knowingly, freely, and voluntarily made, approves the waivers and agreements, accepts the defendant's plea, approves the stipulation of testimony, and approves the change of name contained herein (if applicable).

2-9-17
Date

[Signature]
Judge

EXHIBIT A4

CAUSE NO. F-1612037

STATE OF TEXAS	§	IN THE CRIMINAL.
	§	
vs.	§	3 rd DISTRICT COURT
	§	
BABAK TAHERZADEH	§	DALLAS COUNTY, TEXAS

MOTION FOR APPOINTMENT OF COUNSEL

TO THE HONORABLE JUDGE FITZGERALD:

I, Babak Taherzadeh, am the named defendant in the above styled and numbered cause, and respectfully motion the Honorable Judge for appointment of counsel to assist defendant in withdrawal of plea and appeal. I remain indigent and unable to hire legal counsel.

1.

The defendants request for counsel for assistance with Writ in case WX1790064 has gone unanswered.

11.

The Courts appointment of Diane Jones-McVay was explained as limited to revocation and requests were refused and unfulfilled. On December 1, 2017 Ms. Jones-McVay showed a document to me and my family indicating the withdrawal of the revocation thus ending her limited representation. Request for that document as well as other court documents have gone unfulfilled and I have been directed to retrieve them myself. The Ms. Ingram and Ms. Sweet of the probation office have been able to confirm withdrawal of revocation and no attorney of record.

WHEREFORE, PREMISES CONSIDERED, I hereby respectfully requests that this Motion be granted and counsel for defendant be effective and free from conflicts .

Respectfully submitted,

/s/Babak Taherzadeh
Babak Taherzadeh
1055 Regal Row #501
Dallas, Texas 75247
(972) 515-0551

EXHIBIT B

CAUSE NO(S): F1612037J

CDC #3

THE STATE OF TEXAS

IN THE

vs.

DALLAS COUNTY, TEXAS

BABAK TAHERZADEH

July

TERM, 2017

ML#: C-575482

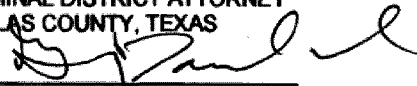
DATE: 12/01/2017

**STATE'S MOTION TO WITHDRAW ITS MOTION
TO REVOKE OR ITS MOTION TO PROCEED TO ADJUDICATION**

TO THE HONORABLE JUDGE OF SAID COURT:

Now Comes Faith Johnson, Criminal District Attorney of Dallas County, Texas by and through his Assistant District Attorney of Dallas County, Texas, in the above entitled and numbered cause and respectfully requests the Court to allow the State to withdraw its Motion to Revoke or its Motion to Proceed with Adjudication;

Respectfully submitted,
CRIMINAL DISTRICT ATTORNEY
DALLAS COUNTY, TEXAS

BY 
Assistant District Attorney

ORDER

The foregoing State's Motion having been presented to the Court, is hereby in all things granted, and it is ordered that.

- ☐ Defendant is released from custody;
- ☐ Defendant to be held in custody until released to: _____
- ☒ Defendant is continued on probation;
- ☐ Defendant is discharged from probation;
- ☐ The Conditions of Community Supervision are modified as stated in the Modification Order filed this same date.


JUDGE

* Filed *
* 12/01/2017 *
* Felicia Pitre *
* District Clerk *
* Dallas County, TX *
* Deputy *

In Custody? NO

**ORDER MODIFYING
THE CONDITIONS OF COMMUNITY SUPERVISION**

THE STATE OF TEXAS

CDC #3

VS.

DALLAS COUNTY, TEXAS

BABAK TAHERZADEH

July

TERM, 2017

CAUSE NO(s): F1612037J

In accordance with the authority conferred by the Community Supervision law of the State of Texas, the Conditions of Community Supervision in the above numbered Cause(s) are hereby modified by the Court to require the following:

(X) Within ³⁰~~15~~ days from referral, participate in psychological/psychiatric evaluation with Dr. Compton. Defendant is to appear before the Court after completion of the evaluation as directed.

Justice
Kenny **FITZGERALD**
The Court has the authority at any time during the period of Community Supervision to revoke or proceed to adjudication for violation of any of the conditions of Community Supervision as set forth above.

SIGNED THIS 1 DAY OF Dec, 2017

[Signature]
Judge FITZGERALD

Witness our signature this the _____ day of _____, 20____

[Signature]
COURT SUPERVISION OFFICER

[Signature]
PROBATIONER

ML#: C-575482

1 of 1

EXHIBIT D

CONDITIONS OF COMMUNITY SUPERVISION

THE STATE OF TEXAS

IN THE CDC#3
DALLAS COUNTY, TEXAS

vs.

January TERM, 2017

BABAK TAHERZADEH
Probation Type: DEFERRED
Cause No.:
F1612037J

ML. No.: C-575482
Offense:
STALKING

In accordance with the authority conferred by the Community Supervision and Parole Law of the State of Texas you have been placed on Community Supervision on this date 2-9-2017 for a period of 4 years. It is the order of this Court that you comply with the following conditions of supervision:

suspended until next leg. KPF
Please see attached list of conditions of Community Supervision

You are hereby advised that under the law of this State, the Court shall determine the terms and conditions of your supervision, and may at any time during the period of Supervision, alter or modify the conditions of your Supervision. The Court also has the authority at any time during the period of Supervision to revoke your Supervision and /or proceed to adjudication for violation of any of the conditions of your Supervision set out above.

Witness our Signatures this 9th Day of February 2017


Defendant


Court Supervision Officer


Judge ORACIE LEWIS

NO. F 16-12037-WJ

ATTY FOR STATE: *MCDONALD*

BAIL STATUS:

JAIL

STATE OF TEXAS		ATTORNEY	OFFENSE	DATE OF FILING
BABAK A TAHERZADEH SID# TRN:		Paul Johnson (214) 761-0707	STALKING OFF Date: Degree / Statute:	9/12/2016
DATE OF ORDER	ORDER OF COURT			
09/13/16	FIRST 09/19/16			
2-9-2017	Def pled guilty to chs 3.5 of indictment - pleaded - A verified & confirmed - to set final of legal representation - plea set at 4:30 pm. defense agreed. 1 \$1,000 fine paid.			
				

HOLD FOR ELM

\$249 CC / \$1000 fine
probated

EXHIBIT F



CASE No. F-1612037-J
INCIDENT NO./TRN: 9258505298

THE STATE OF TEXAS

v.

BABAK A. TAHERZADEH

STATE ID No.: TX04500806

§
§
§
§
§
§
§

IN THE CRIMINAL DISTRICT

COURT #3

DALLAS COUNTY, TEXAS

ORDER OF DEFERRED ADJUDICATION

Judge Presiding: **HON. Kerry Fitzgerald** Date Order Entered: **2/9/2017** **12-1-2017**

Attorney for State: **Gary McDonald**

Attorney for
Defendant: **Paul Johnson**

Offense:

STALKING

Charging Instrument:

INDICTMENT

Statute for Offense:

42.072 Penal Code

Date of Offense:

6/22/2016

Degree of Offense:

3RD DEGREE FELONY

Plea to Offense:

GUILTY

Findings on Deadly Weapon:

N/A

Terms of Plea Bargain:

4 YEARS DEFERRED PROBATION; FINE \$1000.00 PROBATED

Plea to 1st Enhancement

Paragraph: **N/A**

Plea to 2nd Enhancement/Habitual

Paragraph: **N/A**

Findings on 1st Enhancement

Paragraph: **N/A**

Findings on 2nd

Enhancement/Habitual Paragraph: **N/A**

**ADJUDICATION OF GUILT DEFERRED;
DEFENDANT PLACED ON COMMUNITY SUPERVISION.**

PERIOD OF COMMUNITY SUPERVISION: 4 YEARS

Fine: **PROBATED**

\$ 1000.00

Court Costs:

\$ 249.00

Restitution:

\$ N/A

Restitution Payable to:

(see below)

☐ AGENCY/AGENT

☐ VICTIM

Sex Offender Registration Requirements do not apply to the Defendant. TEX. CODE CRIM. PROC. chapter 62

The age of the victim at the time of the offense was **N/A**.

Time **N/A DAYS**

Credited: **NOTES: N/A**

All pertinent information, names and assessments indicated above are incorporated into the language of the judgment below by reference.

This cause was called for trial in Dallas County, Texas. The State appeared by her District Attorney as named above.

Counsel/Waiver of Counsel (select one)

☒ Defendant appeared in person with Counsel.



☐ Defendant knowingly, intelligently, and voluntarily waived the right to representation by counsel in writing in open court.

Both parties announced ready for trial. Defendant waived the right of trial by jury and entered a plea as indicated above. The Court admonished the Defendant as required by law. It appeared to the Court that Defendant was mentally competent to stand trial, made the plea freely and voluntarily, and was aware of the consequences of this plea. The Court received the plea and entered it of record. Having heard the evidence submitted, the Court FINDS such evidence substantiates Defendant's guilt. The Court FINDS that, in this cause, it is in the best interest of society and Defendant to defer proceedings without entering an adjudication of guilt and to place Defendant on community supervision.

The Court FINDS the Presentence Investigation, if so ordered, was done according to the applicable provisions of TEX. CODE CRIM. PROC. art. 42.12 § 9.

The Court ORDERS that Defendant is given credit noted above for the time spent incarcerated. The Court ORDERS Defendant to pay all fines, court costs, and restitution as indicated above.

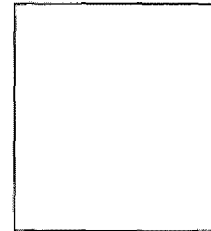
The Court ORDERS that no judgment shall be entered at this time. The Court further ORDERS that Defendant be placed on community supervision for the adjudged period so long as Defendant abides by and does not violate the terms and conditions of community supervision. See TEX. CODE CRIM. PROC. art. 42.12 § 5(a).

Furthermore, the following special findings or orders apply:

HOLD FOR ELM


Kerry Fitzgerald
JUDGE PRESIDING

Clerk: DALVAREZ



Right Thumbprint*

*Thumbprint Certification attached.

SET FOR DATE 102617 SET FOR TIME 0900 SET TYPE PRAN PASSED TO DATE _____
SET DISPOSITION CODE ___ PASSED GENERALLY _ COMMENTS **JAIL_CHAIN**_____
STATES RECOMMENDATION _____ REC NO 01 _

B060

SET FOR DATE 110217 SET FOR TIME 0900 SET TYPE PRAN PASSED TO DATE _____
SET DISPOSITION CODE ___ PASSED GENERALLY _ COMMENTS **JAIL_CHAIN**_____
STATES RECOMMENDATION _____ REC NO 01 _

B060

SET FOR DATE 110317 SET FOR TIME 0900 SET TYPE PRAN PASSED TO DATE _____
SET DISPOSITION CODE ___ PASSED GENERALLY _ COMMENTS **JAIL_CHAIN**_____
STATES RECOMMENDATION _____ REC NO 01 _

cJI66 DA CASE ID F-1612037 JUDCL CASE ID F-1612037

A010 DEF NAME TAHERZA C010 DEF NAME TAHERZA

SETS AND PASSES

B060

SET FOR DATE 121517 SET FOR TIME 0900 SET TYPE PRAN PASSED TO DATE 000000
SET DISPOSITION CODE ___ PASSED GENERALLY _ COMMENTS PSTD_PR_BOND_11/03_____
STATES RECOMMENDATION _____ REC NO 01 _

B060

SET FOR DATE 011818 SET FOR TIME 0900 SET TYPE PRAN PASSED TO DATE _____

SET DISPOSITION CODE ___ PASSED GENERALLY _ COMMENTS _____

STATES RECOMMENDATION _____ REC NO 01 _

NAMES

B070

ASSOCIATED NAME JOHNSON, PAUL_2147610707_____ NAME REF CODE CD1606240

CT APPOINTED _ BAR NO 10778230 BOND MAKER _ DT BOND MADE _____

B070

ASSOCIATED NAME JOHNSON, PAUL_2147610707_____ NAME REF CODE PA1710250

CT APPOINTED _ BAR NO 10778230 BOND MAKER _ DT BOND MADE _____

B070

ASSOCIATED NAME JONES-MCVAY, DIANNE_9802531007_____ NAME REF CODE PA1710260

CT APPOINTED _ BAR NO 10010900 BOND MAKER _ DT BOND MADE _____

¢J166 DA CASE ID F-1612037 JUDCL CASE ID F-1612037

A010 DEF NAME TAHERZA C010 DEF NAME TAHERZA

GENERAL COMMENTS WS DATE

B080 062216_BOND_SET_\$250,000.00_ON_FACE_OF_WRNT;_JG_BENNETT_X 062216 01
(tel:062216 01) _

EXHIBIT I2

B080 101217_PV_MTN_FILED;_WARRANT_ISSUED;_NO_BOND_ALLOWED_____ A 101217 01 _
B080 11/2/17_AMENDED_P/V_MTN_FILED_____ X 110217 01 _
B080 11/3/17_PR_BND_PSTD_IN_THE_AMT_OF_\$1,000_PER_JDG_FITZGER R 110317 01 _

CHARGE

C010

DEF NAME TAHERZADEH_BABAK_A_____ OFFENSE CD VA000200 STATE CD 13160014__
DESC STALKING_____ COMT _____ TYP/CL F 3 GOC _
GJ COURT FW CURRENT COURT FJ PREVIOUS COURTS CHOVT DT

cJI66 DA CASE ID F-1612037 JUDCL CASE ID F-1612037

A010 DEF NAME TAHERZA C010 DEF NAME TAHERZA

DISPOSITION

C020-01-02 CT DISP NO 01
VERDICT DATE 020917 BY JG DISP NAOG TC ___ DISM TYP _____ VOL 000 PAGE 000_
SENTENCE DATE 020917 BY JG TO _ YEARS ___ MTHS ___ DAYS ___ HOURS ___
SENTENCE TO BEGIN 000000 SENTENCE VOL ___ PAGE ___ DISCHARGE N TYPE _ NUM _

EXHIBIT I3

PROBATED SENTENCE TO P YEARS ____ MONTHS ____ DAYS ____ MULT SENT _
PROBATED FOR YEARS ____4 MONTHS ____ DAYS ____ PROBATION START DATE 020917
SPEC COND 1 _____ FOR ____ 2 _____ FOR ____
FINE CODE Y AMT ____1000.00 COST CODE N AMT ____249.00 PAYMENT DUE 000000

REDUCED/ENHANCED CHARGE

DESC _____ COMT _____ TYP/CL __ GOC _
COUNTY CODE _____ STATE CODE _____
PROBATION REVOCATION FILE DATE 110217 WARRANT ISSUED DATE 101217
DISPOSITION COMMENT _____

❏J166 DA CASE ID F-1612037 JUDCL CASE ID F-1612037

A010 DEF NAME TAHERZA C010 DEF NAME TAHERZA

DISPOSITION

C020-01-02 CT DISP NO 02
VERDICT DATE 120117 BY JG DISP REVC TC __ DISM TYP ____ VOL 0__ PAGE 0__
SENTENCE DATE _____ BY __ TO _ YEARS ____ MTHS ____ DAYS ____ HOURS ____
SENTENCE TO BEGIN _____ SENTENCE VOL ____ PAGE ____ DISCHARGE N TYPE _ NUM ____
PROBATED SENTENCE TO _ YEARS ____ MONTHS ____ DAYS ____ MULT SENT _

PROBATED FOR YEARS ____ MONTHS ____ DAYS ____ PROBATION START DATE _____

SPEC COND 1 ____ FOR ____ 2 ____ FOR ____

FINE CODE _ AMT ____ 0.00 COST CODE _ AMT ____ 0.00 PAYMENT DUE _____

REDUCED/ENHANCED CHARGE

DESC _____ COMT _____ TYP/CL _ _ GOC _

COUNTY CODE _____ STATE CODE _____

PROBATION REVOCATION FILE DATE _____ WARRANT ISSUED DATE _____

DISPOSITION COMMENT _____

GENERAL COMMENTS

C080 020917_WAIVER_OF_JURY_:_HOLD_FOR_ELM_____

_____ DATE 020917 _____

cJi66 DA CASE ID F-1612037 JUDCL CASE ID F-1612037

A010 DEF NAME TAHERZA C010 DEF NAME TAHERZA

GENERAL COMMENTS

C080 120117_E/O_MOD_COND_PROB_____

_____ DATE 120417 _____

Fri Dec 22 11:02:30 CST 2017

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https://www.dallascounty.org/criminalBackgroundSearch/defendant_detail_print.jsp

12/22/17, 11:03 AM
Page 11 of 11

EXHIBIT I6



North Tower 4E East, 4th Floor Control Center 4E09 Bookin Number: 16034545 Audit Number: 201633877
Loc. _____

APPOINTMENT OF COUNSEL FOR INDIGENT DEFENDANT

The State of Texas

Criminal District Court No. 3 (FJ)

Vs.

District Court

BABAK TAHERZADEH

Dallas County, Texas

Cause No.:

Offense

LD

f1612037

STALKING

F3

It appearing that the defendant has executed a sworn statement certifying that he/she is without means to employ counsel and requesting appointment of counsel; the Court finds that the defendant is indigent and hereby appoints: The Attorney: PAUL JOHNSON

Phone: 214-761-0707

Alt. Phone: 214-202-8461

Email: PJJDOC@AOL.COM

Address: 900 JACKSON STREET, SUITE 650 DALLAS, TX 75202

A practicing attorney of the State to represent the defendant in said case(s).

Signed this 24th day of June, 2016

Gracie H. Lewis

JUDGE

GRACIE LEWIS

EXHIBIT J

CAUSE NO.: F1612037J

CDC #3

THE STATE OF TEXAS

DALLAS COUNTY, TEXAS

VS.
BABAK TAHERZADEH

July

TERM, 2018

MOTION TO REVOKE PROBATION OR PROCEED WITH AN ADJUDICATION OF GUILT

COMES NOW the State of Texas by and through her Criminal District Attorney and would show the Court the following:

That BABAK TAHERZADEH, Defendant, was duly and legally placed on probation for a period of 4 years in the above entitled and numbered cause in CDC #3 of Dallas County, Texas, on the 9th day of February, A.D., 2017 for the offense of:

STALKING

That the Defendant has violated the following conditions J, L, X of said supervision in that;

SEE ATTACHED PAGE(S)

This violation-offense occurred after 02/09/2017 and during the term of Supervision.

WHEREFORE, the State prays that said Defendant be cited to appear before this Honorable Court and show cause why the Court should not revoke probation or proceed with an adjudication of guilt on the original charge.

This the 6th day of February, A.D., 2018

* FILED *
* 02/06/2018 *
* Felicia Piro *
* DISTRICT CLERK *
* DALLAS CO., TEXAS *
* DEPUTY *

Faith Johnson
District Attorney
Dallas County, Texas
BY: [Signature]
Assistant District Attorney

A copy of this motion was delivered to the Defendant on the 15th day of February, A.D., 2018.

[Signature]
CSO

I received a copy of this motion on the 15th day of February, A.D., 2018.

ML#: C-575482

REFUSED TO SIGN
Defendant

A competency ~~hearing~~ EVALUATION UNDER SEC. 46B prohibits A CHANGE OF CUSTODY STATUS 1 of 2
THE ARREST WARRANT WAS ISSUED FOR A PERSON WITH ADJUDICATED

EXHIBIT K1

CAUSE NO.: F1612037J

CDC #3

THE STATE OF TEXAS

DALLAS COUNTY, TEXAS

VS.
BABAK TAHERZADEH

July TERM, 2018

MOTION TO REVOKE PROBATION OR PROCEED WITH AN ADJUDICATION OF GUILT

(j) BABAK TAHERZADEH did violate condition (j) in that s(he) did not pay community supervision fees as directed and is currently delinquent.

(l) BABAK TAHERZADEH did violate condition (l) in that s(he) did not complete Community Service hours as directed.

(x) BABAK TAHERZADEH did violate condition (x) in that s(he) failed to participate in a psychological/psychiatric evaluation with Dr. Compton on February 2, 2018 as directed.

33N/4164

CAPIAS

L91/206017
06/28/2016

PROBATION VIOLATION
: C-21-482

BOND AMOUNT: _____

CAUSE NO(s):

F1812037J

THE STATE OF TEXAS

VS.

BABAK

Defendant SID #: 4000008

Date of Birth: 12/29/1969

RACE: W SEX: M

HAIR: BLK

EYES: BRO

HT: 5'10"

WT: 241 lbs.

Offense(s):

CD 6/11/18 CAPIAS ISSUED
This 4th day of February, 2018
Honorable VISTING JUDGE, JUDGE,
CDC #3 COURT

LAST KNOWN ADDRESS: AT LARGE
1066 REGAL ROW
DALLAS, TX 75247

STALKING

To any Sheriff or any Constable of the State of Texas:
YOU ARE HEREBY COMMANDED TAKE THE BODY OF:

BABAK TAHERZADEH Who has been charged by
indictment information for a felony/misdemeanor offense and placed on probation, and him/her
keep so that you have him/her before the Honorable, VISTING JUDGE
CDC #3 Dallas County, Texas at the Courthouse, thereof in the City of
Dallas, in person, then and there to answer THE STATE OF TEXAS against the said
BABAK TAHERZADEH for violation of the conditions of probation in
Cause No(s):

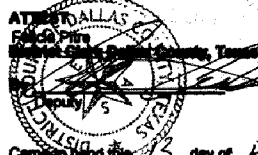
F1812037J

State of Texas vs. BABAK TAHERZADEH

HEREIN FAIL NOT, but have you then and there this Vth, showing how you have executed the same

Given under my official seal of said Court of Dallas County, Texas.

CD 6TH this 13th day of February, 2018



Richard A. Beaconf
Judge, VISTING JUDGE
CDC #3 Dallas, TX

SHERRIFF'S RETURN
Comes and find this 13 day of February, A.D. 2018

RETURNED on this 13 day of February, A.D. 2018

Mileage \$

Fees \$

Total \$

Sherriff: [Signature]

By: [Signature]

DATE	1/13/18
I.D.	21954
Assign	21954
WRAW	
TRIC	21954
NCIC	
W87319482	
Post	

EXHIBIT L

NOTICE OF DISPOSITION
IN CRIMINAL DISTRICT COURT 3
DALLAS COUNTY, TEXAS

SEQ 0004

CASE NUMBER F-1612037
OFFENSE STALKING
REDUCED CHARGE

DATE 120417
TIME 111056

THE STATE OF TEXAS VS.
DEF TAHERZADEH BABAK A
BNO 17055597
DISPOSED BY REVC

RACE W SEX M DOB 091670

SENTENCE

APPEAL _____

SPECIAL CONDITION

MNT _____

\$ 0.00 FINE \$ 0.00 COST
ADDITIONAL CREDIT FOR TIME SERVED

SENTENCE TO BEGIN _____

REMARKS 121417 DEFT NOT IN JAIL; P/V MTN W/DRAWN DEFT CONT ON PROB _____

RETURN ANY WARRANTS THIS CASE ONLY _____

FELICIA PITRE
DISTRICT CLERK
DALLAS COUNTY, TEXAS

BY LINSCOME S
DEPUTY CLERK

RELEASE INFORMATION	
REMARKS	_____

615/400

CAUSE NO. F16-12037-V

THE STATE OF TEXAS	§	IN THE DISTRICT COURT
	§	
V.	§	292 ND JUDICIAL DISTRICT
	§	
BABAK TAHERZADEH	§	DALLAS COUNTY, TEXAS

ORDER TRANSFERRING

Based on a recusal, this case is transferred to the Criminal District Court No. 3 of Dallas County, Texas.

IT IS SO ORDERED.

Signed this 23 day of June, 2016.

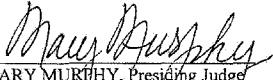

MARY MURPHY, Presiding Judge
First Administrative Judicial Region

EXHIBIT N

Cause No. F-1475584

STATE OF TEXAS

VS.

TAHERZADEH, BABAK

IN THE 292nd JUDICIAL DISTRICT COURT

DISTRICT COURT

DALLAS COUNTY, TEXAS

FILED
2015 OCT 22 AM 11:31
CLERK
DALLAS CO. TEXAS
DEPUTY

STATE'S MOTION TO HOLD BOND INSUFFICIENT

COMES NOW THE STATE OF TEXAS, by and through her Assistant District Attorney, Terrance Downs, and requests the Court to hold Defendant's bond in this case insufficient and to increase that bond, and for cause would show as follows:

I.

The defendant is charged with the offense of Criminal Mischief of at least Retaliation, a Third Degree Felony. This case is alleged to have been committed on or about April 13, 2014, and was indicted on May 16, 2014. On April 29, 2014, bond was set at \$1,500. On June 12, 2015, a bond hearing was held because the defendant continued to harass the complainant, Timothy Burke, via e-mail and social media, namely Twitter. After said bond hearing, the defendant was ordered to refrain from using social media, including Twitter, for any purpose. On October 19, 2015, the State was advised by Detective Brian Emerson, #8471, of the Dallas Police Department, that during October 2015, the defendant used social media, namely Twitter, to tweet harassing messages to and about members of the Dallas Police Department, namely Monica Cordova and Senior Corporal Kevin Janse.

II.

Based on the above referenced evidence it is believed that the defendant has violated his current bond conditions, and that said bond is insufficient to insure the peace and safety of community.

WHEREFORE PREMISES CONSIDERED, it is respectfully requested that the Court conduct a hearing on this motion and consider any relevant evidence and find that amount of bond insufficient in amount, and require Defendant to post an amount as the court deems proper and to set conditions of bond.

Respectfully submitted,


Terrance Downs
Assistant District Attorney
Dallas County, Texas
TBC# 24071598

I hereby certify that a copy of this motion was hand delivered to Reed Prospere, Attorney for the defendant on October 21, 2015.


Terrance Downs

ORDER

The State's Motion to Hold Bond Insufficient is ~~(granted)~~ denied) and the new bond is set in the amount of \$ NO BOND ALLOWED.

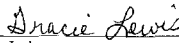

Presiding Judge

EXHIBIT O

6012175

WRIT NO. F14-75584-V

THE STATE OF TEXAS § IN THE 292nd JUDICIAL
VS. § DISTRICT COURT
BABAK TAHERZADEH § DALLAS COUNTY, TEXAS

ORDER OF RECUSAL

The Court, on the Court's own motion, has determined that this matter should be considered by another district court judge and that recusal is appropriate in this case;

IT IS THEREFORE ORDERED that Brandon Birmingham, presiding judge of the 292nd Judicial District Court, does hereby voluntarily recuse himself from hearing any matter in this case and refers this cause to the Presiding Judge of the First Administrative Judicial Region for assignment.

The Clerk of the Court shall immediately transmit a copy of this Order to Judge Mary Murphy, Presiding Judge of the First Administrative Judicial Region, to the Defendant, and to counsel for the State.

SIGNED this 21 day of October, 2015.



JUDGE BRANDON BIRMINGHAM
~~292ND JUDICIAL DISTRICT COURT~~
DALLAS COUNTY, TEXAS

EXHIBIT P

615/376

CAUSE NO. F16-12037-V

FILED
2016 JUN 22 AM 11:16
CLERK
DALLAS CO., TEXAS
DEPUTY

THE STATE OF TEXAS § IN THE 292nd JUDICIAL DISTRICT COURT
VS. § DISTRICT COURT
BABAK TAHERZADEH § DALLAS COUNTY, TEXAS

ORDER OF RECUSAL

The Court, on the Court's own motion, has determined that this matter should be considered by another district court judge and that recusal is appropriate in this case;

IT IS THEREFORE ORDERED that Brandon Birmingham, presiding judge of the 292nd Judicial District Court, does hereby voluntarily recuse himself from hearing any matter in this case and refers this cause to the Presiding Judge of the First Administrative Judicial Region for assignment.

INSTRUCTIONS TO THE CLERK OF THE COURT

The Clerk of the Court shall immediately transmit a copy of this Order to Judge Mary Murphy, Presiding Judge of the First Administrative Judicial Region, to the Defendant, and to counsel for the State.

SIGNED this 22 day of June, 2016.


JUDGE BRANDON BIRMINGHAM
292ND JUDICIAL DISTRICT COURT
DALLAS COUNTY, TEXAS

EXHIBIT Q

THE STATE OF TEXAS
Vs
BABAK TAHERZADEH

Cause No. F14-75584-U

626-654
IN THE JUDICIAL
DISTRICT COURT 291st
DALLAS COUNTY, TEXAS

CASH BOND RELEASE

KNOW ALL MEN BY THE PRESENTS:

That, I, ANDREW TAHERZADEH, am payor on bond posted in the above cause on behalf of the principal/defendant, deposited with the Sheriff of Dallas County, Texas, and used to secure the appearance in court of said principal/defendant named above; said cash bond being evidenced by receipt, dated 4/30/2014 and signed by V. EPHRAIM, Deputy Sheriff.

I do hereby specifically release and forever discharge Judge MITCHELL, of Dallas County, Texas, and all his deputies, the District Clerk of Dallas County, and all his deputies, and all their respective heirs, executors, administrators from any claim of any description whatsoever arising from the distribution of the monies evidenced by the receipt.

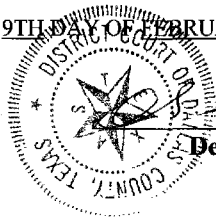
ANDREW TAHERZADEH
511 BIRCH LANE
RICHARDSON TX 75081



PAYOR

SUBSCRIBED AND SWORN BEFORE ME ON THIS 9TH DAY OF FEBRUARY, 20 16.

Verified w/Trust: GAIL



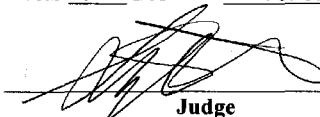
[Signature]
Deputy District Clerk

ORDER TO RETURN CASH BOND

It appearing to the Court that defendant in the above cause was charged with RETALIATION, and it further appearing to the court said cause was disposed by 2/3/16 PGFR and the Court having been presented with the above described cash bond receipt, and said cause having been finally disposed of, it is therefore

ORDERED that the District Clerk of Dallas County, Texas pay an administrative fee, pursuant to Local Government Code, section 117.055, of \$ 50.00, with the remainder of the bond, in the amount of \$1450.00, as evidenced by the above receipt, to the assignee therein, ANDREW TAHERZADEH.

SIGNED AND ENTERED ON THIS 16 DAY OF FEBRUARY, 20 16.



Judge

CK# 13137 DATE FEB 22 2016 AMT \$1,450.00 FELICIA PITRE, District Clerk GGG

CK# 13148 DATE FEB 22 2016 AMT \$50.00 FELICIA PITRE, District Clerk GGG

EXHIBIT R

Cause No. F-1612037-J

THE STATE OF TEXAS

vs.

Babak Tahergarshi

§
§
§

IN THE Criminal
DISTRICT COURT #3
DALLAS COUNTY, TEXAS

ORDER FOR EXAMINATION
REGARDING COMPETENCY/MENTAL ILLNESS

On this day the Court considered the issue of the competency of the Defendant to stand trial in this cause; and the Court being of the opinion that the Defendant should be examined as provided in Chapter 46B of the Code of Criminal Procedure;

IT IS THEREFORE ORDERED that Dr. Kristi Compton shall examine the Defendant, Babak Tahergarshi, to determine if the Defendant is ~~competent to stand trial and/or~~ if the Defendant is a person with mental illness in accordance with Chapter 46B of the Code of Criminal Procedure. BFB

IT IS FURTHER ORDERED that said doctor shall have access to, and copies of, any and all psychiatric and medical records in possession of the jail or Parkland Health and Hospital System/Dallas County Jail Health with respect to this defendant, including any records of this defendant related to any other book-in number, cause number, or offense, or any records maintained under the above-listed name or any alias names of this defendant. Copies of records may be provided in electronic form.

SIGNED this 18th day of January, 20 18.

Richard A. Pearson
JUDGE PRESIDING

Book-in #: BWD

Location: _____

EXHIBIT S



Loc. North Tower 3W/West, 3rd Floor Control Center 3W08 Bookin Number: 16034205 Audit Number: 201633132

APPOINTMENT OF COUNSEL FOR INDIGENT DEFENDANT

The State of Texas

292nd Judicial District Court (FV)

Vs.

District Court

DASHUN ESTER

Dallas County, Texas

Cause No.:

Offense

LD

F1670470

AA/DW

F2

It appearing that the defendant has executed a sworn statement certifying that he/she is without means to employ counsel and requesting appointment of counsel; the Court finds that the defendant is indigent and hereby appoints: The Attorney: PAUL JOHNSON

Phone: 214-761-0707

Alt. Phone: 214-202-8461

Email: PJJDOC@AOL.COM

Address: 900 JACKSON STREET, SUITE 650 DALLAS, TX 75202

A practicing attorney of the State to represent the defendant in said case(s).

Signed this 21st day of June, 2016

JUDGE

Judge Brandon Birmingham

IndigentAppointmentPD

A handwritten signature in black ink, appearing to be "Paul Johnson", is written over a horizontal line.

EXHIBIT T

defendant's said conduct would cause a reasonable person to, and did cause B. BIRMINGHAM AND MEMBERS OF SAID B. BIRMINGHAM'S FAMILY AND HOUSEHOLD, to BE PLACED IN FEAR OF BODILY INJURY OR DEATH.

Count I, Paragraph 3

And it is further presented in and to said court, that BARAK A. TAHERZADEH, hereinafter called Defendant, on or about and between the dates of 30th day of September, 2015, and the 22nd day of June, 2016, in the County of Dallas, State of Texas, did, pursuant to the same scheme and course of conduct, then and there engage in conduct directed specifically toward B. BIRMINGHAM, hereinafter known as complainant, by knowingly engaging in conduct that constituted an offense under Section 42.07 of the Texas Penal Code, namely BY REPEATEDLY INITIATING ELECTRONIC COMMUNICATIONS TARGETING SAID COMPLAINANT AND BY REPEATEDLY DIRECTING THE CONTENTS OF SOCIAL MEDIA POSTS TOWARDS COMPLAINANT IN A MANNER REASONABLY LIKELY TO HARASS, ANNOY, ALARM, ABUSE, TORMENT, EMBARRASS, AND OFFEND SAID COMPLAINANT AND BY INITIATING COMMUNICATIONS WITH COMPLAINANT DURING WHICH SAID DEFENDANT MADE COMMENTS, REQUESTS, SUGGESTIONS AND PROPOSALS THAT WERE OBSCENE, AND BY WISHING SAID COMPLAINANT'S DEATH, and the defendant's said conduct would cause a reasonable person to, and did cause COMPLAINANT, to FEEL HARASSED, ANNOYED, ALARMED, ABUSED, TORMENTED, EMBARRASSED AND OFFENDED,

Count I, Paragraph 4

And it is further presented in and to said Court, that BARAK A. TAHERZADEH, hereinafter called Defendant, on or about and between SEPTEMBER 30, 2015 and JUNE 22, 2016, in the County of Dallas and State of Texas, did, pursuant to the same scheme and course of conduct, then and there knowingly engage in conduct directed specifically toward B. BIRMINGHAM, hereinafter known as complainant, that the defendant knew or reasonably should have known said complainant would regard as threatening bodily injury or death of the complainant, namely BY REPEATEDLY INITIATING ELECTRONIC COMMUNICATIONS TARGETING SAID COMPLAINANT AND BY REPEATEDLY DIRECTING THE CONTENTS OF SOCIAL MEDIA POSTS TOWARDS COMPLAINANT IN A MANNER REASONABLY LIKELY TO HARASS, ANNOY, ALARM, ABUSE, TORMENT, EMBARRASS, AND OFFEND SAID COMPLAINANT AND BY INITIATING COMMUNICATIONS WITH COMPLAINANT DURING WHICH SAID DEFENDANT MADE COMMENTS, REQUESTS, SUGGESTIONS AND PROPOSALS THAT WERE OBSCENE, AND BY WISHING SAID COMPLAINANT'S DEATH, and the defendant's said conduct would cause a reasonable person to, and did cause COMPLAINANT, to be placed in fear of bodily injury or death,

Count I, Paragraph 5

And it is further presented in and to said Court, that each of the foregoing acts was committed pursuant to the same scheme and course of conduct that was directed specifically at B. BIRMINGHAM AND MEMBERS OF B. BIRMINGHAM'S FAMILY AND HOUSEHOLD,

I further judicially confess that I committed the offense with which I stand charged exactly as alleged in the indictment in this cause.

Against the peace and dignity of the State.


Foreman of the Grand Jury

Page 3 of 3

EXHIBIT V-3

EXHIBIT W

EXHIBIT X

EXHIBIT XX

EXHIBIT XXX

EXHIBIT Z

EXHIBIT ZZ

EXHIBIT ZZZ

W16-12037-J(A)

THE STATE OF TEXAS	§	IN CDC #3
v.	§	DALLAS COUNTY, TEXAS
BABAK TAHERZADEH	§	trial court cause no F16-12037

FIRST AMENDED PETITION FOR WRIT OF HABEAS CORPUS

TO THE HONORABLE JUSTICE OF THE COURT:

I, Babak Taherzadeh, respectfully petition for Writ of Habeas Corpus seeking relief from unlawful control and restraint by the District Courts of Dallas specifically Judge Brandon Birmingham and CDC #3, the Dallas County District Attorneys Office specifically Asst. DA Gary McDonald, and the Community Supervision and Corrections Department Director Javed Syed. I have been in jail or under some form of restraint or custody in case F16-12037 in the Criminal District Courts of Dallas County since June 21, 2016. Previously I petitioned for Writ on 10/24/2017 (Wx1790064) for relief from unlawful restraint from 02/09/2017 Order of Deferred Adjudication because it was invalid as well as a myriad of other grounds. It was ruled invalid but despite assertions by the State issues returned, remain and continue to riddle this prosecution with so many errors, irregularities, and even crimes it is difficult to describe and remain coherent.

I am indigent, unable to retain representation. I wish I could. I have never been provided effective legal counsel free of conflict at any stage. Effective legal counsel would prepare a more proper petition that would challenge each issue clearly while protecting my rights. This Petition with oral arguments requested seeks relief under Art. 11.072 of Texas Code of Criminal Procedure from control, custody and restraint from Order to Defer and community supervision dated 12/01/2017 on grounds including but not limited to the following:

1. I unquestionably withdrew Plea 12/6/2017. SEE EXHIBIT B. My Plea from February 2017 was to the a single violation of Penal Code 42.07 on 9/30/2015 contained in 1 count of indictment.SEE EXHIBIT A1-A4. Art. 21.24 of TCCP requires separate counts for separate offenses and a count can only alleged a single offense. Count 1 Paragraph 3 alleges a violation of 42.07. The Docket incorrectly notes that I Pled Guilty to Counts 3-5. SEE EXHIBIT F. The sentence and orders of the court allege an offense 6/22/2016. SEE EXHIBIT H1 & H2. I was in the Carrollton Jail 6/21-

6/23/2016. Furthermore, I never stalked Judge Birmingham & Statute is unconstitutional.

2. The Trial Court lacked Jurisdiction on December 1, 2017 to issue Order to Deferred Adjudication and community supervision under TCCP specifically Art. 42A.202(a)(b) and Art.42A.203(b) . SEE H1 & H2 Only the trial judge has the authority to order deferred adjudication community supervision. The trial court retains power for only 180 days after announcing a sentence. I appeared 12-01-2017 without trial counsel Paul Johnson.
3. Criminal District Court #3 in Dallas County lacks Jurisdiction when no probation violation occurred. The Order for Deferred Adjudication ordering community supervision with conditions dated 2/9/17 was invalid and ruled 'void' by Judge Kerry Fitzgerald . See G. There can be no violation of a "void" order. There can be no modification or continuation of a void order. The District court where a violation occurs would potentially have jurisdiction. But there was no violation . I didn't violate a condition. Furthermore, the order and condition with it were "void" thus there can not be violations of a void order. No Violation . Void Order. No Conditions. No Violation . No Jurisdiction.
4. Even if it had Jurisdictional Authority, The Order to Defer Adjudication and order community supervision that was assembled and affixed with the date 12/01/2017 fails to satisfy Art. 42A.101(b) of Texas Code of Criminal Procedure which requires the Judge after placing defendant on deferred adjudication community supervision inform defendant of consequences of under 42A.108 and 42A.110 of a probation violation. SEE H1 & H2 This failure and its injury was denial of the constitutional right to due process of law thus grounds for instant reversal .
5. The Trial Court and all the Courts of the Criminal District of the First Administrative District lack authority when the Presiding Judge of the entire Judicial Criminal District Courts is the alleged victim in criminal proceedings in that district. When the ethical, legal and responsible requirement is unquestionably disqualification , Judge Birmingham's assignment of this case to his own court is evidence of an insufferable fraud bereft of integrity who lacks the temperament, character and judgement worthy to operate an amusement park ride much less a District Court of the State of Texas. Remember his previous recusal the prior

year in F14-75584 , he didn't. Both his signing of order granting his own recusal the following day , again after assigning the case initially to his own court , are barred by The Constitution of Texas and TCCP which prohibits a judge from sitting in any case where they maybe the party injured. "No Judge shall sit in any case wherein the judge may be interested party..." and "No Judge or justice of the peace shall sit in any case where he may be the party injured.." both are in no way unclear.

Witnesses To The True Character of Judge Brandon Birmingham include:

-Gary Perkins of the DeSoto Police Department who recorded Brandon Birmingham admitting a case was dropped because of campaign contribution of defendants attorney . Perkins suffered retaliation by being placed on the Dallas County Prosecutors Brady Listed of problem officers. I can provide the recording of Brandon Birmingham by DeSoto Police.

-Michelle Fernandez who Garland PD witnessed being assault by Hector Fernandez. Her father. The assault was sexual in nature. The investigation revealed a horrid story of years of sexual assault of young girl by her father starting when she was very little. I will provide investigative reports which include unconscionable crimes against that poor young child.. And while Hector Fernandez enjoyed freedom out on bail I can provided the Judge Brandon Birmingham's signed Order Dismissing charges against an incestuous child rapist in July 2016 "in order to eliminate the overcrowded conditions of this Honorable Court's docket...this case should be dismissed" as cause . Around that same time I was arrested for speech, against of a elected official , on twitter, for felony stalking and case was assigned to overcrowded docket of the alleged victims court using "judicial and prosecutorial manpower." Hell, four Carrollton police officers (buddies of Birmingham who worked on the prosecution that got a lot of notoriety) were stalking me in Dallas and arrested me in Dallas on my way to work and took me and my car and possession to Carrollton before finally taking me back to Dallas, the Dallas County Jail and Dallas County Sheriffs.

-Commissioner John Wiley Price who received “concerns” from other District Court Judges and Public Defender about the assignment of high profile case by Judge Birmingham . Always seeking fame and celebrity he was keeping easy high profile cases with media coverage for himself as well as using his office for podcast and recording campaign messages to solicit donations and using county provided health care coverage to pay for his boutique weight reduction procedure claiming his health was at risk. Adding his name in large lettering installed visibly on the wall for when cameras are present. Suddenly standing during televised proceeding. Using public provided resources to appear on any program to opine on any cases without any knowledge of the laws of that state or municipality.

-Peri Wood contributed to candidate Brandon Birmingham's campaign and was handsomely rewarded with appointment as court reporter of the 292nd after Brandon Birmingham barely won what was expected to be a cake walk for the democratic candidate . He apparently fired the previous court reporter of the 292nd who didn't contribute to his campaign. Strangely, Birmingham received more contributions in the period after the election than he received in the reporting period before the election. because he's a bought and sold whoer

-Uvaldo Perez “mexican” who was shot by Officer Amber Guyger the year before she murdered “a black.” Perez wasn't taken to court despite the rules of Brandon Birmingham's 292nd until he agreed to plea. A common scheme Birmingham pulls. Dash Cam video of the incident was buried. Guyger was represented by The DPA whose members campaigned for candidate Birmingham and were one of his biggest campaign contributors before and after his election. HAD BIRMINGHAM BEEN ETHICAL AND HAD ANY INTEGRITY AT ALL AND PROVIDED DUE PROCESS OF LAW INSTEAD OF JUST RAILROADING PEREZ PERHAPS AMBER GUYGER WOULDN'T HAVE BEEN A COP IN SEPTEMBER OF THE FOLLOWING YEAR AND BOTHAM JEAN WOULD STILL BE ALIVE. Other than the killer herself no single person is more responsible for Botham Jeans murder than Judge Brandon Birmingham.

-**Attorney Jeff Boncek** who was a contributor to Judge Birmingham who was awarded case after case by Birmingham AD HOC including Ubaldo Perez who he never took him to court. He failed to preserve the video of Guyger shooting Perez allowing the video to be discarded . Perez with a criminal record already got 2 years for allegedly scuffling with a police officer and supposedly taking her taser which required her to use deadly force. He was violating his parole and had a considerable amount of drugs on him as well. Serious drugs. Only 2 years ? For all that? That seems weird.

-**Attorney Toby Shook** who is paid by the DPA to represent Officer Amber Guyer in her latest shooting that resulted in the killing of Botham Jean is a real creep. Attorney Toby Shook is also a campaign contributor to Judge Birmingham along with Boncek and the DPA. And while Attorney Toby Shook is public and vocal in his criticism of District Attorney John Creuzot even after he filed a motion to recuse in a case of a campaign supporter of the New DA who was charged with a crime . Yet Shook remains silent when white people take campaign contributions from parties before their court. Attorney Toby Shook didn't protest when Judge Birmingham assigned the Uvaldo Perez case to His own court. Despite the DPA representing Guyger Attorney Toby Shook didn't protest when DPD investigator and DPA members who were representing Guyger were meddling in the investigation by The Texas Rangers and rushed to Judge Birmingham to sign a search warrant for the victim apartment looking for "narcotics " despite the multiple conflicts that existed from the DPA contributions to Judge Birmingham and Birmingham's involvement and knowledge of Officer Guyger's propensity to shoot a minority each year as a police officer. Attorney Toby Shook after suggesting ethical investigation and perhaps criminal charges against Black District Attorney John Creuzot when he had recused , Attorney Toby Shook fell especially silent when DPA supported, endorsed and paid Judge Brandon Birmingham assigned the DPA represented Officer Amber Guyer murder of Black Botham Jean in his own apartment case to the court of DPA supported and endorsed and paid Judge Tammy Kemp. But this will only deprive the people of Dallas from determining Guyger's fate. In all seriousness, Brandon Birmingham's

corruption of the Botham Jean case is unconscionable. What Birmingham has done can not be undone. He is truly soulless if he can torture the mother of murdered man with the agony of injustice . My mom had a hard time when I was in jail as well. There is a special place in hell for the likes of Birmingham

- **The Sweet Mother of Botham Jean, Allison Jean** whose outrage was deepened when she and hundreds of people gathered to pay tribute to her son and the details of a search warrant executed by members of DPA searching for “narcotics” in the victims home signed by DPA paid Judge Brandon Birmingham in attempt to smear a man who was killed by off-duty officer Amber Guyger who is represented by the DPA for the second shooting of a minority in as many years was released. There was considerable public outcry and Birmingham was exposed. Calls for the removal of Judge Birmingham were especially prevalent from the black community henceforth called “the community” causing Judge Birmingham to take a picture with every black person he can and post it online to try to dispel allegations he’s racist because he is a shill for the most racist police union in town. He may be racist as well but there is no question he is corrupt AF, can be bought and owned, and abuses his office with impunity .

6. The conditions of community supervision, documents and orders provided as the record are fabricated, altered or falsified and constitutionally prohibited. They exceed the plea agreement . The Honorable Kerry Fitzgerald suspended conditions in open court despite having no authority and the conditions being null by the “void” order however documents available online show Judge Beacom signature from June 2018 presented in a Document called “judgement” dated 12/1/2017.
7. A violation of a court order is a contempt of court. A violation of 42.07 of the Penal Code is a misdemeanor with a statute of limitations of two years.

8. The State is prohibited from putting in jeopardy a person more than once for conduct. And speech is not conduct. Furthermore a second sentence is prohibited when defendant has begun sentence especially when subsequent sentence exceeds what is permitted applying standard In Harris v. State , 153 S.W.3d 394 Tex. CRIM. App. 2005, where the Court held a trial court improperly re-sentenced a defendant one day after initial sentence because it violated defendants rights under Double Jeopardy Clause.

-Single- The conduct of 9/30/15 resulted in contempt of court in case F14-75584 in the 292nd Court resulting in recusal of Judge Birmingham, arrest under warrant by Gracie Lewis and 100 days in jail before 291st returned bond ruling no violation of law or order thus acquittal.

-Double- The conduct of 9/30/15 was filed as a felony however the language of the indictment describes a misdemeanor and Gracie Lewis subjected the accused to a sentence and a punishment beginning 2/9/2017 that resulted in nearly 9 month of monitored confinement and severe financial on other losses before order was ruled “Void” by the Trial Judge Kerry Fitzgerald December , 2017.

-Triple Jeopardy- The Conduct of 9/30/15 inarguably can not be punished again 12/1/2017 after the previous order is ruled “void” .The Applicant had already served a sentence prohibited by TRCP under a order which was invalid.

-Quadruple Jeopardy- Any subsequent punishment including the 2/13/18 arrest that resulted in 5 months in jail and the 6/1/2018 conditions both signed by assigned Judge Richard Beacom who I formally object to under Sec. 74.053(d) of the Government Co

II.

Background

I was arrested on June 21, 2016, by Carrollton Police in the City of Dallas and taken by three detectives to Carrollton City Jail where I was charged with felony stalking of State District Judge Brandon Birmingham and informed my case was assigned to the 292ND District Court of said Judge Brandon Birmingham whose court had bail set at a

quarter of a million dollars. Judge Birmingham had previously recused himself in a case against me but at the time of the new charges he was the Presiding Judge of the Criminal Judicial District and his court assigned cases to the Criminal District Courts. As I mentioned, it was assigned to his. Eventually I was taken back to Dallas and the Dallas County Jail where I spent nearly 8 months before, to get out of jail, I agreed to plea. Prior to agreement my case was transferred from the alleged victims Brandon Birmingham's court across the hall to another court of the same judicial district and The Honorable Kerry Fitzgerald was assigned to presides over all matters. As required, the State provided defense an inventory and access to discovery before order of deferred adjudication was signed February 9, 2017.

I was fitted with an ELM and finally released from jail Feb 17^t, 2017 under strict house arrest/home confinement . The conditions that were enforced exceeded the plea agreement and what the TCCP permitted but I complied. Still, after more than 8 months of what Judge Fitzgerald would characterize as being a "model probationer" the State filed a motion to revoke, got a warrant signed by "another judge" and I was arrested October 24, 2017 and jailed yet again. Prior to arrest I filed a petition the Court for Writ for Habeas relief (WX1790064) arguing many issues including the validity of the February 9, 2017 Order of Deferred because it was not signed by trial judge as require thus invalid, null, void. Regardless I spent 10 days in jail before a Nov 3rd , 2017 hearing where I agreed to specific limited conditions noted on the docket and released without ELM. Judge Fitzgerald had me provide PR Bond. I filed a motion November 21, 2017, requesting reversal based on the invalid order .

On December 1, 2017, in hearing in open court, Judge Fitzgerald continued until next hearing suspending conditions *if* I agreed to a single added condition to see Dr. Kristi Compton for evaluation within 30 day. Unbeknownst to me, noted in the docket, Judge Fitzgerald signed a order for deferred ruling the previous order was "void" because it was signed by "another judge" who was "recused" . On December 6, 2017 I communicated to the court and revocation attorney on the withdrawn motion to revoke , I was withdrawing plea and asked for appointment of attorney for assistance . The State filed its Response to my Habeas Petition on December 11, 2017. In February 2018 the state again filed a motion to revoke and I was arrested February 13, 2018 and thrown in jail yet again. Two days later I was taken from jail to a hearing on my Habeas Petition challenging custody based on the 02/09/2017 Order which had clearly ruled void. In open court I motioned for sanctions against ADA Gary McDonald by offering testimony and evidence that he is pretty much lying sack of shit. Despite a pending competency order Judge Richard Beacom accepted a motion in open court to withdraw previous Petition for writ by agreement of Appointed attorney and State yet denied my motion commanding "motions are written " with a tinge of selective

finality . I was taken back to my cell and I spent nearly 5 months to-the-day in jail before being fitted with ELM and being released on July 12, 2018 again with conditions i didn't agree to, that exceeded what was permitted, accepting what I had previously agreed to, a plea i had clearly withdrawn, from a court that lacked jurisdiction, to a violation that didn't exist.

In November 2018 A written Motion to Remedy Misconduct by The State and ADA Gary McDonald was filed electronically with the court and while my attempts to communicate and schedule a hearing are disregarded by Court Coordinator Lamonica Littles just as the court has disregarded multiple Motions including Motions to Disqualify filed by the defendant/applicant. Meanwhile, the States Motion for Recusal of the New DA is ruled on post haste by Judge Beacom without any notice of hearing or consideration on grounds that the Honorable John Creuzot fails to "state good and sufficient cause" , again, a requirement the court selectively and arbitrarily applies.

III.

Credibility of The State

"[The prosecutor] is the representative not of an ordinary party to a controversy, but of a sovereignty whose obligation to govern impartially is as compelling as its obligation to govern at all; and whose interest, therefore, in a criminal prosecution is not that it shall win a case, but that justice shall be done. As such, he is in a peculiar and very definite sense the servant of the law, the twofold aim of which is that guilt shall not escape or innocence suffer. He may prosecute with earnestness and vigor -- indeed, he should do so. But, while he may strike hard blows, he is not at liberty to strike foul ones. It is as much his duty to refrain from improper methods calculated to produce a wrongful conviction as it is to use every legitimate means to bring about a just one." **Berger v. United States, 295 U.S. 78, 88 (1935).**

The State should be barred from any further communications to any court until they remedy clear unquestionable misconduct and/or unlawful acts committed by members of The Bar on its behalf. In The States Response dated 12/11/2017 to petition for Writ e-filed and served 10/24/2]17 (WX1790064) the State, Asst. DA Jaclyn O'Conner Lambert, attests to several false statements of fundamental, consequential, material facts. The States "History" is even false and It's a arguments are flat meritless on the facts. Her testimony is lethal and has been used to put people to death. Her testimony does the same to justice in this case.

Fake History

- i. The State, Attorney Jaclyn Lambert O'Conner, asserts Judge Birmingham immediately recused while in actuality as the Presiding Judge of the Criminal District , the case was assigned to his court by his court and he signed a order to recuse the day after unlawful assignment. This is

critical because the legal requirement according to the Texas Constitution and TRCP is Disqualification. Allowing a case to proceed after that by a bitter Judge/Alleged victim, any Judge, attorney or prosecutor is setting aside the most fundamental ethical obligation and duties to maintain the integrity of the law and the judicial system.

- ii. The States, Attorney Jaclyn Lambert O'Conner, claimed that a Motion to Revoke and proceed on Probation Violation was filed November 2017 and "is currently pending" in its Dec 11, 2017 Response to Applicants Petition. This is factually untrue and dishonest in so many ways it's head-spinning. Judge Kerry Fitzgerald granted The States Motion to Withdraw its Motion to Revoke Probation and or Proceed to Adjudication on December 1, 2017 by signed order. SEE C. A Jail Deposition Dated 12/4/2017 also refers to states withdrawal of revocation. SEE M. Additionally, the States original motion to revoke/ adjudicate and warrant issued by the same prohibited judge were filed Oct, 2017. Again Fitzgerald ruled the 2/9/2017 Order "void" on 12/1/2017 thus any action stemming from a void order is nothing. Furthermore, The Rules prohibit amending Motions to Revoke within 10 days of hearing.
- iii. see 1 below concerning non existent Nunc Pro Tunc

False Reasoning

1. States claim the signature of District Court Judge of the great State of Texas is a "clerical error" corrected by Nunc Pro Tunc is laughable, objectionable not substantiated by the law, precedent or fact. First no record of Nunc Pro Tunc exists. None. Jacklyn O'Conner Lambert, Brandon Birmingham and Gary McDonald would satisfy the requisite for conspiracy plus. Second, the State is either attempting to revive a null order that lacks the proper authority in violation of the law by disregarding the ruling by The Court affixed with the signature of Honorable Judge Kerry Fitzgerald or is offering false legal process as evidence?
2. Evidence of counsel rendered Ineffective by conflict interest is shown in the Ad Hoc awarding of cases to trial counsel, the appointment of Trial Counsel Paul Johnson as Prosecuting Attorney Pre Tem by the Alleged Victim in Alleged victims court, contributions the Judges Birmingham's Campaign AFTER his Election all resulting in the Failure to Question the Judge upon examining trial and failure of Appointed Attorney to advocate for the Defendant or to challenge a single issue, file a single motion to preserve rights of accused, peruse one piece of evidence or show concern when clearly the Order was Void and petitioner sought relief.

3. Challenges to the Constitutionality of the Stalking Statute may be prohibited In post conviction Habeas proceeding however Deferred Adjudication is not recognized as a post conviction Furthermore the previous Order to defer adjudication and place the petitioner in Community Supervision was “Void”. So as it turns out it was presented prior to trial.
4. Other objections were presented to the trial court in Applicants Petition. No appeal is available the applicant when Order is “void” and without Motion by defendant to proceed to Adjudication with 30 days of Order to Defer.
5. The Great Writ is an exceptional remedy. Constraint and custody and control due to truly egregious conduct and denial of due process, obstruction of justice and targeted prosecution warrant exceptional remedy. The state contends that Direct Appeal thus asking the trial court proceed to adjudication of a Void Order prohibited by law was the remedy?
6. Failure of the Court to assign bail anywhere close to the Dallas County bond schedule and failure of ineffective counsel to file as directed motions for bond reduction along with the courts failure to reduce a \$250,000 bond after 8 months in jail when the purpose of bail is to INSURE THE ACCUSED APPEARS BEFORE THE COURT WHEN PETITIONER WAS NOT MADE AWARE OF OR TAKEN TO APPEARANCES BEFORE THE TRIAL COURT WHEN HE WAS IN JAIL AND PRETTY MUCH IN THE BUILDING.
7. Transfer of the case upon order after hearing stating the reason for a judge removal or agreement of parties never happened because the initial assignment of the case was prohibited by the constitution and the order of recusal is also void.
8. A waiver including of right to effective counsel and appeal is invalid when it is made without effective counsel in the trial court or by a person who the court believes is not of sound mind, or under duress, or not provided material evidence, or made in a court lacking jurisdiction ...

- But it is well-established that “*important constitutional rights require some exceptions to the presumptive enforceability of [an appeal] waiver,*” Campusano, 442 F.3d at 774 (Sotomayor, J.), such that “*even the broadest waiver does not absolutely foreclose some degree of appellate review.*” Campbell, 686 F.3d at 358. Those issues include, at a minimum, whether the waiver was made knowingly, voluntarily, and competently, whether the government

breached the plea agreement, whether the sentence was imposed based upon constitutionally impermissible factors, and other challenges related to the legality of the sentence. Campusano, 442 F.3d at 774-75 (Sotomayor, J.). Thus, as in Flores-Ortega and Rodriquez, counsel's refusal to file a notice of appeal deprives his client of "*an appeal altogether.*" Flores v Ortega, 528 U.S. at 483

IV.
AGGRAVATED PERJURY BY
ASSISTANT DISTRICT ATTORNEY GARY McDONALD

Assistant District Attorney Gary Coates "Cody" McDonald should be disbarred. As a director of the Dallas Bar Association, Arson Investigator and Deputy Chief of Grand Jury/Intake department he invalidates any proceeding involving him until an authority shows he can't act with impunity .

- 1.The States' Discovery Provided Defendant filed Feb 9, 2017 does not list evidence seized by Carrollton Police and had in its possession In violation of TRCP and Federal rules of evidence.
- 2.Setting aside the fact that the order applying the condition was invalid, In the States Amended Motion to Revoke dated November 2, 2017 Asst. DA Gary McDonald sworn statements are all questionable at best but he is unquestionably making a false statement when he attests Probationer failed to pay court cost and fees and "is currently delinquent".
3. Asst DA Gary McDonald sworn statements are dubious and meritless in the States Motion to Revoke from February 6, 2018 but he attests the defendant was duly and lawfully placed on probation February 9th 2017 when the Court had ruled that order 'void'. ~~He puts both the "liar" and "shit" in "lying sack of shit". Come to think of it he also looks like a shriveled scrotum so he puts the "sack" in as well.~~

4. The 12/5/2016 Subpoena Application for Tasha Tsiaperas of The Dallas Morning News is sworn to by ADA Gary McDonald and falsely states a trial date of 12/14/2016.

V.

Previous grounds include

1. Actual Innocence
2. ADA Violations
3. Venue
4. Jury Demand
5. Texas Prohibits Judges to sit in cases where in the judge may be interested.
6. The signed Judgement in this case is prohibited or invalid
7. Babak Taherzadeh right to representation and legal counsel has been deprived by Judge Gracie
8. The Stalking Statute of Texas is Unconstitutionally Vague.
9. The Stalking Statute of Texas is prohibited by the Constitutions.
10. Judge Jennifer Bennett Violated my 4th amend right to be safe and secure that has not returned to this day. Judge was not a neutral authority in determination of Probable Cause which deprived me of the many constitutional right.
11. Judge Bennett violated my 8th Amendment right to bail. It was excessive. It was unusual And deprived due process of law AND CRUELLY left me in jail for 8 months until I agreed to plea
12. The 292nd denied Babak Taherzadeh right to counsel when it failed to appoint attorney as the Indigent Appointment plan of Dallas requires it to indigent Defense Plan
13. Judge Mary Murphy erred when she allowed a case prohibited by The Constitution of Texas to proceed and ASSIGNED it to another court of the same Judicial District with, a wanton disregard for the justice and Constitutional rights of Babak Taherzadeh

14. Prosecuting Attorneys lacked the Standing under TCCP 7A and authority to file suit again me .
15. ADA Gary McDonald used the Stalking Statue of Texas and with Federal tools and assets intended for combating Violence against women to violate the Constitutional Rights of Dallas Resident United States Citizen
16. The Ass. District Attorney Gary McDonald violated my 14th amendment and the equal protection enshrined
17. Dallas County Dallas County DA office deprived me to do process of Law
18. Judge Brandon Birmingham effectively brought back slavery in violation of the 13th amendment . And Enslaved Me for Life. Read it. The PO parts of the TCCP are unconstitutional
19. The 292nd Court violated the 5th amendment when it held the petitioner in the to answer to a crime of a degrees prior to indictment and required petitioner to testify without a lawyer as witness against myself in order to defend myself n pursuit of Protective OrderThe 292nd Court violated the 5th amendment when it held the petitioner in the to answer to a crime of a degrees prior to indictment and required petitioner to testify without a lawyer as witness against myself in order to defend myself in pursuit of Protective Order
20. Attorney Paul Johnson was ineffective & failed to defend Client He was rendered grossly deficient by a conflict of interest that put plates while likely at the same time inflicted injustices, rape me of liberty & possibly put the poor and retards on death row without due process of law.
21. Judge Brandon Birmingham is the perp of a Federal Offense. No immunity when he uses an administrative function of a court to deprive civil and constitutional rights of Babak Taherzadeh. He awarded the many cases with tremendous Financial benefit to Paul Johnson that influence to further dissuade any fidelity and do more harm taunting the law, flaunting impunity with feigned integrity
22. The False Testimony and unlawfully surveillance of Carrollton Police Detective J. Chevalier #0709 violates Constitutional Protection

23. The Trial record fails to indicate the Examining Trail and unless a written judgement of the magistrate is placed in trail record the prisoner is to be released.
24. - 50 The Prosecution by the State and Judges have violated every norm , every safeguard and protection against unjust and targeted prosecution

ADDITIONALLY :

I BELIEVE JUDGE BIRMINGHAM USED THE PRESTIGE OF THE COURT TO INFRINGE ON MY PRIVACY, ISSUE WARRANT OR WITH SIMPLE REQUESTS MY INFO FROM GOOGLE, TWITTER AND ACCESS MY PHONE ACTIVITY.

THE STATEMENT IN THE CARROLLTON POLICE AFFIDAVIT IS VERY SPECIFIC AND DETAILED AND IS ALMOST THE EXACT SAME WORD FOR WORD IN BIRMINGHAM'S AFFIDAVIT HE SUPPOSEDLY GAVE BEFORE NOTARY A MONTH AND A HALF LATER THEY ARE STATEMENTS OF FACT THAT COME FROM ACCESS

Prayer

Applicant prays for Writ and relief in the form of liberty and Justice. ~~Brandon Birmingham is a candidate for the Honorable Judge David Newells place 9 seat and while i'm not a Republican I believe 'The Court of Last Resort' as you are known would be a better place smeared with feces and flooded with several inches of watery discharge than with Brandon Birmingham as a justice of the Court. Perhaps with his candidacy for this court and the contribution and involvement of Judge Burns of The 5th Court Of Appeals to Birmingham campaign and my case create circumstances that render the State Courts of Texas incapable of rendering judgement while insuring my fundamental Constitutional rights?~~

Oath

I, Babak Taherzadeh, swear under penalty of felony the statements in these 5556 words are true as I believe and the documents included are not altered or fabricated.

Respectfully Submitted,
/s/ Babak Taherzadeh
Babak Taherzadeh
Filed Pro Se

babaktaherzadeh@gmail.com
214-676-3833
Babak Taherzadeh
8150 N. Stemmon Frwy. E1057
Dallas, Texas 75247

THE STATE OF TEXAS

CAUSE NO. F 16 12077-J

VS.

CRIMINAL DISTRICT COURT #3

Babak Taherzadeh

DALLAS COUNTY, TEXAS

PLEA AGREEMENT

State ID No:

Incident No / TRN:

Attorney for State: *G. McDonald*

Attorney for Defendant: *P. Johnson*

Offense:

Stalking

Statute for Offense:

Charging Instrument:

☒ Indictment

☐ Information

Date of Offense:

9/30/15

Degree of Offense:

3d

Affirmative finding of deadly weapon: ☐ YES ☐ NO

Type of Weapon:

Affirmative finding of family violence: ☐ YES ☐ NO

Ignition Interlock required

☐ YES

☐ NO

Affirmative finding of bias or prejudice: ☐ YES ☐ NO

If yes, Group:

Sentence to run

☐ CONCURRENTLY

☐ CONSECUTIVELY

WITH

Time Credit: From

To

From

To

Sex Offender Registration ☐ DOES ☐ DOES NOT

apply.

Age of victim at time of offense:

TO THE HONORABLE JUDGE OF SAID COURT:

The defendant herein and the attorneys for both the defendant and the State waive a jury trial and make the following agreement:

Defendant's Plea:

☒ Guilty

☐ Nolo contendere

☐ Defendant will testify.

☐ Defendant will not testify

Plea to enhancement paragraph(s):

☐ True

☐ Not true

Type of Plea:

☒ Plea bargain

☐ Open plea

Open as to:

☐ Fine

☐ Restitution

☐ Community Supervision

☐ Deferred Adjudication

☐ Other

State's recommendation:

Agreed sentence:

☐ Confinement in ☐ penitentiary ☐ state jail ☐ county jail for _____ ☐ years ☐ months ☐ days

☐ Post-conviction community supervision, confinement probated for _____ ☐ years ☐ months ☐ days

☒ Deferred community supervision for *4* ☒ years ☐ months ☐ days

☒ Fine of \$ *1000* ☐ to be paid ☒ to be probated

☐ Boot Camp ☐ Shock Probation ☐ Substance Abuse Felony Program

☐ CENIKOR ☐ Judicial Treatment Center ☐ Dallas County Jail Chemical Dependency Program

☐ Restitution in the amount of \$ _____

☐ Defendant will sign waiver of extradition ☐ Defendant knowingly and voluntarily waives appeal

☐ Defendant Waives a court reporter

☒ Other:

hold for 21M / No Contact w/ Judge B. in person

☐ Back-time included:

☐ Back time NOT included

or his family

EXHIBIT A1

☐ **CHANGE OF NAME** (Applicable only if box is checked)

The defendant having suggested that his/her true name is other than that set forth in the charging instrument, and having moved that the charging instrument and all other documents in this cause be amended to show his/her true name to be _____, said motion is hereby granted. It is so ordered.

COURT'S ADMONITIONS TO DEFENDANT

You are charged with the offense of: Stalking
The punishment range for the offense charged is:

- ☐ 1st Degree Felony, 5-99 years or Life and an optional fine not to exceed \$10,000.00
- ☐ 2nd Degree Felony, 2-20 years confinement and an optional fine not to exceed \$10,000.00
- ☒ 3rd Degree Felony, 2-10 years confinement and an optional fine not to exceed \$10,000.00
- ☐ State Jail Felony, 180 days – 2 years State Jail and an optional fine not to exceed \$10,000.00
- ☐ _____

You have an absolute right to a jury trial, to confront and cross-examine the witnesses against you, and to call witnesses in your own behalf. You have a right to testify, but you cannot be compelled to do so. The prosecuting attorney's recommendation as to punishment is not binding on the Court. If the Court rejects any plea bargain made in this case, you may withdraw your plea of guilty or *nolo contendere*. If the punishment assessed by the Court is not greater than that which you have plea-bargained, you may not appeal on any matter in the case unless the Court grants permission for the appeal or the matters appealed were raised by written motion filed and ruled on before the plea. If you enter a plea of guilty or *nolo contendere* and there is no plea bargain, the court may assess your punishment anywhere within the range allowed by law. If you are not a citizen of the United States, a plea of guilty or *nolo contendere* may, and under current Federal Immigration rules is *almost certain to*, result in your deportation, removal, exclusion from admission to the United States, or denial of naturalization. If you have a court-appointed attorney, you have a right to ten days from the date of the attorney's appointment to prepare for trial. You have the right to be tried on an indictment returned by a Grand Jury, and, unless you are on bond, a right to two entire days after being served with a copy of the charging instrument before being arraigned. If you receive unadjudicated community supervision and violate its conditions, you may be arrested and subjected to a hearing limited to determining whether or not guilt should be adjudicated. If guilt is adjudicated the full range of punishment is open to the Court. All proceedings, including assessment of punishment, pronouncement of sentence, granting of community supervision, and an appeal, then continue as if the adjudication of guilt had not been deferred. [In sex offense cases, see Court's Admonition to Sex Offenders, which is incorporated by reference and attached hereto.]

DEFENDANT'S STATEMENTS AND WAIVERS

With the approval of counsel, defendant makes the following statements and waivers. I am the accused in the charging instrument and am mentally competent. I understand the nature of the accusation made against me, the range of punishment for such offense, and the consequences of a plea of guilty or *nolo contendere*. I understand that I have an absolute right to a jury trial, that I have the right to remain silent, that anything I say can and will be used against me, that I have the right to confront and cross-examine the witness against me, and that I have a right to be tried upon an indictment returned by a grand jury. I understand that if

EXHIBIT A2

I am not a United States citizen, a plea of guilty or *nolo contendere* will probably result in my deportation from the United States, exclusion from admission to the United States, or denial of naturalization under Federal law.

I hereby waive my right to be tried on an indictment returned by a grand jury; any and all defects, errors, or irregularities, whether of form or substance, in the charging instrument; my right to a jury trial; and my right to remain silent. I waive arraignment and reading of the charging instrument; the appearance, confrontation, and cross-examination of witnesses on the issues of guilt and punishment; my right to ten days to prepare for trial after the appointment of counsel (if counsel has been appointed); and the preparation of a pre-sentence report. I consent to the oral or written stipulation of evidence or testimony, to the introduction of testimony by affidavits or written statements of witnesses, and to all other documentary evidence.

I admit and judicially confess that I committed the offense of Stalking on 9/30/15, exactly as alleged in the charging instrument. I affirm that my plea and judicial confession are freely and voluntarily made, and not influenced by any consideration of fear, persuasion, or delusive hope of pardon or parole.

I understand the admonitions regarding unadjudicated community supervision, and that I will be required to register as a sex offender if convicted of, or placed on community supervision for, one of the offenses enumerated under Court's Admonition to Sex Offenders, attached hereto. I understand that under the Uniform Extradition Act, should I be charged with a violation of my community supervision and be arrested in another state, I have the right to require the issuance and service of a warrant of extradition, the right to hire legal counsel, or, if indigent, to have counsel appointed, and the right to apply for a writ of habeas corpus to contest my arrest and return to this State.

☒ I voluntarily and knowingly waive my rights under the Extradition Act, waive extradition, and waive my right to contest my return to the State of Texas from any jurisdiction where I may be found. I understand and agree that such waiver is irrevocable.

☒ I understand that I have a right to appeal to the Court of Appeals. After consulting with my attorney, I do expressly, voluntarily, knowingly, and intelligently give up and waive my right to any appeal if the Court follows the terms of the State's recommendation as to sentencing.

☐ I waive and give up my right to have a court reporter make a record of these court proceedings as provided by Rule 13.1 of the Texas Rules of Appellate Procedure.

☐ **DEFENDANT'S PLEA TO ENHANCEMENT PARAGRAPH(S) (Applicable only if box is checked)**

I, the defendant, plead true to the enhancement allegations included in the:

☐ first ☐ second ☐ first & second
enhancement paragraph(s) which is/are contained in the charging instrument or the State's Notice of Enhancement, and judicially confess that I am the same person who was previously duly and legally convicted of the offense(s) alleged therein.

EXHIBIT A3

SIGNATURES AND ACKNOWLEDGMENTS

I, the defendant herein, acknowledge that my attorney has explained to me, and I have read and I understand, all the foregoing admonitions and warnings regarding my rights and my plea, and that my statements and waivers are knowingly, freely, and voluntarily made with full understanding of the consequences. I request that the Court accept all my waivers, statements, agreements, and my plea.

2/8/17
Date

[Signature]
Defendant

Printed Name

I have consulted with the defendant, whom I believe to be competent, concerning the plea in this case and have advised the defendant of his/ her rights. I approve and agree to all waivers, statements, and agreements of the defendant herein and ask the Court to accept them and the defendant's plea.

2/8/17
Date

[Signature]
Attorney for Defendant

State Bar Number

Printed Name

As attorney for the State, I hereby consent to and approve the requests, waivers, agreements, and stipulations in this instrument.

2/8/2017
Date

FAITH JOHNSON, Criminal District Attorney, Dallas County

[Signature]
Assistant District Attorney

24060267
State Bar Number

[Signature]
Printed Name

It appearing to the Court that the defendant is mentally competent and is represented by counsel, that the defendant understands the nature and consequences of the charge, and that all the parties have consented to and approved the waiver of jury trial and stipulations of evidence, the Court finds the waivers, agreements, and plea to have been knowingly, freely, and voluntarily made, approves the waivers and agreements, accepts the defendant's plea, approves the stipulation of testimony, and approves the change of name contained herein (if applicable).

2-9-17
Date

[Signature]
Judge

EXHIBIT A4

CAUSE NO. F-1612037

STATE OF TEXAS	§	IN THE CRIMINAL.
	§	
vs.	§	3 rd DISTRICT COURT
	§	
BABAK TAHERZADEH	§	DALLAS COUNTY, TEXAS

MOTION FOR APPOINTMENT OF COUNSEL

TO THE HONORABLE JUDGE FITZGERALD:

I, Babak Taherzadeh, am the named defendant in the above styled and numbered cause, and respectfully motion the Honorable Judge for appointment of counsel to assist defendant in withdrawal of plea and appeal. I remain indigent and unable to hire legal counsel.

1.

The defendants request for counsel for assistance with Writ in case WX1790064 has gone unanswered.

11.

The Courts appointment of Diane Jones-McVay was explained as limited to revocation and requests were refused and unfulfilled. On December 1, 2017 Ms. Jones-McVay showed a document to me and my family indicating the withdrawal of the revocation thus ending her limited representation. Request for that document as well as other court documents have gone unfulfilled and I have been directed to retrieve them myself. The Ms. Ingram and Ms. Sweet of the probation office have been able to confirm withdrawal of revocation and no attorney of record.

WHEREFORE, PREMISES CONSIDERED, I hereby respectfully requests that this Motion be granted and counsel for defendant be effective and free from conflicts .

Respectfully submitted,

/s/Babak Taherzadeh
Babak Taherzadeh
1055 Regal Row #501
Dallas, Texas 75247
(972) 515-0551

EXHIBIT B

CAUSE NO(S): F1612037J

CDC #3

THE STATE OF TEXAS

IN THE

vs.

DALLAS COUNTY, TEXAS

BABAK TAHERZADEH

July

TERM, 2017

ML#: C-575482

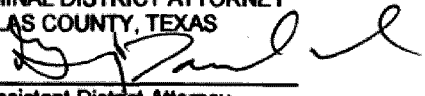
DATE: 12/01/2017

**STATE'S MOTION TO WITHDRAW ITS MOTION
TO REVOKE OR ITS MOTION TO PROCEED TO ADJUDICATION**

TO THE HONORABLE JUDGE OF SAID COURT:

Now Comes Faith Johnson, Criminal District Attorney of Dallas County, Texas by and through his Assistant District Attorney of Dallas County, Texas, in the above entitled and numbered cause and respectfully requests the Court to allow the State to withdraw its Motion to Revoke or its Motion to Proceed with Adjudication;

Respectfully submitted,
CRIMINAL DISTRICT ATTORNEY
DALLAS COUNTY, TEXAS

BY 
Assistant District Attorney

ORDER

The foregoing State's Motion having been presented to the Court, is hereby in all things granted, and it is ordered that.

- ☐ Defendant is released from custody;
- ☐ Defendant to be held in custody until released to: _____
- ☒ Defendant is continued on probation;
- ☐ Defendant is discharged from probation;
- ☐ The Conditions of Community Supervision are modified as stated in the Modification Order filed this same date.


JUDGE

* Filed *
* 12/01/2017 *
* Felicia Pitre *
* District Clerk *
* Dallas County, TX *
* Deputy *

In Custody? NO

**ORDER MODIFYING
THE CONDITIONS OF COMMUNITY SUPERVISION**

THE STATE OF TEXAS

CDC #3

VS.

DALLAS COUNTY, TEXAS

BABAK TAHERZADEH

July

TERM, 2017

CAUSE NO(s): F1612037J

In accordance with the authority conferred by the Community Supervision law of the State of Texas, the Conditions of Community Supervision in the above numbered Cause(s) are hereby modified by the Court to require the following:

(X) Within ³⁰15 days from referral, participate in psychological/psychiatric evaluation with Dr. Compton. Defendant is to appear before the Court after completion of the evaluation as directed.

Justice
Kenny **FITZGERALD**
The Court has the authority at any time during the period of Community Supervision to revoke or proceed to adjudication for violation of any of the conditions of Community Supervision as set forth above.

SIGNED THIS 1 DAY OF Dec, 2017

[Signature]
Judge FITZGERALD

Witness our signature this the _____ day of _____, 20____

[Signature]
COURT SUPERVISION OFFICER

[Signature]
PROBATIONER

ML#: C-575482

1 of 1

EXHIBIT D

CONDITIONS OF COMMUNITY SUPERVISION

THE STATE OF TEXAS

vs.

BABAK TAHERZADEH
Probation Type: DEFERRED
Cause No.:
F1612037J

IN THE CDC#3
DALLAS COUNTY, TEXAS

January TERM, 2017

ML. No.: C-575482
Offense:
STALKING

In accordance with the authority conferred by the Community Supervision and Parole Law of the State of Texas you have been placed on Community Supervision on this date 2-9-2017 for a period of 4 years. It is the order of this Court that you comply with the following conditions of supervision:

suspended until next leg. KPF
Please see attached list of conditions of Community Supervision

You are hereby advised that under the law of this State, the Court shall determine the terms and conditions of your supervision, and may at any time during the period of Supervision, alter or modify the conditions of your Supervision. The Court also has the authority at any time during the period of Supervision to revoke your Supervision and /or proceed to adjudication for violation of any of the conditions of your Supervision set out above.

Witness our Signatures this 9th Day of February 2017


Defendant


Court Supervision Officer


Judge ORACIE LEWIS



CASE No. F-1612037-J
INCIDENT NO./TRN: 9258505298

THE STATE OF TEXAS

v.

BABAK A. TAHERZADEH

STATE ID No.: TX04500806

§
§
§
§
§
§
§

IN THE CRIMINAL DISTRICT

COURT #3

DALLAS COUNTY, TEXAS

ORDER OF DEFERRED ADJUDICATION

Judge Presiding: **HON. Kerry Fitzgerald** Date Order Entered: **2/9/2017** **12-1-2017**

Attorney for State: **Gary McDonald**

Attorney for
Defendant: **Paul Johnson**

Offense:

STALKING

Charging Instrument:

INDICTMENT

Statute for Offense:

42.072 Penal Code

Date of Offense:

6/22/2016

Degree of Offense:

3RD DEGREE FELONY

Plea to Offense:

GUILTY

Findings on Deadly Weapon:

N/A

Terms of Plea Bargain:

4 YEARS DEFERRED PROBATION; FINE \$1000.00 PROBATED

Plea to 1st Enhancement

Paragraph: **N/A**

Plea to 2nd Enhancement/Habitual

Paragraph: **N/A**

Findings on 1st Enhancement

Paragraph: **N/A**

Findings on 2nd

Enhancement/Habitual Paragraph: **N/A**

**ADJUDICATION OF GUILT DEFERRED;
DEFENDANT PLACED ON COMMUNITY SUPERVISION.**

PERIOD OF COMMUNITY SUPERVISION: 4 YEARS

Fine: **PROBATED**

\$ 1000.00

Court Costs:

\$ 249.00

Restitution:

\$ N/A

Restitution Payable to:

(see below)

☐ AGENCY/AGENT
☐ VICTIM

Sex Offender Registration Requirements do not apply to the Defendant. TEX. CODE CRIM. PROC. chapter 62

The age of the victim at the time of the offense was **N/A**.

Time **N/A DAYS**

Credited: **NOTES: N/A**

All pertinent information, names and assessments indicated above are incorporated into the language of the judgment below by reference.

This cause was called for trial in Dallas County, Texas. The State appeared by her District Attorney as named above.

Counsel/Waiver of Counsel (select one)

☒ Defendant appeared in person with Counsel.

EXHIBIT H1



☐ Defendant knowingly, intelligently, and voluntarily waived the right to representation by counsel in writing in open court.

Both parties announced ready for trial. Defendant waived the right of trial by jury and entered a plea as indicated above. The Court admonished the Defendant as required by law. It appeared to the Court that Defendant was mentally competent to stand trial, made the plea freely and voluntarily, and was aware of the consequences of this plea. The Court received the plea and entered it of record. Having heard the evidence submitted, the Court FINDS such evidence substantiates Defendant's guilt. The Court FINDS that, in this cause, it is in the best interest of society and Defendant to defer proceedings without entering an adjudication of guilt and to place Defendant on community supervision.

The Court FINDS the Presentence Investigation, if so ordered, was done according to the applicable provisions of TEX. CODE CRIM. PROC. art. 42.12 § 9.

The Court ORDERS that Defendant is given credit noted above for the time spent incarcerated. The Court ORDERS Defendant to pay all fines, court costs, and restitution as indicated above.

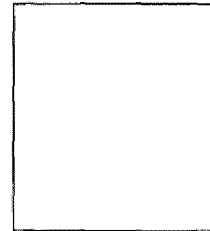
The Court ORDERS that no judgment shall be entered at this time. The Court further ORDERS that Defendant be placed on community supervision for the adjudged period so long as Defendant abides by and does not violate the terms and conditions of community supervision. See TEX. CODE CRIM. PROC. art. 42.12 § 5(a).

Furthermore, the following special findings or orders apply:

HOLD FOR ELM


Kerry Fitzgerald
JUDGE PRESIDING

Clerk: DALVAREZ



Right Thumbprint*

*Thumbprint Certification attached.

SET FOR DATE 102617 SET FOR TIME 0900 SET TYPE PRAN PASSED TO DATE _____
SET DISPOSITION CODE ___ PASSED GENERALLY _ COMMENTS **JAIL_CHAIN** _____
STATES RECOMMENDATION _____ REC NO 01 _

B060

SET FOR DATE 110217 SET FOR TIME 0900 SET TYPE PRAN PASSED TO DATE _____
SET DISPOSITION CODE ___ PASSED GENERALLY _ COMMENTS **JAIL_CHAIN** _____
STATES RECOMMENDATION _____ REC NO 01 _

B060

SET FOR DATE 110317 SET FOR TIME 0900 SET TYPE PRAN PASSED TO DATE _____
SET DISPOSITION CODE ___ PASSED GENERALLY _ COMMENTS **JAIL_CHAIN** _____
STATES RECOMMENDATION _____ REC NO 01 _

cJI66 DA CASE ID F-1612037 JUDCL CASE ID F-1612037

A010 DEF NAME TAHERZA C010 DEF NAME TAHERZA

SETS AND PASSES

B060

SET FOR DATE 121517 SET FOR TIME 0900 SET TYPE PRAN PASSED TO DATE 000000
SET DISPOSITION CODE ___ PASSED GENERALLY _ COMMENTS PSTD_PR_BOND_11/03 _____
STATES RECOMMENDATION _____ REC NO 01 _

B060

SET FOR DATE 011818 SET FOR TIME 0900 SET TYPE PRAN PASSED TO DATE _____

SET DISPOSITION CODE ___ PASSED GENERALLY _ COMMENTS _____

STATES RECOMMENDATION _____ REC NO 01 _

NAMES

B070

ASSOCIATED NAME JOHNSON, PAUL_2147610707_____ NAME REF CODE CD1606240

CT APPOINTED _ BAR NO 10778230 BOND MAKER _ DT BOND MADE _____

B070

ASSOCIATED NAME JOHNSON, PAUL_2147610707_____ NAME REF CODE PA1710250

CT APPOINTED _ BAR NO 10778230 BOND MAKER _ DT BOND MADE _____

B070

ASSOCIATED NAME JONES-MCVAY, DIANNE_9802531007_____ NAME REF CODE PA1710260

CT APPOINTED _ BAR NO 10010900 BOND MAKER _ DT BOND MADE _____

¢J166 DA CASE ID F-1612037 JUDCL CASE ID F-1612037

A010 DEF NAME TAHERZA C010 DEF NAME TAHERZA

GENERAL COMMENTS WS DATE

B080 062216_BOND_SET_\$250,000.00_ON_FACE_OF_WRNT;_JG_BENNETT_X 062216 01
(tel:062216 01) _

EXHIBIT I2

B080 101217_PV_MTN_FILED;_WARRANT_ISSUED;_NO_BOND_ALLOWED____ A 101217 01 _
B080 11/2/17_AMENDED_P/V_MTN_FILED_____ X 110217 01 _
B080 11/3/17_PR_BND_PSTD_IN_THE_AMT_OF_\$1,000_PER_JDG_FITZGER R 110317 01 _

CHARGE

C010

DEF NAME TAHERZADEH_BABAK_A_____ OFFENSE CD VA000200 STATE CD 13160014__
DESC STALKING_____ COMT _____ TYP/CL F 3 GOC _
GJ COURT FW CURRENT COURT FJ PREVIOUS COURTS CHOVD DT

cJI66 DA CASE ID F-1612037 JUDCL CASE ID F-1612037

A010 DEF NAME TAHERZA C010 DEF NAME TAHERZA

DISPOSITION

C020-01-02 CT DISP NO 01
VERDICT DATE 020917 BY JG DISP NAOG TC ___ DISM TYP _____ VOL 000 PAGE 000_
SENTENCE DATE 020917 BY JG TO _ YEARS ___ MTHS ___ DAYS ___ HOURS ___
SENTENCE TO BEGIN 000000 SENTENCE VOL ___ PAGE ___ DISCHARGE N TYPE _ NUM _

EXHIBIT I3

PROBATED SENTENCE TO P YEARS ____ MONTHS ____ DAYS ____ MULT SENT _
PROBATED FOR YEARS ____4 MONTHS ____ DAYS ____ PROBATION START DATE 020917
SPEC COND 1 ____ FOR ____ 2 ____ FOR ____
FINE CODE Y AMT ____1000.00 COST CODE N AMT ____249.00 PAYMENT DUE 000000

REDUCED/ENHANCED CHARGE

DESC _____ COMT _____ TYP/CL __ GOC _
COUNTY CODE _____ STATE CODE _____
PROBATION REVOCATION FILE DATE 110217 WARRANT ISSUED DATE 101217
DISPOSITION COMMENT _____

❏J166 DA CASE ID F-1612037 JUDCL CASE ID F-1612037

A010 DEF NAME TAHERZA C010 DEF NAME TAHERZA

DISPOSITION

C020-01-02 CT DISP NO 02
VERDICT DATE 120117 BY JG DISP REVC TC __ DISM TYP ____ VOL 0__ PAGE 0__
SENTENCE DATE ____ BY __ TO _ YEARS ____ MTHS ____ DAYS ____ HOURS ____
SENTENCE TO BEGIN ____ SENTENCE VOL ____ PAGE ____ DISCHARGE N TYPE _ NUM ____
PROBATED SENTENCE TO _ YEARS ____ MONTHS ____ DAYS ____ MULT SENT _

PROBATED FOR YEARS ____ MONTHS ____ DAYS ____ PROBATION START DATE _____

SPEC COND 1 ____ FOR ____ 2 ____ FOR ____

FINE CODE _ AMT ____ 0.00 COST CODE _ AMT ____ 0.00 PAYMENT DUE _____

REDUCED/ENHANCED CHARGE

DESC _____ COMT _____ TYP/CL _ _ GOC _

COUNTY CODE _____ STATE CODE _____

PROBATION REVOCATION FILE DATE _____ WARRANT ISSUED DATE _____

DISPOSITION COMMENT _____

GENERAL COMMENTS

C080 020917_WAIVER_OF_JURY_:_HOLD_FOR_ELM_____

_____ DATE 020917 _____

cJi66 DA CASE ID F-1612037 JUDCL CASE ID F-1612037

A010 DEF NAME TAHERZA C010 DEF NAME TAHERZA

GENERAL COMMENTS

C080 120117_E/O_MOD_COND_PROB_____

_____ DATE 120417 _____

Fri Dec 22 11:02:30 CST 2017

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https://www.dallascounty.org/criminalBackgroundSearch/defendant_detail_print.jsp

12/22/17, 11:03 AM
Page 11 of 11

EXHIBIT I6



North Tower 4E East, 4th Floor Control Center 4E09 Bookin Number: 16034545 Audit Number: 201633877
Loc. _____

APPOINTMENT OF COUNSEL FOR INDIGENT DEFENDANT

The State of Texas

Criminal District Court No. 3 (FJ)

Vs.

District Court

BABAK TAHERZADEH

Dallas County, Texas

Cause No.: Offense
f1612037 STALKING

LD
F3

It appearing that the defendant has executed a sworn statement certifying that he/she is without means to employ counsel and requesting appointment of counsel; the Court finds that the defendant is indigent and hereby appoints: The Attorney: PAUL JOHNSON

Phone: 214-761-0707 Alt. Phone: 214-202-8461

Email: PJJDOC@AOL.COM

Address: 900 JACKSON STREET, SUITE 650 DALLAS, TX 75202

A practicing attorney of the State to represent the defendant in said case(s).

Signed this 24th day of June, 2016

Gracie H. Lewis

JUDGE

GRACIE LEWIS

EXHIBIT J

CAUSE NO.: F1612037J

CDC #3

THE STATE OF TEXAS

DALLAS COUNTY, TEXAS

VS.
BABAK TAHERZADEH

July

TERM, 2018

MOTION TO REVOKE PROBATION OR PROCEED WITH AN ADJUDICATION OF GUILT

COMES NOW the State of Texas by and through her Criminal District Attorney and would show the Court the following:

That BABAK TAHERZADEH, Defendant, was duly and legally placed on probation for a period of 4 years in the above entitled and numbered cause in CDC #3 of Dallas County, Texas, on the 9th day of February, A.D., 2017 for the offense of:

STALKING

That the Defendant has violated the following conditions J, L, X of said supervision in that;

SEE ATTACHED PAGE(S)

This violation-offense occurred after 02/09/2017 and during the term of Supervision.

WHEREFORE, the State prays that said Defendant be cited to appear before this Honorable Court and show cause why the Court should not revoke probation or proceed with an adjudication of guilt on the original charge.

This the 6th day of February, A.D., 2018

* FILED *
* 02/06/2018 *
* Felicia Piro *
* DISTRICT CLERK *
* DALLAS CO., TEXAS *
* DEPUTY *

Faith Johnson
District Attorney
Dallas County, Texas
BY: [Signature]
Assistant District Attorney

A copy of this motion was delivered to the Defendant on the 15th day of February, A.D., 2018.

[Signature]
CSO

I received a copy of this motion on the 15th day of February, A.D., 2018.

ML#: C-575482

REFUSED TO SIGN
Defendant

A competency ~~hearing~~ EVALUATION UNDER SEC. 46B prohibits A CHANGE OF CUSTODY STATUS 1 of 2
THE ARREST WARRANT WAS ISSUED FOR A PERSON WITH ADJUDICATED

EXHIBIT K1

CAUSE NO.: F1612037J

CDC #3

THE STATE OF TEXAS

DALLAS COUNTY, TEXAS

VS.
BABAK TAHERZADEH

July TERM, 2018

MOTION TO REVOKE PROBATION OR PROCEED WITH AN ADJUDICATION OF GUILT

(j) BABAK TAHERZADEH did violate condition (j) in that s(he) did not pay community supervision fees as directed and is currently delinquent.

(l) BABAK TAHERZADEH did violate condition (l) in that s(he) did not complete Community Service hours as directed.

(x) BABAK TAHERZADEH did violate condition (x) in that s(he) failed to participate in a psychological/psychiatric evaluation with Dr. Compton on February 2, 2018 as directed.

33N/4164

CAPIAS

L91/206017
06/28/2016

PROBATION VIOLATION
: C-21-482

BOND AMOUNT: _____

CAUSE NO(s):

F1812037J

THE STATE OF TEXAS

VS.

BABAK

Defendant SID #: 4000908

Date of Birth: 12/29/1969

RACE: W SEX: M

HAIR: BLK

EYES: BRO

HT: 5'10"

WT: 241 lbs.

Offense(s):

CD 6/11/16 CAPIAS ISSUED
This 4th day of February, 2018
Honorable VISTING JUDGE, JUDGE,
CDC #3 COURT

LAST KNOWN ADDRESS: AT LARGE
1066 REGAL ROW
DALLAS, TX 75247

STALKING

To any Sheriff or any Constable of the State of Texas:
YOU ARE HEREBY COMMANDED TAKE THE BODY OF:

BABAK TAHERZADEH Who has been charged by
indictment information for a felony/misdemeanor offense and placed on probation, and him/her
keep so that you have him/her before the Honorable, VISTING JUDGE
CDC #3 Dallas County, Texas at the Courthouse, thereof in the City of
Dallas, in person, then and there to answer THE STATE OF TEXAS against the said
BABAK TAHERZADEH for violation of the conditions of probation in
Cause No(s):

F1812037J

State of Texas vs. BABAK TAHERZADEH

HEREIN FAIL NOT, but have you then and there this Vth, showing how you have executed the same

Given under my official seal of said Court of Dallas County, Texas.

CD 6TH this 13th day of February, 2018

ATTEST DALLAS
County Seal
Dallas County, Texas

Richard A. Beaconf
Judge, VISTING JUDGE
CDC #3 Dallas, TX

SHERRIFF'S RETURN
Comes and finds this 13 day of February, A.D. 2018

RETURNED on this 13 day of February, A.D. 2018

Mileage \$

Fees \$

Total \$

Sherriff: [Signature]

By: [Signature]

DATE	2/13/18
I.D.	21954
Assign	21954
WRAW	
ICIC	21954
NCIC	21954
Post	

DALLAS SHERIFF'S OFFICE
BOND SECTION
2018 FEB -9 PM 6:30

DALLAS COUNTY
FEB 13 PM 2:30
CENTRAL INMATE

1 of 1

EXHIBIT L

NOTICE OF DISPOSITION
IN CRIMINAL DISTRICT COURT 3
DALLAS COUNTY, TEXAS

SEQ 0004

CASE NUMBER F-1612037
OFFENSE STALKING
REDUCED CHARGE

DATE 120417
TIME 111056

THE STATE OF TEXAS VS.
DEF TAHERZADEH BABAK A
BNO 17055597
DISPOSED BY REVC

RACE W SEX M DOB 091670

SENTENCE

APPEAL _____

SPECIAL CONDITION

MNT _____

\$ 0.00 FINE \$ 0.00 COST
ADDITIONAL CREDIT FOR TIME SERVED

SENTENCE TO BEGIN _____

REMARKS 121417 DEFT NOT IN JAIL; P/V MTN W/DRAWN DEFT CONT ON PROB _____

RETURN ANY WARRANTS THIS CASE ONLY _____

FELICIA PITRE
DISTRICT CLERK
DALLAS COUNTY, TEXAS

BY LINSCOME S
DEPUTY CLERK

RELEASE INFORMATION

REMARKS _____

EXHIBIT M

615/400

CAUSE NO. F16-12037-V

THE STATE OF TEXAS	§	IN THE DISTRICT COURT
	§	
V.	§	292 ND JUDICIAL DISTRICT
	§	
BABAK TAHERZADEH	§	DALLAS COUNTY, TEXAS

ORDER TRANSFERRING

Based on a recusal, this case is transferred to the Criminal District Court No. 3 of Dallas County, Texas.

IT IS SO ORDERED.

Signed this 23 day of June, 2016.

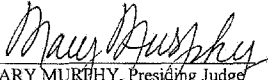

MARY MURPHY, Presiding Judge
First Administrative Judicial Region

EXHIBIT N

Cause No. F-1475584

STATE OF TEXAS

VS.

TAHERZADEH, BABAK

IN THE 292nd JUDICIAL DISTRICT COURT

DISTRICT COURT

DALLAS COUNTY, TEXAS

FILED
2015 OCT 22 AM 11:31
CLERK
DALLAS CO. TEXAS
DEPUTY

STATE'S MOTION TO HOLD BOND INSUFFICIENT

COMES NOW THE STATE OF TEXAS, by and through her Assistant District Attorney, Terrance Downs, and requests the Court to hold Defendant's bond in this case insufficient and to increase that bond, and for cause would show as follows:

I.

The defendant is charged with the offense of Criminal Mischief of at least Retaliation, a Third Degree Felony. This case is alleged to have been committed on or about April 13, 2014, and was indicted on May 16, 2014. On April 29, 2014, bond was set at \$1,500. On June 12, 2015, a bond hearing was held because the defendant continued to harass the complainant, Timothy Burke, via e-mail and social media, namely Twitter. After said bond hearing, the defendant was ordered to refrain from using social media, including Twitter, for any purpose. On October 19, 2015, the State was advised by Detective Brian Emerson, #8471, of the Dallas Police Department, that during October 2015, the defendant used social media, namely Twitter, to tweet harassing messages to and about members of the Dallas Police Department, namely Monica Cordova and Senior Corporal Kevin Janse.

II.

Based on the above referenced evidence it is believed that the defendant has violated his current bond conditions, and that said bond is insufficient to insure the peace and safety of community.

WHEREFORE PREMISES CONSIDERED, it is respectfully requested that the Court conduct a hearing on this motion and consider any relevant evidence and find that amount of bond insufficient in amount, and require Defendant to post an amount as the court deems proper and to set conditions of bond.

Respectfully submitted,


Terrance Downs
Assistant District Attorney
Dallas County, Texas
TBC# 24071598

I hereby certify that a copy of this motion was hand delivered to Reed Prospere, Attorney for the defendant on October 21, 2015.


Terrance Downs

ORDER

The State's Motion to Hold Bond Insufficient is ~~(granted)~~ denied) and the new bond is set in the amount of \$ NO BOND ALLOWED.

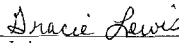

Presiding Judge

EXHIBIT O

6012175

WRIT NO. F14-75584-V

THE STATE OF TEXAS § IN THE 292nd JUDICIAL
VS. § DISTRICT COURT
BABAK TAHERZADEH § DALLAS COUNTY, TEXAS

ORDER OF RECUSAL

The Court, on the Court's own motion, has determined that this matter should be considered by another district court judge and that recusal is appropriate in this case;

IT IS THEREFORE ORDERED that Brandon Birmingham, presiding judge of the 292nd Judicial District Court, does hereby voluntarily recuse himself from hearing any matter in this case and refers this cause to the Presiding Judge of the First Administrative Judicial Region for assignment.

The Clerk of the Court shall immediately transmit a copy of this Order to Judge Mary Murphy, Presiding Judge of the First Administrative Judicial Region, to the Defendant, and to counsel for the State.

SIGNED this 21 day of October, 2015.



JUDGE BRANDON BIRMINGHAM
292ND JUDICIAL DISTRICT COURT
DALLAS COUNTY, TEXAS

EXHIBIT P

615/376

CAUSE NO. F16-12037-V

FILED
2016 JUN 22 AM 11:16
CLERK
DALLAS CO., TEXAS
DEPUTY

THE STATE OF TEXAS § IN THE 292nd JUDICIAL DISTRICT COURT
VS. § DISTRICT COURT
BABAK TAHERZADEH § DALLAS COUNTY, TEXAS

ORDER OF RECUSAL

The Court, on the Court's own motion, has determined that this matter should be considered by another district court judge and that recusal is appropriate in this case;

IT IS THEREFORE ORDERED that Brandon Birmingham, presiding judge of the 292nd Judicial District Court, does hereby voluntarily recuse himself from hearing any matter in this case and refers this cause to the Presiding Judge of the First Administrative Judicial Region for assignment.

INSTRUCTIONS TO THE CLERK OF THE COURT

The Clerk of the Court shall immediately transmit a copy of this Order to Judge Mary Murphy, Presiding Judge of the First Administrative Judicial Region, to the Defendant, and to counsel for the State.

SIGNED this 22 day of June, 2016.


JUDGE BRANDON BIRMINGHAM
292ND JUDICIAL DISTRICT COURT
DALLAS COUNTY, TEXAS

EXHIBIT Q

THE STATE OF TEXAS
Vs
BABAK TAHERZADEH

Cause No. F14-75584-U

626-654
IN THE JUDICIAL
DISTRICT COURT 291st
DALLAS COUNTY, TEXAS

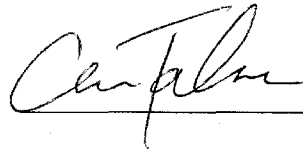
CASH BOND RELEASE

KNOW ALL MEN BY THE PRESENTS:

That, I, ANDREW TAHERZADEH, am payor on bond posted in the above cause on behalf of the principal/defendant, deposited with the Sheriff of Dallas County, Texas, and used to secure the appearance in court of said principal/defendant named above; said cash bond being evidenced by receipt, dated 4/30/2014 and signed by V. EPHRAIM, Deputy Sheriff.

I do hereby specifically release and forever discharge Judge MITCHELL, of Dallas County, Texas, and all his deputies, the District Clerk of Dallas County, and all his deputies, and all their respective heirs, executors, administrators from any claim of any description whatsoever arising from the distribution of the monies evidenced by the receipt.

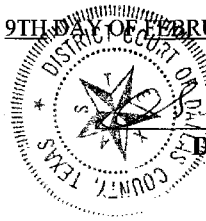
ANDREW TAHERZADEH
511 BIRCH LANE
RICHARDSON TX 75081



PAYOR

SUBSCRIBED AND SWORN BEFORE ME ON THIS 9TH DAY OF FEBRUARY, 20 16.

Verified w/Trust: GAIL



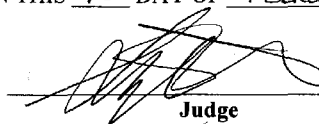
Deputy District Clerk

ORDER TO RETURN CASH BOND

It appearing to the Court that defendant in the above cause was charged with RETALIATION, and it further appearing to the court said cause was disposed by 2/3/16 PGFR and the Court having been presented with the above described cash bond receipt, and said cause having been finally disposed of, it is therefore

ORDERED that the District Clerk of Dallas County, Texas pay an administrative fee, pursuant to Local Government Code, section 117.055, of \$ 50.00, with the remainder of the bond, in the amount of \$1450.00, as evidenced by the above receipt, to the assignee therein, ANDREW TAHERZADEH.

SIGNED AND ENTERED ON THIS 16 DAY OF FEBRUARY, 20 16.



Judge

CK# 13137 DATE FEB 22 2016 AMT \$1,450.00 FELICIA PITRE, District Clerk GGG

CK# 13148 DATE FEB 22 2016 AMT \$50.00 FELICIA PITRE, District Clerk GGG

EXHIBIT R

Cause No. F-1612037-J

THE STATE OF TEXAS

vs.

Babak Tahergarshi

§
§
§

IN THE Criminal
DISTRICT COURT #3
DALLAS COUNTY, TEXAS

ORDER FOR EXAMINATION
REGARDING COMPETENCY/MENTAL ILLNESS

On this day the Court considered the issue of the competency of the Defendant to stand trial in this cause; and the Court being of the opinion that the Defendant should be examined as provided in Chapter 46B of the Code of Criminal Procedure;

IT IS THEREFORE ORDERED that Dr. Kristi Compton shall examine the Defendant, Babak Tahergarshi, to determine if the Defendant is ~~competent to stand trial and/or~~ if the Defendant is a person with mental illness in accordance with Chapter 46B of the Code of Criminal Procedure. BFB

IT IS FURTHER ORDERED that said doctor shall have access to, and copies of, any and all psychiatric and medical records in possession of the jail or Parkland Health and Hospital System/Dallas County Jail Health with respect to this defendant, including any records of this defendant related to any other book-in number, cause number, or offense, or any records maintained under the above-listed name or any alias names of this defendant. Copies of records may be provided in electronic form.

SIGNED this 18th day of January, 20 18.

Richard A. Pearson
JUDGE PRESIDING

Book-in #: BWD

Location: _____

EXHIBIT S



Loc. North Tower 3W/West, 3rd Floor Control Center 3W03 Bookin Number: 16034205 Audit Number: 201633132

APPOINTMENT OF COUNSEL FOR INDIGENT DEFENDANT

The State of Texas

292nd Judicial District Court (FV)

Vs.

District Court

DASHUN ESTER

Dallas County, Texas

Cause No.:

Offense

LD

F1670470

AA/DW

F2

It appearing that the defendant has executed a sworn statement certifying that he/she is without means to employ counsel and requesting appointment of counsel; the Court finds that the defendant is indigent and hereby appoints: The Attorney: PAUL JOHNSON

Phone: 214-761-0707

Alt. Phone: 214-202-8461

Email: PJJDOC@AOL.COM

Address: 900 JACKSON STREET, SUITE 650 DALLAS, TX 75202

A practicing attorney of the State to represent the defendant in said case(s).

Signed this 21st day of June, 2016

JUDGE

Judge Brandon Birmingham

IndigentAppointmentPD

A handwritten signature in black ink, appearing to be "Paul Johnson", is written over a horizontal line.

EXHIBIT T

2014年12月15日 星期二

2017 FEB -9 AM 9:59

ALL INFORMATION CONTAINED
HEREIN IS UNCLASSIFIED
DATE 12-15-2011 BY 60322
12160001-DEPUTY

C	Offense	LD	Statute	Agency	TRN	TRS	NCIC Code	Offense Description
1	STALKING	FJ	PC 43.072(b)	TX0570400	9218305298	A001	13160074	STALKING

DALLAS COUNTY, TEXAS

defendant's said conduct would cause a reasonable person to, and did cause B. BIRMINGHAM AND MEMBERS OF SAID B. BIRMINGHAM'S FAMILY AND HOUSEHOLD, to BE PLACED IN FEAR OF BODILY INJURY OR DEATH.

Count I, Paragraph 3

And it is further presented in and to said court, that BARAK A TAHERZADEH, hereinafter called Defendant, on or about and between the dates of 30th day of September, 2015, and the 22nd day of June, 2016, in the County of Dallas, State of Texas, did, pursuant to the same scheme and course of conduct, then and there engage in conduct directed specifically toward B. BIRMINGHAM, hereinafter known as complainant, by knowingly engaging in conduct that constituted an offense under Section 42.07 of the Texas Penal Code, namely BY REPEATEDLY INITIATING ELECTRONIC COMMUNICATIONS TARGETING SAID COMPLAINANT AND BY REPEATEDLY DIRECTING THE CONTENTS OF SOCIAL MEDIA POSTS TOWARDS COMPLAINANT IN A MANNER REASONABLY LIKELY TO HARASS, ANNOY, ALARM, ABUSE, TORMENT, EMBARRASS, AND OFFEND SAID COMPLAINANT AND BY INITIATING COMMUNICATIONS WITH COMPLAINANT DURING WHICH SAID DEFENDANT MADE COMMENTS, REQUESTS, SUGGESTIONS AND PROPOSALS THAT WERE OBSCENE, AND BY WISHING SAID COMPLAINANT'S DEATH, and the defendant's said conduct would cause a reasonable person to, and did cause COMPLAINANT, to FEEL HARASSED, ANNOYED, ALARMED, ABUSED, TORMENTED, EMBARRASSED AND OFFENDED,

Count I, Paragraph 4

And it is further presented in and to said Court, that BARAK A TAHERZADEH, hereinafter called Defendant, on or about and between SEPTEMBER 30, 2015 and JUNE 22, 2016, in the County of Dallas and State of Texas, did, pursuant to the same scheme and course of conduct, then and there knowingly engage in conduct directed specifically toward B. BIRMINGHAM, hereinafter known as complainant, that the defendant knew or reasonably should have known said complainant would regard as threatening bodily injury or death of the complainant, namely BY REPEATEDLY INITIATING ELECTRONIC COMMUNICATIONS TARGETING SAID COMPLAINANT AND BY REPEATEDLY DIRECTING THE CONTENTS OF SOCIAL MEDIA POSTS TOWARDS COMPLAINANT IN A MANNER REASONABLY LIKELY TO HARASS, ANNOY, ALARM, ABUSE, TORMENT, EMBARRASS, AND OFFEND SAID COMPLAINANT AND BY INITIATING COMMUNICATIONS WITH COMPLAINANT DURING WHICH SAID DEFENDANT MADE COMMENTS, REQUESTS, SUGGESTIONS AND PROPOSALS THAT WERE OBSCENE, AND BY WISHING SAID COMPLAINANT'S DEATH, and the defendant's said conduct would cause a reasonable person to, and did cause COMPLAINANT, to be placed in fear of bodily injury or death,

Count I, Paragraph 5

And it is further presented in and to said Court, that each of the foregoing acts was committed pursuant to the same scheme and course of conduct that was directed specifically at B. BIRMINGHAM AND MEMBERS OF B. BIRMINGHAM'S FAMILY AND HOUSEHOLD,

I further judicially confess that I committed the offense with which I stand charged exactly as alleged in the indictment in this cause.

Against the peace and dignity of the State.


Foreman of the Grand Jury

Page 3 of 3

EXHIBIT V-3

EXHIBIT V-3

3

EXHIBIT V-3

EXHIBIT W

EXHIBIT X

EXHIBIT XX

EXHIBIT XXX

EXHIBIT Z

EXHIBIT ZZ

EXHIBIT ZZZ

EX PARTE:

WRIT: W16-12037-J(A)

IN THE CRIMINAL DISTRICT COURT

BABAK TAHERZADEH

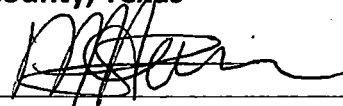
NO. 3 OF DALLAS COUNTY, TEXAS

WAIVER OF SERVICE

Now comes **John Creuzot**, Criminal District Attorney of Dallas County, Texas, and hereby acknowledges that he has, this **16th** day of **AUGUST 2019**, received from the District Clerk, a copy of the Petition for Writ of Habeas Corpus filed in the above entitled and numbered cause and he hereby waives delivery to him of said Petition by certified mail.

It is further acknowledged that the answer to this Petition, if any, will be filed within 15 days from this date.

John Creuzot
Criminal District Attorney
Dallas County, Texas

By: 

Deputy



FELICIA PITRE
DALLAS COUNTY DISTRICT CLERK

DATE: August 16th, 2019

RE: W16-12037-J(A)

EX PARTE: BABAK TAHERZADEH

Dear Mr. /Ms. Taherzadeh

The application for Writ in the above styled cause has been referred to the

Criminal District Court No. 3 of Dallas, TX for processing

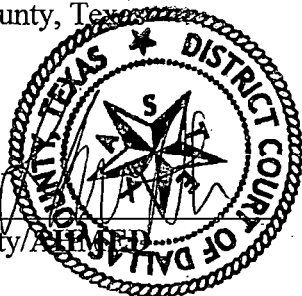
Please be advised that all future correspondence should indicate the above listed cause number.

Sincerely,

District Clerk
Dallas County, Texas

By: _____

Deputy/CLERK



Writ No. W16-12037-J(A)

EX PARTE

§ IN CRIMINAL DISTRICT

§ COURT NO. 3

BABAK TAHERZADEH

§ DALLAS COUNTY, TEXAS

ORDER OF RECUSAL

The Court, on the Court's own motion, has determined that this matter should be considered by another district court judge and that recusal is appropriate in this case;

IT IS THEREFORE ORDERED that Gracie Lewis, presiding judge of Criminal District Court Number Three, does hereby voluntarily recuse herself from hearing any matter in this case and refers this cause to the Presiding Judge of the First Administrative Judicial Region for assignment.

The Clerk of the Court shall immediately transmit a copy of this Order to Judge Ray Wheless, Presiding Judge of the First Administrative Judicial Region, to the Defendant, and to counsel for the State.

SIGNED this the 22nd day of August, 2019.

Gracie Lewis

**JUDGE GRACIE LEWIS
CRIMINAL DISTRICT COURT NO. 3
DALLAS COUNTY, TEXAS**

No. W16-12037-J(A)

Ex Parte	§	In the Criminal
	§	District Court No. 3
Babak Taherzadeh	§	Dallas County, Texas

**STATE’S PROVISIONAL RESPONSE TO APPLICATION
FOR WRIT OF HABEAS CORPUS**

I. History of Case

A Dallas County grand jury indicted Applicant for the offense of stalking in case number F16-12037-J. Applicant pleaded guilty and the trial court deferred an adjudication of guilt and placed Applicant on community supervision for four years. On August 14, 2019, Applicant filed a “petition for writ of habeas corpus” seeking relief under Article 11.07, Code of Criminal Procedure. On August 15, 2019, Applicant filed a “first amended petition for writ of habeas corpus” seeking relief under Article 11.072, Code of Criminal Procedure.

II. State’s Initial Response

Because Applicant originally referenced Article 11.07 in his petition, it appears the district clerk docketed this case as an application under the provisions of that article. Because the case was originally docketed as an application under Article 11.07, the State makes this brief response only in anticipation that the district clerk may forward this application to the Court

of Criminal Appeals. Because Applicant amended his application to specify he seeks relief under Article 11.072, the State intends to file a supplemental response responding to Applicant's claims as an application under that article.

In the event that the district clerk forwards this application to the Court of Criminal Appeals under Article 11.07, the State recommends that the application be remanded for consideration under article 11.072, or alternatively, dismissed without prejudice for lack of jurisdiction. Because Applicant is still on community supervision and has not been adjudicated guilty there is no final felony conviction for the Court of Criminal Appeals to review.

III. Conclusion and Prayer

The State prays this Court treat Applicant's application as one under Article 11.072 or recommend that the Court of Criminal Appeals dismiss the application for lack of jurisdiction.

Respectfully submitted.

JOHN CREUZOT
Criminal District Attorney
Dallas County

/s/ Jessie R. Allen

JESSIE R. ALLEN
Attorney for the State
Assistant District Attorney
State Bar No. 24040412
133 N. Riverfront Blvd., LB-19
Dallas, Texas 75207
214-653-3625 phone
214-653-3643 fax
jessie.allen@dallascounty.org

Certificate of Compliance

This computer-generated document is subject to the following length limitation: 15,000 words. *See* Tex. R. App. P. 73.1(d). I certify that the portions of this document subject to the length limitation contain 295 words. This certification is made in reliance upon the word count of the computer program used to prepare this document. *See* Tex. R. App. P. 73.1(f).

/s/ Jessie R. Allen
Jessie R. Allen

Certificate of Service

I certify that a copy of this document will be electronically served on applicant, Babak Taherzadeh (babaktaherzadeh@gmail.com), by submitting this response to the efile.txcourts.gov electronic filing service provider on September 3, 2019.

/s/ Jessie R. Allen
Jessie R. Allen

W16-12037-J(A)

WRIT NO. WX17-90064
Trial Cause No. F16-12037

EX PARTE	§	IN CRIMINAL DISTRICT
	§	COURT NO. 3
BABAK TAHERZADEH	§	DALLAS COUNTY, TEXAS

STATE'S RESPONSE TO APPLICATION
FOR WRIT OF HABEAS CORPUS

The State, having considered the allegations contained in applicant's Application for Writ of Habeas Corpus in the above-numbered and entitled cause, makes the following response:

I.

HISTORY OF THE CASE

Applicant was charged with stalking the Honorable Brandon Birmingham, presiding judge of the 292nd Judicial District Court of Dallas County. After applicant was arrested and bail was set, the case was initially assigned to the 292nd Judicial District Court. Judge Birmingham immediately recused himself and the case was transferred to Criminal District Court No. 3. *See State's Exhibits A and B.* The Honorable Kerry Fitzgerald was assigned to preside over all of applicant's proceedings. *See State's Exhibit C.*

On February 9, 2017, applicant waived a jury and entered a negotiated plea of guilty to the charged offense of stalking. The Court deferred a finding of guilt and placed applicant on deferred adjudication community supervision for a period of 4 years in accordance with the terms of the plea bargain agreement. *See State's Exhibits D and E.* No direct appeal was taken.

The State filed a motion to revoke in November 2017 alleging that applicant had failed to comply with the conditions of his community supervision by failing to pay court costs and fines, failing to obey all program instruction as directed by Assessment Treatment and Research Services Program (A.T.R.S.), and by failing to report to Sentinel ELM for weekly compliance. This motion is currently pending.

II.

ISSUES RAISED IN APPLICATION

In the instant writ application, applicant contends the following: (1) the signed judgment in this case is prohibited or invalid because it was signed by Judge Lewis, not the trial judge; (2) applicant was denied his right to counsel by the Court's appointment of Paul Johnson due to Johnson's conflict of interest; (3) the stalking statute is unconstitutionally vague and is prohibited by the Constitution; (4) Judge Bennett violated his 4th Amendment rights by signing the

warrant in his case; (5) his bail was excessive, cruel and unusual in violation of the 8th Amendment; (6) applicant was denied his right to counsel by the Court's failure to appoint an attorney in accordance with the rules of the indigent appointment plan in Dallas County; (7) presiding administrative judge Mary Murphy erred when she allowed the case to be assigned to another court in the same judicial district; (8) prosecuting attorneys lacked standing and authority to file suit against applicant; (9) trial prosecutor Gary McDonald used the stalking statute to violate applicant's constitutional rights; (10) McDonald violated applicant's 14th Amendment rights by circumventing his request for a competency evaluation; (11) the District Attorney's office has deprived him of his constitutional rights without due process of law; (12) Judge Birmingham effectively brought back slavery in violation of the 13th Amendment; (13) applicant's 5th Amendment rights were violated when he was required to answer to a crime prior to indictment and testify without a lawyer in order to defend himself at the protective order hearing; and (14) he was denied the effective assistance of trial counsel.

III.

STATE'S RESPONSE

Invalid Judgment

In ground one, applicant contends that the judgment in this case is prohibited or invalid because it was signed by Judge Lewis, not the trial judge. *See Writ Application at 2-3.*

The record reflects that, although applicant's case was transferred to Criminal District Court No. 3, the Honorable Kerry Fitzgerald was assigned to preside over all of applicant's proceedings. *See State's Exhibit C.* The plea papers, docket sheet, conditions of community supervision, and judgment certificate of thumbprint all contain Judge Fitzgerald's signature. *See State's Exhibits D, E, F.* These documents, along with the reporter's record, reflect that Judge Fitzgerald presided over the guilty plea proceeding. However, it appears that the clerks who prepared the judgment following applicant's guilty plea mistakenly gave it to Judge Lewis and she signed page 2 of the judgment. This is a clerical error and does not render the judgment invalid. The State has made a motion with the Court to issue a *nunc pro tunc* order to fix this clerical error in the judgment. Matters that may be raised and resolved by *nunc pro tunc* proceedings should not

be considered by way of writ of habeas corpus. *See Ex parte Ybarra*, 149 S.W.3d 147, 148 (Tex. Crim. App. 2004); *Ex parte Pena*, 71 S.W.3d 336, 336-37 (Tex. Crim. App. 2002). As such, applicant's claim relating to the error in the judgment is not cognizable and should be denied. This error should be properly corrected by way of a *nunc pro tunc* order.

Trial Counsel-Conflict of Interest

In ground two, applicant contends that was denied his right to counsel by the Court's appointment of Paul Johnson. Specifically, applicant alleges that Johnson had a conflict of interest because of his relationship with Judge Birmingham and because he previously served as a special prosecutor. *See Writ Application at 3.*

Ineffective assistance of counsel may result when an attorney labors under a conflict of interest. *Strickland v. Washington*, 466 U.S. 668, 692 (1984); *Monreal v. State*, 947 S.W.2d 559, 564 (Tex. Crim. App. 1997). To prove ineffective assistance of counsel based on a conflict of interest, the defendant must show (1) counsel was burdened by an actual conflict of interest; and (2) the conflict had an adverse effect on specific instances of counsel's performance. *Cuyler v. Sullivan*, 446 U.S. 335, 348-50 (1980); *Monreal*, 947 S.W.2d at 564). An actual conflict of

interest exists if counsel is required to make a choice between advancing his client's interest in a fair trial or advancing other interests to the detriment of his client's interests. *Monreal*, 947 S.W.2d at 564. Showing a "possibility of a conflict of interest" is insufficient to impugn a criminal conviction. *Cuyler*, 446 U.S. at 350; *Routier v. State*, 112 S.W.3d 554, 581-82 (Tex. Crim. App. 2003); *Thompson v. State*, 94 S.W.3d 11, 16 (Tex. App.—Houston [14th Dist.] 2002, pet. ref'd).

Paul Johnson is a well-respected and competent criminal defense attorney who has professional relationships with every judge in Dallas County. Applicant has failed to allege sufficient facts which would show that Johnson's relationship with Judge Birmingham extends beyond the professional relationship that he has with every other judge. Moreover, he fails to allege facts which would show that Johnson had an actual conflict of interest in this case that had an adverse effect on the performance of his duties. Likewise, the fact that Johnson has previously served as a special prosecutor, in and of itself, is insufficient to show a conflict of interest. Applicant fails to show that Johnson's unrelated work as a special prosecutor on an unrelated case created an actual conflict of interest in this case that had an adverse effect on counsel's performance. In a habeas proceeding, the applicant must allege sufficient facts, which if true, would entitle him to relief. *Ex*

parte Maldonado, 688 S.W.2d 114, 116 (Tex. Crim. App. 1985). Applicant's conclusory allegations are not enough to warrant habeas relief. *Ex parte Young*, 418 S.W.2d 824 (Tex. Crim. App. 1967). Because applicant states only conclusions without any supporting facts or evidence showing an actual conflict of interest, his claim is without merit and should be denied. *See generally Ex parte McPherson*, 32 S.W.3d 860, 861 (Tex. Crim. App. 2000) (explaining that relief may be denied where the applicant states only conclusions without supporting facts).

Constitutionality of Stalking Statute

In grounds three and four, applicant challenges the constitutionality of the stalking statute. *See Writ Application at 4*. As a general rule, a first-time challenge to the facial constitutionality of a statute may not be presented in a post-conviction habeas proceeding. *Ex parte Beck*, No. PD-0618-16, 2017 WL 5632978, at *6 (Tex. Crim. App. Nov. 22, 2017). Facial constitutional challenges must be preserved during the trial proceedings. *Id.* As an exception, a defendant may raise a first-time challenge on habeas to the constitutionality of a statute that has already been declared facially unconstitutional by a court with binding authority. *Id.*

Applicant did not raise his complaints in the trial court. Applicant has not

shown that the stalking statute has ever been declared facially unconstitutional by a court with binding authority. As such, his challenges to the constitutionality of the stalking statute may not be raised for the first time in this habeas proceeding. *See id.* Grounds three and four should be denied.

Fourth Amendment Violation

In ground five, applicant contends that Judge Bennett violated his 4th Amendment rights by signing the warrant in his case. *See Writ Application at 5.* However, applicant did not make a trial objection or raise this issue on direct appeal. An applicant cannot raise a Fourth Amendment complaint in a habeas corpus proceeding when he failed to do so on direct appeal. *Ex parte Kirby*, 492 S.W.2d 579, 581 (Tex. Crim. App. 1973). Accordingly, ground five should be denied.

Excessive Bail

In ground six, applicant contends that his bail was excessive, cruel and unusual in violation of the 8th Amendment. *See Writ Application at 5.* However, this complaint has not been preserved for habeas review. Matters not raised at trial cannot form the basis for habeas relief. *See Ex parte Crispen*, 777 S.W.2d 103, 105 (Tex. Crim. App. 1989). Additionally, habeas corpus is not to be used as a

substitute for appeal. *Ex parte Clore*, 690 S.W.2d 899, 900 (Tex. Crim. App. 1985) (en banc). Even a constitutional claim is forfeited if the applicant had the opportunity to make a trial objection and raise the issue on appeal. *See Ex parte Gardner*, 959 S.W.2d 189, 191 (Tex. Crim. App. 1996). This is because the writ of habeas corpus is an extraordinary remedy that is available only when there is no other adequate remedy at law. *Ex parte Drake*, 883 S.W.2d 213, 215 (Tex. Crim. App. 1994).

Applicant could have objected to the setting of bail in his case by filing a pretrial writ of habeas corpus. *See* Tex. Code Crim. Proc. Ann. art. 11.24. The trial court's ruling on the pretrial writ could have then been challenged on direct appeal. Because applicant did not make a trial objection or present the issue on direct appeal, he has not preserved his complaint. Ground six should be denied.

Court's Procedure in Appointing Counsel

In ground seven, applicant contends that he was denied his right to counsel by the Court's failure to appoint an attorney in accordance with the rules of the indigent appointment plan in Dallas County. *See Writ Application at 5*. However, applicant waived his complaint regarding the procedure used in appointing counsel by failing to make an objection in the trial court. As previously stated,

matters not raised at trial cannot form the basis for habeas relief. *Crispen*, 777 S.W.2d at 105. Because applicant did not object at the time of appointment or at any time during his trial to the trial court's alleged failure to appoint an attorney in accordance with the local rules, his complaint has been waived.

In any event, a criminal defendant is not entitled to appointed counsel of choice. *Dunn v. State*, 819 S.W.2d 510, 520 (Tex. Crim. App. 1991). An indigent defendant has received the protections provided under the Sixth Amendment when a trial court appoints an attorney to represent him. *Malcom v. State*, 628 S.W.2d 790, 791 (Tex. Crim. App. 1982). Here, applicant was afforded his right to counsel through the court's appointment of Paul Johnson. Thus, even if applicant's complaints about the court's procedure were cognizable, applicant's claim is nonetheless without merit because he was afforded his right to counsel.

Based on the foregoing, ground seven should be denied.

Transfer of Case

In ground eight, applicant contends that the presiding administrative judge Mary Murphy erred when she allowed the case to be assigned to another court in the same judicial district. *See Writ Application at 5*.

Applicant fails to cite any provision which would require or even permit his

case to be transferred to a different judicial district. Moreover, he wholly fails to show any error. Due to the fact that the victim alleged in this case was a sitting district judge, Judge Murphy assigned a retired judge to sit by assignment and hear all proceedings in applicant's case. *See State's Exhibit C*. Applicant does not allege that the judge assigned to hear his case was biased or that this assignment violated his constitutional rights. In a habeas proceeding, the applicant must allege sufficient facts, which if true, would entitle him to relief. *See Maldonado*, 688 S.W.2d at 116. As demonstrated herein, applicant has failed to meet his burden in the instant writ. Accordingly, ground eight should be denied.

Protective Order Proceeding

In ground nine, applicant contends that prosecuting attorneys lacked standing and authority to file suit against him and seek a protective order. In ground fourteen, applicant contends that his 5th Amendment rights were violated when he was required to answer to a crime prior to indictment and testify without a lawyer in order to defend himself at the protective order hearing. *See Writ Application at 6-7*.

Applicant's complaints pertaining to the protective order proceedings are not cognizable here. Article 11.072, the provision under which this habeas

application was filed, provides a mechanism to seek habeas relief “from an order or a judgment of conviction ordering community supervision.” *See* Tex. Code Crim. Proc. Ann. art. 11.072, § 1 (West 2016). A protective order proceeding is a civil matter that is completely separate from the underlying criminal proceeding. Because applicant’s complaints about the protective order process do not pertain to the judgment of conviction in this case ordering community supervision, they are not cognizable. Grounds nine and fourteen should be denied.

Other Misc. Allegations

In ground ten, applicant contends that trial prosecutor Gary McDonald used the stalking statute to violate his constitutional rights. In ground eleven, applicant contends that prosecutor McDonald violated his 14th Amendment rights by circumventing his request for a competency evaluation. In ground twelve, applicant contends that the District Attorney’s office has deprived him of his constitutional rights without due process of law. In ground thirteen, applicant contends that “Judge Birmingham effectively brought back slavery in violation of the 13th amendment.” *See Writ Application at 6.*

Applicant does not elaborate on these claims beyond what is summarized above. He does not offer any facts or evidence in support of these claims. Thus,

he fails to allege sufficient facts which would entitle him to relief. *See Maldonado*, 688 S.W.2d at 116. Grounds ten through thirteen should be denied.

Ineffective Assistance of Counsel

In ground fifteen, applicant contends that he was denied the effective assistance of trial counsel. *See Writ Application at 7.*

A defendant has a Sixth Amendment right to effective assistance of counsel. U.S. Const. amend. VI. To prevail on a claim of ineffective assistance of counsel, a habeas applicant must prove by a preponderance of the evidence that (1) counsel's representation fell below an objective standard of reasonableness, and (2) there is a reasonable probability the results of the proceedings would have been different in the absence of counsel's errors. *Strickland v. Washington*, 466 U.S. 668, 689 (1984); *Bone v. State*, 77 S.W.3d 828, 834 (Tex. Crim. App. 2002). The right to reasonably effective assistance of counsel does not guarantee errorless counsel or counsel whose competency is to be judged by hindsight. *Ex parte Kunkle*, 852 S.W.2d 499, 505 (Tex. Crim. App. 1993). Counsel's competence is presumed, and the applicant must rebut this presumption by proving that his attorney's representation was unreasonable under prevailing professional norms and that the challenged action or inaction was not sound strategy. *Kimmelman v.*

Morrison, 477 U.S. 365, 384 (1986).

Applicant contends that counsel “failed to challenge anything,” i.e., the charges, legality, evidence, and jurisdiction. The mere failure to file pretrial motions does not categorically constitute ineffective assistance of counsel. See *Autry v. State*, 27 S.W.3d 177, 182 (Tex. App.—San Antonio 2000, pet. ref’d). To satisfy his burden under *Strickland*, applicant must state what specific motions he is claiming counsel should have filed and show that such motions would have been granted. See *Jackson v. State*, 973 S.W.2d 954, 957 (Tex. Crim. App. 1998). Unless applicant shows that a pretrial motion had merit and that a ruling on the motion would have changed the outcome of the case, counsel will not be ineffective for failing to assert the motion. See *id.* Applicant fails to explain which specific motions counsel should have filed, much less show that they would have been granted. Thus, he has failed to meet his burden to show that counsel was ineffective in this regard.

Applicant contends that counsel failed to communicate effectively with him. He fails to explain what subjects were not effectively communicated or how he was prejudiced. As such, he fails to allege sufficient facts which would show that counsel was ineffective in this regard. See *Maldonado*, 688 S.W.2d at 116.

Applicant contends that he was “misinformed.” He fails to explain he was misinformed about or explain how he was prejudiced. As such, he fails to allege sufficient facts which would show that counsel was ineffective in this regard. *See Maldonado*, 688 S.W.2d at 116.

Applicant contends that counsel did not meet with him to prepare. Applicant does not explain what topics he needed preparation on, nor does he explain how he was prejudiced by counsel’s alleged failure to meet with him. As such, he fails to allege sufficient facts which would show that counsel was ineffective in this regard. *See Maldonado*, 688 S.W.2d at 116.

To the extent that any of applicant’s claims pertain to the protective order proceeding, those claims are not cognizable. To the extent that any of applicant’s claims pertain to his previous allegation of conflict of interest, the State refers the Court to its response to ground two, pages 5-6.

Based on the foregoing, ground fifteen is without merit and should be denied.

IV.

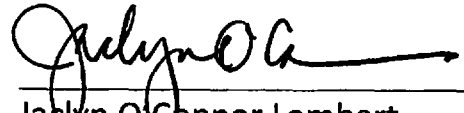
CONCLUSION

The State respectfully requests that this Application for Writ of Habeas

Corpus be denied.

Faith Johnson
Criminal District Attorney
Dallas County, Texas

Respectfully submitted,

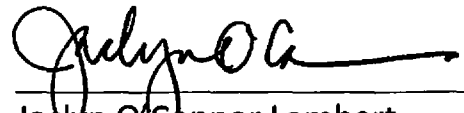


Jaclyn O'Connor Lambert
Assistant District Attorney
State Bar No. 24049262
Frank Crowley Courts Building
133 N. Riverfront Blvd., LB-19
Dallas, Texas 75207-4399
(214) 653-3625 *phone*
(214) 653-3643 *fax*

CERTIFICATE OF COMPLIANCE AND SERVICE

I hereby certify that the foregoing response, inclusive of all contents, is 3,127 words in length according to Microsoft Word.

I also hereby certify that a true copy of the foregoing response was served on applicant's attorney, Diane Jones McVay, Dianne@jonesmcvay.com, and applicant, Babak Taherzadeh, babaktaherzadeh@gmail.com, by utilizing the service function in the Texas courts eFiling system on December 11, 2017.



Jaclyn O'Connor Lambert

615/376

CAUSE NO. F16-12037-V

FILED

2016 JUN 22 AM 11:16

CLERK
DALLAS CO., TEXAS
DEPUTY

THE STATE OF TEXAS

§

IN THE 292nd JUDICIAL DISTRICT COURT

VS.

§

DISTRICT COURT

BABAK TAHERZADEH

§

DALLAS COUNTY, TEXAS

ORDER OF RECUSAL

The Court, on the Court's own motion, has determined that this matter should be considered by another district court judge and that recusal is appropriate in this case;

IT IS THEREFORE ORDERED that Brandon Birmingham, presiding judge of the 292nd Judicial District Court, does hereby voluntarily recuse himself from hearing any matter in this case and refers this cause to the Presiding Judge of the First Administrative Judicial Region for assignment.

INSTRUCTIONS TO THE CLERK OF THE COURT

The Clerk of the Court shall immediately transmit a copy of this Order to Judge Mary Murphy, Presiding Judge of the First Administrative Judicial Region, to the Defendant, and to counsel for the State.

SIGNED this 22 day of June, 2016.


JUDGE BRANDON BIRMINGHAM
292ND JUDICIAL DISTRICT COURT
DALLAS COUNTY, TEXAS

PENGAD 800-631-6989

STATE'S
EXHIBIT

A

166

615/400

CAUSE NO. F16-12037-V

THE STATE OF TEXAS

V.

BABAK TAHERZADEH

§
§
§
§
§
§
§

IN THE DISTRICT COURT

292ND JUDICIAL DISTRICT

DALLAS COUNTY, TEXAS

ORDER TRANSFERRING

Based on a recusal, this case is transferred to the Criminal District Court No. 3 of Dallas County, Texas.

IT IS SO ORDERED.

Signed this 23 day of June, 2016.


MARY MURPHY, Presiding Judge
First Administrative Judicial Region

PCN040 800-681-6368

STATE'S
EXHIBIT

B
167

615/573

**THE STATE OF TEXAS
FIRST ADMINISTRATIVE JUDICIAL REGION
ORDER OF ASSIGNMENT BY THE PRESIDING JUDGE**

Pursuant to Section 74.056, Texas Government Code, I assign the:

Honorable Kerry FitzGerald

Senior Judge of The 5th District Court Of Appeals

to the

Criminal District Court # 3 of Dallas County, Texas

This assignment is for the cause(s) and style(s) as stated in the conditions of assignment from this date until plenary power has expired or the undersigned Presiding Judge has terminated this assignment in writing, whichever occurs first.

CONDITION(S) OF ASSIGNMENT

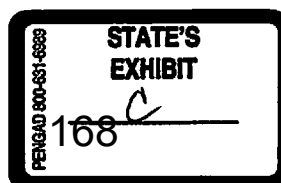
Cause No. F16-12037-V; The State of Texas v. Babak Taherzadeh

In addition, whenever the assigned Judge is present in the county of assignment for a hearing in the above cause(s), the Judge is also assigned and empowered to hear, at that time, any other matters presented for hearing.

It is ordered that the Clerk of the court to which this assignment is made, if it is reasonable and practicable and if time permits, give notice of this assignment to each attorney representing a party to a case that is to be heard in whole or in part by the assigned Judge.

SIGNED: June 23, 2016
Date
Mary Murphy
Mary Murphy, Presiding Judge
First Administrative Judicial Region of Texas

Assign# 28370



THE STATE OF TEXAS

CAUSE NO. F 16 12077-J

VS.

CRIMINAL DISTRICT COURT #3

Babak Taherzadeh

DALLAS COUNTY, TEXAS

PLEA AGREEMENT

State ID No:

Incident No / TRN:

Attorney for State: G. McDonald

Attorney for Defendant: P. John

Offense: Stalking

Statute for Offense:

Charging Instrument: ☒ Indictment ☐ Information

Date of Offense: 9/30/15

Degree of Offense: 31

Affirmative finding of deadly weapon: ☐ YES ☐ NO

Type of Weapon:

Affirmative finding of family violence: ☐ YES ☐ NO

Ignition Interlock required ☐ YES ☐ NO

Affirmative finding of bias or prejudice: ☐ YES ☐ NO

If yes, Group:

Sentence to run ☐ CONCURRENTLY ☐ CONSECUTIVELY

WITH

Time Credit: From _____ To _____

From _____ To _____

Sex Offender Registration ☐ DOES ☐ DOES NOT apply.

Age of victim at time of offense: _____

TO THE HONORABLE JUDGE OF SAID COURT:

The defendant herein and the attorneys for both the defendant and the State waive a jury trial and make the following agreement:

Defendant's Plea:

☒ Guilty

☐ Nolo contendere

☐ Defendant will testify.

☐ Defendant will not testify

Plea to enhancement paragraph(s):

☐ True

☐ Not true

Type of Plea:

☒ Plea bargain

☐ Open plea

Open as to: ☐ Fine ☐ Restitution

☐ Community Supervision

☐ Deferred Adjudication

☐ Other

State's recommendation:

Agreed sentence:

☐ Confinement in ☐ penitentiary ☐ state jail ☐ county jail for _____ ☐ years ☐ months ☐ days

☐ Post-conviction community supervision, confinement probated for _____ ☐ years ☐ months ☐ days

☒ Deferred community supervision for 4 ☒ years ☐ months ☐ days

☒ Fine of \$ 1000 ☐ to be paid ☒ to be probated

☐ Boot Camp ☐ Shock Probation ☐ Substance Abuse Felony Program

☐ CENIKOR ☐ Judicial Treatment Center ☐ Dallas County Jail Chemical Dependency Program

☐ Restitution in the amount of \$ _____

☐ Defendant will sign waiver of extradition ☐ Defendant knowingly and voluntarily waives appeal

☐ Defendant Waives a court reporter

☒ Other: hold for 21M / No Contact w/ Judge B. Nicholas

☐ Back-time included: _____

☐ Back time NOT included

02 hrs family

FILED
2017 FEB -9 AM 9:59
FELICIA PITRE
DISTRICT CLERK
DALLAS CO., TEXAS
DEPUTY

STATE'S
EXHIBIT

169

☐ **CHANGE OF NAME** (Applicable only if box is checked)

The defendant having suggested that his/her true name is other than that set forth in the charging instrument, and having moved that the charging instrument and all other documents in this cause be amended to show his/her true name to be _____, said motion is hereby granted. It is so ordered.

COURT'S ADMONITIONS TO DEFENDANT

You are charged with the offense of: Stalking
The punishment range for the offense charged is:

- ☐ 1st Degree Felony, 5-99 years or Life and an optional fine not to exceed \$10,000.00
☐ 2nd Degree Felony, 2-20 years confinement and an optional fine not to exceed \$10,000.00
☒ 3rd Degree Felony, 2-10 years confinement and an optional fine not to exceed \$10,000.00
☐ State Jail Felony, 180 days – 2 years State Jail and an optional fine not to exceed \$10,000.00
☐ _____

You have an absolute right to a jury trial, to confront and cross-examine the witnesses against you, and to call witnesses in your own behalf. You have a right to testify, but you cannot be compelled to do so. The prosecuting attorney's recommendation as to punishment is not binding on the Court. If the Court rejects any plea bargain made in this case, you may withdraw your plea of guilty or *nolo contendere*. If the punishment assessed by the Court is not greater than that which you have plea-bargained, you may not appeal on any matter in the case unless the Court grants permission for the appeal or the matters appealed were raised by written motion filed and ruled on before the plea. If you enter a plea of guilty or *nolo contendere* and there is no plea bargain, the court may assess your punishment anywhere within the range allowed by law. If you are not a citizen of the United States, a plea of guilty or *nolo contendere* may, and under current Federal Immigration rules is *almost certain to*, result in your deportation, removal, exclusion from admission to the United States, or denial of naturalization. If you have a court-appointed attorney, you have a right to ten days from the date of the attorney's appointment to prepare for trial. You have the right to be tried on an indictment returned by a Grand Jury, and, unless you are on bond, a right to two entire days after being served with a copy of the charging instrument before being arraigned. If you receive unadjudicated community supervision and violate its conditions, you may be arrested and subjected to a hearing limited to determining whether or not guilt should be adjudicated. If guilt is adjudicated the full range of punishment is open to the Court. All proceedings, including assessment of punishment, pronouncement of sentence, granting of community supervision, and an appeal, then continue as if the adjudication of guilt had not been deferred. [In sex offense cases, see Court's Admonition to Sex Offenders, which is incorporated by reference and attached hereto.]

DEFENDANT'S STATEMENTS AND WAIVERS

With the approval of counsel, defendant makes the following statements and waivers. I am the accused in the charging instrument and am mentally competent. I understand the nature of the accusation made against me, the range of punishment for such offense, and the consequences of a plea of guilty or *nolo contendere*. I understand that I have an absolute right to a jury trial, that I have the right to remain silent, that anything I say can and will be used against me, that I have the right to confront and cross-examine the witness against me, and that I have a right to be tried upon an indictment returned by a grand jury. I understand that if

I am not a United States citizen, a plea of guilty or *nolo contendere* will probably result in my deportation from the United States, exclusion from admission to the United States, or denial of naturalization under Federal law.

I hereby waive my right to be tried on an indictment returned by a grand jury; any and all defects, errors, or irregularities, whether of form or substance, in the charging instrument; my right to a jury trial; and my right to remain silent. I waive arraignment and reading of the charging instrument; the appearance, confrontation, and cross-examination of witnesses on the issues of guilt and punishment; my right to ten days to prepare for trial after the appointment of counsel (if counsel has been appointed); and the preparation of a pre-sentence report. I consent to the oral or written stipulation of evidence or testimony, to the introduction of testimony by affidavits or written statements of witnesses, and to all other documentary evidence.

I admit and judicially confess that I committed the offense of Stalking on 9/30/15, exactly as alleged in the charging instrument. I affirm that my plea and judicial confession are freely and voluntarily made, and not influenced by any consideration of fear, persuasion, or delusive hope of pardon or parole.

I understand the admonitions regarding unadjudicated community supervision, and that I will be required to register as a sex offender if convicted of, or placed on community supervision for, one of the offenses enumerated under Court's Admonition to Sex Offenders, attached hereto. I understand that under the Uniform Extradition Act, should I be charged with a violation of my community supervision and be arrested in another state, I have the right to require the issuance and service of a warrant of extradition, the right to hire legal counsel, or, if indigent, to have counsel appointed, and the right to apply for a writ of habeas corpus to contest my arrest and return to this State.

☒ I voluntarily and knowingly waive my rights under the Extradition Act, waive extradition, and waive my right to contest my return to the State of Texas from any jurisdiction where I may be found. I understand and agree that such waiver is irrevocable.

☒ I understand that I have a right to appeal to the Court of Appeals. After consulting with my attorney, I do expressly, voluntarily, knowingly, and intelligently give up and waive my right to any appeal if the Court follows the terms of the State's recommendation as to sentencing.

☐ I waive and give up my right to have a court reporter make a record of these court proceedings as provided by Rule 13.1 of the Texas Rules of Appellate Procedure.

☐ **DEFENDANT'S PLEA TO ENHANCEMENT PARAGRAPH(S) (Applicable only if box is checked)**

I, the defendant, plead true to the enhancement allegations included in the:

☐ first ☐ second ☐ first & second
enhancement paragraph(s) which is/are contained in the charging instrument or the State's Notice of Enhancement, and judicially confess that I am the same person who was previously duly and legally convicted of the offense(s) alleged therein.

SIGNATURES AND ACKNOWLEDGMENTS

I, the defendant herein, acknowledge that my attorney has explained to me, and I have read and I understand, all the foregoing admonitions and warnings regarding my rights and my plea, and that my statements and waivers are knowingly, freely, and voluntarily made with full understanding of the consequences. I request that the Court accept all my waivers, statements, agreements, and my plea.

2/8/17
Date

[Signature]
Defendant

Printed Name

I have consulted with the defendant, whom I believe to be competent, concerning the plea in this case and have advised the defendant of his/ her rights. I approve and agree to all waivers, statements, and agreements of the defendant herein and ask the Court to accept them and the defendant's plea.

2/8/17
Date

[Signature]
Attorney for Defendant

Printed Name

State Bar Number

As attorney for the State, I hereby consent to and approve the requests, waivers, agreements, and stipulations in this instrument.

2/8/2017
Date

FAITH JOHNSON, Criminal District Attorney, Dallas County

[Signature]
Assistant District Attorney

[Signature]
Printed Name

24060257
State Bar Number

It appearing to the Court that the defendant is mentally competent and is represented by counsel, that the defendant understands the nature and consequences of the charge, and that all the parties have consented to and approved the waiver of jury trial and stipulations of evidence, the Court finds the waivers, agreements, and plea to have been knowingly, freely, and voluntarily made, approves the waivers and agreements, accepts the defendant's plea, approves the stipulation of testimony, and approves the change of name contained herein (if applicable).

2-9-17
Date

[Signature]
Judge



CASE NO. F-1612037-J
INCIDENT NO./TRN: 9258505298

THE STATE OF TEXAS

v.

BABAK A. TAHERZADEH

STATE ID No.: TX04500806

§
§
§
§
§
§
§

IN THE CRIMINAL DISTRICT

COURT #3

DALLAS COUNTY, TEXAS

ORDER OF DEFERRED ADJUDICATION

Judge Presiding: HON. Gracie Lewis

Date Order Entered: 2/9/2017

Attorney for State: Gary McDonald

Attorney for Defendant: Paul Johnson

Offense:

STALKING

Charging Instrument:

INDICTMENT

Statute for Offense:

42.072 Penal Code

Date of Offense:

6/22/2016

Degree of Offense:

3RD DEGREE FELONY

Plea to Offense:

GUILTY

Findings on Deadly Weapon:

N/A

Terms of Plea Bargain:

4 YEARS DEFERRED PROBATION; FINE \$1000.00 PROBATED

Plea to 1st Enhancement

Paragraph:

N/A

Plea to 2nd Enhancement/Habitual

Paragraph:

N/A

Findings on 1st Enhancement

Paragraph:

N/A

Findings on 2nd

Enhancement/Habitual Paragraph:

N/A

ADJUDICATION OF GUILT DEFERRED;
DEFENDANT PLACED ON COMMUNITY SUPERVISION.

PERIOD OF COMMUNITY SUPERVISION: 4 YEARS

Fine: PROBATED

\$ 1000.00

Court Costs:

\$ 249.00

Restitution:

\$ N/A

Restitution Payable to:

(see below)

☐ AGENCY/AGENT
☐ VICTIM

Sex Offender Registration Requirements do not apply to the Defendant. TEX. CODE CRIM. PROC. chapter 62

The age of the victim at the time of the offense was N/A .

Time N/A DAYS

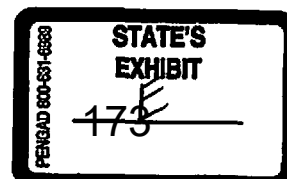
Credited: NOTES: N/A

All pertinent information, names and assessments indicated above are incorporated into the language of the judgment below by reference.

This cause was called for trial in Dallas County, Texas. The State appeared by her District Attorney as named above.

Counsel / Waiver of Counsel (select one)

☒ Defendant appeared in person with Counsel.





☐ Defendant knowingly, intelligently, and voluntarily waived the right to representation by counsel in writing in open court.

Both parties announced ready for trial. Defendant waived the right of trial by jury and entered a plea as indicated above. The Court admonished the Defendant as required by law. It appeared to the Court that Defendant was mentally competent to stand trial, made the plea freely and voluntarily, and was aware of the consequences of this plea. The Court received the plea and entered it of record. Having heard the evidence submitted, the Court FINDS such evidence substantiates Defendant's guilt. The Court FINDS that, in this cause, it is in the best interest of society and Defendant to defer proceedings without entering an adjudication of guilt and to place Defendant on community supervision.

The Court FINDS the Presentence Investigation, if so ordered, was done according to the applicable provisions of TEX. CODE CRIM. PROC. art. 42.12 § 9.

The Court ORDERS that Defendant is given credit noted above for the time spent incarcerated. The Court ORDERS Defendant to pay all fines, court costs, and restitution as indicated above.

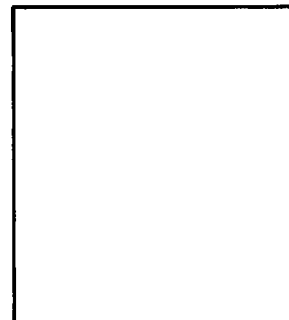
The Court ORDERS that no judgment shall be entered at this time. The Court further ORDERS that Defendant be placed on community supervision for the adjudged period so long as Defendant abides by and does not violate the terms and conditions of community supervision. See TEX. CODE CRIM. PROC. art. 42.12 § 5(a).

Furthermore, the following special findings or orders apply:

HOLD FOR ELM

X *Gracie M. Lewis*
Gracie Lewis
JUDGE PRESIDING

Clerk: DALVAREZ



Right Thumbprint*

*Thumbprint Certification attached.

**JUDGMENT
CERTIFICATE OF THUMBPRINT**

THE STATE OF TEXAS

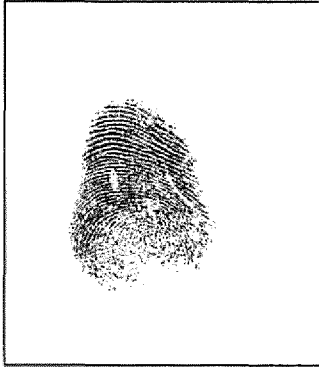
CAUSE NO. F 1612037 **-J**

VS.

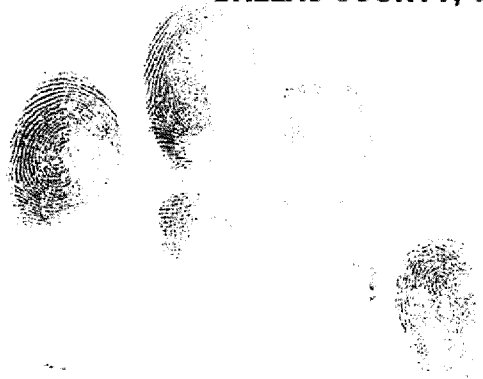
CRIMINAL DISTRICT COURT #3

Babak Taherzadeh

DALLAS COUNTY, TEXAS



RIGHT THUMB



DEFENDANT'S R **HAND**

THIS IS TO CERTIFY THAT THE FINGERPRINTS ABOVE ARE THE ABOVE-NAMED DEFENDANT'S FINGERPRINTS TAKEN AT THE TIME OF DISPOSITION OF THE ABOVE STYLED AND NUMBERED CAUSE.

DONE IN COURT THIS 09 **DAY OF** Feb, 2017.

Timothy Bram #883
BAILIFF/DEPUTY SHERIFF

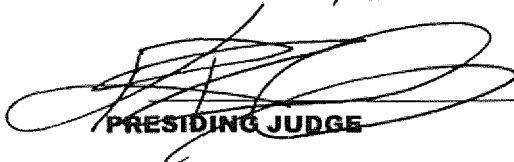
***INDICATE HERE IF PRINT OTHER THAN DEFENDANT'S RIGHT THUMBPRINT IS PLACED IN BOX:**

____ **LEFT THUMBPRINT**

____ **LEFT/RIGHT INDEX FINGER**

____ **OTHER,** _____

SIGNED AND ENTERED ON THIS 9 **DAY OF** Feb, 2017.


PRESIDING JUDGE

CONDITIONS OF COMMUNITY SUPERVISION

THE STATE OF TEXAS

IN THE CDC#3
DALLAS COUNTY, TEXAS

vs.

January TERM, 2017

BABAK TAHERZADEH
Probation Type: DEFERRED
Cause No.:
F1612037J

ML No.: C-575482
Offense:
STALKING

In accordance with the authority conferred by the Community Supervision and Parole Law of the State of Texas you have been placed on Community Supervision on this date 2-9-2017 for a period of 4 years . It is the order of this Court that you comply with the following conditions of supervision:

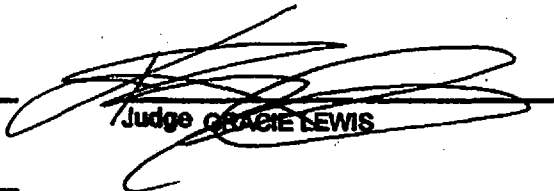
Please see attached list of conditions of Community Supervision

You are hereby advised that under the law of this State, the Court shall determine the terms and conditions of your supervision, and may at any time during the period of Supervision, alter or modify the conditions of your Supervision. The Court also has the authority at any time during the period of Supervision to revoke your Supervision and /or proceed to adjudication for violation of any of the conditions of your Supervision set out above.

Witness our Signatures this 9th Day of February 2017



Defendant



Judge GRACIE LEWIS



Court Supervision Officer

CONDITIONS OF COMMUNITY SUPERVISION

THE STATE OF TEXAS

IN THE CDC#3
DALLAS COUNTY, TEXAS

Vs.

January TERM, 2017

BABAK TAHERZADEH

Probation Type: DEFERRED

Cause No.:

F1612037J

ML. No.: C-575482

Offense:

STALKING

- (a) Commit no offense against the laws of this or any other State or the United States, and do not possess a firearm during the term of Supervision;
- (b) Avoid injurious and vicious habits, and do not use marijuana, narcotics, dangerous drugs, inhalants or prescription medication without first obtaining a prescription for said substances from a licensed physician;
- (c) Avoid persons or places of disreputable or harmful character and do not associate with individuals who commit offenses against the laws of this State or the United States;
- (d) Obey all rules and regulations of the Supervision Department, and report in the manner and time as directed by the Judge or Supervision Officer, to-wit: Monthly, Twice Monthly or Weekly.
- (e) Permit the Supervision Officer to visit you at your home or elsewhere, and notify the Supervision Officer not less than twenty-four (24) hours prior to any changes in your home or employment address;
- (f) Work faithfully at suitable employment as far as possible, and seek the assistance of the Supervision Officer in your efforts to secure employment when unemployed;
- (g) Remain within a specified place; to-wit: Dallas County, Texas, or Approved Supervising County, and do not travel outside Dallas County, or Approved Supervising County, without first having obtained written permission from the Court or Supervising Officer;
- (h) Report in person immediately upon your release to the District Clerk Felony Collections Dept. 2nd Fl., Room C2-3 Frank Crowley Bldg., to arrange payment of Court Costs (amount to be assessed by Court Clerk), Fine, and, if assessed Attorney Fees. In addition, pay in full all monies as assessed by the Court pursuant to the payment agreement established by the Felony Collections Department.
- (i) Support your dependants;
- (j) Pay a Supervision fee of \$60.00 per month plus a \$2.00 transaction fee to the Supervision Officer of this Court on or before the first day of each month hereafter during Supervision; money order, cashiers check or credit card online at www.payfeesnow.com;
- (k) Participate in the Community based program, Dallas Area Crime Stoppers Inc., by making a monetary contribution of \$50.00 payable through the Community Supervision Officer of this Court as directed within 90 days of being placed on Community Supervision;
- (l) First contact to the Volunteer Center must be made by the defendant

CONDITIONS OF COMMUNITY SUPERVISION

THE STATE OF TEXAS

IN THE CDC#3
DALLAS COUNTY, TEXAS

Vs.

January TERM, 2017

BABAK TAHERZADEH

Probation Type: DEFERRED

ML. No.: C-575482

Cause No.:

Offense:

F1612037J

STALKING

within 30 days from referral and defendant is to start 160 hours of Community Service at an approved Community Service Project or projects designated by the Community Supervision and Corrections Department. A processing fee of \$55.00 payable to the Volunteer Center, will be required for referrals through the Volunteer Center. Hours of service to be completed by term of Supervision;

(m) Report if directed to the Community Supervision and Corrections Department Assessment Treatment and Research Services program (A.T.R.S), Frank Crowley Bldg., 133 N. Riverfront Blvd., 9th floor, Dallas TX 75207, obey all program instructions and/or treatment for Substance Abuse and/or Psychological Health; and continue with such adherence until release is granted by the program or the Court. Pay any costs assessed by ATRS in accordance with program guidelines.

(n) Submit a non-diluted random urine sample and/or medical test/breathalyzer test at the request of the Supervision Officer to determine the use of illicit drugs or alcohol, paying the total cost of such urinalysis of \$200.00 payable at \$10.00 monthly to the Community Supervision and Corrections Department;

(o) Submit as directed, a buccal swab specimen to the Department of Public Safety under Sub-Chapter G, Chapter 411, Government Code, for the purpose of creating a DNA record of the defendant (Article 42.12 & 11(a)(22); All costs incurred are to be paid by the Defendant;

(p) Do not have any form of contact, be it in person, by mail, telephone or any form of communication with Judge Birmingham of the 292nd Judicial District Court, and immediate family directly or indirectly, for the duration of the Supervision Term;

(q) Within 30 days from referral, participate in an anger management program through a court-approved resource, making an observable deliberate and diligent effort to comply with all directives provided by the program until released successfully by the agency or the Court. Defendant to pay all costs of counseling/treatment;

JB ~~CONFIDENTIAL - NOT FOR DISSEMINATION~~

(s) Beginning Immediately, and for an indeterminate period thereafter, you must participate in the Community Control Program (CCP)/High Risk Caseload, (HRC). While a participant therein, you shall be under House Arrest and subject to Electronic Monitoring for a period of _____ days. During this monitoring period, you must remain at the monitored residence at all times except during periods approved in advance by your supervision officer. You must comply with all rules of the CCP/HRC, to include the payment for electronic monitoring as determined by the monitoring authority, and complete all program activities and attendant special conditions as stated in your conditions of community supervision until your discharge from CCP/HRC.

DEFENDANT SHALL BE HELD IN JAIL AND RELEASED ONLY TO ELECTRONIC MONITORING/CSCD STAFF

(t) Within 30 days from referral, participate in A Cognitive Behavioral Program and continue in the program making observable deliberate and diligent effort to comply with all directives and instructions provided

CONDITIONS OF COMMUNITY SUPERVISION

THE STATE OF TEXAS

**IN THE CDC#3
DALLAS COUNTY, TEXAS**

Vs.

January TERM, 2017

BABAK TAHERZADEH

Probation Type: DEFERRED

ML. No.: C-575482

Cause No.:

Offense:

F1612037J

STALKING

**by said program or its staff, until released successfully by the agency or the Court.
Defendant to pay all costs and counseling/treatment;**

(v) Do not possess, consume or purchase any alcoholic beverages, or illegal controlled substances during the term of Supervision;

(w) Report to HRC/CCP orientation 09-10-2017 @ 9:00 am SOUTH OFFICE at 214-330-0383, 2726 Coombs Creek Rd., Dallas, TX 75211;

Cause No: 16 12037

State of Texas vs. B. Takezadeh

COURT'S ADMONISHMENT ON RIGHT TO ORDER OF NONDISCLOSURE

If you have been placed on deferred adjudication community supervision and subsequently receive a discharge and dismissal, and you satisfy the requirements set forth below, you may petition the court for an order of nondisclosure pursuant to Section 411.081 of the Texas Government Code. Except as provided below, you may petition the court regardless of whether you have been previously placed on deferred adjudication community supervision for another offense. After notice to the State and a hearing on whether you are entitled to file the petition and whether issuance of the order is in the best interest of justice, the court shall issue an order prohibiting criminal justice agencies from disclosing to the public criminal history record information related to the offense for which you were placed on deferred adjudication. A criminal justice agency may disclose criminal history record information that is the subject of the order only to other criminal justice agencies, for criminal justice or regulatory licensing purposes, an agency or entity specifically listed in Section 411.081, or the person who is the subject of the order.

You may petition this court for an order of nondisclosure on payment of a \$28 fee to the clerk of the court in addition to any other fees that generally apply to the filing of a civil petition. The petition may be made only on or after:

- (1) the discharge and dismissal, if the offense for which you were placed on deferred adjudication was a misdemeanor other than a misdemeanor described by number (2) below;
- (2) the second anniversary of the discharge and dismissal, if the offense for which you were placed on deferred adjudication was a misdemeanor under Chapter 20, 21, 22, 25, 42, 46, Penal Code; or
- (3) the fifth anniversary of the discharge and dismissal, if the offense for which you were placed on deferred adjudication was a felony.

You are entitled to petition the court for nondisclosure only if during the period of the deferred adjudication community supervision for which the order of nondisclosure is requested and during the applicable period described by number (1), (2), or (3) above, as appropriate, you were not convicted of, or placed on deferred adjudication community supervision for, any offense other than an offense under the Transportation Code punishable by fine only. You are not entitled to petition the court if you were on placed on deferred adjudication community supervision for or have been previously convicted or placed on any other deferred adjudication for:

- (1) an offense requiring registration as a sex offender under Chapter 62, Code of Criminal Procedure;
- (2) an offense under Penal Code Section 20.04 (Aggravated Kidnapping), regardless of whether the offense is a reportable conviction or adjudication for purposes of Chapter 62, Code of Criminal Procedure;
- (3) an offense under Penal Code Sections 19.02 (Murder), 19.03 (Capital Murder), 22.04 (Injury to a Child, Elderly Individual, or Disabled Individual), 22.041 (Abandoning or Endangering a Child), or 25.07 (Violation of Court Order or Conditions of Bond in a Family Violence Case); or
- (4) any other offense involving family violence, as defined by Family Code Section 71.004.

You are considered to have been placed on deferred adjudication community supervision if, regardless of the statutory authorization:

- (1) you entered a plea of guilty or nolo contendere;
- (2) the judge deferred further proceedings without entering an adjudication of guilt and placed you under the supervision of the court or an officer under the supervision of the court; and
- (3) at the end of the period of supervision the judge dismissed the proceedings and discharged you.


JUDGE

I ACKNOWLEDGE THAT I HAVE BEEN INFORMED OF MY RIGHTS, AS SET FORTH ABOVE, TO PETITION THE COURT FOR AN ORDER OF NONDISCLOSURE UNDER SECTION 411.081 OF THE TEXAS GOVERNMENT CODE.

2/9/17

Date

x [Signature]
Defendant

NO. F16-12037

THE STATE OF TEXAS	§	IN	CRIMINAL DISTRICT COURT
	§		NUMBER 3
v.	§		of
BABAK TAHERZADEH	§		DALLAS COUNTY, TEXAS

MOTION TO REMEDY MISCONDUCT BY STATE & ATTORNEY GARY MCDONALD

TO THE HONORABLE JUDGE OF THE COURT:

This this motion is necessary because the State withheld evidence and through its Criminal District Attorney(s) and with Assistant District Attorney Gary McDonald has made false sworn statements including false statements of fact to the Court.

Background

I, Babak Taherzadeh, was arrested on June 21, 2016 in Dallas and taken by Carrollton Police to Carrollton City Jail where I was charged with felony stalking of State District Judge Brandon Birmingham and informed my case was assigned to the 292ND District Court of said Judge Brandon Birmingham with bail set at a quarter of a million dollars. I was later taken back to Dallas and the Dallas County Jail where I spent nearly 8 months before I was allowed to plea. Prior to agreement my case was transferred from the alleged victims Brandon Birmingham's court across the hall to another court of the same judicial district and The Honorable Kerry Fitzgerald was assigned to presides over all matters. As required, the State provided defense an inventory and access to discovery before order of deferred adjudication/"judgement" was signed February 9, 2017 .

I was fitted with an ELM and finally released from jail Feb 17th, 2017 under strict home confinement/house arrest . The conditions that were enforced exceeded the plea agreement and what the TRCP permitted but I complied. Still, after more than 8 months of what Judge Fitzgerald would characterize as being a "model probationer" the State filed a motion to revoke got a warrant signed by "another judge" and I was arrested October 24, 2017 and jailed yet again. Prior to arrest I petitioned the court for Habeas relief (WX1790064) arguing many issues including the validity of the February 9, 2017 Order of Deferred/judgement because it was not signed by trial judge as required. I spent 10 days in jail before a Nov 3rd, 2017 hearing where I agreed to a limited conditions and Judge Fitzgerald had me released on a PR Bond without ELM. I filed a motion November 21, 2017 requesting reversal of judgement.

On December 1, 2017, at hearing in open court Judge Fitzgerald continued with a few conditions and I agreed to a single added condition to see Dr. Kristi Compton for evaluation within 30 day. An entry in the case docket sheet shows that Judge Fitzgerald signed another order because the previous order was signed by another recused judge thus making it void. December 6, 2017 I communicated to the court and attorney I was withdrawing plea. The State filed its Response to my Habeas Petition on December 11, 2017. In February 2018 the state again filed a motion to revoke and I was arrested February 13, 2018 and thrown in jail yet again. I spent nearly 5 months to-the-day in jail before being fitted with ELM and being released on July 12, 2018.

MOTION TO REMEDY MISCONDUCT BY STATE & ATTORNEY GARY MCDONALD

I.

The States' Discovery Provided Defendant filed Feb 9, 2017 does not list evidence seized by Carrollton Police and had in its possession.

II.

In the States Amended Motion to Revoke dated November 2, 2017 Asst. DA Gary McDonald sworn statements are questionable at best but he is unquestionably making a false statement when he attests Probationer failed to pay court cost and fees and "is currently delinquent".

III.

The State argues in its Response To Application For Writ filed on December 11, 2017, its motion requesting a Nunc Pro Tunc Order corrects "CLERICAL ERROR" of the February 9, 2017 judgement. First, the signature of The Judge Of The Court is not a clerical function. Second, The Court had clearly ruled the order VOID on Dec 1st. Furthermore,, there is no record of the State filing a motion requesting Pro Nunc Tunc.

IV.

Asst DA Gary McDonald sworn statements are dubious and meritless in the States Motion to Revoke signed February 2, 2018 but he attests the defendant was duly and lawfully placed on probation February 9th 2017 when the Court had ruled otherwise.

Prayer

Movant prays the court grant this motion allowing the State and Asst. DA Gary McDonald the opportunity to answer as they are entitled. Movant prays Courts remedies any abhorrent conduct, violations of justice and impediments to due process in a equitable manner that displays the impartiality and dignity of the law and renews the prestige of the Courts with any and all remedies entitled or required.

Oath

I, Babak Taherzadeh, under penalty of felony, swear the statements in these 827 words are true as I believe and the documents included in these 33 pages are not fabricated, altered or corrupted to deceive.

Respectfully Submitted,
/s/ Babak Taherzadeh
Babak Taherzadeh
Filed Pro Se
November 13,, 2018

INSTRUCTIONS RELATING TO
PRELIMINARY INITIAL APPEARANCE



Cause No. **F1612037**
Offense: **STALKING**

The State of Texas
vs.
BABAK TAHERZADEH

On this date appeared **BABAK TAHERZADEH**, hereafter referred to as defendant, who makes his initial appearance in connection with the above numbered cause. At this appearance a hearing was held, at which the following took place:

1. Defendant was informed as provided in Art. 15.17 CCP.
2. Bail was set in the amount of \$ **\$250,000.00**
3. All felony charges associated with this arrest are assigned to and shall be filed in **Judge Brandon Birmingham** Court, **292nd Judicial District Court (FV)**

Copies of these instructions served on defendant and transporting officer on this **21** day of **June**, 20**16**.

CAUSE NO. F1612037

THE STATE OF TEXAS

§

IN THE

§

VS.

§

Criminal District Court No. 3

§

BABAK A TAHERZADEH

§

DALLAS COUNTY, TEXAS

FILED
2017 FEB -9 AM 10:00
FELICIA PITRE
DISTRICT CLERK
DALLAS CO. TEXAS
DEPUTY

**DISCOVERY DISCLOSURE AND NOTICE
PURSUANT TO CCP 39.14**

These documents, reports, and other items are being provided to you in accordance with your request made pursuant to Article 39.14 of the Texas Code of Criminal Procedure. The documents are provided for the purpose of defending your client in the above-entitled and numbered cause, and for no other purpose.

By accepting these documents, reports, and other items, the undersigned attorney should understand that the documents, reports, and other items provided shall be used for the purpose of defending his/her client in the above-entitled and numbered cause and for no other purpose. Thus, except as provided in Article 39.14 T.C.C.P., the defendant, the attorney representing the defendant, or an investigator, expert, consulting legal counsel, or other agent of the attorney representing the defendant may not disclose to a third party any non-public documents, evidence, materials, or witness statements received from the state under Article 39.14 T.C.C.P. without a court order after notice and a hearing.

NOTICE OF DEFENSE COUNSEL OBLIGATIONS

The attorney representing the defendant, or an investigator, expert, consulting legal counsel, or agent for the attorney representing the defendant, may allow a defendant, witness, or prospective witness to view the information provided herein, but may not allow the defendant, witness, or prospective witness to have copies of the information provided, other than a copy of the witness's own statement. Before allowing any person to view a document or the witness statement of another, the person possessing the information shall redact the address, telephone number, driver's license number, social security number, date of birth, and any bank account or other identifying numbers contained in the document or witness statement. The defendant may not be considered an agent of the attorney representing the defendant.

Given to: Paul Johnson
By: Gary McDonald, Jr.
Date: 2/9/2017

F1612037

BABAK A TAHERZADEH

CAUSE NO. F1612037

THE STATE OF TEXAS	§	IN THE
	§	
VS.	§	Criminal District Court No. 3
	§	
BABAK A TAHERZADEH	§	DALLAS COUNTY, TEXAS

DISCOVERY PROVIDED TO DEFENSE ATTORNEY

On 2/9/2017 the following discovery was made available to the defense:

DISCOVERY ITEMS (32)

Type	Name	Discoverable Date
Photographs (1)	Screen Shots.zip	9/28/2016
Arrest Warrant (3)	WARRANT.PDF	9/28/2016
	Taherzadeh I think I'm speaking truth to power pt 1.camrec.wmv	12/1/2016
	Taherzadeh I think I'm speaking truth to power pt 2.wmv	12/1/2016
Transcripts-Non GJ (1)	Transcript PO Hearing.pdf	11/17/2016
Indictment (1)	F1612037_Indictment_2016-09-02.pdf	9/28/2016
PC Affidavit (1)	PC.PDF	9/28/2016
Offense Report (5)	CASE REPORT - ADULT1.pdf	9/28/2016
	ARREST.pdf	9/28/2016
	OFFENSE.pdf	9/28/2016
	SCANS.pdf	9/28/2016
	ATTACHMT.PDF	9/28/2016
Search Warrant (3)	Search Warrant.pdf	9/28/2016
	Google Warrant.pdf	9/28/2016
	Twitter Warrant.pdf	9/28/2016
Additional Case Info (17)	Google Preservation Request.pdf	9/28/2016
	Twitter response, basic account information.zip	9/28/2016
	thunderFence-15815502-2016-06-21-287273.zip	9/28/2016
	A_Failed_Smile-704036206506455040-2016-06-21-287270.zip	9/28/2016
	brutallas-2937245406-2016-06-21-287269.zip	9/28/2016

F1612037

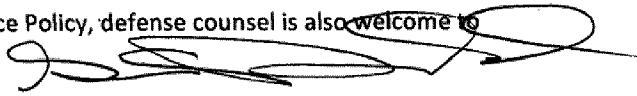
BABAK A TAHERZADEH

	kunt_return-737457452103262209-2016-06-21-287271.zip	9/28/2016
	Truth2Cunts-739622175632588800-2016-06-21-287267.zip	9/28/2016
	thunderfence2-734020153315201024-2016-06-21-287272.zip	9/28/2016
	bindinadulation-741077840049770496-2016-06-21-287268.zip	9/28/2016
	Case# 34331716_ Twitter Receipt of Legal Process.pdf	9/28/2016
	FetusJunior-1588503236-2016-06-21-287266.zip	9/28/2016
	2016_06_16_13_30_10.pdf	9/28/2016
	5 Court Order.pdf	9/28/2016
	BABAK.pdf	9/28/2016
	Google Files.zip	9/28/2016
	MBOX+EXTRACTION.zip	1/20/2017
	ENCASE REPORT (BIRMINGHAM).zip	1/20/2017

DISCOVERY NOTES (0)

No Discoverable Notes

Per the Dallas County District Attorney's Office Policy, defense counsel is also welcome to inspect the physical file.


 Gary McDonald, Jr.
 Bar # 24060251
 Assistant District Attorney
 (214) 653-3600

If you find that anything listed above is not in contained in the documents or discs that you have received, or if you believe there is additional discovery after reviewing the above please contact me as soon as possible.


 Attorney for the Defendant
 Paul Johnson
 Bar # 10778230

2/8/17
 Date Received

F1612037

BABAK A TAHERZADEH

CAUSE NO. F1612037

THE STATE OF TEXAS	§	IN THE
	§	
VS.	§	Criminal District Court No. 3
	§	
BABAK A TAHERZADEH	§	DALLAS COUNTY, TEXAS

C.C.P. ARTICLE 39.14 COMPLIANCE FORM

COMES NOW the State of Texas by and through the undersigned assistant district attorney and defense counsel for the above-named defendant and would show the Court as follows:

Pursuant to the Code of Criminal Procedure Article 39.14(j), the following has been produced electronically in the above-referenced cause as indicated below:

DISCOVERY ITEMS (32)

Type	Name	Discoverable Date
Photographs (1)	Screen Shots.zip	9/28/2016
Arrest Warrant (3)	WARRANT.PDF	9/28/2016
	Taherzadeh I think I'm speaking truth to power pt 1.camrec.wmv	12/1/2016
	Taherzadeh I think I'm speaking truth to power pt 2.wmv	12/1/2016
Transcripts-Non GJ (1)	Transcript PO Hearing.pdf	11/17/2016
Indictment (1)	F1612037_Indictment_2016-09-02.pdf	9/28/2016
PC Affidavit (1)	PC.PDF	9/28/2016
Offense Report (5)	CASE REPORT - ADULT1.pdf	9/28/2016
	ARREST.pdf	9/28/2016
	OFFENSE.pdf	9/28/2016
	SCANS.pdf	9/28/2016
	ATTACHMT.PDF	9/28/2016
Search Warrant (3)	Search Warrant.pdf	9/28/2016
	Google Warrant.pdf	9/28/2016
	Twitter Warrant.pdf	9/28/2016
Additional Case Info (17)	Google Preservation Request.pdf	9/28/2016
	Twitter response, basic account information.zip	9/28/2016
	thunderFence-15815502-2016-06-21-287273.zip	9/28/2016
	A_Failed_Smile-704036206506455040-2016-06-21-	9/28/2016

F1612037

BABAK A TAHERZADEH

	287270.zip	
	brutallas-2937245406-2016-06-21-287269.zip	9/28/2016
	kunt_return-737457452103262209-2016-06-21-287271.zip	9/28/2016
	Truth2Cunts-739622175632588800-2016-06-21-287267.zip	9/28/2016
	thunderfence2-734020153315201024-2016-06-21-287272.zip	9/28/2016
	bindinadulation-741077840049770496-2016-06-21-287268.zip	9/28/2016
	Case# 34331716_ Twitter Receipt of Legal Process.pdf	9/28/2016
	FetusJunior-1588503236-2016-06-21-287266.zip	9/28/2016
	2016_06_16_13_30_10.pdf	9/28/2016
	5 Court Order.pdf	9/28/2016
	BABAK.pdf	9/28/2016
	Google Files.zip	9/28/2016
	MBOX+EXTRACTION.zip	1/20/2017
	ENCASE REPORT (BIRMINGHAM).zip	1/20/2017

DISCOVERY NOTES (0)

No Discoverable Notes

F1612037

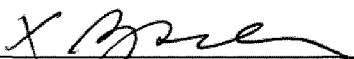
BABAK A TAHERZADEH

SIGNATURES AND ACKNOWLEDGEMENTS

I, the defendant herein, acknowledge that my attorney has explained to me, and/or I have reviewed (except as provided by law) the above-referenced items.

2/9/2017

DATE


DEFENDANT SIGNATURE

PRINTED NAME

I have consulted with the defendant, whom I believe to be competent, concerning the plea/trial in this case, and I have advised the defendant of his/her rights and made him/her aware of the discovery provided in this case. I understand that non-public information received pursuant to Article 39.14 is not subject to disclosure to a third party without a Court Order. I further understand that I cannot allow copies of this information to be released to anyone other than to release a witness's own statement to that witness, and that prior to showing this information to a defendant, witness, or prospective witness, I must redact it as set forth in Article 39.14.

2/9/2017

DATE

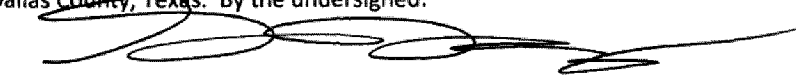

ATTORNEY SIGNATURE
Paul Johnson
BAR CARD NUMBER: 10778230

As the attorney for the State, I represent that I have reviewed the entire contents of my file, and I represent that I have complied with the requirements of Art. 39.14 (a), Texas Code of Criminal Procedure, to the best of my knowledge.

FAITH JOHNSON, Criminal District Attorney, Dallas County, Texas. By the undersigned:

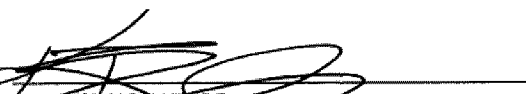
2/9/2017

DATE


ASSISTANT DISTRICT ATTORNEY
Gary McDonald, Jr.
BAR CARD NUMBER: 24060251

The Court acknowledges that the parties have represented that they have complied with Art. 39.14 (j) of the Texas Code of Criminal Procedure.

2-9-2017
DATE


JUDGE'S SIGNATURE

F1612037

BABAK A TAHERZADEH

CAUSE NO. F1612037

THE STATE OF TEXAS	§	IN THE
	§	
VS.	§	Criminal District Court No. 3
	§	
BABAK A TAHERZADEH	§	DALLAS COUNTY, TEXAS

**DEFENDANT'S ACKNOWLEDGEMENT OF DISCOVERY RIGHTS
UNDER ART. 39.14, TX. CODE OF CRIMINAL PROCEDURE**

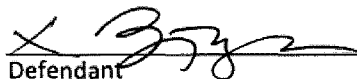
COMES NOW the defendant in the above-styled and numbered cause and would state as follows:

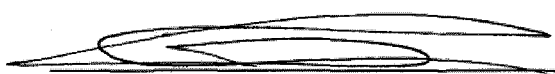
"My attorney has explained to me that I, as the defendant in a criminal case in the State of Texas, have certain rights regarding the inspection and reproduction of the evidence in the case that the state has filed against me, specifically that my attorney has the right to review and obtain copies of the offense report, witness statements, books, accounts, letters, photographs, video recordings, laboratory reports, objects or tangible items, or any designated evidence that may be material to any matter involved in the action that is in the possession of the state or any person under contract with the state. My attorney has explained to me that he/she has reviewed all available discovery items provided to him/her on before today's date - 9th day of February, 2017.

In the event that other discovery items may exist, my attorney has explained that I have the right to have him/her review those items prior to entering my plea.

I understand that the state has a continuing duty to disclose to me or to the court any document, item, or information that is exculpatory, impeaching, or mitigating, or that would tend to negate my guilt or would tend to reduce the punishment for my offense.

UNDERSTANDING THAT I HAVE THESE RIGHTS, I DO KNOWINGLY WAIVE (GIVE UP) MY RIGHT TO FURTHER DISCOVERY, EXCEPT AS PROVIDED BY LAW."


Defendant


Attorney for the Defendant
Paul Johnson

F1612037

BABAK A TAHERZADEH

CAUSE NO. F1612037

THE STATE OF TEXAS

§

IN THE

§

VS.

§

Criminal District Court No. 3

§

BABAK A TAHERZADEH

§

DALLAS COUNTY, TEXAS

**STATE'S NOTICE OF REDACTION PURSUANT TO TEXAS CODE OF
CRIMINAL PROCEDURE ART. 39.14(C)**

Pursuant to Texas Code of Criminal Procedure Art. 39.14(c), the following has been redacted from the discovery provided to the attorney for the defendant. The State contends that such redaction is justified under Article 39.14 or other statutory or constitutional provisions.

Information redacted

- ☐ Address/Location of Victim
☐ Address Location of Witness
☐ Personal Identifying Information of Victim (ie. SSN,)

- ☐ Identity of Witness/Informant
☒ Other 7 LETS / CCIT
☐ Other _____

Reason for redaction

- ☐ CCP Article 56.02(a)(1)
☐ Rule 508 Texas Rules of Evidence
☐ Attorney previously violated Article 39.14
☐ Tex Const. Art. 1 § 30

- ☐ At the request of Victim/Witness
☒ Other Conf: District CC#
☐ Other _____

2/9/2017
DATE



ASSISTANT DISTRICT ATTORNEY

Gary McDonald, Jr.

PRINTED NAME

24060251

BAR CARD NUMBER

F1612037

BABAK A TAHERZADEH

THE STATE OF TEXAS

§

IN THE

VS.

§

Criminal District Court No. 3

BABAK A TAHERZADEH

§

DALLAS COUNTY, TEXAS

ORDER

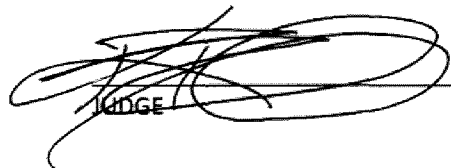
The Court, having conducted a hearing on request of the defendant to determine whether withholding or redaction of documents or information provided to the defense under Article 39.14 of the Texas Code of Criminal Procedure, makes the following Order:

☒ The withholding or redaction proposed by the State is justified under Article 39.14.

☐ The State is ordered by the Court to remove the redaction(s) of the following information:

☐ The State is ordered by the Court to disclose the following documents or information:

2-9-2017
DATE


JUDGE

Criminal District Court No. 3
COURT

F1612037

BABAK A TAHERZADEH

PAYMENT INFORMATION SHEET
CRIMINAL DISTRICT COURT 3

DATE 02/09/17
TIME 11:47 A.M.

ASSESS NO. 001

CASE NO F-1612037 FJ

DEFENDANT NAME.- TAHERZADEH BABAK A
OFFENSE DATE...- 06/22/16
OFFENSE TYPE...- STALKING

COST AND FINE ASSESSMENT:

COST	AMT - \$	224.00
FINE	AMT - \$	1000.00
TOTAL	AMT - \$	1224.00

BALANCE AMT - \$ 224.00

A \$2.00 TRANSACTION FEE WILL BE ADDED FOR EACH PAYMENT MADE.

FELICIA PITRE
DISTRICT CLERK
DALLAS COUNTY, TEXAS

ENTERED BY ALVAREZ D
DEPUTY CLERK

NO PERSONAL CHECKS - CASH, MONEY ORDER, OR CASHIERS CHECK ONLY
MAKE PAYABLE TO: FELICIA PITRE, DISTRICT CLERK
MAILING ADDRESS: FRANK CROWLEY COURTS BLDG., LEVEL TWO
 ATTENTION: CENTRAL CASHIER
 133 NORTH RIVERFRONT BLVD LB12
 DALLAS, TEXAS 75207-4313

PHONE NO. 653-5950

NIGHT DEPOSIT BOX AVAILABLE

* THIS IS NOT A RECEIPT AND MUST BE TAKEN TO THE *
* DISTRICT CLERK CENTRAL CASHIER TO MAKE PAYMENT. *

*** IF PAYMENT IS NOT RECEIVED ON OR BEFORE DUE DATE, ***
*** CLERK WILL ISSUE WARRANT ***

CASE NO. F-1612037

B# 16034545

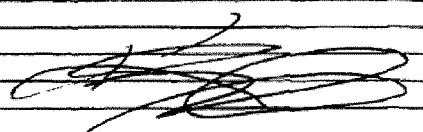
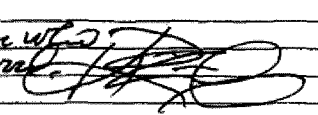
TRIAL DOCKET - CRIMINAL DISTRICT COURT - DALLAS COUNTY, TEXAS

NO. F 16-12037-WJ

ATTY FOR STATE: MCDONALD

BAIL STATUS:

JAIL

STATE OF TEXAS	ATTORNEY	OFFENSE	DATE OF FILING
BABAK A TAHERZADEH SID# TRN:	Paul Johnson (214) 761-0727	STALKING OFF Date: Degree / Statute:	9/12/2016
DATE OF ORDER	ORDER OF COURT		
09/13/16	FIRST 09/14/16		
2-9-2017	Def plead guilty to the 3-5 yr indictment - alcohol - A. Defendant of disposal - 1st time of legal representation - plea set at 4 yr prob. defendant advised. 1st 1,000 fine probated		
			
11-3-17	Hq on Bond - cl grants PR bond, w/ electronic monitor, A to attend psych. eval on Nov 9, 2017 at 10am with counsel Diane Jones & A to avoid computer, internet - case must to Dec 1, 2017 at 10am.		
			
12-1-17	cl signed order re Defendant today because another judge who was ordered signed for previous order. This makes it 2nd time. D & sec DaCompton 7 and long & tentatively set 1-18-18		
			

* HOLD FOR ELM *

\$249 CC / \$1000 fine
probated

D U P L I C A T E
COMMUNITY SUPERVISION & CORRECTIONS DEPT
DALLAS COUNTY

ML#: C-575482 COURT#: 03 RECEIPT#: 910895
NAME: BABAK TAHERZADEH
OFCR# CC13 DATE: 03/08/2017 TIME: 9:13 AM
TYPE MEMO AMOUNT
MO GA-UNITED POSTAL MONEY ORDER 172.00
MO GA-UNITED POSTAL MONEYORDER 50.00

ACCT#	REF	TYPE	AMOUNT PAID	TOTAL BALANCE
-------	-----	------	-------------	---------------

Payment Confirmation - District Family Court

Thank you for using our On-Line payment system. We look forward to serving your needs.

Please keep a record of your Confirmation Number, or print this page for your records.

Confirmation Number: **DALDCL000659529**

Confirmation Date (ET): **Oct-17-2017 10:46:14 AM**

Your Payment Detail

Payment Amount: **\$251.00**

Convenience Fee: **\$3.50**

Total Payment Amount: **\$254.50**

Scheduled Payment Date: **Oct-17-2017**

Amount Due: **\$251.00**

Tracking Number: **DCLKFPNET0001482742**

Case Number: **F-1612037**

Your Account Detail

Cardholder Name *: **babak tahezadeh**

Credit Card or Debit Card Number: **XXXXXXXXXXXX3805**

Credit Card or Debit Card Type: **Master Card Debit**

Your Credit/Debit Card Billing Information

Billing Street Address 1 *: **1055 Regal Row #501**

Billing Street Address 2:

Billing Street Address 3:

Billing City *: **Dallas**

Billing State *: **TX**

Billing Zip Code *: **75247**

Billing Country *: **United States**

E-mail Address *: **babaktaherzadeh@gmail.com**

MacBook Pro

WX17-90064 J

FILED
10/24/2017 12:53 A
FELICIA PITRE
DISTRICT CLERK
DALLAS CO., TEXAS
<<CC>> DEPUTY

PETITION FOR WRIT OF HABEAS CORPUS

		ORAL ARGUMENTS REQUESTED	
Name: Babak Taherzadeh		Docket or Case No.:	
Place of Confinement: Home Confinement/House Arrest Dallas County, Texas		Prisoner No.: ML - C 575482	
Petitioner: Babak Taherzadeh		Respondents: v. Bryan Collier & Javed Sayed Exec. Dir., T D C J, State of Texas Community Supervision	

PETITION

Name and location of court that entered the judgment and sentence:

**Criminal District Court No. 3
Frank Crowley Courts Build. 2017
133 N. Riverfront Boulevard,
Dallas, TX 75207**

Case Number: **F16-12037**

Date: **02/09/17**

Length: **4 years**

I, Babak Taherzadeh, American Citizen, seek justice and liberty from unlawful restraint not from North Korea, Iran or Myanmar, but from Texas. And I love Texas. I was accused of committing a crime against State District Judge Brandon Birmingham for Tweets about Judge Birmingham. I was arrested and charged with Felony Stalking and the case was assigned to the 292nd District Court of the alleged victim, Judge Brandon Birmingham. Not to state the obvious, but I am not a lawyer, I'm uneducated, but I believe that's a conflict of interest. I was deprived justice contrary to or involved an unreasonable application of, clearly established Federal law, as determined by the Supreme Court of the United States. I was induced a long custody with a cruel hopelessness that coerced their plea. I was victim of a brand of injustice that violates and denies FUNDAMENTAL Rights and Basic Constitutional protections and privileges that are the very core of this Great Nations Identity. Relationship, standing, bias and corruption was influence, not fairness, and are the circumstances that cannot insure the protection of rights and render any corrective processes in the Courts of Texas questionable or unavailable. However formally before I respectfully petition the Courts of The United States Application of Writ of Habeas Corpus seeking release from unlawful constraint , I petition Texas and respectfully Petition for Writ of Habeas Corpus motion the court for advice and assistance of counsel. My right to counsel, to this point, has been deprived. The 292nd failed to appoint an attorney, and Judge Gracie Lewis deliberately assigned an ineffective Paul Johnson clearly influenced by an actual conflict of interest to fill the role of defense attorney. An "Abortion of Justice" would more accurately describe the degree of miscarriage I've suffered. A forced abortion. And while again I'm uneducated I understand I am as incapable of negotiating this legal labyrinth as the Texas courts have been to this point incapable of being impartial and

CAUSE NO.: F1612037J

CDC #3

THE STATE OF TEXAS

DALLAS COUNTY, TEXAS

VS.
BABAK TAHERZADEH

July

TERM, 2017

AMENDED

MOTION TO REVOKE PROBATION OR PROCEED WITH AN ADJUDICATION OF GUILT

COMES NOW the State of Texas by and through her Criminal District Attorney and would show the Court the following:

That BABAK TAHERZADEH, Defendant, was duly and legally placed on probation for a period of 4 years in the above entitled and numbered cause in CDC #3 of Dallas County, Texas, on the 9th day of February, A.D., 2017 for the offense of:

STALKING

That the Defendant has violated the following conditions H. M. S of said supervision in that;

SEE ATTACHED PAGE(S)

This violation-offense occurred after 02/09/2017 and during the term of Supervision.

WHEREFORE, the State prays that said Defendant be cited to appear before this Honorable Court and show cause why the Court should not revoke probation or proceed with an adjudication of guilt on the original charge.

This the 2nd day of November, A.D., 2017

* FILED *
* 11/02/2017 *
* Felicia Pitre *
* DISTRICT CLERK *
* DALLAS CO., TEXAS *
* DEPUTY *

Faith Johnson
District Attorney
Dallas County, Texas
BY: [Signature]
Assistant District Attorney

A copy of this motion was delivered to the Defendant on the _____ day of _____ A.D., 20____.

CSO

I received a copy of this motion on the _____ day of _____ A.D., 20____.

ML#: C-575482

Defendant

CAUSE NO.: F1612037J

CDC #3

THE STATE OF TEXAS

DALLAS COUNTY, TEXAS

VS.
BABAK TAHERZADEH

July TERM, 2017

AMENDED

MOTION TO REVOKE PROBATION OR PROCEED WITH AN ADJUDICATION OF GUILT

(h) BABAK TAHERZADEH did violate condition (h) in that s(he) did not pay Court Costs and Fines as ordered by the court and is currently delinquent.

(m) BABAK TAHERZADEH did violate condition (m) in that s(he) did not obey all program instruction and/or treatment for Substance Abuse or Psychological Health as directed by Assessment Treatment and Research Services Program, (A.T.R.S)

(s) Beginning immediately, and for an indeterminate period thereafter, you must participate in the Community Control Program (CCP)/High Risk Caseload, (HRC). While a participant therein, you shall be under House Arrest and subject to Electronic Monitoring for a period of days. During this monitoring period, you must remain at the monitored residence at all times except during periods approved in advance by your supervision officer. You must comply with all rules of the CCP/HRC, to include the payment for electronic monitoring as determined by the monitoring authority, and complete all program activities and attendant special conditions as stated in your conditions of community supervision until your discharge from CCP/HRC. BABAK TAHERZADEH failed to report to SENTINEL ELM for weekly compliance. TAHERZADEH failed to report on October 19, 2017 as directed. TAHERZADEH last reported October 12, 2017.

FILED
11/21/2017 2:30 PM
FELICIA PITRE
DISTRICT CLERK
DALLAS CO., TEXAS
AC DEPUTY

Cause No. F16-12037

STATE OF TEXAS
VS.

TAHERZADEH, BABAK

IN THE CDL #13

OF
Dallas County, Texas

DEFENDANT'S MOTION TO
REVERSE JUDGEMENT
AS INVALID
TO THE HONORABLE JUDGE FITZGERALD

I BABAK TAHERZADEH THE NAMED
DEFENDANT IN THE CAUSE NUMBER
ABOVE RESPECTFULLY MOTION THE
COURT TO REVERSE THE MISMANAGEMENT
OF JUSTICE IN CASE F16-12037 ON
THE GROUND THAT THE JUDGEMENT
IS INVALID BECAUSE IT IS SIGNED
BY JUDGE CAROLLE LEWIS COURT
APPOINTED ATTORNEY REFUSES TO
SUPPORT A JUDGE LEWIS AND
THREATENS TO WITHDRAW REPRESENTATION
SHE HAS AT THIS POINT REFUSE
TO ANSWER MY QUESTIONS IN
HER REPRESENTATION IN THE
ILLEGAL UNTRUTHFUL REVOCATION
FILED BY THE STATE

I ~~pray~~ ^{seek} FOR RELIEF IN THE FORM
OF JUSTICE AND PRAY FOR THE SAME

BABAK TAHERZADEH
1055 Russell Road #103
Dallas TX 75247

In Custody? NO

**ORDER MODIFYING
THE CONDITIONS OF COMMUNITY SUPERVISION**

THE STATE OF TEXAS

CDC #3

VS.

DALLAS COUNTY, TEXAS

BABAK TAHERZADEH

July

TERM, 2017

CAUSE NO(s): F1612037J

In accordance with the authority conferred by the Community Supervision law of the State of Texas, the Conditions of Community Supervision in the above numbered Cause(s) are hereby modified by the Court to require the following:

(X) Within ³⁰18 days from referral, participate in psychological/psychiatric evaluation with Dr. Compton. Defendant is to appear before the Court after completion of the evaluation as directed.

*Justice
Kenny FITZGERALD*
The Court has the authority at any time during the period of Community Supervision to revoke or proceed to adjudication for violation of any of the conditions of Community Supervision as set forth above.

SIGNED THIS 1 DAY OF Dec, 2017

[Signature]
Judge FITZGERALD

Witness our signature this the _____ day of _____, 20____

[Signature]
COURT SUPERVISION OFFICER

[Signature]
PROBATIONER

ML#: C-575482

CAUSE NO. F-1612037

STATE OF TEXAS	§	IN THE CRIMINAL.
	§	
vs.	§	3 rd . DISTRICT COURT
	§	
BABAK TAHERZADEH	§	DALLAS COUNTY, TEXAS

MOTION FOR APPOINTMENT OF COUNSEL

TO THE HONORABLE JUDGE FITZGERALD:

I, Babak Taherzadeh, am the named defendant in the above styled and numbered cause, and respectfully motion the Honorable Judge for appointment of counsel to assist defendant in withdrawal of plea and appeal. I remain indigent and unable to hire legal counsel.

1.

The defendants request for counsel for assistance with Writ in case WX1790064 has gone unanswered.

11.

The Courts appointment of Diane Jones-McVay was explained as limited to revocation and requests were refused and unfulfilled. On December 1, 2017 Ms. Jones-McVay showed a document to me and my family indicating the withdrawal of the revocation thus ending her limited representation. Request for that document as well as other court documents have gone unfulfilled and I have been directed to retrieve them myself. The Ms. Ingram and Ms. Sweet of the probation office have been able to confirm withdrawal of revocation and no attorney of record.

WHEREFORE, PREMISES CONSIDERED, I hereby respectfully requests that this Motion be granted and counsel for defendant be effective and free from conflicts .

Respectfully submitted,

/s/Babak Taherzadeh
Babak Taherzadeh
1055 Regal Row #501
Dallas, Texas 75247
(972) 515-0551

WRIT NO. WX17-90064
Trial Cause No. F16-12037

EX PARTE	§	IN CRIMINAL DISTRICT
	§	COURT NO. 3
BABAK TAHERZADEH	§	DALLAS COUNTY, TEXAS

STATE'S RESPONSE TO APPLICATION
FOR WRIT OF HABEAS CORPUS

The State, having considered the allegations contained in applicant's Application for Writ of Habeas Corpus in the above-numbered and entitled cause, makes the following response:

I.

HISTORY OF THE CASE

Applicant was charged with stalking the Honorable Brandon Birmingham, presiding judge of the 292nd Judicial District Court of Dallas County. After applicant was arrested and bail was set, the case was initially assigned to the 292nd Judicial District Court. Judge Birmingham immediately recused himself and the case was transferred to Criminal District Court No. 3. *See State's Exhibits A and B.* The Honorable Kerry Fitzgerald was assigned to preside over all of applicant's proceedings. *See State's Exhibit C.*

On February 9, 2017, applicant waived a jury and entered a negotiated plea of guilty to the charged offense of stalking. The Court deferred a finding of guilt and placed applicant on deferred adjudication community supervision for a period of 4 years in accordance with the terms of the plea bargain agreement. See *State's Exhibits D and E*. No direct appeal was taken.

The State filed a motion to revoke in November 2017 alleging that applicant had failed to comply with the conditions of his community supervision by failing to pay court costs and fines, failing to obey all program instruction as directed by Assessment Treatment and Research Services Program (A.T.R.S.), and by failing to report to Sentinel ELM for weekly compliance. This motion is currently pending.

II.

ISSUES RAISED IN APPLICATION

In the instant writ application, applicant contends the following: (1) the signed judgment in this case is prohibited or invalid because it was signed by Judge Lewis, not the trial judge; (2) applicant was denied his right to counsel by the Court's appointment of Paul Johnson due to Johnson's conflict of interest; (3) the stalking statute is unconstitutionally vague and is prohibited by the Constitution; (4) Judge Bennett violated his 4th Amendment rights by signing the

warrant in his case; (5) his bail was excessive, cruel and unusual in violation of the 8th Amendment; (6) applicant was denied his right to counsel by the Court's failure to appoint an attorney in accordance with the rules of the indigent appointment plan in Dallas County; (7) presiding administrative judge Mary Murphy erred when she allowed the case to be assigned to another court in the same judicial district; (8) prosecuting attorneys lacked standing and authority to file suit against applicant; (9) trial prosecutor Gary McDonald used the stalking statute to violate applicant's constitutional rights; (10) McDonald violated applicant's 14th Amendment rights by circumventing his request for a competency evaluation; (11) the District Attorney's office has deprived him of his constitutional rights without due process of law; (12) Judge Birmingham effectively brought back slavery in violation of the 13th Amendment; (13) applicant's 5th Amendment rights were violated when he was required to answer to a crime prior to indictment and testify without a lawyer in order to defend himself at the protective order hearing; and (14) he was denied the effective assistance of trial counsel.

III.

STATE'S RESPONSE

Invalid Judgment

In ground one, applicant contends that the judgment in this case is prohibited or invalid because it was signed by Judge Lewis, not the trial judge. See *Writ Application at 2-3*.

The record reflects that, although applicant's case was transferred to Criminal District Court No. 3, the Honorable Kerry Fitzgerald was assigned to preside over all of applicant's proceedings. See *State's Exhibit C*. The plea papers, docket sheet, conditions of community supervision, and judgment certificate of thumbprint all contain Judge Fitzgerald's signature. See *State's Exhibits D, E, F*. These documents, along with the reporter's record, reflect that Judge Fitzgerald presided over the guilty plea proceeding. However, it appears that the clerks who prepared the judgment following applicant's guilty plea mistakenly gave it to Judge Lewis and she signed page 2 of the judgment. This is a clerical error and does not render the judgment invalid. The State has made a motion with the Court to issue a *nunc pro tunc* order to fix this clerical error in the judgment. Matters that may be raised and resolved by *nunc pro tunc* proceedings should not

be considered by way of writ of habeas corpus. *See Ex parte Ybarra*, 149 S.W.3d 147, 148 (Tex. Crim. App. 2004); *Ex parte Pena*, 71 S.W.3d 336, 336-37 (Tex. Crim. App. 2002). As such, applicant's claim relating to the error in the judgment is not cognizable and should be denied. This error should be properly corrected by way of a *nunc pro tunc* order.

Trial Counsel-Conflict of Interest

In ground two, applicant contends that was denied his right to counsel by the Court's appointment of Paul Johnson. Specifically, applicant alleges that Johnson had a conflict of interest because of his relationship with Judge Birmingham and because he previously served as a special prosecutor. *See Writ Application at 3.*

Ineffective assistance of counsel may result when an attorney labors under a conflict of interest. *Strickland v. Washington*, 466 U.S. 668, 692 (1984); *Monreal v. State*, 947 S.W.2d 559, 564 (Tex. Crim. App. 1997). To prove ineffective assistance of counsel based on a conflict of interest, the defendant must show (1) counsel was burdened by an actual conflict of interest; and (2) the conflict had an adverse effect on specific instances of counsel's performance. *Cuyler v. Sullivan*, 446 U.S. 335, 348-50 (1980); *Monreal*, 947 S.W.2d at 564). An actual conflict of

Cause No. F-1612037-J

THE STATE OF TEXAS

vs

Babak Taherzadeh

§
§
§

IN THE Criminal
DISTRICT COURT #3
DALLAS COUNTY, TEXAS

ORDER FOR EXAMINATION
REGARDING COMPETENCY/MENTAL ILLNESS

On this day the Court considered the issue of the competency of the Defendant to stand trial in this cause; and the Court being of the opinion that the Defendant should be examined as provided in Chapter 46B of the Code of Criminal Procedure;

IT IS THEREFORE ORDERED that Dr. Kristi Compton shall examine the Defendant, Babak Taherzadeh, to determine if the Defendant ~~is competent to stand trial and/or~~ ^{DAB} if the Defendant is a person with mental illness in accordance with Chapter 46B of the Code of Criminal Procedure.

IT IS FURTHER ORDERED that said doctor shall have access to, and copies of, any and all psychiatric and medical records in possession of the jail or Parkland Health and Hospital System/Dallas County Jail Health with respect to this defendant, including any records of this defendant related to any other book-in number, cause number, or offense, or any records maintained under the above-listed name or any alias names of this defendant. Copies of records may be provided in electronic form.

SIGNED this 18th day of January, 20 18.

Richard A. Beason
JUDGE PRESIDING

Book-in #: 3040

Location: _____

CAUSE NO.: F1612037J

CDC #3

THE STATE OF TEXAS

DALLAS COUNTY, TEXAS

VS.
BABAK TAHERZADEH

July TERM, 2018

MOTION TO REVOKE PROBATION OR PROCEED WITH AN ADJUDICATION OF GUILT

COMES NOW the State of Texas by and through her Criminal District Attorney and would show the Court the following:

That BABAK TAHERZADEH, Defendant, was duly and legally placed on probation for a period of 4 years in the above entitled and numbered cause in CDC #3 of Dallas County, Texas, on the 9th day of February, A.D., 2017 for the offense of:

STALKING

That the Defendant has violated the following conditions J, L, X of said supervision in that;

SEE ATTACHED PAGE(S)

This violation-offense occurred after 02/09/2017 and during the term of Supervision.

WHEREFORE, the State prays that said Defendant be cited to appear before this Honorable Court and show cause why the Court should not revoke probation or proceed with an adjudication of guilt on the original charge.

This the 6th day of February, A.D., 2018

* FILED *
* 02/08/2018 *
* Felicia Pitre *
* DISTRICT CLERK *
* DALLAS CO., TEXAS *
* DEPUTY *

Faith Johnson
District Attorney
Dallas County, Texas
BY: [Signature]
Assistant District Attorney

A copy of this motion was delivered to the Defendant on the _____ day of _____ A.D., 20____.

CSO

I received a copy of this motion on the _____ day of _____ A.D., 20____.

ML#: C-575482

Defendant

CAUSE NO.: F1612037J

CDC #3

THE STATE OF TEXAS

DALLAS COUNTY, TEXAS

VS.

BABAK TAHERZADEH

July

TERM, 2018

MOTION TO REVOKE PROBATION OR PROCEED WITH AN ADJUDICATION OF GUILT

(j) BABAK TAHERZADEH did violate condition (j) in that s(he) did not pay community supervision fees as directed and is currently delinquent.

(l) BABAK TAHERZADEH did violate condition (l) in that s(he) did not complete Community Service hours as directed.

(x) BABAK TAHERZADEH did violate condition (x) in that s(he) failed to participate in a psychological/psychiatric evaluation with Dr. Compton on February 2, 2018 as directed.

972-466-3333
466-3557

Carrollton Police Department
Item Submission Form

DATE PRINTED: 12/4/2017
TIME PRINTED: 07:44 AM CT

CAD #: 2016153774 Item ID: 87845-1	Category:: Electronics Description: WHITE AND SILVER IPHONE 6 FOUND IN VEHICLE ON SEAT Date Received: 06/21/2016 Location: Item currently 'Disposed Of'
CAD #: 2016153774 Item ID: 87845-2	Category:: Electronics Description: BLACK SAMSUNG GALAXY NOTE 3 WITH A BLACK LEATHER BACK Date Received: 06/21/2016 Location: Item currently 'Disposed Of'
CAD #: 2016153774 Item ID: 87845-3	Category:: Electronics Description: BLACK SEAGATE EXTERNAL HARD DRIVE 1.5 TB FOUND IN HOTEL Date Received: 06/21/2016 Location: IN: Carrollton Police Department => RTO MEDENV - LETTERS => OCT
CAD #: 2016153774 Item ID: 87845-4	Category:: Electronics Description: BLACK SEAGATE EXTERNAL HARD DRIVE 1.5 TB FOUND IN HOTEL Date Received: 06/21/2016 Location: IN: Carrollton Police Department => RTO MEDENV - LETTERS => OCT
CAD #: 2016153774 Item ID: 87845-5	Category:: Electronics Description: BLACK SEAGATE EXTERNAL HARD DRIVE 1.5 TB FOUND IN HOTEL Date Received: 06/21/2016 Location: IN: Carrollton Police Department => RTO MEDENV - LETTERS => OCT
CAD #: 2016153774 Item ID: 87845-6	Category:: Identification Description: INDIANA 7210-12-0264 DARNELL MONTEZ TINGLE Date Received: 06/21/2016 Location: Item currently 'Disposed Of'
CAD #: 2016153774 Item ID: 87845-7	Category:: Electronics Description: SILVER-MACBOOK LAPTOP COMPUTER FOUND IN HOTEL Date Received: 06/21/2016 Location: IN: Carrollton Police Department => RTO MEDBAG
CAD #: 2016153774 Item ID: 87845-8	Category:: Electronics Description: Miscellaneous computer and phone cables FOUND IN HOTEL Date Received: 06/21/2016 Location: Item currently 'Disposed Of'
CAD #: 2016153774 Item ID: 87845-9	Category:: Electronics Description: CD STORAGE CAROUSEL CONTAINING NUMEROUS CD/R Date Received: 06/21/2016 Location: Item currently 'Disposed Of'
CAD #: 2016153774 Item ID: 87845-10	Category:: Electronics Description: OLYMPUS DIGITAL VOICE RECORDER WITH CORDS IN A BLACK BOLLE SUNGLASS CASE Date Received: 06/21/2016 Location: IN: Carrollton Police Department => RTO MEDENV - LETTERS => OCT

CAD #: 2016153774 Item ID: 87845-11	Category: Electronics Description: 5 THUMB DRIVES, 4 PNY SD CARDS, 2 KINGSTON MICRO ADAPTORS, JOSHIDA HC MEMORY CARD, CANON MEMORY CARD, 1 ATYIA MICRO ADAPTOR, 1 NIKON COMPACT FLASH CARD, 1 HITACHI HARD DRIVE, 1 SQUARE CARD READER Date Received: 06/21/2016 Location: IN: Carrollton Police Department => RTO LGBNV - LETTERS => OCT
CAD #: 2016153774 Item ID: 87845-12	Category: Other Description: MISCELLANEOUS PAPERWORK Date Received: 06/21/2016 Location: IN: Carrollton Police Department => RTO MEDRAG - LETTERS => OCT
CAD #: 2016153774 Item ID: 87845-13	Category: Digital Evidence Description: VERSATIM DVD-INTERVIEW WITH BABAK TAHERZADEH Date Received: 06/21/2016 Location: IN: Police Department => CD
CAD #: 2016153774 Item ID: 87845-14	Category: Digital Evidence Description: INTERVIEW WITH BABAK TAHERZADEH Date Received: 06/21/2016 Location: IN: Carrollton Police Department => FORAY
CAD #: 2016153774 Item ID: 87845-15	Category: Digital Evidence Description: TWITTER ACCOUNT INFORMATION Date Received: 06/21/2016 Location: IN: Carrollton Police Department => FORAY
CAD #: 2016153774 Item ID: 87845-16	Category: Digital Evidence Description: TAHERZADA SAMSUNG PHONE EXTRACTION Date Received: 06/27/2016 Location: IN: Carrollton Police Department => FORAY
CAD #: 2016153774 Item ID: 87845-17	Category: Digital Evidence Description: STAPLES DVD - TAHERZADA SAMSUNG PHONE EXTRACTION Date Received: 06/27/2016 Location: IN: Police Department => CD
CAD #: 2016153774 Item ID: 87845-18	Category: Digital Evidence Description: SCREEN SHOTS OF TAHERZADEH SAMSUNG TWITTER ACTIVITY Date Received: 06/27/2016 Location: IN: Carrollton Police Department => FORAY
CAD #: 2016153774 Item ID: 87845-19	Category: Digital Evidence Description: Gmail account information Date Received: 08/11/2016 Location: IN: Carrollton Police Department => FORAY
CAD #: 2016153774 Item ID: 87845-20	Category: Digital Evidence Description: DVD LABELED SEARCH WARRANT INTERNAL REFERENCE : 738889 GMAIL INFO Date Received: 12/08/2016 Location: IN: Police Department => CD
CAD #: 2016153774 Item ID: 87845-21	Category: Digital Evidence Description: DVD LABELED MBOX PRODUCED BY K. PACE Date Received: 12/21/2016 Location: IN: Police Department => CD

CAD #: 2016133774

Item ID: 87845-22

Category: Digital Evidence

Description: MBOX EXTRACTION

Date Received: 01/18/2017

Location: IN: Carrollton Police Department => FORAY

Submitted By: _____ DATE: _____

Received By: _____ DATE: _____

CCA # 05-19-00739-CV
THE STATE OF TEXAS

W16-12037(a)

TC # F1612037
IN THE COURT

v.
BABAK TAHERZADEH

δ
δ
δ

OF
PROPER JURISDICTION

PETITIONERS MOTION TO STRIKE STATE’S PROVISIONAL ANSWER

TO THE HONORABLE JUSTICES OF THE COURT:

I, Babak Taherzadeh, the Petitioner in the case above respectfully
MOTION Court TO STRIKE from the record the STATE’S PROVISIONAL
ANSWER TO APPLICATION FOR WRIT OF HABEAS CORPUS on grounds the
State has 15 days to answer.

TIME

A petition was submitted August 14, 2019 at 10:56 pm and was
accepted August 15, 2019 at 2:55 pm but appeared different than my
original filing including a comment that got my attention. I corrected the
alterations and less than 2 hours after the suspicious document was
accepted I submitted a Amended Filing on August 15, 2019 at 4:10 pm.
The State was served instantly with the Amended Petition August 15,
2019. September 3, 2019, around 19 days later, at 4:41 pm I was served
with a document titled STATE’S PROVISIONAL RESPONSE TO APPLICATION
FOR WRIT OF HABEAS CORPUS at 4:41 pm that lacks a file stamp, does
not appear in the case documents online and answers the superseded
petition instead of the Amended petition which fundamentally are the
same except missing number number “2” and the document was
purposely inflicted with “11.07 writ” label

UNTIMELY

The State labeled and asserts the petition filed August 14,2019 is under
11.07 however exceeded the 15 days it has to answer with a questionable
and yet to be filed September 3, 2019 PROVISIONAL RESPONSE. The state
needs to decide which it is . Is it 11.07 or 11.07?

UNBECOMING

The State has lied to the court repeatedly. And a Asst. D.A. Jessie Allens debut
to this case indicates, with her lack of candor and vague references, a
continuation of misconduct and targeted, punitive, prosecutorial misconduct.

JURISDICTION

The State contention that the CCA lacks jurisdiction when Petition appears labeled under ART. 11.07. I disagree. Court of Criminal Appeals has jurisdiction and the duty under ART 11.05 to issue Writ

Art. 11.05. BY WHOM WRIT MAY BE GRANTED. The Court of Criminal Appeals, the District Courts, the County Courts, or any Judge of said Courts, have power to issue the writ of habeas corpus; and it is their duty, upon proper motion, to grant the writ under the rules prescribed by law.

Article 11.72 requires community supervision case to be filed in the trial court. My petition satisfied that requirement.

Art. 11.072. PROCEDURE IN COMMUNITY SUPERVISION CASE.

Sec. 1. This article establishes the procedures for an application for a writ of habeas corpus in a felony or misdemeanor case in which the applicant seeks relief from an order or a judgment of conviction ordering community supervision.

Sec. 2. (a) An application for a writ of habeas corpus under this article must be filed with the clerk of the court in which community supervision was imposed.

Nothing Prohibits the CCA from issuing writ in community supervision cases. The Trial however is prohibited after 180 day and its orders judgement are void .

SELECTIVE

The State wants to enforce the letter of the law when arguing the difference between 11.07 and 11.072 of the TCCP but arbitrarily enforces 42.07 or 42.072 of the Penal Code.

PRAYER

Petitioner prays that the laws, rules and codes of Texas are obeyed and the STATE'S PROVISIONAL RESPONSE is removed from the record and a court of proper jurisdiction issues Writ for Habeas Corpus and upon determination that a restraint is based on a order that was issue by a court without jurisdiction is granted liberty as relief

OATH

I swear under penalty of felony the 653 words of this brief are true .

Respectfully Submitted,

/s/ Babak Taherzadeh

Babak Taherzadeh

Filed Pro Se

babaktaherzadeh@gmail.com

214-676-3833

Babak Taherzadeh

8150 N. Stemmon Frwy. E1057

Dallas, Texas 75247 Il.

From: b ta babaktaherzadeh@gmail.com
Subject: Provisional response ?
Date: Sep 4, 2019 at 7:29:57 AM
To: jessie.allen@dallascounty.org

Jesse,

I have a few questions. Remember, I'm an unrepresented party so be kind and professional. .

When did I plea ?

What did I plea to ?

When was I placed on Community Supervision ?

Was the submission of original envelope altered in any way?

Do you believe that an order or judgement by a court without jurisdiction is void ? Null?

When does CCA have original jurisdiction in habeas ?

Has 'lil. Gary McDonald been disbarred yet?

I look forward to your responses . I'd like to file something right away. Take care.

Mitigate,

Babak Taherzadeh

From: Marisela Escamilla Marisela.Escamilla@dallascounty.org
Subject: RE: EFiling into case w1612027(j)a
Date: Sep 3, 2019 at 4:28:13 PM
To: thunderFence t thunderfence@gmail.com
Cc: Tanya Varnado Tanya.Varnado@dallascounty.org, Regina Taylor
Regina.Taylor@dallascounty.org

Mr. Taherzadeh,

To answer your questions:

1. Who determines under which case number filings appear? Because I am not permitted to inspect all case documents because I am prohibited from the courts building

Generally, the filer determines under which case number the filings appear. The Online Records Portal will allow you to inspect all case documents without having to visit the courts building.

2. How accurate and complete is the counties Online Records Portal and how is it different from the actual court record of the case ?

The online records portal is a direct reflection of the court record of the case. The only documents that may not be visible are documents that have been ordered sealed by a Judge or documents that are deemed confidential because of the nature of their content.

3. May I testify based on info or knowledge attained from the Online Records Portal ?

Where are not at liberty to tell someone what they can testify to based on info or knowledge.

4. Who determines what information and filing are on the Online Records Portal ?

The online portal includes any documents filed into the case with the exception of the documents mentioned above in the answer to number 2.

5. Who can move, removed, delay or prevent filings and documents on the Online Records Portal ?

The online portal is managed by the District Clerk's office. Only documents that can be delayed or filings prevented are ones where they are not filed correctly via e-file.

6. How would a court request the complete record of all fillings and records stemming from an original case number to be transmitted ?

In the case of a writ being filed, the writ references the criminal case number in which the clerk is to prepare the clerk's records from.

7. Can I get an accurate "transmission" of all the document stemming from this

prosecution .

I am uncertain as to what you mean by accurate transmission.

8, Who determines whether communications with the court are filed into the case?

No one determines whether communications are filed with the court because, all documents filed into the case are added to the court record.

9. Can all the filings be consolidated under the original case number f1612037?

Documents should be filed into the specific case types. If you would like to file documents directly into the felony case, you can do so however, this can cause confusion and delay of court actions if they are to be filed into the on-going writ case instead of the criminal case.

10. How should I ask the question “What address did you send that to?” To get the address that it was addressed to?

The address you provided on the application is the address we use for all mail correspondence. If you move or change addresses a document will need to be filed into the case notifying us of a change of address.

Thank you,

Marisela Escamilla

Criminal Support Supervisor

Dallas County District Clerk's Office

133 N. Riverfront Blvd., LB #12

Dallas, Texas 75207-4300

(214) 653-5959

marisela.escamilla@dallascounty.org

From: thunderFence t <thunderfence@gmail.com>

Sent: Tuesday, September 3, 2019 5:27 AM

To: Marisela Escamilla <Marisela.Escamilla@dallascounty.org>

Subject: Re: EFiling into case w1612027(j)a

Thank you for replying on Friday but I wish I would have received a response before the end of the day going into a long holiday weekend . I tried to call but the office but it was closed by the time you responded Perhaps speaking with you or answers you could provide

could reassure me because I don't know if it is regular for documents efiled into a case number to appear, disappear, be altered, be moved. I have plenty of proof and examples. This is not the first time I've expressed this concern to your office. Even family members have noticed this phenomenon. This is an issue for many reasons and I am concerned that no one is interested enough to look in to such allegations and when your response begins with

"You are correct, when efilng you will need to efile into case W1612037A". when documents filed and efiled under case f1612037 have appeared, disappeared, been altered, moved to sometimes re-emerge under a myriad of different case numbers and variations including:

Wx1790064

Wx1790074

Cv1600527

F1600527

F1612037(j)

W1612037(j)

W1612037A

W1612037(j)a

It makes me wonder :

1. Who determines under which case number filings appear?

Because I am not permitted to inspect all case documents because I am prohibited from the courts building

2. How accurate and complete is the counties Online Records Portal and how is it different from the actual court record of the case ?

3. May I testify based on info or knowledge attained from the Online Records Portal ?

4. Who determines what information and filing are on the Online Records Portal ?

5. Who can move, removed, delay or prevent filings and documents on the Online Records Portal ?

6. How would a court request the complete record of all filings and records stemming from an original case number to be transmitted ?

7. Can I get an accurate “transmission” of all the document stemming from this prosecution .

8, Who determines whether communications with the court are filed into the case?

9. Can all the filings be consolidated under the original case number f1612037?

10. How should I ask the question “What address did you send that to?” To get the address that it was addressed to?

I’m sure I’ll have more questions. Perhaps you could answer these and we can see what happens .

Thanks

Babak Taherzadeh

“address listed on the application(petition)”

On Aug 30, 2019, at 5:46 PM, Marisela Escamilla <Marisela.Escamilla@dallascounty.org> wrote:

Mr. Taherzadeh,

You are correct, when efilng you will need to efile into case W1612037A. Unfortunately, since we do not have a case management system, if you are the first person filing into the case then you would need to enter the case information into the case in the efile

system as we currently do not have a case management system. As an alternative, you can mail your documents to our office at our address listed below. Please be sure to reference the writ number so that we can ensure any documents filed are filed into the correct case.

In response to your question, the waiver of service is our record showing that the state was served a copy of the application.

In response to your second email, the writ letter would have been mailed to you at the address listed on the application. The documents in the portal online are documents from your c

If you have additional questions, feel free to reach out to me at 214-653-5959 or the specialist for that section at 214-712-5013 and we would be happy to assist you.

Thank you,

Marisela Escamilla

Criminal Support Supervisor
Dallas County District Clerk's Office
133 N. Riverfront Blvd., LB #12
Dallas, Texas 75207-4300
(214) 653-5959
marisela.escamilla@dallascounty.org

From: Felicia Pitre <FELICIA.PITRE@dallascounty.org>

Sent: Friday, August 30, 2019 10:58 AM

To: Marisela Escamilla <Marisela.Escamilla@dallascounty.org>; Tanya Varnado <Tanya.Varnado@dallascounty.org>

Subject: Fwd: EFiling into case w1612027(j)a

Sent from my iPhone

Begin forwarded message:

From: b ta <babaktaherzadeh@gmail.com>
Date: August 30, 2019 at 9:11:11 AM CDT
To: Felicia Pitre <FELICIA.PITRE@dallascounty.org>
Cc: dcrecordscriminal <dcrecordscriminal@dallascounty.org>, <john.creuzot@dallascounty.org>
Subject: EFiling into case w1612027(j)a

Madame,

I efiled a petition for writ into case f1613037. It was accepted and assigned case number w1612037(j)a. I then efiled an Amended Petition and again filed it into case f1612037. I then found a notification from you in the case w1612037a documents available online informing me that I needed to file any future documents into case W1612037(j)a. Not only can I not find any record of a case with that number and letter combination but efile will not allow me to efile into a case with number w1612037 (j)a or just a or w1612037 . Efile can not find such a case number .

I have tried to search by name and party all with no luck

I am not permitted to come to the court so I can file that way and now I can not file using efile either ? Why am I being denied due process?

I also noticed a waiver of service in the case documents that I have never received in any for and is not file stamped or describe or identify the authority . I will include a copy of that document and perhaps you can get back with me today before the long weekend with some answer to my question and how to proceed .

The waiver assured any response from the state to my petition within 15 days and that is tomorrow .

Thank you very much

Babak Taherzadeh
8150 N Stemmons #E1057
Dallas, TX 75247
214-676-3833

Case No. W16-12037-J(A)

Ex parte	§	In the Criminal District
	§	
	§	Court No. 3 of
	§	
Babak Taherzadeh	§	Dallas County, Texas

State's Response to Application for a Writ of Habeas Corpus

To the Honorable Court:

I. Procedural History

A grand jury indicted Applicant for the offense of stalking in case number F16-12037 (State's Ex. 1). *See* Tex. Penal Code Ann. § 42.072. The targets of Applicant's conduct were the Honorable Brandon Birmingham, presiding judge of the 292nd Judicial District Court, and his family (State's Ex. 1). When the case was assigned to the 292nd Judicial District Court, Judge Birmingham recused himself from the case (State's Ex. 2). Thereafter, the presiding judge of the First Administrative Judicial District transferred the case to the Criminal District Court No. 3 of Dallas County, Texas and assigned the Honorable Kerry Fitzgerald to preside (State's Ex. 3).

Applicant pleaded guilty, and, in accordance with the terms of a plea bargain agreement, the trial court deferred an adjudication of guilt and placed Applicant on deferred adjudication community supervision for four years (State's Ex. 4–5). Applicant did not appeal. Although Judge Fitzgerald presided over Appellant's plea,

Judge Gracie Lewis, the elected judge of Criminal District Court No. 3 of Dallas County, signed the order placing Applicant on deferred adjudication community supervision (State's Ex. 5). Approximately nine months later, Judge Fitzgerald signed a copy of the original judgment to correct that error (State's Ex. 6–7).

At the present time, Applicant remains on deferred adjudication community supervision with no pending motions to adjudicate.

II. Applicant's Claims & State's Response

Applicant originally filed an application that sought relief under Article 11.07, Code of Criminal Procedure, but he subsequently amended the application to seek relief under Article 11.072. Because Applicant's charge has not resulted in a final felony conviction, the State filed a provisional response addressing the application as one under Article 11.07. In that response, the State suggested that if the application was forwarded to the Court of Criminal Appeals, the application should be dismissed for lack of jurisdiction or remanded for consideration under Article 11.072.

The State now makes this response to Applicant's amended application under Article 11.072. Applicant makes a number of claims that sometimes repeat, overlap, or are not entirely clear. To the extent that the State has been able to identify the claims in the Application, the State makes the following response:

Withdrawal of Plea of Guilty

Applicant claims he withdrew his plea on December 6, 2017 (Application 1). In support of this allegation, he cites to a document entitled “Motion for Appointment of Counsel” (Application—Exhibit B). Applicant’s claim is not cognizable in a post-conviction proceeding seeking habeas relief because such proceedings are available only for jurisdictional defects and violations of certain fundamental or constitutional rights. *See Ex parte McCain*, 67 S.W.3d 204, 206 (Tex. Crim. App. 2002). A claim that a defendant withdrew his plea is not cognizable because it does not fall within any of these categories.

Actual Innocence

Applicant alleges that he “never stalked Judge Birmingham” (Application 2) and, “actual innocence”. (Application 13).

There are two types of actual innocence claims. *See Ex parte Franklin*, 72 S.W.3d 671, 675 (Tex. Crim. App. 2002). These two types are the *Herrera*-type, where the application argues that some newly discovered evidence proves his innocence, and the *Schlup*-type, where the applicant argues constitutional error at the trial level. *Id.* (citing *Herrera v. Collins*, 506 U.S. 390 (1993) and *Schlup v. Delo*, 513 U.S. 298 (1995)).

The test for a *Herrera*-type actual innocence claim is whether applicant has shown by “clear and convincing evidence that no reasonable juror would have

convicted him in light of the new evidence.” *See Ex parte Elizondo*, 947 S.W.2d 202, 209 (Tex. Crim. App. 1996). The new evidence presented must constitute affirmative evidence of the applicant’s innocence.” *See Ex parte Franklin*, 72 S.W.3d 671, 678 (Tex. Crim. App. 2002).

An applicant raises a *Schlup*-type claim when the applicant argues a barred constitutional claim. *Id.* at 675.

Because Applicant is not barred from raising constitutional claims in the current application, *Schlup* does not apply. Moreover, Applicant does not point to any newly discovered evidence that affirmatively shows that he did not commit the offense he confessed to committing when he pleaded guilty to the offense of stalking. Any claim under *Herrera*, therefore, is without merit.

Unconstitutionality of the Stalking Statute

Applicant alleges that the stalking statute is unconstitutional (Application 2, 11, 13). Applicant does not reasonably explain why the statute is unconstitutional, but even if he did, his claim cannot be raised for the first time in a post-conviction habeas proceeding. The failure to raise this claim in the trial court waives the challenge. *See Ex parte Beck*, 541 S.W.3d 846, 852 (Tex. Crim. App. 2017); *Karenev v. State*, 281 S.W.3d 428 (Tex. Crim. App. 2009).

Trial Court Jurisdiction

Applicant first attacks the trial court's jurisdiction by complaining of the December 1, 2017 order of deferred adjudication and cites to Article 42A.202(a)–(b) and Article 42.203(b), Code of Criminal Procedure (Application 2). The provisions cited by Applicant relate to defendants sentenced to confinement in the penitentiary and whose sentence is subsequently suspended. Because Applicant was never sentenced to a period of confinement in the penitentiary, these provisions do not apply to him.

Applicant next alleges that the trial court lacks jurisdiction when no probation violation occurred (Application 2, 13). To the extent that Applicant is complaining that Judge Gracie Lewis signed the original order of deferred adjudication, Applicant's claim is without merit. When errors such as these occur, the remedy is to correct the judgment by having the appropriate judge sign the order. *See Sparkman v. State*, 997 S.W.2d 660, 664 (Tex. App.—Texarkana 1999, no pet.). Such corrective action renders complaints of these kind moot. *See Fichtner v. State*, No. 05-99-01053-CR, 2001 WL 328178 (Tex. App.—Dallas Apr. 5, 2001, pet. ref'd) (not designated for publication). In this case, the appointed replacement judge, who presided over Applicant's plea, signed the corrected judgment on December 1, 2017 (State's Ex. 6–7).

Applicant also argues that the original trial court and all the trial courts of the First Administrative District lack authority over this case since the presiding judge

of the criminal district courts is the alleged victim in these proceedings (Application 2–3, 13). Applicant cites no authority for this proposition. Judge Birmingham recused himself from the case after the grand jury returned an indictment, the case was subsequently transferred to Criminal District Court No. 3, and Judge Kerry Fitzgerald was assigned to preside over Applicant’s criminal case (State’s Ex. 2–3).

Due Process

Applicant alleges that his due process rights were violated because the December 1, 2017 order of deferred adjudication community supervision failed to satisfy Article 42A.101(b) (Application 2). Specifically, Applicant argues that the trial court did not inform him of the possible consequences of violating his deferred adjudication community supervision under Articles 42A.108 and 42A.110, Code of Criminal Procedure (Application 2).

Applicant does not cite any authority for the proposition that he has a due process right to be admonished as set out in Articles 42A.108 and 42A.110. But even if due process requires those admonishments, Applicant received substantially the same warnings in the paperwork he signed before entering his plea of guilty (State’s Ex. 4). Under the section heading “COURT’S ADMONITIONS TO DEFENDANT,” Applicant was advised of the following information:

If you receive unadjudicated community supervision and violate its conditions, you may be arrested and subjected to a hearing limited to determining whether or not guilt should be adjudicated. If guilt is adjudicated the full range

of punishment is open to the Court. All proceedings, including assessment of punishment, pronouncement of sentence, granting of community supervision, and an appeal, then continue as if the adjudication of guilt had not been deferred.

(State's Ex. 4). Moreover, Article 42A.101(b) specifically provides that "the failure of a judge to inform a defendant of possible consequences under Articles 42A.108 and 42A.110 is not a ground for reversal unless the defendant shows that the defendant was harmed by the failure of the judge to provide the information." *See* Tex. Code Crim. Proc. Ann. art. 42A.101(b). Because Applicant signed the papers acknowledging that he read and understood the admonitions of the court, he cannot now reasonably complain that he was harmed by any failure to comply with Article 42A.101(b).

Defective Court Documents

Applicant alleges that the conditions of his community supervision and other documents are "fabricated, altered, or falsified and constitutionally prohibited (Application 6). In a post-conviction habeas proceeding, it is the Applicant's burden to plead and prove facts that would entitle him to relief. Applicant provides no proof that the trial court's documents are fabricated, false, or otherwise constitutionally prohibited.

Double Jeopardy

Applicant appears to allege that his double jeopardy rights were violated (Application 6–7). Applicant fails to show any such violation. Applicant was prosecuted in the underlying criminal case for the offense of stalking, alleged to have occurred between September 30, 2015 and June 22, 2016 (State’s Ex. 1). The conduct in the underlying case was directed toward Brandon Birmingham and members of Brandon Birmingham’s family (State’s Ex. 1). Applicant’s vague references to contempt of court in an unrelated proceeding and other confinements are insufficient to show a violation of his double jeopardy rights.

Ineffective Assistance of Counsel

Applicant next alleges that his attorney rendered ineffective assistance of counsel. Applicant argues that his attorney failed to “challenge a single issue, file a single motion to preserve rights of accused, peruse one piece of evidence or show concern when clearly the order was void” (Application 10, 14). But applicant fails to allege what issues his attorney should have challenged, what motions he should have filed, or what additional evidence he should have reviewed.

Regarding a review of evidence, the record shows that Applicant signed an acknowledgement of discovery rights and stated that his “attorney has explained to me that he/she has reviewed all available discovery items provided to him/her on before today’s date” (State’s Ex. 8). Applicant further acknowledged that his “attorney has explained to me, and/or I have reviewed (except as provided by law)

the above referenced items” (State’s Ex. 8). The “referenced items” are the list of items made available to Applicant’s trial counsel by the State pursuant to Article 39.14, Code of Criminal Procedure (State’s Ex. 8).

Applicant also alleges that Judge Gracie Lewis and “the 292nd” deprived him of his right to representation by legal counsel (Application 13). But applicant does not explain his allegations further. Applicant, however, was represented by legal counsel when he entered his plea in this case (State’s Ex. 4–6).

Venue

Applicant makes a vague reference to venue without any further argument or support in his application. Venue is not the type of fundamental defect that is cognizable in a habeas proceeding. *See Dishman v. State*, No. 03-14-00114-CR, 2014 WL 4414824, at *2 (Tex. App.—Austin Aug. 27, 2014, no pet.) (mem. op.) (not designated for publication).

Jury Demand

Applicant makes a reference to a “jury demand” without any further argument or support in his application. While the right to a trial by jury in criminal cases is a constitutional right, Applicant waived that right when he entered a plea of guilty (State’s Ex. 4). Furthermore, even if there were revocation proceedings pending against Applicant, there is no right to a jury trial in those proceedings. For these reasons, any claim related to Applicant’s right to a jury trial is without merit.

Fourth and Eighth Amendment Claims

Applicant alleges that Judge Jennifer Bennett violated his Fourth Amendment and Eighth Amendment rights. Applicant does not state what function Bennett served in the criminal proceedings. There is no indication, however, that either of these claims were raised with the trial court prior to the entry of Applicant's plea. For this reason, Applicant is barred from raising them in a habeas proceeding. *See Ex parte Crispen*, 777 S.W.2d 103, 105 (Tex. Crim. App. 1989).

Prosecutor Standing under Chapter 7A, Code of Criminal Procedure

Applicant alleges that prosecuting attorneys lacked standing to file suit against him under Chapter 7A, Code of Criminal Procedure. Applicant's prosecution for stalking is separate from any proceeding under Chapter 7A, and, therefore, is not a ground for invalidating the order of deferred adjudication in case number F16-12037-J.

Conduct of Prosecuting Attorneys

Applicant alleges that the prosecuting assistant district attorney used the stalking statute and "federal tools and assets" to violate his constitutional rights (Application 14). He further alleges that the assistant district attorney violated his fourteenth amendment rights and his equal protection rights (Application 14). He finally alleges that the Dallas County District Attorney's Office deprived him of due process of law (Application 14).

Applicant does not specify the manner of these violations or provide any proof that would substantiate these claims. For these reasons, Applicant has failed to carry his burden to plead and prove facts that would entitle him to relief.

False Testimony

Applicant alleges that the “false testimony and [unlawful] surveillance” of Carrollton Police Detective Chevalier violated unspecified constitutional provisions (Application 14–15). Applicant does not specify what testimony was offered at his plea proceeding that he contends was false or what constitutional provisions he claims were violated. For these reasons, Applicant has failed to carry his burden to plead and prove facts that would entitle him to relief.

Examining Trial

Applicant alleges a failure of the record to “indicate the Examining Trial” (Application 15). Whatever Applicant’s complaint may be, the right to an examining trial is terminated by the return of an indictment. Moreover, the failure to grant an examining trial prior to the return of the indictment does not affect the validity of the indictment. *See McCullough v. State*, 461 S.W.2d 404, 405 (Tex. Crim. App. 1970).

III. Prayer

The State respectfully prays that the court enter a written order denying the application as frivolous, or, alternatively, enter appropriate findings of fact and conclusions of law denying relief.

Respectfully submitted,

John Creuzot
Criminal District Attorney
Dallas County, Texas

/s/ Jessie R. Allen

Jessie R. Allen
Assistant District Attorney
State Bar No. 24040412
133 N. Riverfront Blvd., LB-19
Dallas, Texas 75207
214-653-3600
214-653-3643 *fax*
jessie.allen@dallascounty.org

Certificate of Service

I certify that a copy of this document is being electronically served on Babak Taherzadeh (babaktaherzadeh@gmail.com), Applicant, by transmitting it to the efile.txcourts.gov electronic filing service provider on September 16, 2019.

/s/ Jessie R. Allen

Jessie R. Allen
Assistant District Attorney

State's Ex. 1
Indictment



The State of Texas vs. BABAK A TAHERZADEH
DOB: 9/16/1970 Sex: Male Race: White

CDC3

SID No. TX04500806
AIS No. <#CID#>

GJ Witness: j. chevalier # 0709 no subs must appear

C	Offense	LD	Statute	Agency	TRN	TRS	NCIC Code
1	- STALKING	F3	PC 42.072(b)	TX0570400	925850529 8	A001	13160014

INDICTMENT NO.: F1612037

IN THE NAME AND BY THE AUTHORITY OF THE STATE OF TEXAS:

The Grand Jury of Dallas County, State of Texas, duly organized at the JULY Term, A.D., 2016 of the 363rd Judicial District Court for said County, upon its oath do present in and to said Court at said term,

That **BABAK A TAHERZADEH**, hereinafter called Defendant, **on or about and between the 30th day of September, 2015 and the 22nd day of June, 2016** in the County of Dallas, State of Texas, did pursuant to the same scheme and course of conduct, then and there engage in conduct directed specifically toward B. BIRMINGHAM, hereinafter known as complainant, that the defendant knew or reasonably should have known said complainant would regard as threatening bodily injury or death of the complainant, and by knowingly engaging in conduct that constituted an offense under Section 42.07 of the Texas Penal Code, namely SAID DEFENDANT POSTED THREATS DIRECTED TOWARDS COMPLAINANT AND AGAINST COMPLAINANT'S LIFE ON SOCIAL MEDIA, and the defendant's said conduct would cause a reasonable person to, and did cause COMPLAINANT, to BE PLACED IN FEAR OF BODILY INJURY OR DEATH,

Count I, Paragraph 2

And it is further presented in and to said Court, that Babak A Taherzadeh, hereinafter called defendant, on or about and between the dates of 30th day of September, 2015, and the 22nd day of June, 2016, in the County of Dallas, State of Texas, did, pursuant to the same scheme and course of conduct, then and there knowingly engage in conduct directed specifically toward B. BIRMINGHAM AND MEMBERS OF B. BIRMINGHAM'S FAMILY AND HOUSEHOLD, that the defendant knew or reasonably should have known said B. BIRMINGHAM would regard as threatening bodily injury or death of the B. BIRMINGHAM AND MEMBERS OF B. BIRMINGHAM'S FAMILY, and that constituted an offense under Section 42.07 of the Texas Penal Code, namely SAID DEFENDANT INITIATED ELECTRONIC COMMUNICATIONS THREATENING MEMBERS OF B. BIRMINGHAM'S FAMILY, AND SAID DEFENDANT DIRECTED THE CONTENTS OF SOCIAL MEDIA POSTS TOWARDS B. BIRMINGHAM AND MEMBERS OF B. BIRMINGHAM'S FAMILY, and the defendant's said conduct would cause a reasonable person to, and did cause Against the peace and dignity of the state

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CLERK OF DISTRICT COURT
DALLAS COUNTY, TEXAS

Foreman of the Grand Jury



B. BIRMINGHAM AND MEMBERS OF SAID B. BIRMINGHAM'S FAMILY AND HOUSEHOLD, to BE PLACED IN FEAR OF BODILY INJURY OR DEATH,

Count I, Paragraph 3

And it is further presented in and to said court, that BABAK A TAHERZADEH, hereinafter called Defendant, on or about and between the dates of 30th day of September, 2015, and the 22nd day of June, 2016, in the County of Dallas, State of Texas, did, pursuant to the same scheme and course of conduct, then and there engage in conduct directed specifically toward B. BIRMINGHAM, hereinafter known as complainant, by knowingly engaging in conduct that constituted an offense under Section 42.07 of the Texas Penal Code, namely BY REPEATEDLY INITIATING ELECTRONIC COMMUNICATIONS TARGETING SAID COMPLAINANT AND BY REPEATEDLY DIRECTING THE CONTENTS OF SOCIAL MEDIA POSTS TOWARDS COMPLAINANT IN A MANNER REASONABLY LIKELY TO HARASS, ANNOY, ALARM, ABUSE, TORMENT, EMBARRASS, AND OFFEND SAID COMPLAINANT AND BY INITIATING COMMUNICATIONS WITH COMPLAINANT DURING WHICH SAID DEFENDANT MADE COMMENTS, REQUESTS, SUGGESTIONS AND PROPOSALS THAT WERE OBSCENE, AND BY WISHING SAID COMPLAINANT'S DEATH, and the defendant's said conduct would cause a reasonable person to, and did cause COMPLAINANT, to FEEL HARASSED, ANNOYED, ALARMED, ABUSED, TORMENTED, EMBARRASSED AND OFFENDED,

Count I, Paragraph 4

And it is further presented in and to said Court, that BABAK A TAHERZADEH, hereinafter called Defendant , on or about and between SEPTEMBER 30, 2015 and JUNE 22, 2016, in the County of Dallas and State of Texas, did, pursuant to the same scheme and course of conduct, then and there knowingly engage in conduct directed specifically toward B. BIRMINGHAM, hereinafter known as complainant, that the defendant knew or reasonably should have known said complainant would regard as threatening bodily injury or death of the complainant, namely BY REPEATEDLY INITIATING ELECTRONIC COMMUNICATIONS TARGETING SAID COMPLAINANT AND BY REPEATEDLY DIRECTING THE CONTENTS OF SOCIAL MEDIA POSTS TOWARDS COMPLAINANT IN A MANNER REASONABLY LIKELY TO HARASS, ANNOY, ALARM, ABUSE, TORMENT, EMBARRASS, AND OFFEND SAID COMPLAINANT AND BY INITIATING COMMUNICATIONS WITH COMPLAINANT DURING WHICH SAID DEFENDANT MADE COMMENTS, REQUESTS, SUGGESTIONS AND PROPOSALS THAT WERE OBSCENE, AND BY WISHING SAID COMPLAINANT'S DEATH, and the defendant's said conduct would cause a reasonable person to, and did cause COMPLAINANT, to be placed in fear of bodily injury or death,

Count I, Paragraph 5

And it is further presented in and to said Court, that each of the foregoing acts was committed pursuant to the same scheme and course of conduct that was directed specifically at B. BIRMINGHAM AND MEMBERS OF B. BIRMINGHAM'S FAMILY AND HOUSEHOLD,

Against the peace and dignity of the State.

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CLERK
DISTRICT CLERK
DALLAS CO., TEXAS
DEPUTY

Man Spoon
Foreman of the Grand Jury



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TELLER
DISTRICT CLERK
DALLAS CO. TEXAS
DEPUTY

Against the peace and dignity of the State.

Marc Spaw
Foreman of the Grand Jury

State's Ex. 2
Order of Recusal

615/376

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DALLAS CO., TEXAS
DEPUTY~~

CAUSE NO. F16-12037-V

THE STATE OF TEXAS § IN THE 292nd JUDICIAL DISTRICT COURT
VS. § DISTRICT COURT
BABAK TAHERZADEH § DALLAS COUNTY, TEXAS

ORDER OF RECUSAL

The Court, on the Court's own motion, has determined that this matter should be considered by another district court judge and that recusal is appropriate in this case;

IT IS THEREFORE ORDERED that Brandon Birmingham, presiding judge of the 292nd Judicial District Court, does hereby voluntarily recuse himself from hearing any matter in this case and refers this cause to the Presiding Judge of the First Administrative Judicial Region for assignment.

INSTRUCTIONS TO THE CLERK OF THE COURT

The Clerk of the Court shall immediately transmit a copy of this Order to Judge Mary Murphy, Presiding Judge of the First Administrative Judicial Region, to the Defendant, and to counsel for the State.

SIGNED this 22 day of June, 2016.



JUDGE BRANDON BIRMINGHAM
292ND JUDICIAL DISTRICT COURT
DALLAS COUNTY, TEXAS

State's Ex. 3
Order of Transfer and Appointment

615/400

CAUSE NO. F16-12037-V

THE STATE OF TEXAS

V.

BABAK TAHERZADEH

§
§
§
§
§
§
§

IN THE DISTRICT COURT

292ND JUDICIAL DISTRICT

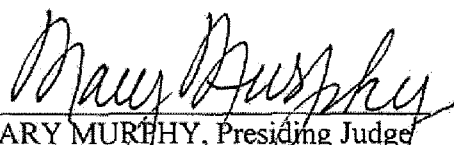
DALLAS COUNTY, TEXAS

ORDER TRANSFERRING

Based on a recusal, this case is transferred to the Criminal District Court No. 3 of Dallas County, Texas.

IT IS SO ORDERED.

Signed this 23 day of June, 2016.


MARY MURPHY, Presiding Judge
First Administrative Judicial Region

615/579

**THE STATE OF TEXAS
FIRST ADMINISTRATIVE JUDICIAL REGION
ORDER OF ASSIGNMENT BY THE PRESIDING JUDGE**

Pursuant to Section 74.056, Texas Government Code, I assign the:

Honorable Kerry FitzGerald

Senior Judge of The 5th District Court Of Appeals

to the

Criminal District Court # 3 of Dallas County, Texas

This assignment is for the cause(s) and style(s) as stated in the conditions of assignment from this date until plenary power has expired or the undersigned Presiding Judge has terminated this assignment in writing, whichever occurs first.

CONDITION(S) OF ASSIGNMENT

Cause No. F16-12037-V; The State of Texas v. Babak Taherzadeh

In addition, whenever the assigned Judge is present in the county of assignment for a hearing in the above cause(s), the Judge is also assigned and empowered to hear, at that time, any other matters presented for hearing.

It is ordered that the Clerk of the court to which this assignment is made, if it is reasonable and practicable and if time permits, give notice of this assignment to each attorney representing a party to a case that is to be heard in whole or in part by the assigned Judge.

SIGNED: June 23, 2016
Date
Mary Murphy
Mary Murphy, Presiding Judge
First Administrative Judicial Region of Texas

Assign# 26370

State's Ex. 4
Plea Agreement

THE STATE OF TEXAS

CAUSE NO. F 16 12077 -J

VS.

CRIMINAL DISTRICT COURT #3

Babak Taherzadeh

DALLAS COUNTY, TEXAS

PLEA AGREEMENT

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FELICIA PITRE
DISTRICT CLERK
DALLAS COUNTY, TEXAS
DEPUTY

State ID No:

Incident No / TRN:

Attorney for State: G. McDonald

Attorney for Defendant: P. Johnson

Offense: Stalking

Statute for Offense:

Charging Instrument: ☒ Indictment ☐ Information

Date of Offense: 9/30/15

Degree of Offense: 3d

Affirmative finding of deadly weapon: ☐ YES ☐ NO

Type of Weapon: _____

Affirmative finding of family violence: ☐ YES ☐ NO

Ignition Interlock required ☐ YES ☐ NO

Affirmative finding of bias or prejudice: ☐ YES ☐ NO

If yes, Group: _____

Sentence to run ☐ CONCURRENTLY ☐ CONSECUTIVELY

WITH _____

Time Credit: From _____ To _____

From _____ To _____

Sex Offender Registration ☐ DOES ☐ DOES NOT apply.

Age of victim at time of offense: _____

TO THE HONORABLE JUDGE OF SAID COURT:

The defendant herein and the attorneys for both the defendant and the State waive a jury trial and make the following agreement:

Defendant's Plea:	☒ Guilty	☐ Nolo contendere
	☐ Defendant will testify.	☐ Defendant will not testify
Plea to enhancement paragraph(s):	☐ True	☐ Not true
Type of Plea:	☒ Plea bargain	☐ Open plea
Open as to:	☐ Fine ☐ Restitution ☐ Community Supervision ☐ Deferred Adjudication	
	☐ Other _____	

State's recommendation:

Agreed sentence:

☐ Confinement in ☐ penitentiary ☐ state jail ☐ county jail for _____ ☐ years ☐ months ☐ days

☐ Post-conviction community supervision, confinement probated for _____ ☐ years ☐ months ☐ days

☒ Deferred community supervision for 4 ☒ years ☐ months ☐ days

☒ Fine of \$ 1000 ☐ to be paid ☒ to be probated

☐ Boot Camp ☐ Shock Probation ☐ Substance Abuse Felony Program

☐ CENIKOR ☐ Judicial Treatment Center ☐ Dallas County Jail Chemical Dependency Program

☐ Restitution in the amount of \$ _____

☐ Defendant will sign waiver of extradition ☐ Defendant knowingly and voluntarily waives appeal

☐ Defendant Waives a court reporter

☐ Back-time included: _____

Other: hold for 21M / No Contact w/ Judge B, in person or his family

☐ Back time NOT included

☐ **CHANGE OF NAME** (Applicable only if box is checked)

The defendant having suggested that his/her true name is other than that set forth in the charging instrument, and having moved that the charging instrument and all other documents in this cause be amended to show his/her true name to be _____, said motion is hereby granted. It is so ordered.

COURT'S ADMONITIONS TO DEFENDANT

You are charged with the offense of: Stalking
The punishment range for the offense charged is:

- ☐ 1st Degree Felony, 5-99 years or Life and an optional fine not to exceed \$10,000.00
☐ 2nd Degree Felony, 2-20 years confinement and an optional fine not to exceed \$10,000.00
☒ 3rd Degree Felony, 2-10 years confinement and an optional fine not to exceed \$10,000.00
☐ State Jail Felony, 180 days – 2 years State Jail and an optional fine not to exceed \$10,000.00
☐ _____

You have an absolute right to a jury trial, to confront and cross-examine the witnesses against you, and to call witnesses in your own behalf. You have a right to testify, but you cannot be compelled to do so. The prosecuting attorney's recommendation as to punishment is not binding on the Court. If the Court rejects any plea bargain made in this case, you may withdraw your plea of guilty or *nolo contendere*. If the punishment assessed by the Court is not greater than that which you have plea-bargained, you may not appeal on any matter in the case unless the Court grants permission for the appeal or the matters appealed were raised by written motion filed and ruled on before the plea. If you enter a plea of guilty or *nolo contendere* and there is no plea bargain, the court may assess your punishment anywhere within the range allowed by law. If you are not a citizen of the United States, a plea of guilty or *nolo contendere* may, and under current Federal Immigration rules *is almost certain to*, result in your deportation, removal, exclusion from admission to the United States, or denial of naturalization. If you have a court-appointed attorney, you have a right to ten days from the date of the attorney's appointment to prepare for trial. You have the right to be tried on an indictment returned by a Grand Jury, and, unless you are on bond, a right to two entire days after being served with a copy of the charging instrument before being arraigned. If you receive unadjudicated community supervision and violate its conditions, you may be arrested and subjected to a hearing limited to determining whether or not guilt should be adjudicated. If guilt is adjudicated the full range of punishment is open to the Court. All proceedings, including assessment of punishment, pronouncement of sentence, granting of community supervision, and an appeal, then continue as if the adjudication of guilt had not been deferred. [In sex offense cases, see Court's Admonition to Sex Offenders, which is incorporated by reference and attached hereto.]

DEFENDANT'S STATEMENTS AND WAIVERS

With the approval of counsel, defendant makes the following statements and waivers. I am the accused in the charging instrument and am mentally competent. I understand the nature of the accusation made against me, the range of punishment for such offense, and the consequences of a plea of guilty or *nolo contendere*. I understand that I have an absolute right to a jury trial, that I have the right to remain silent, that anything I say can and will be used against me, that I have the right to confront and cross-examine the witness against me, and that I have a right to be tried upon an indictment returned by a grand jury. I understand that if

I am not a United States citizen, a plea of guilty or *nolo contendere* will probably result in my deportation from the United States, exclusion from admission to the United States, or denial of naturalization under Federal law.

I hereby waive my right to be tried on an indictment returned by a grand jury; any and all defects, errors, or irregularities, whether of form or substance, in the charging instrument; my right to a jury trial; and my right to remain silent. I waive arraignment and reading of the charging instrument; the appearance, confrontation, and cross-examination of witnesses on the issues of guilt and punishment; my right to ten days to prepare for trial after the appointment of counsel (if counsel has been appointed); and the preparation of a pre-sentence report. I consent to the oral or written stipulation of evidence or testimony, to the introduction of testimony by affidavits or written statements of witnesses, and to all other documentary evidence.

I admit and judicially confess that I committed the offense of Stalking on 9/30/15, exactly as alleged in the charging instrument. I affirm that my plea and judicial confession are freely and voluntarily made, and not influenced by any consideration of fear, persuasion, or delusive hope of pardon or parole.

I understand the admonitions regarding unadjudicated community supervision, and that I will be required to register as a sex offender if convicted of, or placed on community supervision for, one of the offenses enumerated under Court's Admonition to Sex Offenders, attached hereto. I understand that under the Uniform Extradition Act, should I be charged with a violation of my community supervision and be arrested in another state, I have the right to require the issuance and service of a warrant of extradition, the right to hire legal counsel, or, if indigent, to have counsel appointed, and the right to apply for a writ of habeas corpus to contest my arrest and return to this State.

☒ I voluntarily and knowingly waive my rights under the Extradition Act, waive extradition, and waive my right to contest my return to the State of Texas from any jurisdiction where I may be found. I understand and agree that such waiver is irrevocable.

☒ I understand that I have a right to appeal to the Court of Appeals. After consulting with my attorney, I do expressly, voluntarily, knowingly, and intelligently give up and waive my right to any appeal if the Court follows the terms of the State's recommendation as to sentencing.

☐ I waive and give up my right to have a court reporter make a record of these court proceedings as provided by Rule 13.1 of the Texas Rules of Appellate Procedure.

☐ **DEFENDANT'S PLEA TO ENHANCEMENT PARAGRAPH(S) (Applicable only if box is checked)**

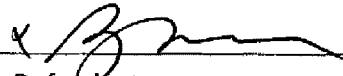
I, the defendant, plead true to the enhancement allegations included in the:

☐ first ☐ second ☐ first & second
enhancement paragraph(s) which is/are contained in the charging instrument or the State's Notice of Enhancement, and judicially confess that I am the same person who was previously duly and legally convicted of the offense(s) alleged therein.

SIGNATURES AND ACKNOWLEDGMENTS

I, the defendant herein, acknowledge that my attorney has explained to me, and I have read and I understand, all the foregoing admonitions and warnings regarding my rights and my plea, and that my statements and waivers are knowingly, freely, and voluntarily made with full understanding of the consequences. I request that the Court accept all my waivers, statements, agreements, and my plea.

2/8/17
Date


Defendant

Printed Name

I have consulted with the defendant, whom I believe to be competent, concerning the plea in this case and have advised the defendant of his/ her rights. I approve and agree to all waivers, statements, and agreements of the defendant herein and ask the Court to accept them and the defendant's plea.

2/8/17
Date


Attorney for Defendant

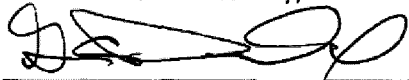
State Bar Number

Printed Name

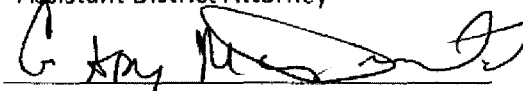
As attorney for the State, I hereby consent to and approve the requests, waivers, agreements, and stipulations in this instrument.

2/8/2017
Date

FAITH JOHNSON, Criminal District Attorney, Dallas County

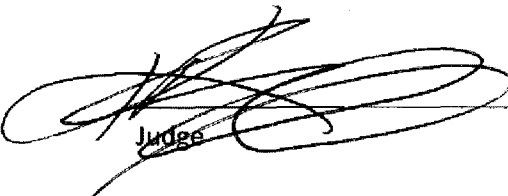

Assistant District Attorney

24060257
State Bar Number


Printed Name

It appearing to the Court that the defendant is mentally competent and is represented by counsel, that the defendant understands the nature and consequences of the charge, and that all the parties have consented to and approved the waiver of jury trial and stipulations of evidence, the Court finds the waivers, agreements, and plea to have been knowingly, freely, and voluntarily made, approves the waivers and agreements, accepts the defendant's plea, approves the stipulation of testimony, and approves the change of name contained herein (if applicable).

2-9-17
Date


Judge

State's Ex. 5
Order of Deferred Adjudication



CASE No. F-1612037-J
INCIDENT NO./TRN: 9258505298

THE STATE OF TEXAS

V.

BABAK A. TAHERZADEH

STATE ID No.: TX04500806

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IN THE CRIMINAL DISTRICT

COURT #3

DALLAS COUNTY, TEXAS

ORDER OF DEFERRED ADJUDICATION

Judge Presiding: HON. Gracie Lewis

Date Order Entered: 2/9/2017

Attorney for State: Gary McDonald

Attorney for Defendant: Paul Johnson

Offense:

STALKING

Charging Instrument:

INDICTMENT

Statute for Offense:

42.072 Penal Code

Date of Offense:

6/22/2016

Degree of Offense:

3RD DEGREE FELONY

Plea to Offense:

GUILTY

Findings on Deadly Weapon:

N/A

Terms of Plea Bargain:

4 YEARS DEFERRED PROBATION; FINE \$1000.00 PROBATED

Plea to 1st Enhancement

Paragraph: N/A

Plea to 2nd Enhancement/Habitual

Paragraph: N/A

Findings on 1st Enhancement

Paragraph: N/A

Findings on 2nd

Enhancement/Habitual Paragraph: N/A

**ADJUDICATION OF GUILT DEFERRED;
DEFENDANT PLACED ON COMMUNITY SUPERVISION.**

PERIOD OF COMMUNITY SUPERVISION: 4 YEARS

Fine: PROBATED

\$ 1000.00

Court Costs:

\$ 249.00

Restitution:

\$ N/A

Restitution Payable to:

(see below)

☐ AGENCY/AGENT
☐ VICTIM

Sex Offender Registration Requirements do not apply to the Defendant. TEX. CODE CRIM. PROC. chapter 62

The age of the victim at the time of the offense was **N/A**.

Time **N/A DAYS**

Credited: **NOTES: N/A**

All pertinent information, names and assessments indicated above are incorporated into the language of the judgment below by reference.

This cause was called for trial in Dallas County, Texas. The State appeared by her District Attorney as named above.

Counsel / Waiver of Counsel (select one)

☒ Defendant appeared in person with Counsel.



☐ Defendant knowingly, intelligently, and voluntarily waived the right to representation by counsel in writing in open court.

Both parties announced ready for trial. Defendant waived the right of trial by jury and entered a plea as indicated above. The Court admonished the Defendant as required by law. It appeared to the Court that Defendant was mentally competent to stand trial, made the plea freely and voluntarily, and was aware of the consequences of this plea. The Court received the plea and entered it of record. Having heard the evidence submitted, the Court **FINDS** such evidence substantiates Defendant's guilt. The Court **FINDS** that, in this cause, it is in the best interest of society and Defendant to defer proceedings without entering an adjudication of guilt and to place Defendant on community supervision.

The Court **FINDS** the Presentence Investigation, if so ordered, was done according to the applicable provisions of TEX. CODE CRIM. PROC. art. 42.12 § 9.

The Court **ORDERS** that Defendant is given credit noted above for the time spent incarcerated. The Court **ORDERS** Defendant to pay all fines, court costs, and restitution as indicated above.

The Court **ORDERS** that no judgment shall be entered at this time. The Court further **ORDERS** that Defendant be placed on community supervision for the adjudged period so long as Defendant abides by and does not violate the terms and conditions of community supervision. See TEX. CODE CRIM. PROC. art. 42.12 § 5(a).

Furthermore, the following special findings or orders apply:

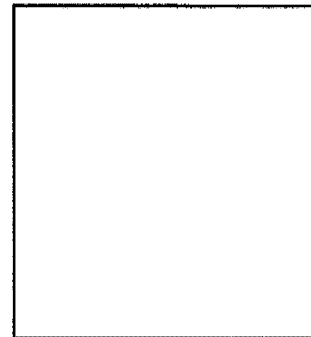
HOLD FOR ELM

X

Gracie Lewis
JUDGE PRESIDING

Gracie M. Lewis

Clerk: DALVAREZ



Right Thumbprint*

*Thumbprint Certification attached.

CONDITIONS OF COMMUNITY SUPERVISION

THE STATE OF TEXAS

IN THE CDC#3
DALLAS COUNTY, TEXAS

vs.

January TERM, 2017

BABAK TAHERZADEH
Probation Type: DEFERRED
Cause No.:
F1612037J

ML. No.: C-575482
Offense:
STALKING

In accordance with the authority conferred by the Community Supervision and Parole Law of the State of Texas you have been placed on Community Supervision on this date 2-9-2017 for a period of 4 years. It is the order of this Court that you comply with the following conditions of supervision:

Please see attached list of conditions of Community Supervision

You are hereby advised that under the law of this State, the Court shall determine the terms and conditions of your supervision, and may at any time during the period of Supervision, alter or modify the conditions of your Supervision. The Court also has the authority at any time during the period of Supervision to revoke your Supervision and /or proceed to adjudication for violation of any of the conditions of your Supervision set out above.

Witness our Signatures this 9th Day of February 2017.


Defendant


Court Supervision Officer


Judge GRACIE LEWIS

CONDITIONS OF COMMUNITY SUPERVISION

THE STATE OF TEXAS

IN THE CDC#3

DALLAS COUNTY, TEXAS

Vs.

January

TERM, 2017

BABAK TAHERZADEH

Probation Type: DEFERRED

ML. No.: C-575482

Cause No.:

Offense:

F1612037J

STALKING

- (a) Commit no offense against the laws of this or any other State or the United States, and do not possess a firearm during the term of Supervision;
- (b) Avoid injurious and vicious habits, and do not use marijuana, narcotics, dangerous drugs, inhalants or prescription medication without first obtaining a prescription for said substances from a licensed physician;
- (c) Avoid persons or places of disreputable or harmful character and do not associate with individuals who commit offenses against the laws of this State or the United States;
- (d) Obey all rules and regulations of the Supervision Department, and report in the manner and time as directed by the Judge or Supervision Officer, to-wit: Monthly, Twice Monthly or Weekly.
- (e) Permit the Supervision Officer to visit you at your home or elsewhere, and notify the Supervision Officer not less than twenty-four (24) hours prior to any changes in your home or employment address;
- (f) Work faithfully at suitable employment as far as possible, and seek the assistance of the Supervision Officer in your efforts to secure employment when unemployed;
- (g) Remain within a specified place; to-wit: Dallas County, Texas, or Approved Supervising County, and do not travel outside Dallas County, or Approved Supervising County, without first having obtained written permission from the Court or Supervising Officer;
- (h) Report in person immediately upon your release to the District Clerk Felony Collections Dept. 2nd Fl., Room C2-3 Frank Crowley Bldg., to arrange payment of Court Costs (amount to be assessed by Court Clerk), Fine, and, if assessed Attorney Fees. In addition, pay in full all monies as assessed by the Court pursuant to the payment agreement established by the Felony Collections Department.
- (i) Support your dependants;
- (j) Pay a Supervision fee of \$60.00 per month plus a \$2.00 transaction fee to the Supervision Officer of this Court on or before the first day of each month hereafter during Supervision; money order, cashiers check or credit card online at www.payfeesnow.com;
- (k) Participate in the Community based program, Dallas Area Crime Stoppers Inc., by making a monetary contribution of \$50.00 payable through the Community Supervision Officer of this Court as directed within 90 days of being placed on Community Supervision;
- (l) First contact to the Volunteer Center must be made by the defendant

THE STATE OF TEXAS

Vs.

BABAK TAHERZADEH
Probation Type: DEFERRED
Cause No.:
F1612037J

ML. No.: C-575482
Offense:
STALKING

CONDITIONS OF COMMUNITY SUPERVISION

THE STATE OF TEXAS

**IN THE CDC#3
DALLAS COUNTY, TEXAS**

Vs.

January TERM, 2017

BABAK TAHERZADEH

Probation Type: DEFERRED

ML. No.: C-575482

Cause No.:

Offense:

F1612037J

STALKING

**by said program or its staff, until released successfully by the agency or the Court.
Defendant to pay all costs and counseling/treatment;**

(v) Do not possess, consume or purchase any alcoholic beverages, or illegal controlled substances during the term of Supervision;

(w) Report to HRC/CCP orientation 09-10-2017 @ 9:00 am SOUTH OFFICE at 214-330-0383, 2726 Coombs Creek Rd., Dallas, TX 75211;

State's Ex. 6
Order of Deferred Adjudication



CASE NO. F-1612037-J
INCIDENT NO./TRN: 9258505298

THE STATE OF TEXAS

v.

BABAK A. TAHERZADEH

STATE ID NO.: TX04500806

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IN THE CRIMINAL DISTRICT

COURT #3

DALLAS COUNTY, TEXAS

ORDER OF DEFERRED ADJUDICATION

Judge Presiding: HON. Kerry Fitzgerald Date Order Entered: 2/9/2017 12-1-2017

Attorney for State: Gary McDonald Attorney for Defendant: Paul Johnson

Offense:
STALKING

Charging Instrument: INDICTMENT Statute for Offense: 42.072 Penal Code

Date of Offense:
6/22/2016

Degree of Offense: 3RD DEGREE FELONY Plea to Offense: GUILTY Findings on Deadly Weapon: N/A

Terms of Plea Bargain:
4 YEARS DEFERRED PROBATION; FINE \$1000.00 PROBATED

Plea to 1 st Enhancement Paragraph:	N/A	Plea to 2 nd Enhancement/Habitual Paragraph:	N/A
Findings on 1 st Enhancement Paragraph:	N/A	Findings on 2 nd Enhancement/Habitual Paragraph:	N/A

ADJUDICATION OF GUILT DEFERRED;
DEFENDANT PLACED ON COMMUNITY SUPERVISION.

PERIOD OF COMMUNITY SUPERVISION: 4 YEARS

Fine: PROBATED	Court Costs:	Restitution:	Restitution Payable to:
\$ 1000.00	\$ 249.00	\$ N/A	(see below) ☐ AGENCY/AGENT ☐ VICTIM

Sex Offender Registration Requirements do not apply to the Defendant. TEX. CODE CRIM. PROC. chapter 62

The age of the victim at the time of the offense was N/A .

Time N/A DAYS
Credited: NOTES: N/A

All pertinent information, names and assessments indicated above are incorporated into the language of the judgment below by reference.

This cause was called for trial in Dallas County, Texas. The State appeared by her District Attorney as named above.

Counsel / Waiver of Counsel (select one)

☒ Defendant appeared in person with Counsel.



☐ Defendant knowingly, intelligently, and voluntarily waived the right to representation by counsel in writing in open court.

Both parties announced ready for trial. Defendant waived the right of trial by jury and entered a plea as indicated above. The Court admonished the Defendant as required by law. It appeared to the Court that Defendant was mentally competent to stand trial, made the plea freely and voluntarily, and was aware of the consequences of this plea. The Court received the plea and entered it of record. Having heard the evidence submitted, the Court **FINDS** such evidence substantiates Defendant's guilt. The Court **FINDS** that, in this cause, it is in the best interest of society and Defendant to defer proceedings without entering an adjudication of guilt and to place Defendant on community supervision.

The Court **FINDS** the Presentence Investigation, if so ordered, was done according to the applicable provisions of TEX. CODE CRIM. PROC. art. 42.12 § 9.

The Court **ORDERS** that Defendant is given credit noted above for the time spent incarcerated. The Court **ORDERS** Defendant to pay all fines, court costs, and restitution as indicated above.

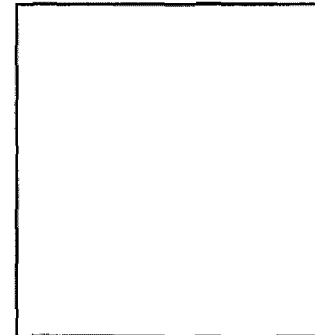
The Court **ORDERS** that no judgment shall be entered at this time. The Court further **ORDERS** that Defendant be placed on community supervision for the adjudged period so long as Defendant abides by and does not violate the terms and conditions of community supervision. See TEX. CODE CRIM. PROC. art. 42.12 § 5(a).

Furthermore, the following special findings or orders apply:

HOLD FOR ELM


Kerry Fitzgerald
JUDGE PRESIDING

Clerk: DALVAREZ



Right Thumbprint*

*Thumbprint Certification attached.

JUDGMENT
CERTIFICATE OF THUMBPRINT

THE STATE OF TEXAS

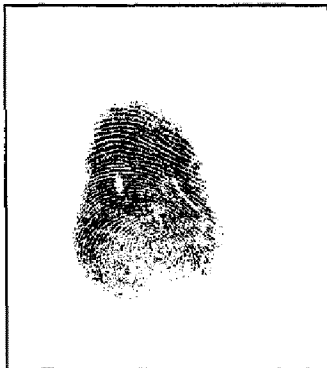
CAUSE NO. F 1612037 -J

VS.

CRIMINAL DISTRICT COURT #3

Bahak Taherzadeh

DALLAS COUNTY, TEXAS



RIGHT THUMB



DEFENDANT'S R HAND

THIS IS TO CERTIFY THAT THE FINGERPRINTS ABOVE ARE THE ABOVE-NAMED DEFENDANT'S FINGERPRINTS TAKEN AT THE TIME OF DISPOSITION OF THE ABOVE STYLED AND NUMBERED CAUSE.

DONE IN COURT THIS 09 DAY OF Feb, 2017.

Timothy Bran #883
BAILIFF/DEPUTY SHERIFF

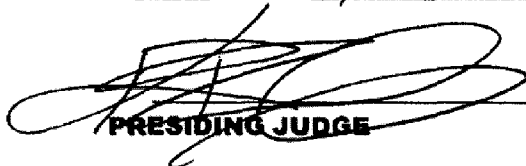
*INDICATE HERE IF PRINT OTHER THAN DEFENDANT'S RIGHT THUMBPRINT IS PLACED IN BOX:

____ LEFT THUMBPRINT

____ LEFT/RIGHT INDEX FINGER

____ OTHER, _____

SIGNED AND ENTERED ON THIS 9 DAY OF Feb, 2017.



PRESIDING JUDGE

CONDITIONS OF COMMUNITY SUPERVISION

THE STATE OF TEXAS

IN THE CDC#3
DALLAS COUNTY, TEXAS

vs.

January TERM, 2018

BABAK TAHERZADEH
Probation Type: DEFERRED
Cause No.:
F1612037J

ML. No.: C-575482
Offense:
STALKING

In accordance with the authority conferred by the Community Supervision and Parole Law of the State of Texas you have been placed on Community Supervision on this date 2-9-2017 for a period of 4 years. It is the order of this Court that you comply with the following conditions of supervision:

Please see attached list of conditions of Community Supervision

You are hereby advised that under the law of this State, the Court shall determine the terms and conditions of your supervision, and may at any time during the period of Supervision, after or modify the conditions of your Supervision. The Court also has the authority at any time during the period of Supervision to revoke your Supervision and /or proceed to adjudication for violation of any of the conditions of your Supervision set out above.

Witness our Signatures this 9th Day of February 2017

Refused to Sign
Defendant

[Signature]
Court Supervision Officer

Richard A. Brown (signed 6-1-2018)
Judge

CONDITIONS OF COMMUNITY SUPERVISION

THE STATE OF TEXAS

IN THE CDC#3
DALLAS COUNTY, TEXAS

Vs.

January TERM, 2018

BABAK TAHERZADEH

Probation Type: DEFERRED

Cause No.:

F1612037J

ML. No.: C-575482

Offense:

STALKING

- (a) Commit no offense against the laws of this or any other State or the United States, and do not possess a firearm during the term of Supervision;
- (b) Avoid injurious and vicious habits, and do not use marijuana, narcotics, dangerous drugs, inhalants or prescription medication without first obtaining a prescription for said substances from a licensed physician;
- (c) Avoid persons or places of disreputable or harmful character and do not associate with individuals who commit offenses against the laws of this State or the United States;
- (d) Obey all rules and regulations of the Supervision Department, and report in the manner and time as directed by the Judge or Supervision Officer, to-wit: Monthly, Twice Monthly or Weekly.
- (e) Permit the Supervision Officer to visit you at your home or elsewhere, and notify the Supervision Officer not less than twenty-four (24) hours prior to any changes in your home or employment address;
- (f) Work faithfully at suitable employment as far as possible, and seek the assistance of the Supervision Officer in your efforts to secure employment when unemployed;
- (g) Remain within a specified place; to-wit: Dallas County, Texas, or Approved Supervising County, and do not travel outside Dallas County, or Approved Supervising County, without first having obtained written permission from the Court or Supervising Officer;
- (h) Report in person immediately upon your release to the District Clerk Felony Collections Dept. 2nd Fl., Room C2-3 Frank Crowley Bldg., to arrange payment of Court Costs (amount to be assessed by Court Clerk), Fine, and, if assessed Attorney Fees. In addition, pay in full all monies as assessed by the Court pursuant to the payment agreement established by the Felony Collections Department.
- (i) Support your dependants;
- (j) Pay a Supervision fee of \$60.00 _____ per month plus a \$2.00 transaction fee to the Supervision Officer of this Court on or before the first day of each month hereafter during Supervision; money order, cashiers check or credit card online at www.payfeesnow.com;
- (k) Participate in the Community based program, Dallas Area Crime Stoppers Inc., by making a monetary contribution of \$50.00 payable through the Community Supervision Officer of this Court as directed within 90 days of being placed on Community Supervision;
- (l) First contact to the Volunteer Center must be made by the defendant

CONDITIONS OF COMMUNITY SUPERVISION

THE STATE OF TEXAS

IN THE CDC#3

DALLAS COUNTY, TEXAS

Vs.

January

TERM, 2018

BABAK TAHERZADEH

Probation Type: DEFERRED

ML. No.: C-575482

Cause No.:

Offense:

F1612037J

STALKING

within 30 days from referral and defendant is to start 160 ____ hours of Community Service at an approved Community Service Project or projects designated by the Community Supervision and Corrections Department. A processing fee of \$55.00 payable to the Volunteer Center, will be required for referrals through the Volunteer Center. Hours of service to be completed by term of Supervision;

(m) Report if directed to the Community Supervision and Corrections Department Assessment Treatment and Research Services program (A.T.R.S), Frank Crowley Bldg., 133 N. Riverfront Blvd., 9th floor, Dallas TX 75207, obey all program instructions and/or treatment for Substance Abuse and/or Psychological Health; and continue with such adherence until release is granted by the program or the Court. Pay any costs assessed by ATRS in accordance with program guidelines.

(n) Submit a non-diluted random urine sample and/or medical test/breathalyzer test at the request of the Supervision Officer to determine the use of illicit drugs or alcohol, paying the total cost of such urinalysis of \$200.00 payable at \$10.00 monthly to the Community Supervision and Corrections Department;

(o) Submit as directed, a buccal swab specimen to the Department of Public Safety under Sub-Chapter G, Chapter 411, Government Code, for the purpose of creating a DNA record of the defendant (Article 42A sec 301); All costs incurred are to be paid by the Defendant;

(p) Do not have any form of contact, be it in person, by mail, telephone or any form of communication with JUDGE BIRMINGHAM OF 292ND JUDICIAL DISTRICT COURT, and immediate family directly or indirectly, for the duration of Supervision Term;

(q) Within 30 days from referral, participate in an anger management program through a court-approved resource, making an observable deliberate and diligent effort to comply with all directives provided by the program until released successfully by the agency or the Court. Defendant to pay all costs of counseling/treatment;

(t) Within 30 days from referral, participate in A Cognitive Behavioral Program and continue in the program making observable deliberate and diligent effort to comply with all directives and instructions provided by said program or its staff, until released successfully by the agency or the Court. Defendant to pay all costs of counseling/treatment;

(v) Do not possess, consume or purchase any alcoholic beverages, or illegal controlled substances during the term of Supervision;

(w) Beginning immediately and for no less than 30 days participate in the Electronic Monitoring Program. EXCLUSION ZONES include Carrollton and/or Dallas County Crowley Courts, unless ordered to report. Faithfully participate in all rules, regulations and programs deemed appropriate by the ELM program. Pay any and all costs associated with the electronic monitoring equipment and/or monitoring service as determined by the Court or Supervision Officer. Costs of service is \$7.50 per day.

Cause No: 16 12037

State of Texas vs. B. Takerzadeh

COURT'S ADMONISHMENT ON RIGHT TO ORDER OF NONDISCLOSURE

If you have been placed on deferred adjudication community supervision and subsequently receive a discharge and dismissal, and you satisfy the requirements set forth below, you may petition the court for an order of nondisclosure pursuant to Section 411.081 of the Texas Government Code. Except as provided below, you may petition the court regardless of whether you have been previously placed on deferred adjudication community supervision for another offense. After notice to the State and a hearing on whether you are entitled to file the petition and whether issuance of the order is in the best interest of justice, the court shall issue an order prohibiting criminal justice agencies from disclosing to the public criminal history record information related to the offense for which you were placed on deferred adjudication. A criminal justice agency may disclose criminal history record information that is the subject of the order only to other criminal justice agencies, for criminal justice or regulatory licensing purposes, an agency or entity specifically listed in Section 411.081, or the person who is the subject of the order.

You may petition this court for an order of nondisclosure on payment of a \$28 fee to the clerk of the court in addition to any other fees that generally apply to the filing of a civil petition. The petition may be made only on or after:

- (1) the discharge and dismissal, if the offense for which you were placed on deferred adjudication was a misdemeanor other than a misdemeanor described by number (2) below;
- (2) the second anniversary of the discharge and dismissal, if the offense for which you were placed on deferred adjudication was a misdemeanor under Chapter 20, 21, 22, 25, 42, 46, Penal Code; or
- (3) the fifth anniversary of the discharge and dismissal, if the offense for which you were placed on deferred adjudication was a felony.

You are entitled to petition the court for nondisclosure only if during the period of the deferred adjudication community supervision for which the order of nondisclosure is requested and during the applicable period described by number (1), (2), or (3) above, as appropriate, you were not convicted of, or placed on deferred adjudication community supervision for, any offense other than an offense under the Transportation Code punishable by fine only. You are not entitled to petition the court if you were on placed on deferred adjudication community supervision for or have been previously convicted or placed on any other deferred adjudication for:

- (1) an offense requiring registration as a sex offender under Chapter 62, Code of Criminal Procedure;
- (2) an offense under Penal Code Section 20.04 (Aggravated Kidnapping), regardless of whether the offense is a reportable conviction or adjudication for purposes of Chapter 62, Code of Criminal Procedure;
- (3) an offense under Penal Code Sections 19.02 (Murder), 19.03 (Capital Murder), 22.04 (Injury to a Child, Elderly Individual, or Disabled Individual), 22.041 (Abandoning or Endangering a Child), or 25.07 (Violation of Court Order or Conditions of Bond in a Family Violence Case); or
- (4) any other offense involving family violence, as defined by Family Code Section 71.004.

You are considered to have been placed on deferred adjudication community supervision if, regardless of the statutory authorization:

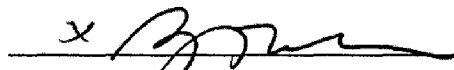
- (1) you entered a plea of guilty or nolo contendere;
- (2) the judge deferred further proceedings without entering an adjudication of guilt and placed you under the supervision of the court or an officer under the supervision of the court; and
- (3) at the end of the period of supervision the judge dismissed the proceedings and discharged you.


JUDGE

I ACKNOWLEDGE THAT I HAVE BEEN INFORMED OF MY RIGHTS, AS SET FORTH ABOVE, TO PETITION THE COURT FOR AN ORDER OF NONDISCLOSURE UNDER SECTION 411.081 OF THE TEXAS GOVERNMENT CODE.

2/9/17

Date


Defendant

State's Ex. 7
Docket Sheet

State's Ex. 8
Michael Morton Paperwork

CAUSE NO. F1612037

THE STATE OF TEXAS

§

IN THE

VS.

§

Criminal District Court No. 3

BABAK A TAHERZADEH

§

DALLAS COUNTY, TEXAS

FILED
2017 FEB -9 AM 10:00
FELICIA PITRE
DISTRICT CLERK
DALLAS CO., TEXAS
DEPUTY

**DISCOVERY DISCLOSURE AND NOTICE
PURSUANT TO CCP 39.14**

These documents, reports, and other items are being provided to you in accordance with your request made pursuant to Article 39.14 of the Texas Code of Criminal Procedure. The documents are provided for the purpose of defending your client in the above-entitled and numbered cause, and for no other purpose.

By accepting these documents, reports, and other items, the undersigned attorney should understand that the documents, reports, and other items provided shall be used for the purpose of defending his/her client in the above-entitled and numbered cause and for no other purpose. Thus, except as provided in Article 39.14 T.C.C.P., the defendant, the attorney representing the defendant, or an investigator, expert, consulting legal counsel, or other agent of the attorney representing the defendant may not disclose to a third party any non-public documents, evidence, materials, or witness statements received from the state under Article 39.14 T.C.C.P. without a court order after notice and a hearing.

NOTICE OF DEFENSE COUNSEL OBLIGATIONS

The attorney representing the defendant, or an investigator, expert, consulting legal counsel, or agent for the attorney representing the defendant, may allow a defendant, witness, or prospective witness to view the information provided herein, but may not allow the defendant, witness, or prospective witness to have copies of the information provided, other than a copy of the witness's own statement. Before allowing any person to view a document or the witness statement of another, the person possessing the information shall redact the address, telephone number, driver's license number, social security number, date of birth, and any bank account or other identifying numbers contained in the document or witness statement. The defendant may not be considered an agent of the attorney representing the defendant.

Given to: Paul Johnson
By: Gary McDonald, jr.
Date: 2/9/2017

F1612037

BABAK A TAHERZADEH

CAUSE NO. F1612037

THE STATE OF TEXAS	§	IN THE
	§	
VS.	§	Criminal District Court No. 3
	§	
BABAK A TAHERZADEH	§	DALLAS COUNTY, TEXAS

DISCOVERY PROVIDED TO DEFENSE ATTORNEY

On 2/9/2017 the following discovery was made available to the defense:

DISCOVERY ITEMS (32)

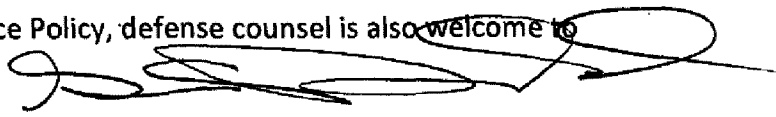
Type	Name	Discoverable Date
Photographs (1)	Screen Shots.zip	9/28/2016
Arrest Warrant (3)	WARRANT.PDF	9/28/2016
	Taherzadeh I think I'm speaking truth to power pt 1.camrec.wmv	12/1/2016
	Taherzadeh I think I'm speaking truth to power pt 2.wmv	12/1/2016
Transcripts-Non GJ (1)	Transcript PO Hearing.pdf	11/17/2016
Indictment (1)	F1612037_Indictment_2016-09-02.pdf	9/28/2016
PC Affidavit (1)	PC.PDF	9/28/2016
Offense Report (5)	CASE REPORT - ADULT1.pdf	9/28/2016
	ARREST.pdf	9/28/2016
	OFFENSE.pdf	9/28/2016
	SCANS.pdf	9/28/2016
	ATTACHMT.PDF	9/28/2016
Search Warrant (3)	Search Warrant.pdf	9/28/2016
	Google Warrant.pdf	9/28/2016
	Twitter Warrant.pdf	9/28/2016
Additional Case Info (17)	Google Preservation Request.pdf	9/28/2016
	Twitter response, basic account information.zip	9/28/2016
	thunderFence-15815502-2016-06-21-287273.zip	9/28/2016
	A_Failed_Smile-704036206506455040-2016-06-21-287270.zip	9/28/2016
	brutallas-2937245406-2016-06-21-287269.zip	9/28/2016

	kunt_return-737457452103262209-2016-06-21-287271.zip	9/28/2016
	Truth2Cunts-739622175632588800-2016-06-21-287267.zip	9/28/2016
	thunderfence2-734020153315201024-2016-06-21-287272.zip	9/28/2016
	bindinadulation-741077840049770496-2016-06-21-287268.zip	9/28/2016
	Case# 34331716_ Twitter Receipt of Legal Process.pdf	9/28/2016
	FetusJunior-1588503236-2016-06-21-287266.zip	9/28/2016
	2016_06_16_13_30_10.pdf	9/28/2016
	5 Court Order.pdf	9/28/2016
	BABAK.pdf	9/28/2016
	Google Files.zip	9/28/2016
	MBOX+EXTRACTION.zip	1/20/2017
	ENCASE REPORT (BIRMINGHAM).zip	1/20/2017

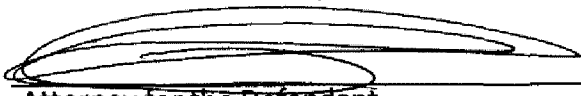
DISCOVERY NOTES (0)

No Discoverable Notes

Per the Dallas County District Attorney's Office Policy, defense counsel is also welcome to inspect the physical file.


 Gary McDonald, Jr.
 Bar # 24060251
 Assistant District Attorney
 (214) 653-3600

If you find that anything listed above is not in contained in the documents or discs that you have received, or if you believe there is additional discovery after reviewing the above please contact me as soon as possible.


 Attorney for the Defendant
 Paul Johnson
 Bar # 10778230

2/8/17
 Date Received

THE STATE OF TEXAS	§	IN THE
	§	
VS.	§	Criminal District Court No. 3
	§	
BABAK A TAHERZADEH	§	DALLAS COUNTY, TEXAS

C.C.P. ARTICLE 39.14 COMPLIANCE FORM

COMES NOW the State of Texas by and through the undersigned assistant district attorney and defense counsel for the above-named defendant and would show the Court as follows:

Pursuant to the Code of Criminal Procedure Article 39.14(j), the following has been produced electronically in the above-referenced cause as indicated below:

DISCOVERY ITEMS (32)

Type	Name	Discoverable Date
Photographs (1)	Screen Shots.zip	9/28/2016
Arrest Warrant (3)	WARRANT.PDF	9/28/2016
	Taherzadeh I think I'm speaking truth to power pt 1.camrec.wmv	12/1/2016
	Taherzadeh I think I'm speaking truth to power pt 2.wmv	12/1/2016
Transcripts-Non GJ (1)	Transcript PO Hearing.pdf	11/17/2016
Indictment (1)	F1612037_Indictment_2016-09-02.pdf	9/28/2016
PC Affidavit (1)	PC.PDF	9/28/2016
Offense Report (5)	CASE REPORT - ADULT1.pdf	9/28/2016
	ARREST.pdf	9/28/2016
	OFFENSE.pdf	9/28/2016
	SCANS.pdf	9/28/2016
	ATTACHMT.PDF	9/28/2016
Search Warrant (3)	Search Warrant.pdf	9/28/2016
	Google Warrant.pdf	9/28/2016
	Twitter Warrant.pdf	9/28/2016
Additional Case Info (17)	Google Preservation Request.pdf	9/28/2016
	Twitter response, basic account information.zip	9/28/2016
	thunderFence-15815502-2016-06-21-287273.zip	9/28/2016
	A_Failed_Smile-704036206506455040-2016-06-21-	9/28/2016

	287270.zip	
	brutallas-2937245406-2016-06-21-287269.zip	9/28/2016
	kunt_return-737457452103262209-2016-06-21-287271.zip	9/28/2016
	Truth2Cunts-739622175632588800-2016-06-21-287267.zip	9/28/2016
	thunderfence2-734020153315201024-2016-06-21-287272.zip	9/28/2016
	bindinadulation-741077840049770496-2016-06-21-287268.zip	9/28/2016
	Case# 34331716_ Twitter Receipt of Legal Process.pdf	9/28/2016
	FetusJunior-1588503236-2016-06-21-287266.zip	9/28/2016
	2016_06_16_13_30_10.pdf	9/28/2016
	5 Court Order.pdf	9/28/2016
	BABAK.pdf	9/28/2016
	Google Files.zip	9/28/2016
	MBOX+EXTRACTION.zip	1/20/2017
	ENCASE REPORT (BIRMINGHAM).zip	1/20/2017

DISCOVERY NOTES (0)

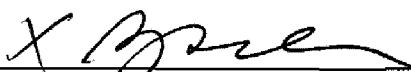
No Discoverable Notes

SIGNATURES AND ACKNOWLEDGEMENTS

I, the defendant herein, acknowledge that my attorney has explained to me, and/or I have reviewed (except as provided by law) the above-referenced items.

2/9/2017

DATE



DEFENDANT SIGNATURE

PRINTED NAME

I have consulted with the defendant, whom I believe to be competent, concerning the plea/trial in this case, and I have advised the defendant of his/her rights and made him/her aware of the discovery provided in this case. I understand that non-public information received pursuant to Article 39.14 is not subject to disclosure to a third party without a Court Order. I further understand that I cannot allow copies of this information to be released to anyone other than to release a witness's own statement to that witness, and that prior to showing this information to a defendant, witness, or prospective witness, I must redact it as set forth in Article 39.14.

2/9/2017

DATE



ATTORNEY SIGNATURE

Paul Johnson

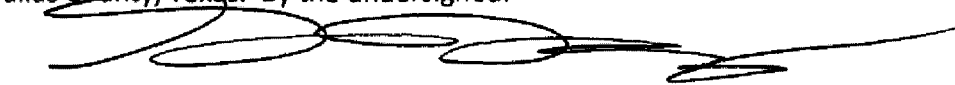
BAR CARD NUMBER: 10778230

As the attorney for the State, I represent that I have reviewed the entire contents of my file, and I represent that I have complied with the requirements of Art. 39.14 (a), Texas Code of Criminal Procedure, to the best of my knowledge.

FAITH JOHNSON, Criminal District Attorney, Dallas County, Texas. By the undersigned:

2/9/2017

DATE



ASSISTANT DISTRICT ATTORNEY

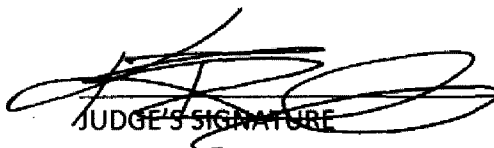
Gary McDonald, Jr.

BAR CARD NUMBER: 24060251

The Court acknowledges that the parties have represented that they have complied with Art. 39.14 (j) of the Texas Code of Criminal Procedure.

2-9-2017

DATE



JUDGE'S SIGNATURE

THE STATE OF TEXAS	§	IN THE
	§	
VS.	§	Criminal District Court No. 3
	§	
BABAK A TAHERZADEH	§	DALLAS COUNTY, TEXAS

**DEFENDANT'S ACKNOWLEDGEMENT OF DISCOVERY RIGHTS
UNDER ART. 39.14, TX. CODE OF CRIMINAL PROCEDURE**

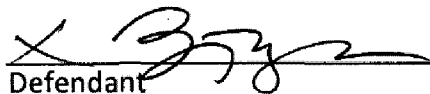
COMES NOW the defendant in the above-styled and numbered cause and would state as follows:

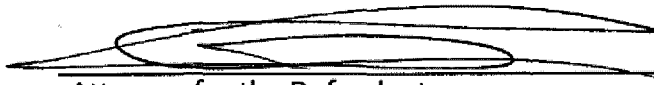
"My attorney has explained to me that I, as the defendant in a criminal case in the State of Texas, have certain rights regarding the inspection and reproduction of the evidence in the case that the state has filed against me, specifically that my attorney has the right to review and obtain copies of the offense report, witness statements, books, accounts, letters, photographs, video recordings, laboratory reports, objects or tangible items, or any designated evidence that may be material to any matter involved in the action that is in the possession of the state or any person under contract with the state. My attorney has explained to me that he/she has reviewed all available discovery items provided to him/her on before today's date - 9th day of February, 2017.

In the event that other discovery items may exist, my attorney has explained that I have the right to have him/her review those items prior to entering my plea.

I understand that the state has a continuing duty to disclose to me or to the court any document, item, or information that is exculpatory, impeaching, or mitigating, or that would tend to negate my guilt or would tend to reduce the punishment for my offense.

UNDERSTANDING THAT I HAVE THESE RIGHTS, I DO KNOWINGLY WAIVE (GIVE UP) MY RIGHT TO FURTHER DISCOVERY, EXCEPT AS PROVIDED BY LAW."


Defendant


Attorney for the Defendant
Paul Johnson

THE STATE OF TEXAS	§	IN THE
	§	
VS.	§	Criminal District Court No. 3
	§	
BABAK A TAHERZADEH	§	DALLAS COUNTY, TEXAS

**STATE'S NOTICE OF REDACTION PURSUANT TO TEXAS CODE OF
CRIMINAL PROCEDURE ART. 39.14(C)**

Pursuant to Texas Code of Criminal Procedure Art. 39.14(c), the following has been redacted from the discovery provided to the attorney for the defendant. The State contends that such redaction is justified under Article 39.14 or other statutory or constitutional provisions.

Information redacted

- ☐ Address/Location of Victim
☐ Address Location of Witness
☐ Personal Identifying Information of Victim (ie. SSN,)

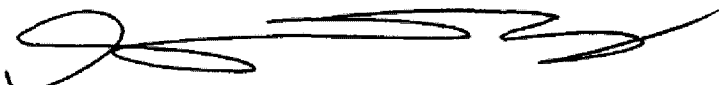
- ☐ Identity of Witness/Informant
☒ Other TELETS / CCIT
☐ Other _____

Reason for redaction

- ☐ CCP Article 56.02(a)(1)
☐ Rule 508 Texas Rules of Evidence
☐ Attorney previously violated Article 39.14
☐ Tex Const. Art. 1 § 30

- ☐ At the request of Victim/Witness
☒ Other Confidential CCIT
☐ Other _____

2/9/2017
DATE



 ASSISTANT DISTRICT ATTORNEY

Gary McDonald, Jr.

 PRINTED NAME

24060251

 BAR CARD NUMBER

THE STATE OF TEXAS

VS.

BABAK A TAHERZADEH

§
§
§
§
§

IN THE

Criminal District Court No. 3

DALLAS COUNTY, TEXAS

ORDER

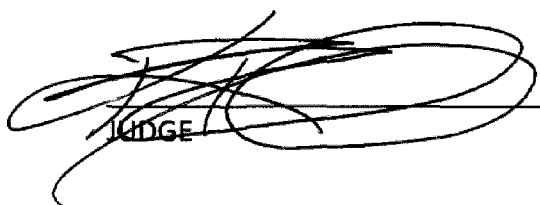
The Court, having conducted a hearing on request of the defendant to determine whether withholding or redaction of documents or information provided to the defense under Article 39.14 of the Texas Code of Criminal Procedure, makes the following Order:

☒ The withholding or redaction proposed by the State is justified under Article 39.14.

☐ The State is ordered by the Court to remove the redaction(s) of the following information:

☐ The State is ordered by the Court to disclose the following documents or information:

2-9-2017
DATE


JUDGE

Criminal District Court No. 3
COURT

Sherifa Ahmed

From: Sherifa Ahmed
Sent: Monday, September 23, 2019 4:11 PM
To: Lamonica Littles
Subject: 11.072 Writ W16-12037-J(A)

Hi LaMonica,

I've been told that the court should treat the writ below as an 11.072 writ as oppose to a 11.07 writ. Meaning the court has 60 days from the date of the waiver to issue an order on the writ. Please contact me if you have any questions.

BABAK TAHERZADEH W16-12037-J(A)

Thank you,

Sherifa Ahmed

Deputy District Clerk

214-875-4721

sherifa.ahmed@dallascounty.org

EX PARTE § **IN THE**
CRIMINAL §
§ **DISTRICT COURT NO. 3**
BABAK TAHERZADEH, §
Applicant § **DALLAS COUNTY,**
TEXAS

281

STATE OF TEXAS
vs.
BABAK TAHERZADEH

IN THE CRIMINAL DISTRICT COURT #3
of
DALLAS COUNTY, TEXAS

MOTION TO REVOKE PROBATION OR PROCEED WITH AN ADJUDICATION OF GUILT

COMES NOW the State of Texas by and through her Criminal District Attorney and would show the Court the following:

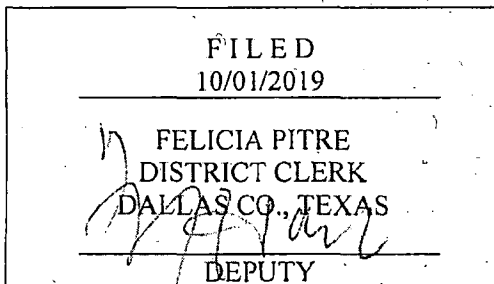
That Babak Taherzadeh, Defendant, was duly and legally placed on probation for a period of 48 Months in the above entitled and numbered cause in the Criminal District Court #3 of Dallas County, Texas, on the 9th day of February, 2017 for the offense of: Stalking

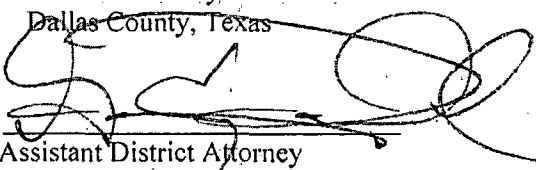
That the Defendant has violated the following conditions: D, N of said supervision in that;

SEE ATTACHED PAGE(S)

This violation-offense occurred after February 9, 2017 and during the term of Supervision.

WHEREFORE, the State prays that said Defendant be cited to appear before this Honorable Court and show cause why the Court should not revoke probation or proceed with an adjudication of guilt on the original charge.



John Cruzot
District Attorney
Dallas County, Texas
BY: 
Assistant District Attorney

A copy of this motion was delivered to the Defendant on the _____ day of _____ A.D., 20____.

CSO

I received a copy of this motion on the _____ day of _____ A.D., 20____.

Defendant

STATE OF TEXAS
vs.
BABAK TAHERZADEH

IN THE CRIMINAL DISTRICT COURT #3
of
DALLAS COUNTY, TEXAS

MOTION TO REVOKE PROBATION OR PROCEED WITH AN ADJUDICATION OF GUILT

- D. The Defendant failed report to the Supervision Officer as directed for the months/weeks of September 17, 2019; September 24, 2019; September 30, 2019 nor any reporting period/month thereafter.
- N. The Defendant, Babak Taherzadeh, failed to submit to a non-diluted urine sample and/or medical test/breathalyzer test at the request by the Supervision Officer on or about June 20, 2019;

THE STATE OF TEXAS	W16-12037(A)	
	§	IN THE
v	§	CRIMINAL DISTRICT COURT #3
BABAK TAHERZADEH	§	OF DALLAS COUNTY, TEXAS

NOTICE OF APPEAL

TO THE HONORABLE JUDGE OF THE COURT :

Applicant gives this written notice of appeal to the Court of Appeal from order and dismissal rendered against Applicant.

Respectfully Submitted ,
/s/ Babak Taherzadeh
Babak Taherzadeh
Filed Pro Se
babaktaherzadeh@gmail.com
214-676-3833
Babak Taherzadeh
8150 N. Stemmon Frwy. E1057
Dallas, Texas 75247

Certification of Process

I certify that on October 28, 2019 a copy of this document was served on the Dallas County District Attorneys Office by efile or email to DCDAAPPEALS@dallascounty.org & lil'gary.Mcdonald@dallascounty.org

/s/ Babak Taherzadeh
Babak Taherzadeh



**FELICIA PITRE
DALLAS COUNTY DISTRICT CLERK**

NINA MOUNTIQUE
CHIEF DEPUTY

November 01, 2019

To: Court of Criminal Appeals
Deana Williamson, Clerk
P.O.Box 12308
Capitol Station
Austin, Texas 78711-2308

RE: Ex Parte: Babak Taherzadeh
Trial Court No: F16-12037-J
Writ No: W16-12037-J (A)

FELICIA PITRE
DISTRICT CLERK
DALLAS CO., TEXAS
DEPUTY

19 NOV - 1 AM 11:18

In regards to the Clerk's Record:

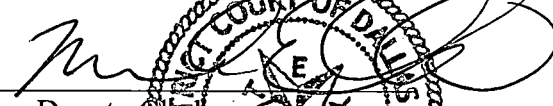
- Relator is currently on community supervision/probation.
- On August 14, 2019 relator filed a petition for writ of habeas corpus. This is applicant's third probation writ.
- On August 16, 2019, the district clerk incorrectly assigned a post-conviction writ number and forwarded it to the state.
- On September 9, 2019, the clerk's office notified the court of the error and that the writ should be treated as a (11.072) probation writ.
- On September 30, 2019, Judge Richard Beacom, Jr., sitting for the presiding judge of the court, issued *Order Finding Non Controverted, Previously Unresolved Factual Issues Requiring a Hearing*.
- Judge Beacom stated in the order that the applicant filed his writ on the state mandated form for post-conviction writs prompting the clerk to assign an erroneous (W-prefix) cause number. Relator did not file his application on the state mandated form, but in the form of a petition. The clerk erred by not assigning a WX-prefix and treating it as a post-conviction writ.
- Judge Beacom in his order notes that the court lacked jurisdiction over the matter because of the incorrect W-prefix cause number. To rectify this, the clerk has issued a new cause number consistent with probation writs: WX19-90873(J). The clerk has notified the court of the same.

Pursuant to Judge Beacom's September 30, 2019 order, the clerk is forwarding the clerk's record to the Court of Criminal Appeals.

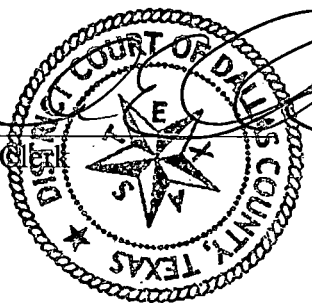
If you have additional questions, you can contact our office at the address below.

Thank you,

Marisela Escamilla
Criminal Support Supervisor
133 N. Riverfront Blvd, LB #12
Dallas, Texas 75207
214-653-5959

By: 

Deputy Clerk



Trial Court # F16-12037 Wx1790064 W1612037A Wx1990873

THE STATE OF TEXAS	δ	CRIMINAL DISTRICT COURT
v.	δ	#3
BABAK TAHERZADEH	δ	DALLAS TEXAS

**MOTION TO DISQUALIFY HONORABLE RICHARD BEACOM
HIS lil BUDDY GARY McDONALD
HONORABLE GRACIE LEWIS & CDC#3 Staff
DIANE JONES-McVAY & JOHN TATUM**

TO THE HONORABLE COURT:

I, Babak Taherzadeh, am defendant, petitioner and appellant and now movant for the Disqualification of The Honorable Richard Beacom., Asst. DA Gary McDonald, Honorable Gracie Lewis & Staff and Diane Jones-McVay. I have been a victim of targeted cruel and unusual punishment. Their investment in my confinement and conviction make them party to this prosecutorial harassment . They are determined to convict and have no ethical or legal bounds.

LEWIS and STAFF

Lewis tactically meddles in cases. _____
_____and I was released from jail on
7-12-2018. A couple days later, it appears but who knows, Judge Lewis issued a summons to appear before her court to answer to a probation violation. Didn't say what. The letter was mailed to a previous address even though i was required to provide where I would be staying and I had just been released they could have called me and let me know. Remember, I am required to get approval of the judge of/ or 292nd District Court , but I can't have any contact with that judge or court because he's my alleged victim. I question the wisdom of assigning my case across the hall after initially assigning it to the alleged victims court. CSO Angel Murphy didn't tell me to go down but she didn't tell me not to. She was either super cryptic or thinks I'm high strung. So was not going a Violation? is a warrant out there?

DISQUALIFICATION

BEACOM

Judge Beacom conducted a hearing 2 days after arrest during a pending competency evaluation when proceeding are supposed to be stayed. Judge Beacom allowed agreements and motions but refused to hear my motion to remedy. He did not sanction and certainly not charge , but not even remedy misconduct not the crime but declined to address a history of false statements resulting in repeated wrongful wrongful arrest. While i had been arrested twice unlawfully.

I spent 5 months in jail and the only time I saw him again was when he, The Honorable Richard Beacom threatened to keep me in jail the length of my sentence unless i agreed to submit to ELM again. The rules, if Judge Beacom were to familiarize himself with them, limit the period of confinement as a condition of community supervision a 180 days and home confinement ELM is considered confinement . I had already spent 8 months on home confinement then 10 days . Then 5 months . And Judge Beacom after 5 months has me agree to ELM for the vague ‘no less than 30 days” . It was interesting DA Gary McDonald was not at the appearance . The State was represented by Mr. Brown the probation coordinator. I was led to believe Asst DA Gary McDonald was removed for my case. I was taken into the courtroom 6-21-2018 and courts probation coordinator was representing the state. The State was represented By Mr. Brown the probation coordinator of CDC#3. Asst DA Gary Mcdonald is a Director of the Dallas Bar Association Gov. Department. and the state was represented by Mr Brown.

GARY McDONALD

An appropriate look at his deeds would expose lil gary to possible criminal charges . He should have a lawyer. Like judge Kemp said you can ’t use the DA’s office . I bet Paul Johnson was about \$100,000 And lil gary did it for.. a favor ? No one goes to someone they respect to pull some nefarious crap like this. He’s a abhorrently vindictive person much like his handler. A smart person would never takes a task like this . Your an errand boy . Seriously, who are you trying to impress?

DISQUALIFICATION

SOME ADVICE/STORY

I know a guy whose business begins with a notification explaining who they are and whats going on.. The process is a process with verification and and copies & images . I asked him how often he has to prove their due diligence . He says,"Babak, I do it for us. I want them to get it. Why wouldn't I want them to get what I'm sending them?'

Why wouldn't Asst. DA Gary McDonald in concert with Lamonica Littles and the Office of Felicia Pitre want me to be informed ?

Seems weird.

I've received one single mailing from the district clerks office. It was a single page dated white letter in a hand written envelope dated august 16 a friday. The postage is metered the following friday. the 23rd . I received it in september .

Judge Beacom and Judge Lewis if you were really respected, no one, no one, would disregard your orders, especially your own personal and clerks. When you ORDER clerk transmit Order and other papers to Court, Defendant and State. They would make sure it was done . Because you ORDERED it and a respected Judge would know it was being done. But if they see your ORDER and it may be , depends on the person, don't really have to... You got no respect.

Prayer

Applicant prays that the bitterness ends . Applicant prays the disqualifications will be solve the problems.

Oath

I, Babak Taherzadeh, swear under penalty of felony the statements in these words are true as I believe .

Respectfully Submitted,
/s/ Babak Taherzadeh
Babak Taherzadeh
Filed Pro Se
8150 N Stemmons
Dallas, Texas 75247

214-676-3833
babaktaherzadeh@gmail.com

DISQUALIFICATION

SUMMONS
Cause No(s):
F1612037J

DALLAS COUNTY, TEXAS

THE STATE OF TEXAS
vs.
BASAK TAHERZADEH
1825 REGAL ROW
DALLAS, TX 75247

This summons may be served on persons summoned by:

1. Delivering a copy personally; or by
2. Leaving it at his/her dwelling house or usual place of abode with a person of suitable age and discretion; or by
3. Mailing it to his last known address. (

SUMMONS

THE STATE OF TEXAS

BASAK TAHERZADEH, YOU ARE HEREBY
COMMANDED to appear in the CDC #3 Court of Dallas
County, Texas, located at 133 North Riverfront Blvd., 6th floor, Dallas Texas on
the 24th day of JULY 2018 at 9:00 AM to answer a charge of
PROBATION VIOLATION filed against you in said Court.

Failure to appear as directed above will result in the issuance of a warrant or
your arrest.

You have the right to have an attorney present in court with you, if you desire.

Given under my official seal of said court of Dallas County, Texas this
17th day of July, A.D., 2018

ATTEST:

[Signature]
Clerk, Dallas County, Texas

[Signature]
JUDGE GRACE LEWIS
CDC #3
Dallas County, Texas

DISQUALIFICATION

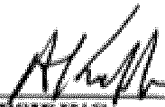
CAUSE NO. F-1612037

STATE OF TEXAS	§	IN THE CRIMINAL
	§	
	§	
Vs.	§	3 rd DISTRICT COURT
	§	
BABAK TAHERZADEH	§	DALLAS COUNTY, TEXAS

ORDER

ON THIS the NOV 20 2017 day of _____, 2017 came on to be heard the
foregoing Motion, and same is hereby (GRANTED) (DENIED). *A qualified investigator*
~~the court will be~~

Appointed. Hours not to exceed \$750.00



JUDGE PRESIDING Andrew J. Kupper
Judge Presiding
By Assignment

DISQUALIFICATION

F1612037-J

TRIAL DOCKET - CRIMINAL DISTRICT COURT - DALLAS COUNTY, TEXAS

CDC 3
F16-12037

NO. F-162037-J

ATTY FOR STATE: MCDONALD

BAIL STATUS: JAIL

STATE OF TEXAS	ATTORNEY	OFFENSE	DATE OF FILING
BABAK A. TAHERZADEH			
SID# TRN		OFF Date: Degree / Statute:	
DATE OF ORDER	ORDER OF COURT		
1-18-18	ORDER FOR MENTAL ILLNESS EXAMINATION BY KRISTI COMPTON; M/COUSSEL TO WITHDRAW GRANTED SINCE NO PENDING MTR. M/ADJUDICATE; ORDER APPOINTING WRIT, ATTORNEY M. GARZA (M) R. ELABOR		
5-31-18	State's Motion to Adjudicate Denied. Defendant continued on probation. Following conditions of probation in addition to standard conditions apply: Defendant to report twice monthly for one year, E/M for 30 days, exclusion zone, no contact with Judge Birmingham and family. Defendant permitted to work at family business and no curfew shall apply. Defendant removed from high risk caseload. Richard A. Pearson		
6-21-18	GARZA 4/18: DEF REFUSES TO BE ELECTRONICALLY MONITORED ON PROBATION. HE WOULD RATHER RETURN TO JAIL THAN BE MONITORED. DEF INTENDS TO FILE NEW WRIT OF H.C. AND MANDAMUS Richard A. Pearson		

Docket

DISQUALIFICATION

9/29/2017

Criminal District Court 292 -- Dallas Voter Guide

Brandon Birmingham:

I most admire Judge Gracie Lewis (Criminal District Court Number 3, Dallas County). I believe that she is tough but fair, knowledgeable, and hard-working. Having practiced in her court for a number of years, I know that she gives both sides a meaningful opportunity to be heard, and is willing to consider well thought out and well researched legal arguments. I pledge to be the same way once elected. I also have a great deal of respect for Judge Mike Snipes (Criminal District Court Number 7, Dallas County). His grasp and knowledge of the rules of evidence and criminal procedure is unparalleled, a trait that I have sought as a practitioner and will continue to seek once elected.

Why are you running for this office?

Brandon Birmingham:

I am running for Judge because I want to make Dallas County a better place to live. At this point in my career, I could have gone out into private practice and made more money. But that's not what I'm about. I have been a civil servant my entire career intent on bringing a fair measure of closure and justice to those victims of violent crime that can't stand up for themselves. Sometimes they've been too young, as in child abuse cases; sometimes they're in an abusive relationship and can't see the truth for themselves; sometimes they fall prey to the dangers of drug abuse, and the inevitable violence stemming therefrom; sometimes they are at the wrong place at the wrong time, the innocent victim to stranger on stranger crimes. I have always objectively gone where the law and the evidence took me, especially cautious of the power and responsibility that comes with being a felony prosecutor. Being a Judge, however, carries the added responsibility of ensuring that the rules are followed so that false convictions do not occur, that each citizen accused of a crime gets a fair trial, and that victims of crimes are made whole again. Also, a Judge must handle non-violent defendants with a view towards reclaiming them to reenter society as productive law-abiding citizens - addressing root causes, not short-sighted quick fixes. Given the type of cases that will come through my court, these decisions are literally life and

Janet Cook:

Lana Myers. There are three (3) primary reasons that I believe make her an outstanding judge and one I would strive to emulate: her judicial temperament, her superb knowledge of the law and her unquestionable integrity and ethics.

Janet Cook:

I think it is critical for judges to be experienced and impartial. I entered this race for the court for those reasons. The judge must evaluate evidence that comes before them and apply that to the law. A judge is not an advocate for one side or the other, but an advocate for justice and fairness. Having practiced law on both sides gives me the proper perspective on cases that a judge must have. That experience is real life experience that is earned by actually doing both sides. A person's experience shapes how they will do a job and my experience as both a prosecutor and defense attorney is ideal for taking the bench as a judge. Independence of the judiciary is also critical. Thomas Jefferson said "the judiciary is a body which, if rendered independent and kept strictly to their own department, merits great confidence for their learning and integrity." I became concerned that the District Attorney wants to tip that independence toward his office and his desires. Nothing could be more unfair than for the Judge to feel that real pressure to favor the District Attorney or else become the new target in the next election. Judges must rule according to the law and the evidence and no other way.

<http://c3.thevoterguide.org/dallas14/race-detail.do?d=12954216>

Relationship with Lewis



Loc. North Tower 4E East, 4th Floor Control Center 4E09

Bookin Number: 16034545

Audit Number: 201633877

APPOINTMENT OF COUNSEL FOR INDIGENT DEFENDANT

The State of Texas

Criminal District Court No. 3 (FJ)

Vs.

District Court

BABAK TAHERZADEH

Dallas County, Texas

Cause No.:

Offense

LD

f1612037

STALKING

F3

It appearing that the defendant has executed a sworn statement certifying that he/she is without means to employ counsel and requesting appointment of counsel; the Court finds that the defendant is indigent and hereby appoints: The Attorney: PAUL JOHNSON

Phone: 214-761-0707 Alt. Phone: 214-202-8461

Email: PJJDOC@AOL.COM

Address: 900 JACKSON STREET, SUITE 650 DALLAS, TX 75202

A practicing attorney of the State to represent the defendant in said case(s).

Signed this 24th day of June, 2016

Gracie H. Lewis

JUDGE

GRACIE LEWIS

DISQUALIFICATION

oc. North Tower 3W West, 3rd Floor Control Center 3W08

Bookin Number: 16034205

Audit Number: 201633132

APPOINTMENT OF COUNSEL FOR INDIGENT DEFENDANT

The State of Texas

292nd Judicial District Court (FV)

/s.

District Court

DASHUN ESTER

Dallas County, Texas

Cause No.:	Offense	LD
F1670470	AA/DW	F2

It appearing that the defendant has executed a sworn statement certifying that he/she
s without means to employ counsel and requesting appointment of counsel; the Court finds
that the defendant is indigent and hereby appoints: The Attorney: PAUL JOHNSON

Phone: 214-761-0707 Alt. Phone: 214-202-8461

Email: PJJDOC@AOL.COM

Address: 900 JACKSON STREET, SUITE 650 DALLAS, TX 75202

A practicing attorney of the State to represent the defendant in said case(s).

Signed this 21st day of June, 2016

JUDGE

Judge Brandon Birmingham

gentAppointmentPD

in custody and he awards Paul Johnson / Pro Tem 292 as well

DISQUALIFICATION

This is a Draft

BABAK TAHERZADEH
(APPELLANT)
v
THE STATE OF TEXAS

§
§
§

W16-12037(A)
COURT OF APPEALS
FIFTH DISTRICT
DALLAS

DRAFT APPEAL

TO THE HONORABLE COURT OF APPEALS :

Babak Taherzadeh, "Appellant" respectfully appeals The Order and Findings of the Criminal District Court #3 of Dallas . The visiting former judge erred making a determination on Appellants Petition for Writ of habeas Corpus without holding evidentiary hearing and Visiting Former Judge Richard Beacom hurriedly untimely and emphatically concludes appellants Petition should be dismissed in a blatant abuse of discretion.

Rendering of Petition

Appellant filed into original case number F16-12037 Petition for Writ of habeas Corpus 8-14-2019 seeking relief from Order to Defer adjudication Community Supervision Dated 12-1-2017 because it is void and a number of other reasons. The Attorneys for the State were delivered copies electronically at the same time. Apparently after a deliberate careful reading, by clerk? Appellants typographical error was exploited with the document affixed not with a file number ancillary to the conviction being challenged as art. 11.07 requires. That doesn't exist . But instead, a flag was figuratively planted on it that read "Pen 11.07 Writ". Yet still again the clerk did not handle the Petition like either 11.07 or 11.072 Writ. Kinda did nothing, I guess, because despite the Visiting Former Judges order to "immediately transmit a copy of this order, the application, any answer filed and all papers filed in this cause to ... (2) Applicant Babak Taherzadeh and .." I haven't received any transmission. Its been nearly thirty days.

The State offered two responses untimely neither handling specifically like one article or other . Then Visiting Former Judge Beacom issued untimely order and erred determining no controverted, previously unresolved factual issues without evidentiary hearing. For Example, the original order was void, null and gone as ruled by trial Judge The Right honorable Kerry Fitzgerald and the Trial court retains jurisdiction for only 80 days . So despite Asst DA Jessie Allens second answer putting forth the ridiculous claim that appellants citations refer to sentence to

Beacom Abuse of Discretion with evidence
deliberate mislabeling with Prosecutors
powerpoint

DISQUALIFICATION

this is a draft

THE STATE OF TEXAS	δ	IN CDC #3
v.	δ	OF
BABAK TAHERZADEH	δ	DALLAS COUNTY, TEXAS

PETITIONERS REPLY TO STATES RESPONSE TO PETITION FOR WRIT OF HABEAS CORPUS

TO THE HONORABLE JUDGE OF THE COURT:

The State misleads the court. This conduct by The State has been criminal at times yet has never been addressed by The Court or remedied . Motions for corrective measures have been made and filed and disregarded by The Court. See Exhibit A . Consequentially The State continues to act with impunity. Immediately in its "Procedural History" of its' 9-16-2019 Response it offers a indictment that includes paragraphs that were removed by order of the court, expands the alleged victim to include the alleged victims family and offers a selective tampered, documents with a crafted case history all to deny Petitioner Writ of Habeas Corpus where petitioner simply seeks examination where the court can justly determine if Petitioner is lawfully restraint. So the Petitioner replies denies and contests the allegations assertions and characterization in The States 9-16-2019 Response and respectfully seeks the Court issue Writ of Habeas Corpus as operation of law under Art 11.072 of TCCP and either assign a time where evidence of the full array of the many many irregularities can be presented in open court or set aside all issues and considering only the following two which alone show petition is not frivolous and petitioner is unlawfully restrained and entitled to relief.

1 of 6

surprise surprise

This is a Draft

BABAK TAHERZADEH		W16-12037(A)
(APPELLANT)	δ	COURT OF APPEALS
v	δ	FIFTH DISTRICT
THE STATE OF TEXAS	δ	DALLAS

DRAFTAPPEAL

TO THE HONORABLE COURT OF APPEALS :

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The State offered two responses untimely neither handling specifically like one article or other . Then Visiting Former Judge Beacom issued untimely order and erred determining no controverted, previously unresolved factual issues without evidentiary hearing. For Example, the Original order was void, null and gone as ruled by trial Judge The Right Honorable Kerry Fitzgerald and theTrial court retains jurisdiction for only 180 days . So despite Asst DA Jessie Allens second answer putting forth the ridiculous claim that appellants citations refer to sentence to

penitentiary and this case is a community supervisionwhaa? With all due respect, i can't even comprehend that level of stupid . And I'm pretty stoopid. But she continues and attempts to reanimate the original void order by claiming when a judge of a court who no longer has jurisdiction signs a order that is void , mind you, because it was signed by judge who had no authoritative jurisdiction, it raises the dead. Couple that with a Judge that apparently attested to things that she did not do, she signs shit blindly and God help us. This all from the Attorneys for the State that previously characterized the signature of a District Court Judge as a "clerical error".

Jurisdiction

Because the trial clerk labeled the petition a 11.07 Writ the trial court should have followed the procedures set forth in article 11.07 and forwarded it to the Court of Criminal appeals which, upon receipt would have returned it because of the courts form requirement (despite Beacoms bizarre references to 11.07 form that i don't believe exists) or dismissed the writ application without prejudice to refilling writ application under article 11.072. The State and the trial court use a mixture of both articles or nothing at all. Because the trial court chose to address the merits of appellants writ application and deny relief on them, this Court has jurisdiction to review the propriety of the order.

PRAYER

Appellant prays that the wheels of democracy get those that abuse the discretion bestowed upon them voted out of office...oh, wait.

Respectfully Submitted ,
/s/ Babak Taherzadeh
Babak Taherzadeh
Filed Pro Se
babaktaherzadeh@gmail.com
214-676-3833
Babak Taherzadeh
8150 N. Stemmon Frwy. E1057
Dallas, Texas 75247

This is a Draft

Certification of Process

I certify that on at some point a copy of this document was served on the Dallas County District Attorneys Office by efile or email to DCDAAPPEALS@dallascounty.org & gary.Mcdonald@dallascounty.org & potentially DickBCum@votedoutofofficeforareason.com

/s/ Babak Taherzadeh
Babak Taherzadeh



**FELICIA PITRE
DALLAS COUNTY DISTRICT CLERK**

August 19, 2019

**To: Court of Criminal Appeals
Deana Williamson, Clerk
P.O. Box 12308
Capitol Station
Austin, Texas 78711-2308**

Clerk's Summary of Document Notification on 11.07 Writs

Ex Parte: Babak Taherzadeh
Trial Court Writ No: W16-12037-J(A)
Case Number: F16-12037-J

Below is a list of documents in which the designated parties on the 11.07 writ case were notified, per the requirements of Texas Rule of Appellate Procedure 73.4.

Document	Date Filed	Date Mailed	Parties Notified	Clerk
Application & Attachments	8/16/19	8/19/19	Applicant, State	Sherifa Ahmed
State Response	9/16/19	9/16/19	Applicant	
Order No Controverted Issue	9/30/19	11/6/19	Applicant	

Sincerely,

Felicia Pitre
Dallas County District Clerk
Given under my hand and seal:



By: Sherifa Ahmed
Sherifa Ahmed

Deputy District Clerk

CLERK'S CERTIFICATION

I, Felicia Pitre, Clerk of the District Courts of Dallas County, Texas do hereby certify that the documents contained in this record to which this certification is attached are all of the document specified by Texas Rule of Appellate Procedure 34.5(a) or Code of Criminal Procedure Section 11.07(3)(a) including all other documents timely requested by a party to this proceeding under Texas Rule of Appellate Procedure 34.5(b). and that have been filed with the trial court clerk, and unless otherwise indicated in this record.

GIVEN UNDER MY HAND AND SEAL at my office in Dallas County, Texas on this: **November 6, 2019**



Clerk Signature: Regina Taylor

Name: **Regina Taylor**